

THE
LIFE
OF
GEORGE WASHINGTON,
COMMANDER IN CHIEF
OF THE
AMERICAN FORCES,
DURING THE WAR WHICH ESTABLISHED THE INDEPENDENCE
OF HIS COUNTRY,
AND
FIRST PRESIDENT
OF THE
UNITED STATES.

COMPILED
UNDER THE INSPECTION OF
THE HONOURABLE BUSHROD WASHINGTON,
FROM
ORIGINAL PAPERS
BEQUEATHED TO HIM BY HIS DECEASED RELATIVE, AND NOW IN POSSESSION
OF THE AUTHOR.

TO WHICH IS PREFIXED,
AN INTRODUCTION,
CONTAINING
A COMPENDIOUS VIEW OF THE COLONIES PLANTED BY THE ENGLISH
ON THE
CONTINENT OF NORTH AMERICA,
FROM THEIR SETTLEMENT
TO THE COMMENCEMENT OF THAT WAR WHICH TERMINATED IN THEIR
INDEPENDENCE.

BY JOHN MARSHALL.

VOL. V.

THE CITIZENS' GUILD
OF WASHINGTON'S BOYHOOD HOME
FREDERICKSBURG, VA.

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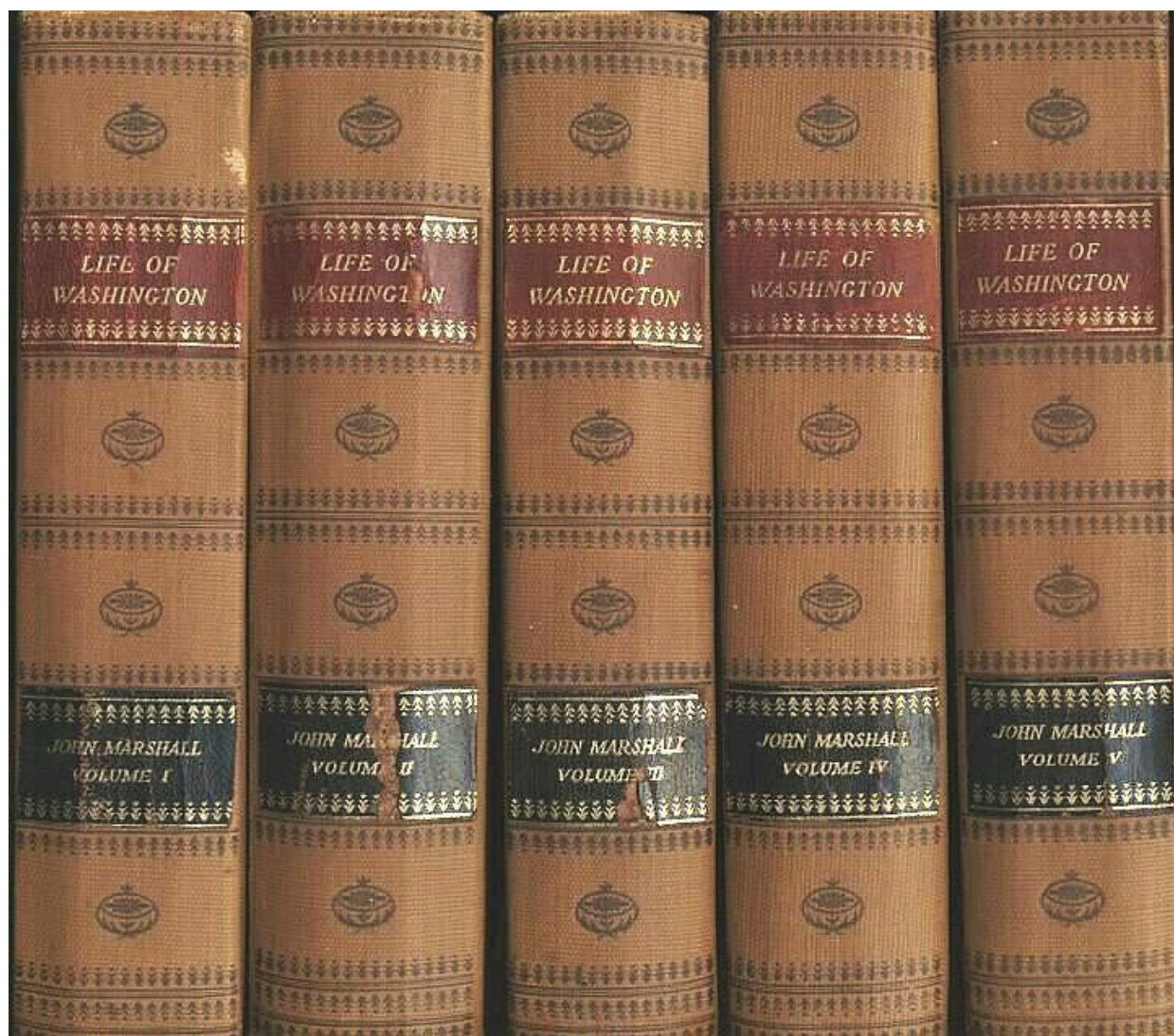
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GEORGE WASHINGTON, VOL. 5 ***

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President Washington

From the portrait by John Vanderlyn, in the Capitol at Washington

This full-length portrait of our First President is the work of an artist to whom Napoleon I awarded a gold medal for his "Marius Among the Ruins of Carthage," and another of whose masterpieces, "Ariadne in Naxos," is pronounced one of the finest nudes in the history of American art. For Vanderlyn sat many other notable public men, including Monroe, Madison, Calhoun, Clinton, Zachary Taylor and Aaron Burr, who was his patron and whose portrait by Vanderlyn hangs in the New York Metropolitan Museum of

Art. Nevertheless, Vanderlyn failed in achieving the success his genius merited, and he once declared bitterly that "no one but a professional quack can live in America." Poverty paralyzed his energies, and in 1852, old and discouraged he retired to his native town of Kingston, New York, so poor that he had to borrow twenty-five cents to pay the expressage of his trunk. Obtaining a bed at the local hotel, he was found dead in it the next morning, in his seventy-seventh year.

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THIS SET OF THE
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OF THE AUTHORIZED LIFE OF

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ISSUED IN ITS ORIGINAL
FORMAT, BUT WITH THE
TEXT OF THE REVISED
EDITION, HAS BEEN

SPECIALLY PREPARED

FOR

Clementina K. Shreiber

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THE LIFE

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CHAPTER I.

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1793

THE term for which the President and Vice President had been elected being about to expire on the third of March, the attention of the public had been directed to the choice of persons who should fill those high offices for the ensuing four years. Respecting the President, but one opinion prevailed. From various motives, all parties concurred in desiring that the present chief magistrate should continue to afford his services to his country. Yielding to the weight of the representations made to him from various quarters, General Washington had been prevailed upon to withhold a declaration, he had at one time purposed to make, of his determination to retire from political life.

Respecting the person who should fill the office of Vice President, the public was divided. The profound statesman who had been called to the duties of that station, had drawn upon himself a great degree of obloquy, by some political tracts, in which he had laboured to maintain the proposition that a

balance in government was essential to the preservation of liberty. In these disquisitions, he was supposed by his opponents to have discovered sentiments in favour of distinct orders in society; and, although he had spoken highly of the constitution of the United States, it was imagined that his balance could be maintained only by hereditary classes. He was also understood to be friendly to the system of finance which had been adopted; and was believed to be among the few who questioned the durability of the French republic. His great services, and acknowledged virtues, were therefore disregarded; and a competitor was sought for among those who had distinguished themselves in the opposition. The choice was directed from Mr. Jefferson by a constitutional restriction on the power of the electors, which would necessarily deprive him of the vote to be given by Virginia. It being necessary to designate some other opponent to Mr. Adams, George Clinton, the governor of New York, was selected for this purpose.

Throughout the war of the revolution, this gentleman had filled the office of chief magistrate of his native state; and, under circumstances of real difficulty, had discharged its duties with a courage, and an energy, which secured the esteem of the Commander-in-chief, and gave him a fair claim to the favour of his country. Embracing afterwards with ardour the system of state supremacy, he had contributed greatly to the rejection of the resolutions for investing congress with the power of collecting an impost on imported goods, and had been conspicuous for his determined hostility to the constitution of the United States. His sentiments respecting the measures of the government were known to concur with those of the minority in congress.

George Washington again unanimously elected president.

Both parties seemed confident in their strength; and both made the utmost exertions to insure success. On opening the ballots in the senate chamber, it appeared that the unanimous suffrage of his country had been once more conferred on General Washington, and that Mr. Adams had received a plurality of the votes.

The unceasing endeavours of the executive to terminate the Indian war by a treaty, had at length succeeded with the savages of the Wabash; and, through the intervention of the Six Nations, those of the Miamis had also been induced to consent to a conference to be held in the course of the ensuing

spring. Though probability was against the success of this attempt to restore peace, all offensive operations, on the part of the United States, were still farther suspended. The Indians did not entirely abstain from hostilities; and the discontents of the western people were in no small degree increased by this temporary prohibition of all incursions into the country of their enemy. In Georgia, where a desire to commence hostilities against the southern Indians had been unequivocally manifested, this restraint increased the irritation against the administration.

The Indian war was becoming an object of secondary magnitude. The critical and irritable state of things in France began so materially to affect the United States, as to require an exertion of all the prudence, and all the firmness, of the government. The 10th^[1] of August, 1792, was succeeded in that nation by such a state of anarchy, and by scenes of so much blood and horror; the nation was understood to be so divided with respect to its future course; and the republican party was threatened by such a formidable external force; that there was much reason to doubt whether the fallen monarch would be finally deposed, or reinstated with a greater degree of splendour and power than the constitution just laid in ruins, had assigned to him. That, in the latter event, any partialities which might be manifested towards the intermediate possessors of authority, would be recollected with indignation, could not be questioned by an attentive observer of the vindictive spirit of parties;—a spirit which the deeply tragic scenes lately exhibited, could not fail to work up to its highest possible pitch. The American minister at Paris, finding himself in a situation not expected by his government, sought to pursue a circumspect line of conduct, which should in no respect compromise the United States. The executive council of France, disappointed at the coldness which that system required, communicated their dissatisfaction to their minister at Philadelphia. At the same time, Mr. Morris made full representations of every transaction to his government, and requested explicit instructions for the regulation of his future conduct.

The administration entertained no doubt of the propriety of recognizing the existing authority of France, whatever form it might assume. That every nation possessed a right to govern itself according to its own will, to change its institutions at discretion, and to transact its business through whatever agents it might think proper, were stated to Mr. Morris to be principles on which the American government itself was founded, and the application of

which could be denied to no other people. The payment of the debt, so far as it was to be made in Europe, might be suspended only until the national convention should authorize some power to sign acquittances for the monies received; and the sums required for St. Domingo would be immediately furnished. These payments would exceed the instalments which had fallen due; and the utmost punctuality would be observed in future. These instructions were accompanied with assurances that the government would omit no opportunity of convincing the French people of its cordial wish to serve them; and with a declaration that all circumstances seemed to destine the two nations for the most intimate connexion with each other. It was also pressed upon Mr. Morris to seize every occasion of conciliating the affections of France to the United States, and of placing the commerce between the two countries on the best possible footing.^[2]

The feelings of the President were in perfect unison with the sentiments expressed in this letter. His attachment to the French nation was as strong, as consistent with a due regard to the interests of his own; and his wishes for its happiness were as ardent, as was compatible with the duties of a chief magistrate to the state over which he presided. Devoted to the principles of real liberty, and approving unequivocally the republican form of government, he hoped for a favourable result from the efforts which were making to establish that form, by the great ally of the United States; but was not so transported by those efforts, as to involve his country in their issue; or totally to forget that those aids which constituted the basis of these partial feelings, were furnished by the family whose fall was the source of triumph to a large portion of his fellow citizens.

He therefore still preserved the fixed purpose of maintaining the neutrality of the United States, however general the war might be in Europe; and his zeal for the revolution did not assume so ferocious a character as to silence the dictates of humanity, or of friendship.

Not much time elapsed before the firmness of this resolution was put to the test.

War between Great Britain and France.

Early in April, the declaration of war made by France against Great Britain and Holland reached the United States. This event restored full vivacity to a flame, which a peace of ten years had not been able to extinguish. A great

majority of the American people deemed it criminal to remain unconcerned spectators of a conflict between their ancient enemy and republican France. The feeling upon this occasion was almost universal. Men of all parties partook of it. Disregarding totally the circumstances which led to the rupture, except the order which had been given to the French minister to leave London, and disregarding equally the fact that actual hostilities were first commenced by France, the war was confidently and generally pronounced a war of aggression on the part of Great Britain, undertaken with the sole purpose of imposing a monarchical government on the French people. The few who did not embrace these opinions, and they were certainly very few, were held up as objects of public detestation; and were calumniated as the tools of Britain, and the satellites of despotism.

Yet the disposition to engage in the war, was far from being general. The inclination of the public led to a full indulgence of the most extravagant partiality; but not many were willing to encounter the consequences which that indulgence would infallibly produce. The situation of America was precisely that, in which the wisdom and foresight of a prudent and enlightened government, was indispensably necessary to prevent the nation from inconsiderately precipitating itself into calamities, which its reflecting judgment would avoid.

As soon as intelligence of the rupture between France and Britain was received in the United States, indications were given in some of the seaports, of a disposition to engage in the unlawful business of privateering on the commerce of the belligerent powers. The President was firmly determined to suppress these practices, and immediately requested the attention of the heads of departments to this interesting subject.

Queries put by the president to his cabinet in relation to the conduct proper to be adopted by the American government in consequence of this event.

As the new and difficult situation in which the United States were placed suggested many delicate inquiries, he addressed a circular letter to the cabinet ministers, inclosing for their consideration a well digested series of questions, the answers to which would form a complete system by which to regulate the conduct of the executive in the arduous situations which were approaching.[3]

These queries, with some of the answers of them, though submitted only to the cabinet, found their way to the leading members of the opposition; and were among the unacknowledged but operating pieces of testimony, on which the charge against the administration, of cherishing dispositions unfriendly to the French republic, was founded. In taking a view of the whole ground, points certainly occurred, and were submitted to the consideration of the cabinet, on which neither the chief magistrate nor his ministers felt any doubt. But the introduction of questions relative to these points, among others with which they were intimately connected, would present a more full view of the subject, and was incapable of producing any mischievous effect, while they were confined to those for whom alone they were intended.

In the meeting of the heads of departments and the attorney general, which was held in consequence of this letter, it was unanimously agreed, that a proclamation ought to issue, forbidding the citizens of the United States to take part in any hostilities on the seas, with, or against, any of the belligerent powers; warning them against carrying to any of those powers articles deemed contraband according to the modern usages of nations; and enjoining them from all acts inconsistent with the duties of a friendly nation towards those at war.

With the same unanimity, the President was advised to receive a minister from the republic of France; but, on the question respecting a qualification to his reception, a division was perceived. The secretary of state and the attorney general were of opinion, that no cause existed for departing in the present instance from the usual mode of acting on such occasions. The revolution in France, they conceived, had produced no change in the relations between the two nations; nor was there any thing in the alteration of government, or in the character of the war, which would impair the right of France to demand, or weaken the duty of the United States faithfully to comply with the engagements which had been solemnly formed.

The secretaries of the treasury, and of war, held a different opinion. Admitting in its fullest latitude the right of a nation to change its political institutions according to its own will, they denied its right to involve other nations, *absolutely and unconditionally*, in the consequences of the changes which it may think proper to make. They maintained the right of a nation to absolve itself from the obligations even of real treaties, when such a change

of circumstances takes place in the internal situation of the other contracting party, as so essentially to alter the existing state of things, that it may with good faith be pronounced to render a continuance of the connexion which results from them, disadvantageous or dangerous.

They reviewed the most prominent of those transactions which had recently taken place in France, and noticed the turbulence, the fury, and the injustice with which they were marked. The Jacobin club at Paris, whose influence was well understood, had even gone so far, previous to the meeting of the convention, as to enter into measures with the avowed object of purging that body of those persons, favourers of royalty, who might have escaped the attention of the primary assemblies. This review was taken, to show that the course of the revolution had been attended with circumstances which militate against a full conviction of its having been brought to its present stage, by such a free, regular, and deliberate act of the nation, as ought to silence all scruples about the validity of what had been done. They appeared to doubt whether the present possessors of power ought to be considered as having acquired it with the real consent of France, or as having seized it by violence;—whether the existing system could be considered as permanent, or merely temporary.

They were therefore of opinion, not that the treaties should be annulled or absolutely suspended, but that the United States should reserve, for future consideration and discussion, the question whether the operation of those treaties ought not to be deemed temporarily and provisionally suspended. Should this be the decision of the government, they thought it due to a spirit of friendly and candid procedure, in the most conciliating terms, to apprise the expected minister of this determination.

On the questions relative to the application of the clause of guarantee to the existing war, some diversity of sentiment also prevailed. The secretary of state and the attorney general conceived, that no necessity for deciding thereon existed, while the secretaries of the treasury, and of war, were of opinion that the treaty of alliance was plainly defensive, and that the clause of guarantee did not apply to a war which, having been commenced by France, must be considered as offensive on the part of that power.

Against convening congress, the opinion appears to have been unanimous.

The cabinet being thus divided on an important part of the system which, in the present critical posture of affairs, ought to be adopted by the executive, the President signified his desire that the ministers would respectively state to him in writing the opinions they had formed, together with the reasoning and authorities by which those opinions were supported.

The written arguments which were presented on this occasion, while they attest the labour, and reflect honour on the talents of those by whom they were formed, and evince the equal sincerity and zeal with which the opinions on each side were advanced, demonstrate an opposition of sentiment respecting the French revolution, which threatened to shed its influence on all measures connected with that event, and to increase the discord which already existed in the cabinet.

So far as respected the reception of a minister from the French republic without qualifying that act by any explanations, and the continuing obligation of the treaties, the President appears to have decided in favour of the opinions given by the secretary of state and the attorney general.

Proclamation of neutrality.

The proclamation of neutrality which was prepared by the attorney general, in conformity with the principles which had been adopted, was laid before the cabinet; and, being approved, was signed by the President, and ordered to be published.

This measure derives importance from the consideration, that it was the commencement of that system to which the American government afterwards inflexibly adhered, and to which much of the national prosperity is to be ascribed. It is not less important in another view. Being at variance with the prejudices, the feelings, and the passions of a large portion of the society, and being founded on no previous proceedings of the legislature, it presented the first occasion, which was thought a fit one, for openly assaulting a character, around which the affections of the people had thrown an armour theretofore deemed sacred, and for directly criminating the conduct of the President himself. It was only by opposing passions to passions, by bringing the feeling in favour of France, into conflict with those in favour of the chief magistrate, that the enemies of the administration could hope to obtain the victory.

For a short time, the opponents of this measure treated it with some degree of delicacy. The opposition prints occasionally glanced at the executive; considered all governments, including that of the United States, as naturally hostile to the liberty of the people; and ascribed to this disposition, the combination of European governments against France, and the apathy with which this combination was contemplated by the executive. At the same time, the most vehement declamations were published, for the purpose of inflaming the resentments of the people against Britain; of enhancing the obligations of America to France; of confirming the opinions, that the coalition of European monarchs was directed, not less against the United States, than against that power to which its hostility was avowed, and that those who did not avow this sentiment were the friends of that coalition, and equally the enemies of America and France.

These publications, in the first instance, sufficiently bitter, quickly assumed a highly increased degree of acrimony.

As soon as the commotions which succeeded the deposition of Louis XVI. had, in some degree, subsided, the attention of the French government was directed to the United States, and the resolution was taken to recall the minister who had been appointed by the king; and to replace him with one who might be expected to enter, with more enthusiasm, into the views of the republic.[\[4\]](#)

The citizen Genet, a gentleman of considerable talents, and of an ardent temper, was selected for this purpose.

The letters he brought to the executive of the United States, and his instructions, which he occasionally communicated, were, in a high degree, flattering to the nation, and decently respectful to its government. But Mr. Genet was also furnished with private instructions, which the course of subsequent events tempted him to publish. These indicate that, if the American executive should not be found sufficiently compliant with the views of France, the resolution had been taken to employ with the people of the United States the same policy which was so successfully used with those of Europe; and thus to affect an object which legitimate negotiations might fail to accomplish.

**Arrival of Mr. Genet as minister from France.
His conduct.**

Mr. Genet possessed many qualities which were peculiarly adapted to the objects of his mission; but he seems to have been betrayed by the flattering reception which was given him, and by the universal fervour expressed for his republic, into a too speedy disclosure of his intentions.

On the eighth of April he arrived, not at Philadelphia, but at Charleston, in South Carolina, a port whose contiguity to the West Indies would give it peculiar convenience as a resort for privateers. He was received by the governor of that state, and by its citizens, with an enthusiasm well calculated to dissipate every doubt he might previously have entertained, concerning the dispositions on which he was to operate. At this place he continued for several days, receiving extravagant marks of public attachment, during which time, he undertook to authorize the fitting and arming of vessels in that port, enlisting men, and giving commissions to cruise and commit hostilities on nations with whom the United States were at peace. The captures made by these cruisers were brought into port, and the consuls of France were assuming, under the authority of Mr. Genet, to hold courts of admiralty on them, to try, condemn, and authorize their sale.

From Charleston, Mr. Genet proceeded by land to Philadelphia, receiving on his journey, at the different towns through which he passed, such marks of enthusiastic attachment as had never before been lavished on a foreign minister. On the 16th of May, he arrived at the seat of government, preceded by the intelligence of his transactions in South Carolina. This information did not diminish the extravagant transports of joy with which he was welcomed by the great body of the inhabitants. Means had been taken to render his entry pompous and triumphal; and the opposition papers exultingly stated that he was met at Gray's ferry by "crowds who flocked from every avenue of the city, to meet the republican ambassador of an allied nation."

The day succeeding his arrival, he received addresses of congratulation from particular societies, and from the citizens of Philadelphia, who waited on him in a body, in which they expressed their fervent gratitude for the "zealous and disinterested aids," which the French people had furnished to America, unbounded exultation at the success with which their arms had been crowned, and a positive conviction that the safety of the United States depended on the establishment of the republic. The answers to these

addresses were well calculated to preserve the idea of a complete fraternity between the two nations; and that their interests were identified.

The day after being thus accredited by the citizens of Philadelphia, he was presented to the President, by whom he was received with frankness, and with expressions of a sincere and cordial regard for his nation. In the conversation which took place on this occasion, Mr. Genet gave the most explicit assurances that, in consequence of the distance of the United States from the theatre of action, and of other circumstances, France did not wish to engage them in the war, but would willingly leave them to pursue their happiness and prosperity in peace. The more ready faith was given to these declarations, because it was believed that France might derive advantages from the neutrality of America, which would be a full equivalent for any services which she could render as a belligerent.

Before the ambassador of the republic had reached the seat of government, a long catalogue of complaints, partly founded on his proceedings in Charleston, had been made by the British minister to the American executive.

This catalogue was composed of the assumptions of sovereignty already mentioned;—assumptions calculated to render America an instrument of hostility to be wielded by France against those powers with which she might be at war.

Illegal proceedings of the French cruisers.

These were still further aggravated by the commission of actual hostilities within the territories of the United States. The ship *Grange*, a British vessel which had been cleared out from Philadelphia, was captured by the French frigate *L'Ambuscade* within the capes of the Delaware, while on her way to the ocean.

The prizes thus unwarrantly made, being brought within the power of the American government, Mr. Hammond, among other things, demanded a restitution of them.

On many of the points suggested by the conduct of Mr. Genet, and by the memorials of the British minister, it would seem impossible that any difference of opinion could exist among intelligent men, not under the

dominion of a blind infatuation. Accordingly it was agreed in the cabinet, without a dissenting voice, that the jurisdiction of every independent nation, within the limits of its own territory, being of a nature to exclude the exercise of any authority therein by a foreign power, the proceedings complained of, not being warranted by any treaty, were usurpations of national sovereignty, and violations of neutral rights, a repetition of which it was the duty of the government to prevent.

It was also agreed that the efficacy of the laws should be tried against those citizens of the United States who had joined in perpetrating the offence.

Opinions of the Cabinet in relation thereto.

The question of restitution, except as to the Grange, was more dubious. The secretary of state and the attorney general contended that, if the commissions granted by Mr. Genet were invalid, the captures were totally void, and the courts would adjudge the property to remain in the former owners. In this point of view, therefore, there being a regular remedy at law, it would be irregular for the government to interpose.

If, on the contrary, the commissions were good, then, the captures having been made on the high seas, under a valid commission from a power at war with Great Britain, the original right of the British owner was, by the laws of war, transferred to the captor.

The legal right being in the captor, it could only be taken from him by an act of force, that is to say, of reprisal for the offence committed against the United States in the port of Charleston. Reprisal is a very serious thing, ought always to be preceded by a demand and refusal of satisfaction, is generally considered as an act of war, and never yet failed to produce it in the case of a nation able to make war.



Martha Washington

From the portrait by James Sharples

This is one of the three Sharples portraits of the Washington family and the only good profile of Martha Washington that was painted from life. Martha, who was a few months younger than her husband, is described as having been "amiable in character and lovely in person." By the courtesy of the period she was called Lady Washington, and whether in her own home or at the "federal court," she presided with marked dignity and grace. She died at Mount Vernon, May 22, 1802, having survived her husband two and a half years.

Courtesy Herbert L. Pratt

Admitting the case to be of sufficient importance to require reprisal, and to be ripe for that step, the power of taking it was vested by the constitution in congress, not in the executive department of the government.

Of the reparation for the offence committed against the United States, they were themselves the judges, and could not be required by a foreign nation, to demand more than was satisfactory to themselves. By disavowing the act, by taking measures to prevent its repetition, by prosecuting the American citizens who were engaged in it, the United States ought to stand justified with Great Britain; and a demand of further reparation by that power would be a wrong on her part.

The circumstances under which these equipments had been made, in the first moments of the war, before the government could have time to take precautions against them, and its immediate disapprobation of those equipments, must rescue it from every imputation of being accessory to them, and had placed it with the offended, not the offending party.

Those gentlemen were therefore of opinion, that the vessels which had been captured on the high seas, and brought into the United States, by privateers fitted out and commissioned in their ports, ought not to be restored.

The secretaries of the treasury, and of war, were of different opinion. They urged that a neutral, permitting itself to be made an instrument of hostility by one belligerent against another, became thereby an associate in the war. If land or naval armaments might be formed by France within the United States, for the purpose of carrying on expeditions against her enemy, and might return with the spoils they had taken, and prepare new enterprises, it was apparent that a state of war would exist between America and those enemies, of the worst kind for them: since, while the resources of the country were employed in annoying them, the instruments of this annoyance would be occasionally protected from pursuit, by the privileges of an ostensible neutrality. It was easy to see that such a state of things could not be tolerated longer than until it should be perceived.

It being confessedly contrary to the duty of the United States, as a neutral nation, to suffer privateers to be fitted in their ports to annoy the British trade, it seemed to follow that it would comport with their duty, to remedy the injury which may have been sustained, when it is in their power so to do.

That the fact had been committed before the government could provide against it might be an excuse, but not a justification. Every government is responsible for the conduct of all parts of the community over which it presides, and is supposed to possess, at all times, the means of preventing infractions of its duty to foreign nations. In the present instance, the magistracy of the place ought to have prevented them. However valid this excuse might have been, had the privateers expedited from Charleston been sent to the French dominions, there to operate out of the reach of the United States, it could be of no avail when their prizes were brought into the American ports, and the government, thereby, completely enabled to administer a specific remedy for the injury.

Although the commissions, and the captures made under them, were valid as between the parties at war, they were not so as to the United States. For the violation of their rights, they had a claim to reparation, and might reasonably demand, as the reparation to which they were entitled, restitution of the property taken, with or without an apology for the infringement of their sovereignty. This they had a right to demand as a species of reparation consonant with the nature of the injury, and enabling them to do justice to the party in injuring whom they had been made instrumental. It could be no just cause of complaint on the part of the captors that they were required to surrender a property, the means of acquiring which took their origin in a violation of the rights of the United States.

On the other hand, there was a claim on the American government to arrest the effects of the injury or annoyance to which it had been made accessory. To insist therefore on the restitution of the property taken, would be to enforce a right, in order to the performance of a duty.

These commissions, though void as to the United States, being valid as between the parties, the case was not proper for the decision of the courts of justice. The whole was an affair between the governments of the parties concerned, to be settled by reasons of state, not rules of law. It was the case of an infringement of national sovereignty to the prejudice of a third party, in which the government was to demand a reparation, with the double view of vindicating its own rights, and of doing justice to the suffering party.

They, therefore, were of opinion that, in the case stated for their consideration, restitution ought to be made.

On the point respecting which his cabinet was divided, the President took time to deliberate. Those principles on which a concurrence of sentiment had been manifested being considered as settled, the secretary of state was desired to communicate them to the ministers of France and Britain; and circular letters were addressed to the executives of the several states, requiring their co-operation, with force if necessary, in the execution of the rules which were established.

The citizen Genet was much dissatisfied with these decisions of the American government. He thought them contrary to natural right, and subversive of the treaties by which the two nations were connected. In his exposition of these treaties, he claimed, for his own country, all that the two nations were restricted from conceding to others, thereby converting negative limitations into an affirmative grant of privileges to France.

Without noticing a want of decorum in some of the expressions which Mr. Genet had employed, he was informed that the subjects on which his letter treated had, from respect to him, been reconsidered by the executive; but that no cause was perceived for changing the system which had been adopted. He was further informed that, in the opinion of the President, the United States owed it to themselves, and to the nations in their friendship, to expect, as a reparation for the offence of infringing their sovereignty, that the vessels, thus illegally equipped, would depart from their ports.

Mr. Genet was not disposed to acquiesce in these decisions. Adhering to his own construction of the existing treaty, he affected to consider the measures of the American government as infractions of it, which no power in the nation had a right to make, unless the United States in congress assembled should determine that their solemn engagements should no longer be performed. Intoxicated with the sentiments expressed by a great portion of the people, and unacquainted with the firm character of the executive, he seems to have expected that the popularity of his nation would enable him to overthrow that department, or to render it subservient to his views. It is difficult otherwise to account for his persisting to disregard its decisions, and for passages with which his letters abound, such as the following:

"Every obstruction by the government of the United States to the arming of French vessels must be an attempt on the rights of man, upon which repose the independence and laws of the United States; a violation of the ties which

unite the people of France and America; and even a manifest contradiction of the system of neutrality of the President; for, in fact, if our merchant vessels, [5] or others, are not allowed to arm themselves, when the French alone are resisting the league of all the tyrants against the liberty of the people, they will be exposed to inevitable ruin in going out of the ports of the United States, which is certainly not the intention of the people of America. Their fraternal voice has resounded from every quarter around me, and their accents are not equivocal. They are pure as the hearts of those by whom they are expressed, and the more they have touched my sensibility, the more they must interest in the happiness of America the nation I represent;—the more I wish, sir, that the federal government should observe, as far as in their power, the public engagements contracted by both nations; and that, by this generous and prudent conduct, they will give at least to the world, the example of a true neutrality, which does not consist in the cowardly abandonment of their friends in the moment when danger menaces them, but in adhering strictly, if they can do no better, to the obligations they have contracted with them. It is by such proceedings that they will render themselves respectable to all the powers; that they will preserve their friends and deserve to augment their numbers."

A few days previous to the reception of the letter from which the above is an extract, two citizens of the United States, who had been engaged by Mr. Genet in Charleston to cruise in the service of France, were arrested by the civil magistrate, in pursuance of the determination formed by the executive for the prosecution of persons having thus offended against the laws. Mr. Genet demanded their release in the following extraordinary terms:

"I have this moment been informed that two officers in the service of the republic of France, citizen Gideon Henfield and John Singletary, have been arrested on board the privateer of the French republic, the Citizen Genet, and conducted to prison. The crime laid to their charge—the crime which my mind can not conceive, and which my pen almost refuses to state,—is the serving of France, and defending with her children the common glorious cause of liberty.

"Being ignorant of any positive law or treaty which deprives Americans of this privilege, and authorizes officers of police arbitrarily to take mariners in the service of France from on board their vessels, I call upon your intervention, sir, and that of the President of the United States, in order to

obtain the immediate releasement of the above mentioned officers, who have acquired, by the sentiments animating them, and by the act of their engagement, anterior to every act to the contrary, the right of French citizens, if they have lost that of American citizens."

This lofty offensive style could not fail to make a deep impression on a mind penetrated with a just sense of those obligations by which the chief magistrate is bound to guard the dignity of his government, and to take care that his nation be not degraded in his person. Yet, in no single instance, did the administration, in its communications with Mr. Genet, permit itself to be betrayed into the use of one intemperate expression. The firmness with which the extravagant pretensions of that gentleman were resisted, proceeding entirely from a sense of duty and conviction of right, was unaccompanied with any marks of that resentment which his language and his conduct were alike calculated to inspire.

State of parties.

Mr. Genet appears to have been prevented from acquiescing in a line of conduct thus deliberately adopted and prudently pursued, by a belief that the sentiments of the people were in direct opposition to the measures of their government. So excessive, and so general, were the demonstrations of enthusiastic devotion to France; so open were their expressions of outrage and hostility towards all the powers at war with that republic; so thin was the veil which covered the chief magistrate from that stream of malignant opprobrium directed against every measure which thwarted the views of Mr. Genet; that a person less sanguine than that minister might have cherished the hope of being able ultimately to triumph over the opposition to his designs. Civic festivals, and other public assemblages of people, at which the ensigns of France were displayed in union with those of America; at which the red cap, as a symbol of French liberty and fraternity, triumphantly passed from head to head; at which toasts were given expressive of a desire to identify the people of America with those of France; and, under the imposing guise of adhering to principles not to men, containing allusions to the influence of the President which could not be mistaken; appeared to Mr. Genet to indicate a temper extremely favourable to his hopes, and very different from that which would be required for the preservation of an honest neutrality. Through the medium of the press, these sentiments were communicated to the public, and were represented as flowing from the hearts

of the great body of the people. In various other modes, that important engine contributed its powerful aid to the extension of opinions, calculated, essentially, to vary the situation of the United States. The proclamation of neutrality which was treated as a royal edict, was not only considered as assuming powers not belonging to the executive, and, as evidencing the monarchical tendencies of that department, but as demonstrating the disposition of the government to break its connexions with France, and to dissolve the friendship which united the people of the two republics. The declaration that "the duty and interest of the United States required that they should with sincerity and good faith adopt and pursue a conduct friendly and impartial towards the belligerent powers," gave peculiar umbrage. The scenes of the revolutionary war were brought into review; the object and effect of British hostility were painted in glowing colours; and the important aids afforded by France were drawn with a pencil not less animated. That the conduct of Britain, since the treaty of peace had furnished unequivocal testimony of enmity to the United States, was strongly pressed. With this continuing enmity was contrasted the amicable dispositions professed by the French republic; and it was asked with indignation, whether the interests of the United States required that they should pursue "a line of conduct entirely impartial between these two powers? That the services of the one as well as the injuries of the other, should be forgotten? that a friend and an enemy should be treated with equal favour? and that neither gratitude nor resentment should constitute a feature of the American character?" The supposed freedom of the French was opposed to the imagined slavery of the English; and it was demanded whether "the people of America were alike friendly to republicanism and to monarchy? to liberty and to despotism?"

With infectious enthusiasm it was contended, that there was a natural and inveterate hostility between monarchies and republics; that the present combination against France was a combination against liberty in every part of the world; and that the destinies of America were inseparably linked with those of the French republic.

On the various points of controversy which had arisen between the executive and Mr. Genet, this active and powerful party openly and decidedly embraced the principles for which that minister contended. It was assumed that his demands were sanctioned by subsisting treaties, and that his exposition of those instruments was perfectly correct. The conduct of the

executive in withholding privileges to which France was said to be entitled by the most solemn engagements, was reprobated with extreme acrimony; was considered as indicative of a desire to join the coalesced despots in their crusade against liberty; and as furnishing to the French republic such just motives for war, that it required all her moderation and forbearance to restrain her from declaring it against the United States.

Mr. Genet was exhorted not to relax in his endeavours to maintain the just rights of his country; and was assured that, in the affections of the people, he would find a firm and certain support.

These principles and opinions derived considerable aid from the labours and intrigues of certain societies, who had constituted themselves the guardians of American liberty.

The manner in which that attention of the conduct of those invested with the power which is essential in balanced governments, may safely be employed, had been so misconceived, that temporary and detached clubs of citizens had occasionally been formed in different parts of the United States, for the avowed purpose of watching the conduct of their rulers. After the adoption of the constitution, some slight use was made, by its enemies, of this weapon; and, in the German Republican Society particularly, many of the most strenuous opponents of the administration were collected.

Democratic societies formed.

The force and power of these institutions had been fully developed, and their efficacy in prostrating existing establishments clearly ascertained by the revolution in France. The increased influence which they derived from corresponding with each other, had been unequivocally demonstrated; and soon after the arrival of Mr. Genet, a democratic society was formed in Philadelphia on the model of the Jacobin club in Paris. An anxious solicitude for the preservation of freedom, the very existence of which was menaced by a "European confederacy transcendent in power and unparalleled in iniquity;" which was endangered also by "the pride of wealth and arrogance of power," displayed within the United States; was the motive assigned for the association. "A constant circulation of useful information, and a liberal communication of republican sentiments, were thought to be the best antidotes to any political poison with which the vital principle of civil liberty might be attacked:" and to give the more extensive operation to their labours,

a corresponding committee was appointed, through whom they would communicate with other societies, which might be established on similar principles, throughout the United States.

Faithful to their founder, and true to the real objects of their association, these societies continued, during the term of their existence, to be the resolute champions of all the encroachments attempted by the agents of the French republic on the government of the United States, and the steady defamers of the views and measures of the American executive.

Thus strongly supported, Mr. Genet persisted in his construction of the treaties between the two nations; and, in defiance of the positive determination of the government, continued to act according to that construction.

The President was called to Mount Vernon by urgent business, which detained him less than three weeks; and, in his absence, the heads of departments superintended the execution of those rules which had been previously established.

In this short interval, a circumstance occurred, strongly marking the rashness of the minister of France, and his disrespect to the executive of the United States.

The Little Sarah, an English merchantman, had been captured by a French frigate, and brought into the port of Philadelphia, where she was completely equipped as a privateer, and was just about to sail on a cruise under the name of *le petit Democrat*, when the secretary of the treasury communicated her situation to the secretaries of state and of war; in consequence of which, Governor Mifflin was desired to cause an examination of the fact. The warden of the port was directed to institute the proper inquiries; and late in the evening of the sixth of July, he reported her situation, and that she was to sail the next day.

Genet calculates upon the partialities of the American people for France and openly insults their government.

In pursuance of the instructions which had been given by the President, the governor immediately sent Mr. Secretary Dallas for the purpose of prevailing on Mr. Genet to relieve him from the employment of force, by

detaining the vessel in port until the arrival of the President, who was then on his way from Mount Vernon. Mr. Dallas communicated this message to the French minister in terms as conciliatory as its nature would permit. On receiving it, he gave a loose to the most extravagant passion. After exclaiming with vehemence against the measure, he complained, in strong terms, and with many angry epithets, of the ill treatment which he had received from some of the officers of the general government, which he contrasted with the cordial attachment that was expressed by the people at large for his nation. He ascribed the conduct of those officers to principles inimical to the cause of France, and of liberty. He insinuated that, by their influence, the President had been misled; and observed with considerable emphasis, that the President was not the sovereign of this country. The powers of peace and war being vested in congress, it belonged to that body to decide those questions growing out of treaties which might involve peace or war; and the President, therefore, ought to have assembled the national legislature before he ventured to issue his proclamation of neutrality, or to prohibit, by his instructions to the state governors, the enjoyment of the particular rights which France claimed under the express stipulations of the treaty of commerce. The executive construction of that treaty was neither just nor obligatory; and he would make no engagement which might be construed into a relinquishment of rights which his constituents deemed indispensable. In the course of this vehement and angry declamation, he spoke of publishing his correspondence with the officers of government, together with a narrative of his proceedings; and said that, although the existing causes would warrant an abrupt departure, his regard for the people of America would induce him to remain here, amidst the insults and disgusts that he daily suffered in his official character from the public officers, until the meeting of congress; and if that body should agree in the opinions and support the measures of the President, he would certainly withdraw, and leave the dispute to be adjusted between the two nations themselves. His attention being again called by Mr. Dallas to the particular subject, he peremptorily refused to enter into any arrangements for suspending the departure of the privateer, and cautioned him against any attempt to seize her, as she belonged to the republic; and, in defence of the honour of her flag, would unquestionably repel force by force.

On receiving the report of Mr. Dallas, Governor Mifflin ordered out one hundred and twenty militia, for the purpose of taking possession of the

privateer; and communicated the case, with all its circumstances, to the officers of the executive government. On the succeeding day, Mr. Jefferson waited on Mr. Genet, in the hope of prevailing on him to pledge his word that the privateer should not leave the port until the arrival of the President. The minister was not less intemperate with Mr. Jefferson than he had been with Mr. Dallas. He indulged himself, in a repetition of nearly the same passionate language, and again spoke, with extreme harshness, of the conduct of the executive. He persisted in refusing to make any engagements for the detention of the vessel; and, after his rage had in some degree spent itself, he entreated that no attempt might be made to take possession of her, as her crew was on board, and force would be repelled by force.

He then also said that she was not ready to sail immediately. She would change her position, and fall down the river a small distance on that day; but was not yet ready to sail.

In communicating this conversation to Governor Mifflin, Mr. Jefferson stated his conviction that the privateer would remain in the river until the President should decide on her case; in consequence of which, the governor dismissed the militia, and requested the advice of the heads of departments on the course which it would be proper for him to pursue. Both the governor and Mr. Jefferson stated, that in reporting the conversation between Mr. Genet and himself, Mr. Dallas had said that Mr. Genet threatened, in express terms, "to appeal from the President to the people."

Thus braved and insulted in the very heart of the American empire, the secretaries of the treasury, and of war, were of opinion that it was expedient to take immediate provisional measures for establishing a battery on Mud Island, under cover of a party of militia, with directions, that if the vessel should attempt to depart before the pleasure of the President should be known concerning her, military coercion should be employed to arrest her progress.

The secretary of state dissenting from this opinion, the measure was not adopted. The vessel fell down to Chester before the arrival of the President, and sailed on her cruise before the power of the government could be interposed.

On the 11th of July the President reached Philadelphia, and requested that his cabinet ministers would convene at his house the next day at nine in the morning.

Among the papers placed in his hands by the secretary of state, which required immediate attention, were those which related to the Little Democrat. On reading them, a messenger was immediately despatched for the secretary, but he had retired, indisposed, to his seat in the country. Upon hearing this, the President instantly addressed a letter to him, of which the following is an extract. "What is to be done in the case of the Little Sarah, now at Chester? Is the minister of the French republic to set the acts of this government at defiance *with impunity*—and then threaten the executive with an appeal to the people? What must the world think of such conduct? and of the government of the United States in submitting to it?

"These are serious questions—circumstances press for decision;—and as you have had time to consider them, (upon me they come unexpectedly,) I wish to know your opinion upon them even before to-morrow—for the vessel may then be gone."

In answer to this letter, the secretary stated the assurances which had on that day been given to him by Mr. Genet, that the vessel would not sail before the President's decision respecting her should be made. In consequence of this information, immediate coercive measures were suspended; and in the council of the succeeding day it was determined to retain in port all [\[6\]](#) privateers which had been equipped by any of the belligerent powers within the United States. This determination was immediately communicated to Mr. Genet; but, in contempt of it, the Little Democrat proceeded on her cruise.

In this, as in every effort made by the executive to maintain the neutrality of the United States, that great party which denominated itself "THE PEOPLE," could perceive only a settled hostility to France and to liberty, a tame subserviency to British policy, and a desire, by provoking France, to engage America in the war, for the purpose of extirpating republican principles.[\[7\]](#)

The administration received strong additional evidence of the difficulty that would attend an adherence to the system which had been commenced, in the acquittal of Gideon Henfield.

A prosecution had been instituted against this person who had enlisted in Charleston on board a French privateer equipped in that port, which had brought her prizes into the port of Philadelphia. This prosecution had been directed under the advice of the attorney general, who was of opinion, that persons of this description were punishable for having violated subsisting treaties, which, by the constitution, are the supreme law of the land; and that they were also indictable at common law, for disturbing the peace of the United States.

It could not be expected that the democratic party would be inattentive to an act so susceptible of misrepresentation. Their papers sounded the alarm; and it was universally asked, "what law had been offended, and under what statute was the indictment supported? Were the American people already prepared to give to a proclamation the force of a legislative act, and to subject themselves to the will of the executive? But if they were already sunk to such a state of degradation, were they to be punished for violating a proclamation which had not been published when the offence was committed, if indeed it could be termed an offence to engage with France, combating for liberty against the combined despots of Europe?"

As the trial approached, a great degree of sensibility was displayed; and the verdict in favour of Henfield was celebrated with extravagant marks of joy and exultation. It bereaved the executive of the strength to be derived from an opinion, that punishment might be legally inflicted on those who should openly violate the rules prescribed for the preservation of neutrality; and exposed that department to the obloquy of having attempted a measure which the laws would not justify.

About this time, a question growing out of the war between France and Britain, the decision of which would materially affect the situation of the United States, was presented to the consideration of the executive.

It will be recollected that during the war which separated America from Britain, the celebrated compact termed the *armed neutrality* was formed in the north of Europe, and announced to the belligerent powers. A willingness to acquiesce in the principles it asserted, one of which was that free bottoms should make free goods, was expressed by the governments engaged in the war, with the single exception of Great Britain. But, however favourably the United States, as a belligerent, might view a principle which would promote

the interests of inferior maritime powers, they were not willing, after the termination of hostilities, to enter into engagements for its support which might endanger their future peace; and, in this spirit, instructions were given to their ministers in Europe.

This principle was ingrafted into the treaty of commerce with France; but no stipulation on the subject had been made with England. It followed, that, with France, the character of the bottom was imparted to the cargo; but with Britain, the law of nations was the rule by which the respective rights of the belligerent and neutral were to be decided.

Construing this rule to give security to the goods of a friend in the bottoms of an enemy, and to subject the goods of an enemy to capture in the bottoms of a friend, the British cruisers took French property out of American vessels, and their courts condemned it as lawful prize.

Mr. Genet had remonstrated against the acquiescence of the American executive in this exposition of the law of nations, in such terms as he was accustomed to employ; and on the 9th of July, in the moment of the contest respecting the Little Democrat, he had written a letter demanding an immediate and positive answer to the question, what measures the President had taken, or would take, to cause the American flag to be respected? He observed, that "as the English would continue to carry off, with impunity, French citizens, and French property found on board of American vessels, without embarrassing themselves with the philosophical principles proclaimed by the President of the United States," and as the embarrassing engagements of France deprived her of the privileges of making reprisals at every point, it was necessary for the interests of both nations, quickly to agree on taking other measures.

Not receiving an immediate answer, Mr. Genet, towards the close of July, again addressed the secretary of state on the subject. In this extraordinary letter, after complaining of the insults offered to the American flag by seizing the property of Frenchmen confided to its protection, he added, "your political rights are counted for nothing. In vain do the principles of neutrality establish, that friendly vessels make friendly goods; in vain, sir, does the President of the United States endeavour, by his proclamation, to reclaim the observation of this maxim; in vain does the desire of preserving peace lead to sacrifice the interests of France to that of the moment; in vain does the

thirst of riches preponderate over honour in the political balance of America: all this management, all this condescension, all this humility, end in nothing; our enemies laugh at it; and the French, too confident, are punished for having believed that the American nation had a flag, that they had some respect for their laws, some conviction of their strength, and entertained some sentiment of their dignity. It is not possible for me, sir, to paint to you all my sensibility at this scandal which tends to the diminution of your commerce, to the oppression of ours, and to the debasement and vilification of republics. It is for Americans to make known their generous indignation at this outrage; and I must confine myself to demand of you a second time, to inform me of the measures which you have taken, in order to obtain restitution of the property plundered from my fellow citizens, under the protection of your flag. It is from our government they have learnt that the Americans were our allies, that the American nation was sovereign, and that they knew how to make themselves respected. It is then under the very same sanction of the French nation, that they have confided their property and persons to the safeguard of the American flag; and on her, they submit the care of causing those rights to be respected. But if our fellow citizens have been deceived, if you are not in a condition to maintain the sovereignty of your people, speak; we have guaranteed it when slaves, we shall be able to render it formidable, having become freemen."

On the day preceding the date of this offensive letter, the secretary of state had answered that of the 9th of July; and, without noticing the unbecoming style in which the decision of the executive was demanded, had avowed and defended the opinion, that "by the general law of nations, the goods of an enemy found in the vessels of a friend are lawful prize." This fresh insult might therefore be passed over in silence.

While a hope remained that the temperate forbearance of the executive, and the unceasing manifestations of its friendly dispositions towards the French republic, might induce the minister of that nation to respect the rights of the United States, and to abstain from violations of their sovereignty, an anxious solicitude not to impair the harmony which he wished to maintain between the two republics, had restrained the President from adopting those measures respecting Mr. Genet, which the conduct of that gentleman required. He had seen a foreign minister usurp within the territories of the United States some of the most important rights of sovereignty, and persist, after the prohibition

of the government, in the exercise of those rights. In asserting this extravagant claim, so incompatible with national independence, the spirit in which it originated had been pursued, and the haughty style of a superior had been substituted for the respectful language of diplomacy. He had seen the same minister undertake to direct the civil government; and to pronounce, in opposition to the decisions of the executive, in what departments of the constitution of the United States had placed certain great national powers. To render this state of things more peculiarly critical and embarrassing, the person most instrumental in producing it, had, from his arrival, thrown himself into the arms of the people, stretched out to receive him; and was emboldened by their favour, to indulge the hope of succeeding in his endeavours, either to overthrow their government, or to bend it to his will. But the full experiment had now been made; and the result was a conviction not to be resisted, that moderation would only invite additional injuries, and that the present insufferable state of things could be terminated only by procuring the removal of the French minister, or by submitting to become, in his hands, the servile instrument of hostility against the enemies of his nation. Information was continually received from every quarter, of fresh aggressions on the principles established by the government; and, while the executive was thus openly disregarded and contemned, the members of the administration were reproached in all the papers of an active and restless opposition, as the violators of the national faith, the partisans of monarchy, and the enemies of liberty and of France.

The unwearied efforts of that department to preserve that station in which the various treaties in existence had placed the nation, were incessantly calumniated^[8] as infractions of those treaties, and ungrateful attempts to force the United States into the war against France.

The judgment of the President was never hastily formed; but, once made up, it was seldom to be shaken. Before the last letter of Mr. Genet was communicated to him, he seems to have determined to take decisive measures respecting that minister.

Rules laid down by the executive in relation to the powers at war within the ports of the United States.

The president requests the recall of Genet.

That the course to be pursued might be well considered, the secretary of state was requested to collect all the correspondence with him, to be laid before a

cabinet council about to be held for the purpose of adjusting a complete system of rules to be observed by the belligerents in the ports of the United States. These rules were discussed at several meetings, and finally, on the third of August, received the unanimous approbation of the cabinet. They^[9] evidence the settled purpose of the executive, faithfully to observe all the national engagements, and honestly to perform the duties of that neutrality in which the war found them, and in which those engagements left them free to remain.

In the case of the minister of the French republic, it was unanimously agreed that a letter should be written to Mr. Morris, the minister of the United States at Paris, stating the conduct of Mr. Genet, resuming the points of difference which had arisen between the government and that gentleman, assigning the reasons for the opinion of the former, desiring the recall of the latter, and directing that this letter, with those which had passed between Mr. Genet and the secretary of state, should be laid before the executive of the French government.

To a full view of the transactions of the executive with Mr. Genet, and an ample justification of its measures, this able diplomatic performance adds assurances of unvarying attachment to France, expressed in such terms of unaffected sensibility, as to render it impossible to suspect the sincerity of the concluding sentiment—"that, after independence and self-government, there was nothing America more sincerely wished than perpetual friendship with them."

An adequate idea of the passion it excited in Mr. Genet, who received the communication in September, at New York, can be produced only by a perusal of his letter addressed, on that occasion, to the secretary of state. The asperity of his language was not confined to the President, whom he still set at defiance, whom he charged with transcending the limits prescribed by the constitution, and of whose accusation before congress he spoke as an act of justice "which the American people, which the French people, which all free people were interested to reclaim:" nor to those "gentlemen who had been painted to him so often as aristocrats, partisans of monarchy, partisans of England, and consequently enemies of the principles which all good Frenchmen had embraced with a religious enthusiasm." Its bitterness was also extended to the secretary of state himself, whom he had been induced to consider as his personal friend, and who had, he said, "initiated him into

mysteries which had inflamed his hatred against all those who aspire to an absolute power."

During these deliberations, Mr. Genet was received in New York with the same remarks of partiality to his nation, and of flattering regard to himself, which had been exhibited in the more southern states. At this place too, he manifested the same desire to encourage discontent at the conduct of the government, and to embark America in the quarrel, by impressing an opinion that the existence of liberty depended on the success of the French republic, which he had uniformly avowed. In answer to an address from the republican citizens of New York, who had spoken of the proclamation of neutrality as relating only to acts of open hostility, not to the feelings of the heart; and who had declared that they would "exultingly sacrifice a liberal portion of their dearest interests could there result, on behalf of the French republic, an adequate advantage;" he said—"in this respect I can not but interpret as you have done the declaration of your government. They must know that the strict performance of treaties is the best and safest policy; they must know that good faith alone can inspire respectability to a nation; that a pusillanimous conduct provokes insult, and brings upon a country those very dangers which it weakly means to avert.

"There is indeed too much reason to fear that you are involved in the general conspiracy of tyrants against liberty. They never will, they never can forgive you for having been the first to proclaim the rights of man. But you will force them to respect you by pursuing with firmness the only path which is consistent with your national honour and dignity.

"The cause of France is the cause of all mankind, and no nation is more deeply interested than you are in its success. Whatever fate awaits her, you are ultimately to share. But the cause of liberty is great and it shall prevail.

"And if France, under a despotic yoke, has been able so successfully to assert your rights, they can never again be endangered while she is at liberty to exert, in your support, that powerful arm which now defies the combined efforts of a whole world."

While these exertions were successfully making to give increased force, and a wider extent, to opinions which might subvert the system adopted by the executive, Mr. Jay, the chief justice of the United States, and Mr. King, a

senator representing the state, arrived in New York from Philadelphia. They had been preceded by a report, which was whispered in private circles, that the French minister had avowed a determination to appeal from the President to the people. The confidential intercourse subsisting between these gentlemen and a part of the administration rendering it probable that this declaration, if made, had been communicated to them, they were asked, whether the report was true; having received the information through a channel^[10] which was entitled to the most implicit faith, they answered that it was.

Their having said so was controverted; and they were repeatedly required, in the public papers, to admit or deny that they had made such an assertion. Thus called upon, they published a certificate avowing that they had made the declaration imputed to them.

On reflecting men this communication made a serious impression. The recent events in Poland, whose dismemberment and partition were easily traced to the admission of foreign influence, gave additional solemnity to the occurrence, and led to a more intent consideration of the awful causes which would embolden a foreign minister to utter such a threat.

That party, which in the commencement of the contests respecting the constitution was denominated federal, had generally supported the measures of the administration.

That which was denominated anti-federal, had generally opposed those measures. South of the Potomac especially, there was certainly many important exceptions to this arrangement of parties; yet as a general arrangement, it was unquestionably correct.

In the common partialities for France, in the common hope that the revolution in that country would be crowned with success, and would produce important benefits to the human race, they had equally participated; but in the course to be pursued by the United States, the line of separation between the two parties was clear and distinct. The federalists were universally of opinion that, in the existing war, America ought to preserve a neutrality as impartial as was compatible with her treaties; and that those treaties had been fairly and justly construed by the executive. Seduced however by their wishes, and by their affections, they at first yielded implicit

faith to the assurances given by Mr. Genet of the disinclination of the French republic to draw them from this eligible position; and from this belief, they receded slowly and reluctantly.

They were inclined to ascribe the bitter invectives which were pronounced against the executive to an inveterate hostility to the government, and to those who administered it; and, when at length they were compelled to perceive that the whole influence of Mr. Genet was employed in stimulating and pointing these invectives, they fondly indulged the hope that his nation would not countenance his conduct. Adding to their undiminished attachment to the chief magistrate, a keen sense of the disgrace, the humiliation, and the danger of permitting the American government to be forced into any system of measures by the machinations of a foreign minister with the people, they had occasionally endeavoured, through the medium of the press, to keep the public mind correct; and, when it was announced that an appeal to themselves was threatened, they felt impelled by the strongest sentiments of patriotism and regard for national honour, to declare the indignation which the threat had inspired. In every quarter of the union, the people assembled in their districts, and the strength of parties was fully tried. The contest was warm and strenuous. But public opinion appeared to preponderate greatly in favour of neutrality, and of the proclamation by which its observance was directed. It was apparent too, that the American bosom still glowed with ardent affection for their chief magistrate; and that, however successful might have been the shafts directed against some of those who shared his confidence, the arrows aimed at himself had missed their mark.

Yet it was not to be concealed that the indiscreet arrogance of Mr. Genet, the direct insults to the President, and the attachment which many, who were in opposition to the general measures of the administration, still retained for the person of that approved patriot, contributed essentially to the prevalence of the sentiment which was called forth by the occasion.

In the resolutions expressing the strongest approbation of the measures which had been adopted, and the greatest abhorrence of foreign influence, a decided partiality for France was frequently manifested; while in those of a contrary description, respect for the past services of the President, and a willingness to support the executive in the exercises of its constitutional functions, seemed, when introduced, to be reluctantly placed among the

more agreeable declarations of detestation for those who sought to dissolve the union between America and France, and of the devotion with which the French revolution ought to be espoused by all the friends of liberty.

The effect which the certificate of Mr. Jay and Mr. King might possibly produce was foreseen; and Mr. Genet sought to avoid its influence by questioning its veracity. Not only had it never been alleged that the exceptionable expressions were used to the President personally, but it was certain that they had not been uttered in his presence. Affecting not to have adverted to this obvious circumstance, the minister, on the 13th of August, addressed a letter to the chief magistrate, which, being designed for publication, was itself the act he had threatened, in which he subjoined to a detail of his accusations against the executive, the demand of an explicit declaration that he had never intimated to him an intention to appeal to the people.

On the 16th this letter was answered by the secretary of state, who, after acknowledging its receipt by the President, added, "I am desired to observe to you that it is not the established course for the diplomatic characters residing here to have any direct correspondence with him. The secretary of state is the organ through which their communications should pass.

"The President does not conceive it to be within the line of propriety or duty, for him to bear evidence against a declaration, which, whether made to him or others, is perhaps immaterial; he therefore declines interfering in the case."

Seldom has more conclusive testimony been offered of the ascendancy which, in the conflicts of party, the passions maintain over reason, than was exhibited, on this occasion, by the zealous partisans of the French minister. It might have been expected that, content with questioning the fact, or with diverting the obloquy attending it from the French nation, no American would have been found hardy enough to justify it; and but few, to condemn those gentlemen by whose means it had reached the public ear. Nothing could be farther removed from this expectation, than the conduct that was actually observed. The censure merited by the expressions themselves fell, not upon the person who had used them, but upon those who had communicated them to the public. Writers of considerable political eminence, charged them as being members of a powerful faction who were

desirous of separating America from France, and connecting her with England, for the purpose of introducing the British constitution.

As if no sin could equal the crime of disclosing to the people a truth which, by inducing reflection, might check the flood of that passion for France which was deemed the surest test of patriotism, the darkest motives were assigned for the disclosure, and the reputation of those who made it has scarcely been rescued by a lapse of years, and by a change of the subjects of controversy, from the peculiar party odium with which they were at the time overwhelmed.

Sentiments of a still more extraordinary nature were openly avowed. In a republican country, it was said, the people alone were the basis of government. All powers being derived from them, might, by them, be withdrawn at pleasure. They alone were the authors of the law, and to them alone, must the ultimate decision on the interpretation belong. From these delicate and popular truths, it was inferred, that the doctrine that the sovereignty of the nation resided in the departments of government was incompatible with the principles of liberty; and that, if Mr. Genet dissented from the interpretation given by the President to existing treaties, he might rightfully appeal to the real sovereign whose agent the President was, and to whom he was responsible for his conduct. Is the President, it was asked, a *consecrated* character, that an appeal from his decisions must be considered criminal? or are the people in such a state of monarchical degradation, that to speak of consulting them is an offence as great, as if America groaned under a dominion equally tyrannical with the old monarchy of France?

It was soon ascertained that Mr. Dallas, to whom this threat of appealing to the people had been delivered, did not admit that the precise words had been used. Mr. Genet then, in the coarsest terms, averred the falsehood of the certificate which had been published, and demanded from the attorney general, and from the government, that Mr. Jay and Mr. King should be indicted for a libel upon himself and his nation. That officer accompanied his refusal to institute this information with the declaration that any other gentleman of the profession, who might approve and advise the attempt, could be at no loss to point out a mode which would not require his intervention.

While the minister of the French republic thus loudly complained of the unparalleled injury he received from being charged with employing a particular exceptionable phrase, he seized every fair occasion to carry into full execution the threat which he denied having made. His letters, written for the purpose of publication, and actually published by himself, accused the executive, before the tribunal of the people, on those specific points, from its decisions respecting which he was said to have threatened the appeal. As if the offence lay, not in perpetrating the act, but in avowing an intention to perpetrate it, this demonstration of his designs did not render his advocates the less vehement in his support, nor the less acrimonious in reproaching the administration, as well as Mr. Jay and Mr. King.

Whilst insult was thus added to insult, the utmost vigilance of the executive officers was scarcely sufficient to maintain an observance of the rules which had been established for preserving neutrality in the American ports. Mr. Genet persisted in refusing to acquiesce in those rules; and fresh instances of attempts to violate them were continually recurring. Among these, was an outrage committed in Boston, too flagrant to be overlooked.

A schooner, brought as a prize into the port of Boston by a French privateer, was claimed by the British owner; who instituted proceedings at law against her, for the purpose of obtaining a decision on the validity of her capture. She was rescued from the possession of the marshal, by an armed force acting under the authority of Mr. Duplaine, the French consul, which was detached from a frigate then lying in port. Until the frigate sailed, she was guarded by a part of the crew; and, notwithstanding the determination of the American government that the consular courts should not exercise a prize jurisdiction within the territories of the United States, Mr. Duplaine declared his purpose to take cognizance of the case.

To this act of open defiance, it was impossible for the President to submit. The facts being well attested, the exequatur which had been granted to Mr. Duplaine was revoked, and he was forbidden further to exercise the consular functions. It will excite surprise that even this necessary measure could not escape censure. The self-proclaimed champions of liberty discovered in it a violation of the constitution, and a new indignity to France.

Mr. Genet did not confine his attempts to employ the force of America against the enemies of his country to maritime enterprises. On his first

arrival, he is understood to have planned an expedition against the Floridas, to be carried on from Georgia; and another against Louisiana, to be carried on from the western parts of the United States. Intelligence was received that the principal officers were engaged; and the temper of the people inhabiting the western country was such as to furnish some ground for the apprehension, that the restraints which the executive was capable of imposing, would be found too feeble to prevent the execution of this plan. The remonstrances of the Spanish commissioners on this subject, however, were answered with explicit assurances that the government would effectually interpose to defeat any expedition from the territories of the United States against those of Spain; and the governor of Kentucky was requested to co-operate in frustrating this improper application of the military resources of his state.

It was not by the machinations of the French minister alone that the neutrality of the United States was endangered. The party which, under different pretexts, urged measures the inevitable tendency of which was war, derived considerable aid, in their exertions to influence the passions of the people, from the conduct of others of the belligerent powers. The course pursued both by Britain and Spain rendered the task of the executive still more arduous, by furnishing weapons to the enemies of neutrality, capable of being wielded with great effect.

The resentment excited by the rigour with which the maritime powers of Europe retained the monopoly of their colonial commerce, had, without the aid of those powerful causes which had lately been brought into operation, been directed peculiarly against Great Britain. These resentments had been greatly increased. That nation had not mitigated the vexations and inconveniences which war necessarily inflicts on neutral trade, by any relaxations in her colonial policy.

Decree of the national convention relative to neutral commerce.

To this rigid and repulsive system, that of France presented a perfect contrast. Either influenced by the politics of the moment, or suspecting that, in a contest with the great maritime nations of Europe, her commerce must search for security in other bottoms than her own, she opened the ports of her colonies to every neutral flag, and offered to the United States a new

treaty, in which it was understood that every mercantile distinction between Americans and Frenchmen should be totally abolished.

With that hasty credulity which, obedient to the wishes, can not await the sober and deliberate decisions of the judgment, the Americans ascribed this change, and these propositions, to the liberal genius of freedom; and expected the new commercial and political systems to be equally durable. As if, in the term *REPUBLIC*, the avaricious spirit of commercial monopoly would lose its influence over men; as if the passions were to withdraw from the management of human affairs, and leave the helm to the guidance of reason, and of disinterested philanthropy; a vast proportion of the American people believed this novel system to be the genuine offspring of new-born liberty; and consequently expected that, from the success of the republican arms, a flood of untried good was to rush upon the world.

The avidity with which the neutral merchants pressed forward to reap the rich and tempting harvest offered to them by the regulations and the wants of France, presented a harvest not less rich and tempting to the cruisers of her enemies. Captures to a great extent were made, some with, others without, justifiable cause; and the irritations inseparable from disappointment in gathering the fruits of a gainful traffic, were extensively communicated to the agricultural part of society.

The vexations on the ocean to which neutrals are commonly exposed during war, were aggravated by a measure of the British cabinet, which war was not admitted to justify.

British order of 1793.

The vast military exertions of the French republic had carried many hands from their usual occupations, to the field; and the measures of government, added to the internal commotions, had discouraged labour by rendering its profits insecure. These causes, aided perhaps by unfavourable seasons, had produced a scarcity which threatened famine. This state of things suggested to their enemies the policy of increasing the internal distress, by cutting off the external supply. In execution of this plan, the British cruisers were instructed "to stop all vessels loaded wholly or in part with corn, flour, or meal, bound to any port in France, or any port occupied by the armies of France, and to send them to such ports as shall be most convenient, in order that such corn, meal, or flour, may be purchased on behalf of his majesty's

government, and the ships be relieved after such purchase, and after a due allowance for freight; or that the masters of such ships on giving due security, to be approved by the court of admiralty, be permitted to proceed to dispose of their cargoes of corn, meal, or flour, in the ports of any country in amity with his majesty."

In the particular character of the war, and in the general expressions of some approved modern writers on the law of nations, the British government sought a justification of this strong measure. But by neutrals generally, it was deemed an unwarrantable invasion of their rights; and the remonstrances made against it by the American government in particular, were serious and earnest. This attempt to make a principle, which was understood to be applicable only to blockaded places, subservient to the impracticable plan of starving an immense agricultural nation, was resisted with great strength of reasoning by the administration; and added, not inconsiderably, to the resentment felt by the body of the people.[\[11\]](#)

Hostilities on the ocean disclosed still another source of irritation, which added its copious stream to the impetuous torrent which threatened to sweep America into the war that desolated Europe.

The British government had long been accustomed to resort to the practice of manning their fleet by impressment. The exercise of this prerogative had not been confined to the land. Merchantmen in their ports, and even at sea, were visited, and mariners were taken out of them, to be employed in the royal navy. The profits of trade enabling neutral merchants to give high wages, British sailors were tempted, in great numbers, to enter their service; but the neutral ship furnished no protection. Disregarding the bottom in which they sailed, the officers of the navy impressed them wherever found, often leaving scarcely hands enough to navigate the vessel into port.

The Americans were peculiarly exposed to the abuse to which such usages are liable. Descended from the same ancestors and speaking the same language, the distinction between them and the English, though in general sufficiently marked, was not always so visible as to prevent unintentional error; nor were the captains of ships of war, at all times, very solicitous to avoid mistake. Native Americans, therefore, were frequently impressed, and compelled to serve against the French republic.

The British cabinet disclaimed all pretensions to the impressment of real American citizens, and declared officially a willingness to discharge them, on the establishment of their citizenship. But time was necessary to procure the requisite testimonials; and those officers who had notoriously offended in this respect, were not so discountenanced by their government as to be deterred from a repetition of the offence. There was too, one class of citizens, concerning whose rights a difference of opinion prevailed, which has not even yet been adjusted. These were British subjects who had migrated to, and been adopted by, the United States.

The continuance of the Indian war added still another item to this catalogue of discontents.

The efforts of the United States to make a treaty with the savages of the Miamis had proved abortive. The Indians insisted on the Ohio as the boundary between them and the whites; and, although the American commissioners expressed a willingness to relinquish some of the lands purchased at the treaty of fort Harmar, and pressed them to propose some line between the boundary established by that treaty and the Ohio, they adhered inflexibly to their original demand.

It was extensively believed in America, and information collected from the Indians countenanced the opinion, that they were encouraged by the government of Canada to persevere in this claim, and that the treaty was defeated by British influence. The conviction was universal that this influence would continue so long as the posts south of the lakes should be occupied by British troops; and the uneasiness which the detention of those posts created, daily acquired strength. Unfortunately, the original pretext for detaining them was not yet removed. The courts of the United States had not yet declared that British debts contracted before the war, were recoverable. In one of the circuits, a decision had been recently made, partly favourable, and partly unfavourable, to the claim of the creditor. To this decision writs of error had been brought, and the case was pending before the supreme court. The motives therefore originally assigned for holding the posts on the lakes still remained; and, as it was a maxim with the executive "to place an adversary clearly in the wrong," and it was expected that the existing impediments to the fulfilment of the treaty on the part of the United States would soon be done away, it was thought unadvisable, had the military force of the union been equal to the object, to seize those posts, until their

surrender could be required in consequence of a complete execution of the treaty. In the mean time, the British minister was earnestly pressed upon the subject.

This prudent conduct was far from being satisfactory to the people. Estimating at nothing, infractions made by themselves, and rating highly those committed by the opposite party, they would, in any state of things, have complained loudly of this act of the British government. But, agitated as they were by the various causes which were perpetually acting on their passions, it is not wonderful that an increased influence was given to this measure; that it should be considered as conclusive testimony of British hostility, and should add to the bitterness with which the government was reproached for attempting a system "alike friendly and impartial to the belligerent powers."

The causes of discontent which were furnished by Spain, though less the theme of public declamation, continued to be considerable.

The American ministers at Madrid could make no progress in their negotiation. The question of limits remained unsettled, and the Mississippi was still closed against the Americans. In addition to these subjects of disquiet, the southern states were threatened with war from the Creeks and Cherokees, who were, with good reason, believed to be excited to hostility by the Spanish government. Of these irritating differences, that which related to the Mississippi was far the most operative, and embarrassing. The imagination, especially when warmed by discontent, bestows on a good which is withheld, advantages much greater than the reality will justify; and the people of the western country were easily persuaded to believe that the navigation of the Mississippi was a mine of wealth which would at once enrich them. That jealousy which men so readily entertain of the views of those with whom they do not associate, had favoured the efforts made by the enemies of the administration, to circulate the opinion that an opposition of interests existed between the eastern and the western people, and that the endeavours of the executive to open their great river were feeble and insincere. At a meeting of the Democratic Society in Lexington, in Kentucky, this sentiment was unanimously avowed in terms of peculiar disrespect to the government; and a committee was appointed to open a correspondence with the inhabitants of the whole western country, for the purpose of uniting them on this all important subject, and of preparing on it a

remonstrance to the President and congress of the United States, to be expressed "in the bold, decent and determined language, proper to be used by injured freemen when they address the servants of the people." They claimed much merit for their moderation in having thus long, out of regard to their government, and affection for their fellow citizens on the Atlantic, abstained from the use of those means which they possessed for the assertion of what they termed a natural and unalienable right; and seemed to indicate the opinion that this forbearance could not be long continued. Without regarding the determination of Spain in the case or the poverty of the means placed in the hands of the executive for inducing a change in this determination, they demanded from the government the free use of the Mississippi, as if only an act of the will was necessary to insure it to them. Not even the probability that the public and intemperate expression of these dangerous dispositions would perpetuate the evil, could moderate them. This restless uneasy temper gave additional importance to the project of an expedition against Louisiana, which had been formed by Mr. Genet.

These public causes for apprehending hostilities^[12] with Spain, were strengthened by private communications. The government had received intelligence from their ministers in Europe that propositions had been made by the cabinet of Madrid to that of London, the object of which was the United States. The precise nature of these propositions was not ascertained, but it was understood generally, that their tendency was hostile.

Thus unfavourable to the pacific views of the executive were the circumstances under which congress was to assemble.

CHAPTER II.

Meeting of congress.... President's speech.... His message on the foreign relations of the United States.... Report of the Secretary of State on the commerce of the United States.... He resigns.... Is succeeded by Mr. Randolph.... Mr. Madison's resolutions founded on the above report.... Debate thereon.... Debates on the subject of a navy.... An embargo law.... Mission of Mr. Jay to Great Britain.... Inquiry into the conduct of the Secretary of the Treasury, terminates honourably to him.... Internal taxes.... Congress adjourns.

1793

Meeting of Congress.

A **MALIGNANT** fever, believed to be infectious, had, through part of the summer and autumn, severely afflicted the city of Philadelphia, and dispersed the officers of the executive government. Although the fear of contagion was not entirely dispelled when the time for the meeting of congress arrived, yet, such was the active zeal of parties, and such the universal expectation that important executive communications would be made, and that legislative measures not less important would be founded on them, that both houses were full on the first day, and a joint committee waited on the President with the usual information that they were ready to receive his communications.

On the fourth of December, at twelve, the President met both houses in the senate chamber. His speech was moderate, firm, dignified, and interesting. It commenced with his own re-election, his feelings at which were thus expressed—

President's speech.

"Since the commencement of the term for which I have been again called into office, no fit occasion has arisen for expressing to my fellow-citizens at large, the deep and respectful sense which I feel of the renewed testimony of public approbation. While on the one hand, it awakened my gratitude for all those instances of affectionate partiality with which I have been honoured by my country; on the other, it could not prevent an earnest wish for that retirement, from which no private consideration could ever have torn me. But, influenced by the belief that my conduct would be estimated according to its real motives, and that the people, and the authorities derived from them, would support exertions having nothing personal for their object, I have obeyed the suffrage which commanded me to resume the executive power; and I humbly implore that Being on whose will the fate of nations depends, to crown with success our mutual endeavours for the general happiness."

Passing to those measures which had been adopted by the executive for the regulation of its conduct towards the belligerent nations, he observed, "as soon as the war in Europe had embraced those powers with whom the United States have the most extensive relations, there was reason to apprehend that our intercourse with them might be interrupted, and our disposition for peace drawn into question by suspicions too often entertained by belligerent nations. It seemed therefore to be my duty to admonish our citizens of the consequence of a contraband trade, and of hostile acts to any of the parties; and to obtain, by a declaration of the existing state of things, an easier admission of our rights to the immunities belonging to our situation. Under these impressions the proclamation which will be laid before you was issued.

"In this posture of affairs, both new and delicate, I resolved to adopt general rules which should conform to the treaties, and assert the privileges of the United States. These were reduced into a system, which shall be communicated to you."

After suggesting those legislative provisions on this subject, the necessity of which had been pointed out by experience, he proceeded to say,

"I can not recommend to your notice measures for the fulfilment of *our* duties to the rest of the world, without again pressing upon you the necessity of placing ourselves in a condition of complete defence, and of exacting

from *them* the fulfilment of their duties towards us. The United States ought not to indulge a persuasion that, contrary to the order of human events, they will forever keep at a distance those painful appeals to arms with which the history of every nation abounds. There is a rank due to the United States among nations which will be withheld, if not absolutely lost, by the reputation of weakness. If we desire to avoid insult, we must be able to repel it; if we desire to secure peace—one of the most powerful instruments of our prosperity—it must be known that we are, at all times, ready for war."

These observations were followed by a recommendation to augment the supply of arms and ammunition in the magazines, and to improve the militia establishment.

After referring to a communication to be subsequently made for occurrences relative to the connexion of the United States with Europe, which had, he said, become extremely interesting; and after reviewing Indian affairs, he particularly addressed the house of representatives. Having presented to them in detail some subjects of which it was proper they should be informed, he added;—"no pecuniary consideration is more urgent than the regular redemption and discharge of the public debt; on none can delay be more injurious, or an economy of time more valuable.

"The productiveness of the public revenues hitherto has continued to be equal to the anticipations which were formed of it; but it is not expected to prove commensurate with all the objects which have been suggested. Some auxiliary provisions will therefore, it is presumed, be requisite; and it is hoped that these may be made consistently with a due regard to the convenience of our citizens, who can not but be sensible of the true wisdom of encountering a small present addition to their contributions, to obviate a future accumulation of burdens."

The speech was concluded with the following impressive exhortation:

"The several subjects to which I have now referred, open a wide range to your deliberations, and involve some of the choicest interests of our common country. Permit me to bring to your remembrance the magnitude of your task. Without an unprejudiced coolness, the welfare of the government may be hazarded; without harmony, as far as consists with freedom of sentiment, its dignity may be lost. But, as the legislative proceedings of the United

States will never, I trust, be reproached for the want of temper, or of candour, so shall not the public happiness languish from the want of my strenuous and warmest co-operation."

His message on the subject of the foreign relations of the United States.

The day succeeding that on which this speech was delivered, a special message was sent to both houses, containing some of the promised communications relative to the connexion of the United States with foreign powers.

After suggesting as a motive for this communication that it not only disclosed "matter of interesting inquiry to the legislature," but, "might indeed give rise to deliberations to which they alone were competent;" the President added—"the representative and executive bodies of France have manifested generally a friendly attachment to this country; have given advantages to our commerce and navigation; and have made overtures for placing these advantages on permanent ground. A decree, however, of the national assembly, subjecting vessels laden with provisions to be carried into their ports, and making enemy goods lawful prize in the vessel of a friend, contrary to our treaty, though revoked at one time as to the United States, has been since extended to their vessels also, as has been recently stated to us. Representations on the subject will be immediately given in charge to our minister there, and the result shall be communicated to the legislature.

"It is with extreme concern I have to inform you that the person whom they have unfortunately appointed their minister plenipotentiary here, has breathed nothing of the friendly spirit of the nation which sent him. Their tendency on the contrary has been to involve us in a war abroad and discord and anarchy at home. So far as his acts, or those of his agents, have threatened an immediate commitment in the war, or flagrant insult to the authority of the laws, their effect has been counteracted by the ordinary cognizance of the laws, and by an exertion of the powers confided to me. Where their danger was not imminent, they have been borne with, from sentiments of regard to his nation, from a sense of their friendship towards us, from a conviction that they would not suffer us to remain long exposed to the actions of a person who has so little respected our mutual dispositions, and, I will add, from a reliance on the firmness of my fellow-citizens in their principles of peace and order. In the mean time I have respected and pursued

the stipulations of our treaties, according to what I judged their true sense; and have withheld no act of friendship which their affairs have called for from us, and which justice to others left us free to perform. I have gone further. Rather than employ force for the restitution of certain vessels which I deemed the United States bound to restore, I thought it more adviseable to satisfy the parties by avowing it to be my opinion, that, if restitution were not made, it would be incumbent on the United States to make compensation."

The message next proceeded to state that inquiries had been instituted respecting the vexations and spoliations committed on the commerce of the United States, the result of which when received would be communicated.

The order issued by the British government on the 8th of June, and the measures taken by the executive of the United States in consequence thereof, were briefly noticed; and the discussions which had taken place in relation to the non-execution of the treaty of peace were also mentioned. The message was then concluded with a reference to the negotiations with Spain. "The public good," it was said, "requiring that the present state of these should be made known to the legislature in confidence only, they would be the subject of a separate and subsequent communication."

This message was accompanied with copies of the correspondence between the secretary of state and the French minister, on the points of difference which subsisted between the two governments, together with several documents necessary for the establishment of particular facts; and with the letter written by Mr. Jefferson to Mr. Morris, which justified the conduct of the United States by arguments too clear to be misunderstood, and too strong ever to be encountered.

The extensive discussions which had taken place relative to the non-execution of the treaty of peace, and the correspondence produced by the objectionable measures which had been adopted by the British government during the existing war, were also laid before the legislature.

In a popular government, the representatives of the people may generally be considered as a mirror, reflecting truly the passions and feelings which govern their constituents. In the late elections, the strength of parties had been tried; and the opposition had derived so much aid from associating the

cause of France with its own principles, as to furnish much reason to suspect that, in one branch of the legislature at least, it had become the majority. The first act of the house of representatives served to strengthen this suspicion. By each party a candidate for the chair was brought forward; and Mr. Muhlenberg, who was supported by the opposition, was elected by a majority of ten votes, against Mr. Sedgewick, whom the federalists supported.

The answer, however, to the speech of the President, wore no tinge of that malignant and furious spirit which had infused itself into the publications of the day. Breathing the same affectionate attachment to his person and character which had been professed in other times, and being approved by every part of the house, it indicated that the leaders, at least, still venerated their chief magistrate, and that no general intention as yet existed, to involve him in the obloquy directed against his measures.

Noticing that unanimous suffrage by which he had been again called to his present station, "it was," they said, "with equal sincerity and promptitude they embraced the occasion for expressing to him their congratulations on so distinguished a testimony of public approbation, and their entire confidence in the purity and patriotism of the motives which had produced this obedience to the voice of his country. It is," proceeded the address, "to virtues which have commanded long and universal reverence, and services from which have flowed great and lasting benefits that the tribute of praise may be paid without the reproach of flattery; and it is from the same sources that the fairest anticipations may be derived in favour of the public happiness."

The proclamation of neutrality was approved in guarded terms, and the topics of the speech were noticed in a manner which indicated dispositions cordially to co-operate with the executive.

On the part of the senate also, the answer to the speech was unfeignedly affectionate. In warm terms they expressed the pleasure which the re-election of the President gave them. "In the unanimity," they added, "which a second time marks this important national act, we trace with particular satisfaction, besides the distinguished tribute paid to the virtues and abilities which it recognizes, another proof of that discernment, and constancy of sentiments and views, which have hitherto characterized the citizens of the

United States." Speaking of the proclamation, they declared it to be "a measure well timed and wise, manifesting a watchful solicitude for the welfare of the nation, and calculated to promote it."

In a few days, a confidential message was delivered, communicating the critical situation of affairs with Spain. The negotiations attempted with that power in regard to the interesting objects of boundary, navigation, and commerce, had been exposed to much delay and embarrassment, in consequence of the changes which the French revolution had effected in the political state of Europe. Meanwhile, the neighborhood of the Spanish colonies to the United States had given rise to various other subjects of discussion, one of which had assumed a very serious aspect.

Having the best reason to suppose that the hostility of the southern Indians was excited by the agents of Spain, the President had directed the American commissioners at Madrid to make the proper representations on the subject, and to propose that each nation should, with good faith, promote the peace of the other with their savage neighbours.

About the same time, the Spanish government entertained, or affected to entertain, corresponding suspicions of like hostile excitements by the agents of the United States, to disturb their peace with the same nations. The representations which were induced by these real or affected suspicions, were accompanied with pretensions, and made in a style, to which the American executive could not be inattentive. His Catholic Majesty asserted these claims as a patron and protector of those Indians. He assumed a right to mediate between them and the United States, and to interfere in the establishment of their boundaries. At length, in the very moment when those savages were committing daily inroads on the American frontier, at the instigation of Spain, as was believed, the representatives of that power, complaining of the aggressions of American citizens on the Indians, declared "that the continuation of the peace, good harmony, and perfect friendship of the two nations, was very problematical for the future, unless the United States should take more convenient measures, and of greater energy than those adopted for a long time past."

Notwithstanding the zeal and enthusiasm with which the pretensions of the French republic, as asserted by their minister, continued to be supported out of doors, they found no open advocate in either branch of the legislature.

That this circumstance is, in a great measure, to be ascribed to the temperate conduct of the executive, and to the convincing arguments with which its decisions were supported, ought not to be doubted. But when it is recollected that the odium which these decisions excited, sustained no diminution; that the accusation of hostility to France and to liberty, which originated in them, was not retracted; that, when afterwards many of the controverted claims were renewed by France, her former advocates still adhered to her; it is not unreasonable to suppose that other considerations mingled themselves with the conviction which the correspondence laid before the legislature was calculated to produce.

An attack on the administration could be placed on no ground more disadvantageous than on its controversy with Mr. Genet. The conduct and language of that minister were offensive to reflecting men of all parties. The President had himself taken so decisive a part in favour of the measures which had been adopted, that they must be ascribed to him, not to his cabinet; and, of consequence, the whole weight of his personal character must be directly encountered, in an attempt to censure those measures. From this censure it would have been difficult to extricate the person who was contemplated by the party in opposition as its chief; for the secretary of state had urged the arguments of the administration with a degree of ability and earnestness, which ought to have silenced the suspicion that he might not feel their force.

The expression of a legislative opinion, in favour of the points insisted on by the French minister, would probably have involved the nation in a calamitous war, the whole responsibility for which would rest on them.

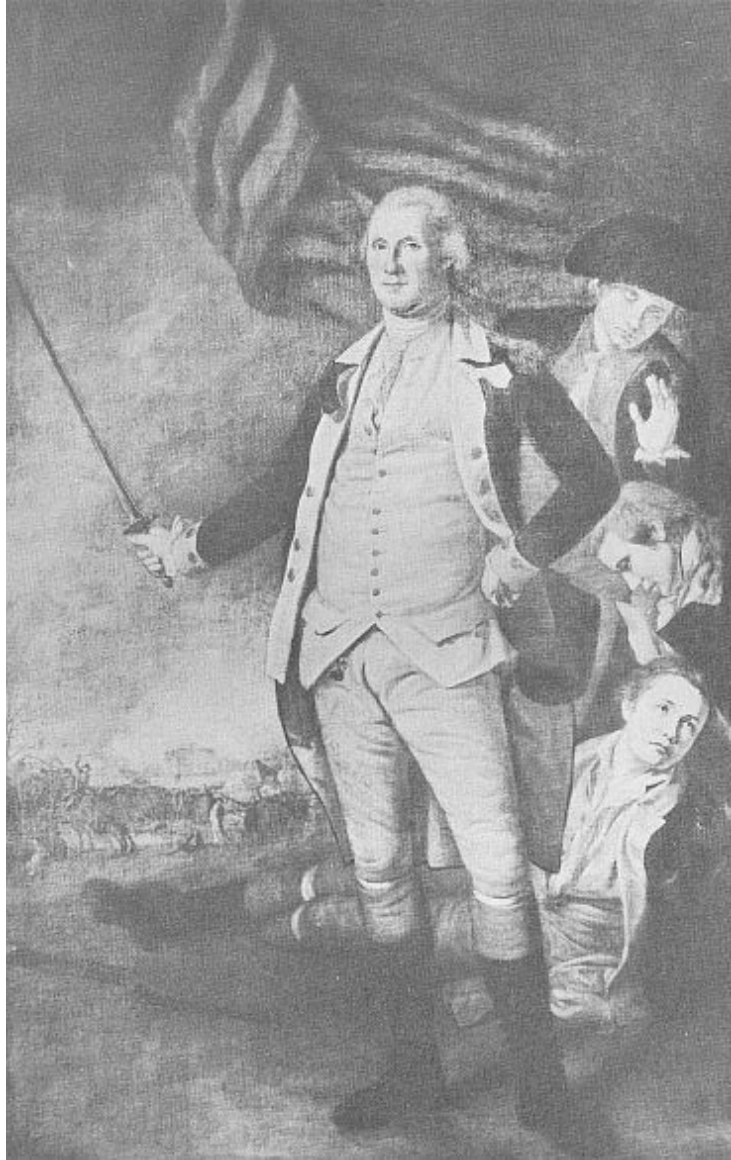
To these considerations was added another which could not be disregarded. The party in France, to which Mr. Genet owed his appointment, had lost its power; and his fall was the inevitable consequence of the fall of his patrons. That he would probably be recalled was known in America; and that his conduct had been disapproved by his government was generally believed. The future system of the French republic, with regard to the United States, could not be foreseen; and it would be committing something to hazard, not to wait its development.

These objections did not exist to an indulgence of the partialities and prejudices of the nation towards the belligerent powers, in measures

suggested by its resentment against Great Britain. But, independent of these considerations, it is scarcely possible to doubt that congress really approved the conduct of the executive with regard to France, and was also convinced that a course of hostility had been pursued by Great Britain, which the national interest and the national honour required them to repel. In the irritable state of the public temper, it was not difficult to produce this opinion.

In addition to the causes of dissatisfaction with Great Britain which have already been suggested, others soon occurred. Under her auspices, a truce for one year had been lately negotiated between Portugal and the Regency of Algiers, which, by withdrawing a small squadron stationed during the war, by the former power, in the Streights, opened a passage into the Atlantic to the cruisers of the latter. The capture of American merchantmen, which was the immediate consequence of this measure, was believed, in the United States, to have been its motive. Not admitting the possibility that a desire to extricate Portugal from a war unproductive of any advantages, and to leave her maritime force free to act elsewhere, could have induced this interposition of England, the Americans ascribed it, exclusively, to that enmity to their commerce, and to that jealousy of its prosperity, which had, as they conceived, long marked the conduct of those who administered the affairs of that nation.

This transaction was afterwards explained by England, and was ascribed to her desire to serve an ally, and to enable that ally to act more efficaciously in a common cause.



George Washington

From the painting by Charles Willson Peale.

In June, 1783, Washington spent some time in Princeton, New Jersey, whither the Continental Congress had adjourned from Philadelphia in consequence of a mutiny among the unpaid troops stationed there. On leaving Princeton the American Commander-in-Chief donated 50 guineas to the College of New Jersey, now Princeton University. The trustees spent the money on this portrait and had it put in the frame formerly occupied by a picture of King George III,

which was destroyed by a cannon ball in the Battle of Princeton. This canvas still hangs in the Princeton Faculty room.

By Courtesy of Princeton University

From governments accustomed to trust rather to artifice, than to force or to reason, and influenced by vindictive passions which they have not strength or courage to gratify, hostility may be expected to exert itself in a cruel insidious policy, which unfeelingly dooms individuals to chains, and involves them in ruin, without having a tendency to effect any national object. But the British character rather wounds by its pride, and offends by its haughtiness, and open violence, than injures by the secret indulgence of a malignant, but a paltry and unprofitable revenge: and, certainly, such unworthy motives ought not lightly to be imputed to a great and magnanimous nation, which dares to encounter a world, and risk its existence, for the preservation of its station in the scale of empires, of its real independence, and of its liberty.

But, in believing the views of the British cabinet to be unfriendly to the United States, America was perhaps not entirely mistaken. Indeed, dispositions of a different nature could not reasonably have been expected. It may be denied, but can not be disguised, that the sentiments openly expressed by a great majority of the American people, warranted the opinion that, notwithstanding the exertions of the administration, they were about to arrange themselves, in the war, on the side of France. In a government like that of the United States, no firmness on the part of the chief magistrate can long resist the current of popular opinion; and that opinion, without professing it, unquestionably led to war.

If the character of the British minister at Philadelphia is to be collected from his intercourse with the executive of the country to which he was deputed, there is reason to suppose that his communications to his own government did not diminish the impression which the evidence furnished on this subject, by the American people themselves, was calculated to make. It is therefore not improbable, whatever may be the permanent views of England respecting the commercial prosperity of the United States, that the measures

of the British cabinet, about this time, were taken in the belief that war between the two nations was a probable event.

Report of the secretary of state in relation to the commerce of the United States.

Early in the session a report was made by the secretary of state, in pursuance of a resolution of the house of representatives passed on the 23d of February, 1791, requiring him "to report to congress the nature and extent of the privileges and restrictions of the commercial intercourse of the United States with foreign nations, and the measures which he should think proper to be adopted for the improvement of the commerce and navigation of the same."

This report stated the exports of the United States in articles of their own produce and manufacture at nineteen millions, five hundred and eighty-seven thousand, and fifty-five dollars; and the imports at nineteen millions, eight hundred and twenty-three thousand, and sixty dollars.

Of the exports, nearly one-half was carried to the kingdom of Great Britain and its dominions; of the imports, about four-fifths were brought from the same countries. The American shipping amounted to two hundred and seventy-seven thousand, five hundred and nineteen tons, of which not quite one-sixth was employed in the trade with Great Britain and its dominions.

In all the nations of Europe, most of the articles produced in the United States were subjected to heavy duties, and some of them were prohibited. In England, the trade of the United States was in the general on as good a footing as the trade of other countries; and several articles were more favoured than the same articles of the growth of other countries.

The statements and arguments of this report tended to enforce the policy of making discriminations which might favour the commerce of the United States with France, and discourage that with England; and which might promote the increase of American navigation as a branch of industry, and a resource of defence.

This was the last official act of the secretary of state. Early in the preceding summer, he had signified to the President his intention to retire in September from the public service; and had, with some reluctance, consented to postpone the execution of this intention to the close of the year. Retaining his purpose, he resigned his office on the last day of December.

He resigns.

This gentleman withdrew from political station at a moment when he stood particularly high in the esteem of his countrymen. His determined opposition to the financial schemes which had been proposed by the secretary of the treasury, and approved by the legislative and executive departments of the government; his ardent and undisguised attachment to the revolutionary party in France; the dispositions which he was declared to possess in regard to Great Britain; and the popularity of his opinions respecting the constitution of the United States; had devoted to him that immense party whose sentiments were supposed to comport with his, on most, or all of these interesting subjects. To the opposite party he had, of course, become particularly unacceptable. But the publication of his correspondence with Mr. Genet dissipated much of the prejudice which had been excited against him. He had, in that correspondence, maintained with great ability the opinions embraced by the federalists on those points of difference which had arisen between the two republics; and which, having become universally the subjects of discussion, had in some measure displaced those topics on which parties were previously divided. The partiality for France that was conspicuous through the whole of it, detracted nothing from its merit in the opinion of the friends of the administration, because, however decided their determination to support their own government in a controversy with any nation whatever, they felt all the partialities for that republic which the correspondence expressed. The hostility of his enemies therefore was, for a time, considerably lessened, without a corresponding diminution of the attachment of his friends. It would have been impracticable, in office, long to preserve these dispositions. And it would have been difficult to maintain that ascendancy which he held over the minds of those who had supported, and probably would continue to support, every pretension of the French republic, without departing from principles and measures which he had openly and ably defended.

Is succeeded by Mr. Randolph.

He was immediately succeeded by Mr. Edmund Randolph; and the office of attorney general was filled by Mr. William Bradford, a gentleman of considerable eminence in Pennsylvania.

On the fourth of January, the house resolved itself into a committee of the whole, on the report of the secretary of state, relative to the privileges and restrictions of the commerce of the United States; when Mr. Madison, after some prefatory observations, laid on the table a series of resolutions^[13] for the consideration of the members.

Mr. Madison's resolutions founded on the above report.

These memorable resolutions embraced almost completely the idea of the report. They imposed an additional duty on the manufactures, and on the tonnage of vessels, of nations having no commercial treaty with the United States; while they reduced the duties already imposed by law, on the tonnage of vessels belonging to nations having such commercial treaty: and they reciprocated the restrictions which were imposed on American navigation.

Debate thereon.

On the 13th of January they were taken into consideration, when the debate was opened by Mr. Smith of South Carolina.

After noticing the importance of the subject to the best interests of the United States, he observed that, being purely commercial in its nature, he would exclude from the view he should take of it, those political considerations which some might think connected with it. He imagined it would be right to dismiss, for the present, all questions respecting the Indians, Algerines, and western posts. There would be a time for these questions; and then he should give his opinion upon them with firmness, and according to what he conceived to be the true interests of his country. The regulation of commerce gave of itself sufficient scope for argument, without mixing it with extraneous matter.

After some general observations on the delicacy of the crisis, and on the claims of the resolutions to dispassionate investigation, he proceeded to consider the report on which they were founded.

The great object of that report being to establish a contrast between France and Britain, he would request the attention of the committee to an accurate statement of facts, which, being compared with the report, would enable them to decide on the justness of its inferences.

In the opinion that any late relaxations of the French republic were produced by interests too momentary and fluctuating to be taken as the basis of calculations for a permanent system, he should present a comparative view of the commerce of the United States to those countries, as it stood anterior to the revolution of France. For this purpose, he produced a table which had been formed by a person whose commercial information was highly respectable, from which he said it would appear, notwithstanding the plaudits so generally bestowed on the justice and liberality of the one nation, and the reproaches uttered against the other, that, with the exception of the trifling article of fish oil, the commerce of the United States was not more favoured in France than in Great Britain, and was, in many important articles, more favoured by the latter power, than that of other nations.

Mr. Smith then reviewed, in detail, the advantages and disadvantages attending the sale of the great products of America in the ports of each nation, which, he conceived, were more encouraged by the British than by the French market.

A comparative statement, he added, of the value of the exports of the two countries, would assist in confirming this opinion.

The value of the exports to Great Britain, at the close of the year ending with September, 1789, was nearly double those made to France in the same period: and even the average of the years 1790, 1791 and 1792, gave an annual excess to the exports to Great Britain of three millions, seven hundred and fifty-two thousand, seven hundred and sixty dollars.

The great amount of merchandise imported from Britain, instead of being a grievance, demonstrated, in the opinion of Mr. Smith, the utility of the trade with that country. For the extent of the intercourse between the two nations, several obvious reasons might be assigned. Britain was the first manufacturing country in the world, and was more able, than any other, to supply an assortment of those articles which were required in the United States. She entitled herself, too, to the preference which was given her, by the extensive credit she afforded. To a young country wanting capital, credit was of immense advantage. It enabled them to flourish by the aid of foreign capital, the use of which had, more than any other circumstance, nourished the industry of America.

By the advocates for forcing a trade with France, it was asserted that she could supply the wants of America on better terms than Great Britain. To do this, she must not only sell cheaper, but give credit, which, it was known her merchants either could not, or would not give.

The very necessity of laying a duty on British manufactures, in order to find a sale for those of other countries, was a proof that the first could be purchased on better terms, or were better adapted to the market.

If the object of the resolutions were the encouragement of domestic manufactures, there might be some semblance of argument in their favour. But this is not contemplated. Their avowed object is to turn the course of trade from one nation to another, by means which would subject the citizens of the United States to great inconvenience.

Mr. Smith next proceeded to consider the subject with a view to navigation.

The trade of the United States to Great Britain, for the transportation of their own produce, was as free in American as in British bottoms, a few trifling port charges excepted. In France, they enjoyed the advantages granted to the most favoured nation. Thus far the comparison was in favour of Great Britain. In the West Indies, he admitted the existence of a different state of things. All American bottoms were excluded from the British islands, with the exception of Turks island. In the French islands, vessels under sixty tons were admitted, but this advantage was common to all other nations.

The effect of the difference in the regulations of the two rival nations in respect of navigation, was not so considerable as the secretary of state had supposed. He had stated the tonnage employed in the intercourse with France and her colonies, at 116,410 tons; and that employed in the commerce with Great Britain at 43,580 tons. The secretary was led into this miscalculation by taking for his guide, the actual entries of American bottoms from the dominions of each country in the year. As four voyages are made to the West Indies, while only two are made to Europe, the vessels employed in the former traffic will be counted four times in the year, and those employed in the latter will be counted only twice in the same period. The deceptiveness of the calculations made from these data had induced a call on the secretary of the treasury for an account of the actual tonnage employed in trade with foreign nations for one year. This account shows that

France employs 82,510 tons, and Great Britain 66,582 tons, of American shipping; leaving in favour of France, an excess of 15,928, instead of 72,830 tons, as reported by the secretary of state.

From this comparative view taken of the regulations of the two nations, Mr. Smith conceived himself justified in saying, that the commercial system of Great Britain towards the United States, far from being hostile, was friendly; and that she made many discriminations in their favour. France, on the contrary, placed them on a better situation than her rival, only in one solitary instance, the unimportant article of fish oil.

If this be a true picture of the existing state of things, and he could not perceive in what it was defective, was it not time, he asked, that the deceptions practised on the people by the eulogists of France and the revilers of Great Britain, should be removed?

The resolutions were supported by Mr. Madison, Mr. Findley, Mr. Nicholas, Mr. Clarke, Mr. Smiley, Mr. Moore, and Mr. Giles.

They admitted the subject before the committee to be of a commercial nature, but conceived it to be impracticable to do justice to the interests of the United States, without some allusions to politics. The question was in some measure general. They were to inquire how far it was the interest of this country by commercial regulations to vary the state of commerce now existing. They were of opinion that most of the injuries proceeding from Great Britain were inflicted for the promotion of her commercial objects, and were to be remedied by commercial resistance. The Indian war, and the Algerine attack, originated both in commercial views, or Great Britain must stand without excuse for instigating the most horrid cruelties. The propositions before the committee were the strongest weapon America possessed, and would, more probably than any other, restore her to all her political and commercial rights. They professed themselves the friends of free trade, and declared the opinion that it would be to the general advantage, if all commerce was free. But this rule was not without its exceptions. The navigation act of Great Britain was a proof of the effect of one exception on the prosperity of national commerce. The effect produced by that act was equally rapid and extensive.

There is another exception to the advantages of a free trade, where the situation of a country is such with respect to another, that by duties on the commodities of that other, it shall not only invigorate its own means of rivalry, but draw from that other the hands employed in the production of those commodities. When such an effect can be produced, it is so much clear gain, and is consistent with the general theory of national rights.

The effect of leaving commerce to regulate itself is to submit it to the regulation of other nations. If the United States had a commercial intercourse with one nation only, and should permit a free trade, while that nation proceeded on a monopolizing system, would not the carrying trade be transferred to that nation, and with it, the maritime strength it confers be heaped upon a rival? Then, in the same proportion to the freedom granted to the vessels of other nations in the United States, and to the burdens other nations impose on American vessels, will be the transfer of those maritime resources.

The propositions before the committee should be examined as they concern navigation, manufactures, and the just principles of discrimination that ought to prevail in their policy to nations having treaties with them.

With respect to navigation, it was conceded that they were not placed upon the same footing by the two nations with whom they had the greatest commercial intercourse. British vessels could bring the produce of all countries into any port of the United States; while American vessels could carry to the ports of Britain only their own commodities, and those only to a part of her dominions. From her ports in the West Indies they were entirely excluded.

To exhibit at a glance the effect of the British navigation act, it was sufficient to compare the quantity of American and British tonnage employed in their intercourse with each other. The former in 1790 amounted to 43,000 tons, and the latter to 240,000 tons. The effect of British policy would be further shown by showing the proportion of domestic tonnage employed at the same time in the intercourse with other European nations. With Spain the American was to the Spanish as five to one, with Portugal six to one, Netherlands fifteen to one, Denmark twelve to one, France five to one, Great Britain one to five. This ratio had by particular circumstances been somewhat changed. From calculations founded on the documents last

introduced into the house, it appeared that, at present, the proportion of American to foreign tonnage employed in the American trade was, with Spain as sixteen to one, Portugal seventeen to one, Netherlands twenty-six to one, Denmark fifteen to one, Russia fourteen to one, France between four and five to one, and Great Britain one to three.

The situation of American commerce was the more mortifying when the nature and amount of their exports came to be considered. They were not only necessities of life, or necessities for manufactures, and therefore of life to the manufacturer, but their bulkiness gave them an advantage over the exports of every other country. If America, to increase her maritime strength, should secure to herself the transportation of her own commodities, leaving to other nations the transportation of theirs, it would greatly augment the proportion of her shipping and of her sailors.

In relation to manufactures, the regulations existing between the United States and Great Britain were not more equal. Out of the whole amount of manufactured articles imported into this country, which was stated in round numbers at fifteen millions, two hundred and ninety thousand dollars, Great Britain furnished thirteen millions, nine hundred and sixty thousand. In the same period, in the year 1789-90, the articles which the United States received from France, a country which actually consumed more of their produce, amounted only to one hundred and fifty-five thousand dollars. The balance of trade, at the same epoch, was greatly in favour of the United States with every other nation, and greatly against them with Britain. Although it might happen in some cases, that other advantages might be derived from an intercourse with a particular nation, which might compensate for an unfavourable balance of trade, it was impossible that this could happen in the intercourse with Great Britain. Other nations, however, viewed a balance of trade against them as a real evil; and Great Britain, in particular, was careful to prevent it. What then must be the feelings of a nation, between whom and the United States the most friendly relations existed, when she saw, not only the balance of trade against her, but that what was thus obtained from her, flowed in the same manner into the coffers of one of her most jealous rivals, and inveterate enemies?

The propriety of discriminating between nations having treaties with the United States, and those having none, was admitted in some states before the establishment of the present government, and was sanctioned by that house

during their sittings in New York. It was the practice of nations to make such a discrimination. It was necessary to give value to treaties.

The disadvantages of depending on a single nation for articles of necessary consumption was strongly pressed; and it was added as an evil of most serious magnitude, more truly alarming than any other of its features, that this commercial dependence produced an influence in their councils which enabled it, the more inconvenient it became by its constant growth, to throw the more obstacles in the way of a necessary remedy.

They entertained no apprehensions of injurious consequences from adopting the proposed resolutions. The interests of Great Britain would not suffer her to retaliate: and the intercourse between the two countries would not be interrupted further than was required by the convenience and the interests of the United States. But if Great Britain should retaliate, the effects of a commercial conflict would be felt by her, much more sensibly, than by the United States. Its effects would be felt in the shipping business, by the merchants, and above all by the manufacturer.

Calculations were offered, by comparing the total amount of British exports with those to the United States, to prove, that three hundred thousand British manufacturers would be suddenly thrown out of employment, by withdrawing the trade carried on between America and that country. In the complication of distress to which such a measure would reduce them, they would consider the United States as a natural asylum from wretchedness. But whether they remained in discontent at home, or sought their fortune abroad, the evil would be considered and felt by the British government as equally great, and they would surely beware of taking any step that might provoke it.

On the advantages of America in such a contest with a populous and manufacturing country, they dwelt with peculiar earnestness. She produced all the necessities of life within herself, and could dispense with the articles received from others. But Great Britain, not producing them in sufficient abundance, was dependent on the United States for the supply of her most essential wants. Again, the manufacturer of that country was dependent on this for the sale of his merchandise which was to purchase his bread. Thus was produced a double dependence of Great Britain on the United States. She was also dependent on them for the raw materials which formed the

basis of her manufactures. Her West Indies were almost completely dependent. This country furnished the best market for their productions, and was almost the only one which could supply them with the necessaries of life. The regulation excluding the provisions of other foreign countries was entitled to no consideration. It was of ancient date, and had remained untouched because there was no other foreign country by which provisions could be supplied.

That the commercial regulations of Great Britain were as favourable to the United States as to other nations, ought not to satisfy America. If other nations were willing to bear impositions, or were unable to retaliate, their examples were not worthy of imitation. America was in a condition to insist, and ought to insist, on perfect commercial equality.

It was denied that any real advantage was derived from the extensive credit given by the merchants of Great Britain. On the contrary, the use made of British capital was pronounced a great political evil. It increased the unfavourable balance of trade, discouraged domestic manufactures, and promoted luxury. But its greatest mischief was, that it favoured a system of British influence, which was dangerous to their political security.

As the debate advanced, the expressions of exasperation against Britain became stronger; and occasionally allusions were made to those party questions which had long agitated the public mind, with a bitterness which marked their intimate connexion with the conduct of the United States to foreign countries.

It was said to be proper in deciding the question under debate, to take into view political, as well as commercial considerations. Ill will and jealousy had at all times been the predominant features of the conduct of England to the United States. That government had grossly violated the treaty of peace, had declined a commercial treaty, had instigated the Indians to raise the tomahawk and scalping knife against American citizens, had let loose the Algerines upon their unprotected commerce, and had insulted their flag, and pillaged their trade in every quarter of the world. These facts being notorious, it was astonishing to hear gentlemen ask how had Britain injured their commerce?

The conduct of France, on the contrary, had been warm and friendly. That nation respected American rights, and had offered to enter into commercial arrangements on the liberal basis of perfect reciprocity.

The period which Mr. Smith had taken as that at which the systems of the two nations should be compared with each other, was reprobated with peculiar severity. It was insinuated to proceed from a wish that the United States should directly countenance the restoration of despotism; and much regret was expressed that a distrust of the permanency of the French revolution should be avowed. It was hoped and believed that the present was the settled state of things; and that the old order of things was unsettled for ever: that the French revolution was as much more permanent than had been the French despotism, as was the great fabric of nature, than the petty plastic productions of art. To exclude the period since the revolution, would be to exclude some of the strongest evidences of the friendship of one nation, and the enmity of the other.

The animadversions which had been made on the report of the secretary of state were retorted with acrimony. It was declared that he would not suffer by a comparison in point of intelligence, accuracy, and patriotism, either with the laborious compiler of the table produced by Mr. Smith, or with the gentleman who had been judiciously selected for its interpreter. Some explanations were given of the inaccuracies which had been alleged; and the facts omitted were declared to be immaterial circumstances, which, if inserted, would have swelled the report, without adding to the information it communicated.

In reply to the argument which stated that Great Britain did not, in common years, raise a sufficient quantity of grain for her own consumption, and would consequently afford an increasing market for American wheat and flour, it was remarked that this not only established the all important position of the dependence of that country on this, but suggested a very interesting reflection. It was that the continual increase of debt and paper machinery, will not produce a correspondent increase of ability in the nation to feed itself. That an infinity of paper will not produce an infinity of food.

In contrasting the ability of the two nations to support a commercial conflict, it was said, "Great Britain, tottering under the weight of a king, a court, a nobility, a priesthood, armies, navies, debts, and all the complicated

machinery of oppression which serves to increase the number of unproductive, and lessen the number of productive hands; at this moment engaged in a foreign war; taxation already carried to the ultimatum of financial device; the ability of the people already displayed in the payment of taxes, constituting a political phenomenon; all prove the debility of the system, and the decrepitude of old age. On the other hand, the United States, in the flower of youth; increasing in hands; increasing in wealth; and, although an imitative policy had unfortunately prevailed in the erection of a funded debt, in the establishment of an army, the anticipation of a navy,^[14] and all the paper machinery for increasing the number of unproductive, and lessening the number of productive hands; yet the operation of natural causes has, as yet, in some degree, countervailed their influence, and still furnish a great superiority in comparison with Great Britain."

An attempt was made to liken the present situation of America to that in which she stood at the commencement of her revolutionary war; and the arguments drawn from the inconvenience to which a privation of British manufactures would expose the people at large were answered by observing—"This was not the language of America at the time of the non-importation association; this was not her language at the time of the declaration of independence. Whence then this change of American sentiment? Has America less ability than she then had? Is she less prepared for a national trial than she then was? This can not be pretended. There is, it is true, one great change in her political situation. America has now a funded debt: she had no funded debt at those glorious epochs. May not this change of sentiment, therefore, be looked for in her change of situation in this respect? May it not be looked for in the imitative sympathetic organization of our funds with the British funds? May it not be looked for in the indiscriminate participation of citizens and foreigners in the emoluments of the funds? May it not be looked for in the wishes of some to assimilate the government of the United States to that of Great Britain? or at least, in wishes for a more intimate connexion?

"If these causes exist, it is not difficult to find the source of the national debility. It is not difficult to see that the interests of the few, who receive and disburse the public contributions, are more respected than the interest of the great majority of the society, who furnish the contributions. It is not difficult to see that the government, instead of legislating for a few millions, is

legislating for a few thousands; and that the sacredness of their rights is the great obstacle to a great national exertion."

In addition to Mr. Smith, of South Carolina, the resolutions were opposed by Mr. Smith, of Maryland, Mr. Goodhue, Mr. Lea, Mr. Dexter, Mr. Ames, Mr. Dayton, Mr. Hartley, Mr. Tracy, Mr. Hillhouse, Mr. Forest, Mr. Fitzsimmons, and Mr. Foster.

If, it was said, the United States had sustained political wrongs from Great Britain, they should feel as keenly as any persons for the prostrated honour of their country; but this was not the mode of redressing them. When that subject should be brought before congress, they would not be slow in taking such measures as the actual state of things might require. But they did not approve of retaliating injuries under the cloak of commercial regulations. Independent of other objections, it would derogate from the dignity of the American character.

The resolutions, it was said, ought to be contemplated commercially; and the influence they would probably have on the United States, deliberately weighed. If they were adopted, it ought to be because they would promote the interests of America, not because they would benefit one foreign nation, and injure another. It was an old adage that there was no friendship in trade. Neither ought there to be any hatred. These maxims should not be forgotten in forming a judgment on the propositions before the committee. Their avowed objects were to favour the navigation and the manufactures of the United States, and their probable operation on these objects ought to be considered.

It had been said that the American tonnage ought to bear the same proportion to the foreign tonnage employed in her trade, as exists between the bulk of her exports and imports. But the correctness of this principle was not admitted. The fact was otherwise, and it was not believed to be an evil.

Great Britain carries for other nations from necessity. Her situation is calculated for navigation. Her country is fully peopled, so full that the ground is not sufficient to furnish bread for the whole. Instead, therefore, of ploughing the earth for subsistence, her subjects are obliged to plough the ocean. The defence of their coasts has been another cause which obliges

them to abandon the more lucrative pursuits of agriculture, to provide for their defence. They have been compelled to sacrifice profit to safety.

The United States possessed a fertile, extensive, and unsettled country; and it might well be questioned how far their real interests would be promoted by forcing a further acceleration of the growth of their marine, by impelling their citizens from the cultivation of the soil to the navigation of the ocean. The measures already adopted had been very operative; and it was by no means certain that an additional stimulus would be advantageous. The increased duty on foreign tonnage, and on goods imported in foreign bottoms, had already been attended with sensible effects. In 1790, the American tonnage was one-half the whole tonnage employed in their trade: in 1791, it was three-fifths: in 1792, it had increased to two-thirds. This growth was believed to be sufficiently rapid. It was more rapid than the growth of British tonnage had ever been under the fostering care of their celebrated navigation act. Let the existing system be left to its natural operation, and it was believed that it would give to the United States that share in the carriage of their commodities, which it was their interest to take.

But if a different opinion prevailed, and it was conceived that additional encouragement ought to be given to navigation, then let the duty on all foreign bottoms be increased, and let the particular disabilities to which American vessels are subjected in any country, be precisely retaliated. The discriminations proposed, instead of increasing American navigation, were calculated to encourage the navigation of one foreign nation at the expense of another.

The United States did not yet possess shipping sufficient for the exportation of their produce. The residue must reach a market in foreign bottoms, or rot upon their hands. They were advancing to a different state of things; but, in the mean time, they ought to pursue their interest, and employ those vessels which would best answer their purpose. The attempt to make it their interest to employ the vessels of France rather than those of Britain, by discriminating duties which must enhance the price of freight, was a premium to the vessels of the favourite nation, paid by American agriculture.

The navigation act of Great Britain had been made a subject of heavy complaint. But that act was not particularly directed against the United States. It had been brought into operation while they were yet colonies, and

was not more unfavourable to them than to others. To its regulations, Great Britain was strongly attached; and it was not probable that America could compel her to relinquish them. Calculations were made on the proportion of British manufactures consumed in America, from which it was inferred that her trade, though important, was not sufficiently important to force that nation to abandon a system which she considered as the basis of her grandeur. In the contest, considerable injury would be unquestionably sustained; and nothing was perceived in the situation of the United States, which should induce them to stand forth the champions of the whole commercial world, in order to compel the change of a system, in which all other nations had acquiesced. But if they were to engage in such a contest, it was by a similar act, by opposing disabilities to disabilities, that it ought to be carried on. Upon this point, several members who were opposed to the resolutions, avowed an opinion favourable to an American navigation act, and expressed their willingness to concur in framing regulations which meet the prohibitions imposed on their vessels with corresponding prohibitions. Thus far they were ready to go; but they were not ready to engage in a contest injurious to themselves, for the benefit of a foreign nation.

Another avowed object of the resolutions was to favour the manufactures of the United States. But certainly it was not by discriminating duties, by endeavouring to shift commerce from one channel to another, that American manufactures were to be promoted. This was to be done by pursuing the course already adopted, by laying protecting duties on selected articles, in the manufacture of which America had made some progress; and by a prohibitory duty on others, of which a sufficient domestic supply could be afforded. But the proposed measure only went to the imposition of a tax on their own citizens, for the benefit of a foreign nation.

If the British market afforded an assortment of goods best suited to their consumption, and could give them cheaper, a prohibitory duty imposed upon those goods would only drive their citizens to seek them in another market, less able to supply their wants, and at a dearer rate. There was nothing in this tending to encourage manufactures.

If the United States were prepared to manufacture to the whole amount of their wants, the importation of all rival articles might be prohibited. But this they were not prepared to do. Their manufactures must advance by slow

degrees; and they were not to enter into a measure of this kind, for the purpose of retaliating on a nation which had not commercially injured them.

The resolutions then were adapted to the encouragement neither of the navigation, nor the manufactures of the United States, but of a foreign nation. Their effect would obviously be to force trade to change its natural course, by discriminations against a nation which had in no instance discriminated against the United States, but had favoured them in many points of real importance. By what commercial considerations could such a system be recommended?

That it would be attended with great immediate inconveniences must be admitted; but for these, ample compensation, it had been said, was to be found in its remote advantages. These were, a diminution of American commerce with one nation, by its proportional augmentation with another; and a repeal of the navigation act, and of the colonial system of Great Britain.

On the subject of forcing trade from one nation to another, which is, of necessity, so complicated in principle, so various and invisible in consequence, the legislature should never act but with the utmost caution. They should constantly keep in view, that trade will seek its own markets, find its own level, and regulate itself much better than it could be regulated by law. Although the government might embarrass it, and injure their own citizens, and even foreign nations, for a while, it would eventually rise above all the regulations they could make. Merchants, if left to themselves, would always find the best markets. They would buy as cheap and sell as dear as possible. Why drive them from those markets into others which were less advantageous? If trade with Britain was less free, or less profitable, than with France, the employment of coercive means to force it into French channels would be unnecessary. It would voluntarily run in them. That violence must be used in order to change its course, demonstrated that it was in its natural course.

It was extraordinary to hear gentlemen complaining of British restrictions on American commerce, and at the same time stating her proportion of that commerce as a national grievance, and that the trade was so free as to become an injury. The very circumstance that she retained so large a share of it, was evidence that it did not experience in her ports unusual burdens.

Whenever greater advantages were offered by other countries, there would be no need of legislative interference to induce the merchants to embrace them. That portion of trade would go to each country, for which the circumstances of each were calculated. If Great Britain purchased more American produce than she consumed, it was because, all circumstances considered, it was the interest of America to sell her more than she consumed. While this interest continued, no mischief could result from the fact; when the cause should cease, the effect would cease also, without the intervention of the legislature.

It was very improbable that the resolutions under consideration would effect their other avowed object, a repeal of the British navigation act.

The season, it was said, was peculiarly unfavourable to such experiments. The internal convulsions of France had laid her manufactures in ruins. She was not in a condition to supply her own wants, much less those of the United States. The superb column erected at Lyons could furnish no stimulus to the industry of her manufacturers.

But the attempt to stop the natural intercourse between the United States and Great Britain, though incapable of producing on the latter the full effect which was desired, might inflict deep and lasting wounds on the most essential interests of the former. The injuries which their agriculture would sustain from the measure, might be long and severely felt.

It had been proudly stated, that while America received articles which might be dispensed with, she furnished in return the absolute necessities of life; she furnished bread, and raw materials for manufactures. "One would think," said Mr. Tracy, "to hear the declarations in this house, that all men were fed at the opening of our hand; and, if we shut that hand, the nations starve, and if we but shake the fist after it is shut, they die." And yet one great objection to the conduct of Britain was, her prohibitory duty on the importation of bread stuff while it was under a certain price.

Nothing could be more deceptive than the argument founded on the nature of American exports. What, it was asked, would be done with the surplus produce of the United States? Was it to remain in the country, and rot upon the hands of those who raised it? If not, if it was to be exported, it would find its way to the place of demand. Food would search out those who

needed it; and the raw material would be carried to the manufacturer whose labour could give it value.

But there was a much more serious aspect in which this subject ought to be placed. The products of America grew in other soils than hers. The demands for them might be supplied by other countries. Indeed, in some instances, articles usually obtained from the United States would be excluded by a fair competition with the same articles furnished by other countries. The discriminations made in their favour enabled them to obtain a preference in the British market. By withholding those which were of the growth of the United States, Great Britain would not lose the article, but America would lose the market; and a formidable rival would be raised up, who would last much longer than the resolutions under consideration. It is easy by commercial regulations to do much mischief, and difficult to retrieve losses. It is impossible to foresee all evils which may arise out of such measures; and their effects may last after the cause is removed.

The opponents of the resolutions persisted to consider the credit given by British merchants, as a solid advantage to any country which, like the United States, was defective in commercial capital; but they denied that, from that source, any political influence had arisen. "If," said Mr. Tracy, "we may argue from a great state, Virginia, to the union, this is not true; for although that state owes immense debts, her representatives come forward with great spirit to bring Great Britain to her feet. The people to the eastward do not owe the English merchants, and are very generally opposed to these regulations. These facts must convince us that the credit given by Great Britain, does not operate to produce a fear, and a dependence, which can be alarming to government."

"If," said Mr. Dexter, "I have a predilection for any country besides my own, that bias is in favour of France, the place of my father's sepulture. No one, more than myself, laments the spasm of patriotism which convulses that nation, and hazards the cause of freedom; but I shall not suffer the torrent of love or hatred to sweep me from my post. I am sent neither to plead the cause of France nor England, but am delegated as a guardian of the rights and interests of America."

The speakers against the resolutions universally laboured to exclude from all weight in the decision on them, considerations which were foreign to the

interests of the United States. "The discussion of this subject," said Mr. Tracy, "has assumed an appearance which must be surprising to a stranger, and painful in the extreme to ourselves. The supreme legislature of the United States is seriously deliberating, not upon the welfare of our own citizens, but upon the relative circumstances of two European nations; and this deliberation has not for its object, the relative benefits of their markets to us, but which form of government is best and most like our own, which people feel the greatest affection for us, and what measures we can adopt which will best humble one and exalt the other.

"The primary motive of these resolutions, as acknowledged by their defenders, is, not the increase of our agriculture, manufactures, or navigation, but to humble Great Britain and build up France; and although it is said our manufactures and navigation may receive some advantage, it is only mentioned as a substitute in case of failure as to the great object.

"The discussion in favour of these resolutions has breathed nothing but hostility and revenge against the English; and yet *they* put on the mild garb of commercial regulations. Legislatures, always cautious of attempting to force trade from its own channels and habits, should certainly be peculiarly cautious, when they do undertake such business, to set about it with temperance and coolness; but in this debate, we are told of the inexecution of a former treaty, withholding western posts, insults and dominations of a haughty people, that through the agency of Great Britain the savages are upon us on one side, and the Algerines on the other. The mind is roused by a group of evils, and then called upon to consider a statement of duties on goods imported from foreign countries. If the subject is commercial, why not treat it commercially, and attend to it with coolness? if it is a question of political hostility, or of war, a firmer tone may be adopted."

On this side of the question, the conduct of Great Britain, if as hostile as it was represented to be, was spoken of with high indignation. "If," said Mr. Tracy, "these statements are founded in fact, I can not justify myself to my constituents, or my conscience, in saying the adoption of the regulations of commerce, a navigation act, or the whole parade of shutting ports, and freeing trade from its shackles, is in any degree calculated to meet or remedy the evil.

"Although I deprecate war as the worst of calamities for my country, yet I would inquire seriously whether we had on our part, fulfilled the treaty with Great Britain, and would do complete justice to them first. I would negotiate as long and as far as patience ought to go; and, if I found an obstinate denial of justice, I would then lay the hand of force upon the western posts, and would teach the world that the United States were no less prompt in commanding justice to be done them, than they had been patient and industrious in attempting to obtain it by fair and peaceable means. In this view of the subject I should be led to say, away with your milk and water regulations; they are too trifling to effect objects of such importance. Are the Algerines to be frightened with paper resolves, or the Indians to be subdued, or the western posts taken, by commercial regulations? when we consider the subject merely as a commercial one, it goes too far, and attempts too much; but when considered as a war establishment, it falls infinitely short of the mark, and does too little."

This earnest and interesting debate was protracted to a great length, and was conducted on both sides with great spirit and eloquence. At length, on the third of February, the question was taken on the first resolution, which was carried by a majority of five. The further consideration of the resolutions was then postponed until the first Monday in March.

This animated debate was succeeded by another, on a question which also brought into full view, the systems that were embraced by the opposite parties, on some of those great national subjects which give a character to an administration.

On the second of January, a resolution was agreed to in the house of representatives declaring "that a naval force adequate to the protection of the commerce of the United States against the Algerine corsairs, ought to be provided." The force proposed was to consist of six frigates; four of forty-four, and two of thirty-six guns.

This measure was founded on the communications of the President, representing the improbability of being able to negotiate a peace with the dey of Algiers; and on undoubted information that the corsairs of that regency had, during their first short cruise in the Atlantic, captured eleven American merchantmen, and made upwards of one hundred prisoners; and

were preparing to renew their attack on the unprotected vessels of the United States.

In every stage of its progress this bill was most strenuously opposed.

Debates on the subject of a navy.

The measure was viewed simply as a present protection to commerce, and then as the commencement of a permanent naval establishment. In both characters it was reprobated with extreme severity.

As a measure of protection, it was declared to be altogether incompetent to the attainment of its object, because the force contemplated was insufficient, and because it could not be brought into immediate use. The measure, therefore, would be totally inefficacious.

But the object might be effected by other means, more eligible, and less expensive. By proper management, and a due attention to time and circumstances, a peace might be procured with money.

Nations possessing a naval force greatly superior to the proposed armament, had found it to their advantage to purchase the friendship of the Algerines. That mode of procuring peace was recommended both by its efficacy, and its economy. Unless the object was obtained, the money would not be expended.

Another mode of giving security to their commerce, preferable to the plan in the bill, was to purchase the protection of foreign powers. This might be acquired at a less expense than would be incurred in fitting out the proposed armament, and its utility would be immediate.

But the measure was also to be considered as the commencement of a permanent navy. The question which this view of it presented, was one of the most important that could engage the consideration of the house. The adoption of the principle would involve a complete dereliction of the policy of discharging the public debt. History afforded no instance of a nation which continued to increase its navy, and at the same time to decrease its debt.

To the expensiveness of the navy system were ascribed the oppression under which the people of England groaned, the overthrow of the French monarchy, and the dangers which threatened that of Great Britain. The expensiveness of the government was the true ground of the oppression of the people. The king, the nobility, the priesthood, the *army*, and above all,

the navy. All this machinery lessens the number of productive, and increases the number of unproductive hands in the nation.

The United States had already advanced full far enough in this system. In addition to the civil list, they had funded a debt on the principles of duration, had raised an army at an immense expense, and now a proposition was made for a navy.

The system of governing by debts, was the most refined system of tyranny. It seemed to be a contrivance devised by politicians to succeed the old system of feudal tenures. Both were tyrannical, but the objects of their tyranny were different. The one operated on the person, the other operates on the pockets of the individual. The feudal lord was satisfied with the acknowledgment of the tenant that he was a slave, and the rendition of a pepper corn as an evidence of it; the product of his labour was left for his own support. The system of debts affords no such indulgence. Its true policy is to devise objects of expense, and to draw the greatest possible sum from the people in the least visible mode. No device can facilitate the system of debts and expense so much as a navy; and they should hold the liberty of the American people at a lower rate, should this policy be adopted.

Another great objection to the establishment of a navy was, that until the United States should be able to contend with the great maritime powers on the ocean, it would be a hostage, to its full value, for their good behaviour. It would increase rather than lessen their dependence.

In reply, it was said that if it had been the intention of the house to incur a vast expense in the establishment of a navy for vain parade, there might be force in some of the objections which had been made. But this was not the case. It was a measure, not of choice, but of necessity. It was extorted by the pressure of unavoidable events.

It being universally admitted that their commerce required protection against the Algerine corsairs, the question was, simply, whether the plan proposed in the bill was the best mode of affording that protection.

To decide this question, it would be proper to consider the substitutes which had been offered; and then to review the objections which had been made to

the measure.

The substitutes were, first, to purchase a peace; and secondly, to subsidize other nations to protect commerce.

On the first substitute, it was said that the late communications must satisfy every person who had attended to them, that all hope of purchasing a peace must be abandoned, unless there was a manifestation of some force which might give effect to negotiation. So long as the vessels of the United States remained an easy and tempting prey to the cupidity of those corsairs, it would be vain to expect that they would sell a peace for the price the government would be willing to give, or that a peace would be of any duration. If the executive had experienced such difficulties while the Algerine cruisers had captured only one or two vessels, and were confined to the Mediterranean by a Portuguese squadron, how much less prospect was there of success after they had captured a considerable number of ships, were likely to capture many more, and were at liberty to cruise on the Atlantic to the very coasts of the United States? Even that little prospect of success would be diminished, when the dey of Algiers should understand that the United States would take no measures to protect their trade, and were afraid of the expense of a small armament.

It was to be understood that they did not rely solely on the operations of the armament. They still looked forward to negotiation, and were willing to provide the means for purchasing a peace. But the former measure was necessary to give success to the latter, and the armament might be employed to advantage should negotiation fail.

The other substitute was to subsidize foreign powers. The national dishonour of depending upon others for that protection which the United States were able to afford themselves, was strongly urged. But there were additional objections to this project. Either the nations in contemplation were at peace or at war with the regency of Algiers. If the former, it was not to be expected that they would relinquish that peace for any indemnification the United States could make them. If the latter, they had sufficient inducements to check the depredations of their enemies without subsidies. Such a protection would be hazardous, as it would be, at any time, in the power of the nation that should be employed, to conclude a truce with

Algiers, and leave the trade of the United States at the mercy of her corsairs. While the expense of protection was perpetually to be incurred, it would never furnish the strength which that expense ought to give.

With a navy of her own, America might co-operate to advantage with any power at war with Algiers, but it would be risking too much to depend altogether on any foreign nation.

To the argument that the force was incompetent to the object, it was answered, that, from the documents before them, and from the diligent inquiries of a large committee, the number and strength of the Algerine corsairs had been ascertained, and the armament contemplated in the bill was believed to be sufficient. If gentlemen thought differently, it was surprising that they did not move to augment it.

The expense of the frigates had been strongly urged. But the saving in insurance, in ships and cargoes, and in the ransom of seamen, was more than equivalent to this item. "But are not the slavery of our fellow citizens, and the national disgrace resulting from it, to be taken into the account? these are considerations beyond all calculation. Who can, after reading the affecting narratives of the unfortunate, sit down contented with cold calculations and syllogisms? their narratives ought to excite every possible exertion, not only to procure the release of the captured, but to prevent the increase of the number of these unhappy victims."

That a bill providing six frigates, to exist during the war with the Algerines, should excite apprehensions of a large permanent navy, and of an immense debt, was truly astonishing. But even if the bill had not contained a clause enabling the President to discontinue the armament provided peace should be concluded with the regency of Algiers, the weight of the objection was denied. America was peculiarly fitted for a navy; she abounded in all kinds of naval resources, and had within herself, those means which other nations were obliged to obtain from abroad. Her situation, and the dispositions of a considerable proportion of her citizens, evinced still more the propriety of a naval establishment. Perhaps the country was not yet mature for such an establishment to any great extent. But the period was not far distant when it would be. The United States had an increasing population, much individual wealth, and considerable national resources. It was not believed that the

expense of equipping a small naval armament for the protection of their commerce, would be insupportable.

It was, however, matter of surprise, that gentlemen who had deemed the improvement of American navigation, as a source of defence, an object of so much importance as to be anxious to wage an immediate commercial war with Great Britain for that purpose, should avow such a fixed determination against resorting to that resource in any degree whatever, under circumstances the most urgent.

The original resolution was carried only by a majority of two voices; but as the bill advanced, several members who were accustomed to vote in the opposition gave it their support; and, on the final question, a majority of eleven appeared in its favour. The other branch of the legislature concurred, and it received the cordial assent of the President.

Pending these discussions, the irritations in which they commenced were greatly aggravated by accounts, that captures of American vessels by British cruisers were made to an extent altogether unprecedented; and early in March, an authentic paper was received which proved that those captures were not unauthorized.

On the sixth of November, 1793, additional instructions had been issued to the ships of war and privateers of Great Britain, requiring them to stop and detain all ships, laden with goods the produce of any colony belonging to France, or carrying provisions or other supplies to any such colony, and to bring the same, with their cargoes, to legal adjudication, in the British courts of admiralty.

These instructions made a serious impression on the most reflecting and moderate men in the United States. It was believed that they originated in a spirit of hostility which must lead to war; and that it had now become the part of prudence to prepare for that event.

On the 12th of March, Mr. Sedgewick moved several resolutions, the objects of which were to raise a military force, and to authorize the President to lay an embargo. The armament was to consist of fifteen thousand men, who should be brought into actual service in case of war with any European power, but not until war should break out. In the mean

time, they were to receive pay while assembled for the purpose of discipline, which was not to exceed twenty-four days in each year.

After stating the motives which led to the introduction of these resolutions, they were laid on the table for the consideration of the members. Two days afterwards, a motion was made to take up that which related to an embargo; but this motion was negatived for the purpose of resuming the consideration of the commercial regulations which had been offered by Mr. Madison. On the motion of Mr. Nicholas, those resolutions were amended so as to subject the manufactures of Great Britain alone, instead of those of all nations having no commercial treaties with the United States, to the proposed augmentation of duties. They were again debated with great earnestness, but no decision on them was made.

In addition to the objections urged against them as forming a commercial system in time of peace, they were said to be particularly inapplicable to the present moment. If, as was believed, the United States were about to be forced into a war, the public counsels ought to be directed to measures of defence. In that event, the resolutions would, at best, be useless. But the greater the danger of war, the more incumbent was it on the government to unite public opinion in support of it; and this would best be effected by observing a line of conduct which would furnish no just cause of hostility. The commercial discriminations proposed were of a hostile and irritating nature, might render war certain, would be considered by many as unnecessary, and might impair that unanimity in which the great strength of the country consisted. It was submitted to the gentlemen to decide whether it was wise to press their system through, with so small a majority as was in its favour.

The resolutions were defended on the principle, that though not in themselves contributing to the national defence, they would not prevent the adoption of such other measures as the state of things might render necessary. If war should take place, they could do no harm. But war must at some time be succeeded by peace: and they would form a valuable basis for negotiation.[\[15\]](#)

An embargo law.

On the 21st of March, Mr. Sedgewick's motion authorizing the President to lay an embargo was negatived by a majority of two voices; but in a few days, the consideration of that subject was resumed, and a resolution passed, prohibiting all trade from the United States to any foreign port or place for the space of thirty days, and empowering the President to carry the resolution into effect.

This resolution was accompanied with vigorous provisional measures for defence, respecting the adoption of which, no considerable division of sentiment was avowed.

While the measures of congress indicated that expectation of war, a public document made its appearance which seemed to demonstrate that Great Britain also was preparing for that event. This was the answer of Lord Dorchester, on the 10th of February, to a speech delivered by the deputies of a great number of Indian tribes assembled at Quebec. In this answer, his lordship had openly avowed the opinion, founded, as he said, on the conduct of the American people, that a war between Great Britain and the United States, during the present year, was probable, and that a new line between the two nations must then be drawn by the sword.

This document was not authentic; but it obtained general belief, and contributed to confirm the opinion that war was scarcely to be avoided.

On the 27th of March, Mr. Dayton moved a resolution for sequestering all debts due to British subjects, and for taking means to secure their payment into the treasury, as a fund out of which to indemnify the citizens of the United States for depredations committed on their commerce by British cruisers, in violation of the laws of nations.

The debate on this resolution was such as was to be expected from the irritable state of the public mind. The invectives against the British nation were uttered with peculiar vehemence, and were mingled with allusions to the exertions of the government for the preservation of neutrality, censuring strongly the system which had been pursued.

Before any question was taken on the proposition for sequestering British debts, and without a decision on those proposed by Mr. Madison, Mr. Clarke moved a resolution, which in some degree suspended the

commercial regulations that had been so earnestly debated. This was to prohibit all intercourse with Great Britain until her government should make full compensation for all injuries done to the citizens of the United States by armed vessels, or by any person or persons acting under the authority of the British king; and until the western posts should be delivered up.[16]

On the fourth of April, before any decision was made on the several propositions which have been stated, the President laid before congress a letter just received from Mr. Pinckney, the minister of the United States at London, communicating additional instructions to the commanders of British armed ships, which were dated the eighth of January. These instructions revoked those of the sixth of November; and, instead of bringing in for adjudication all neutral vessels trading with the French islands, British cruisers were directed to bring in those only which were laden with cargoes the produce of the French islands, and were on a direct voyage from those islands to Europe.

The letter detailed a conversation with Lord Grenville on this subject, in which his lordship explained the motives which had originally occasioned the order of the sixth of November, and gave to it a less extensive signification than it had received in the courts of vice admiralty.

It was intended, he said, to be temporary, and was calculated to answer two purposes. One was, to prevent the abuses which might take place in consequence of the whole of the St. Domingo fleet having gone to the United States; the other was, on account of the attack designed upon the French West India islands by the armament under Sir John Jarvis and Sir Charles Grey; but it was now no longer necessary to continue the regulations for those purposes. His lordship added, that the order of the sixth of November did not direct the confiscation of all vessels trading with the French islands, but only that they should be brought in for legal adjudication; and he conceived that no vessel would be condemned under it, which would not have been previously liable to the same sentence.

The influence of this communication on the party in the legislature which was denominated federal, was very considerable. Believing that the existing differences between the two nations still admitted of explanation and

adjustment, they strenuously opposed all measures which were irritating in their tendency, or which might be construed into a dereliction of the neutral character they were desirous of maintaining; but they gave all their weight to those which, by putting the nation in a posture of defence, prepared it for war, should negotiation fail.

On the opposite party, no change of sentiment or of views appears to have been produced. Their system seems to have been matured, and not to have originated in the feelings of the moment. They adhered to it therefore with inflexible perseverance; but seemed not anxious to press an immediate determination of the propositions which had been made. These propositions were discussed with great animation; but, notwithstanding an ascertained majority in their favour, were permitted to remain undecided, as if their fate depended on some extrinsic circumstance.

Meanwhile, great exertions were made to increase the public agitation, and to stimulate the resentments which were felt against Great Britain. The artillery of the press was played with unceasing fury on the minority of the house of representatives; and the democratic societies brought their whole force into operation. Language will scarcely afford terms of greater outrage than were employed against those who sought to stem the torrent of public opinion, and to moderate the rage of the moment. They were denounced as a British faction, seeking to impose chains on their countrymen. Even the majority was declared to be but half roused; and to show little of that energy and decision which the crisis required.

Unequivocal evidence, it was said, had been obtained of the liberticide intentions of Great Britain; and only the successes of freedom against tyranny, the triumphs of their magnanimous French brethren over slaves, had been the means of once more guaranteeing the independence of this country. The glorious example of France ought to animate the American people to every exertion to raise their prostrate character; and every tie of gratitude and interest should lead them to cement their connexion with that great republic. The proclamation of neutrality, though admitted to have originated in the best motives on the part of the President, was declared to be not only questionable in a constitutional point of view, but eventually to have proved impolitic. Being falsely construed by Great Britain into a manifestation of a pusillanimous disposition, it served to explain the

aggressions of that nation. Experience now urged the abandonment of a line of conduct, which had fed the pride and provoked the insults of their unprincipled and implacable enemy; and was derogatory to the honour, inconsistent with the interest, and hostile to the liberties of their country.

Their tameness under British aggressions was declared to furnish just cause of offence to France; since every infringement of right submitted to by a neutral, inflicted a correspondent injury on the nation at war with the offending power.

The proceedings of the legislature continued to manifest a fixed purpose to pursue the system which had been commenced; and the public sentiment seemed to accord with that system. That the nation was advancing rapidly to a state of war, was firmly believed by many intelligent men, who doubted the necessity, and denied the policy of abandoning the neutral position which had been thus long maintained. In addition to the extensive calamities which must, in any state of things, result to the United States from a rupture with a nation which was the mistress of the ocean, and which furnished the best market for the sale of their produce, and the purchase of manufactures of indispensable necessity, there were considerations belonging exclusively to the moment, which, though operating only in a narrow circle, were certainly entitled to great respect.

That war with Britain, during the continuance of the passionate and almost idolatrous devotion of a great majority of the people to the French republic, would throw America so completely into the arms of France as to leave her no longer mistress of her own conduct, was not the only fear which the temper of the day suggested. That the spirit which triumphed in that nation, and deluged it with the blood of its revolutionary champions, might cross the Atlantic, and desolate the hitherto safe and peaceful dwellings of the American people, was an apprehension not so entirely unsupported by appearances, as to be pronounced chimerical. With a blind infatuation, which treated reason as a criminal, immense numbers applauded a furious despotism, trampling on every right, and sporting with life, as the essence of liberty; and the few who conceived freedom to be a plant which did not flourish the better for being nourished with human blood, and who ventured to disapprove the ravages of the guillotine, were execrated as the tools of the coalesced despots, and as persons who, to weaken the affection of

America for France, became the calumniators of that republic. Already had an imitative spirit, captivated with the splendour, but copying the errors of a great nation, reared up in every part of the continent self created corresponding societies, who, claiming to be the people, assumed a control over the government, and were loosening its bands. Already were the mountain,[\[17\]](#) and a revolutionary tribunal, favourite toasts; and already were principles familiarly proclaimed which, in France, had been the precursors of that tremendous and savage despotism, which, in the name of the people, and by the instrumentality of affiliated societies, had spread its terrific sway over that fine country, and had threatened to extirpate all that was wise and virtuous. That a great majority of those statesmen who conducted the opposition would deprecate such a result, furnished no security against it. When the physical force of a nation usurps the place of its wisdom, those who have produced such a state of things no longer control it.

These apprehensions, whether well or ill founded, produced in those who felt them, an increased solicitude for the preservation of peace. Their aid was not requisite to confirm the judgment of the President on this interesting subject. Fixed in his purpose of maintaining the neutrality of the United States, until the aggressions of a foreign power should clearly render neutrality incompatible with honour; and conceiving, from the last advices received from England, that the differences between the two nations had not yet attained that point, he determined to make one decisive effort, which should either remove the ostensible causes of quarrel, or demonstrate the indisposition of Great Britain to remove them. This determination was executed by the nomination of an envoy extraordinary to his Britannic majesty, which was announced to the senate on the 16th of April in the following terms:

"The communications which I have made to you during your present session, from the despatches of our minister in London, contain a serious aspect of our affairs with Great Britain. But as peace ought to be pursued with unremitted zeal, before the last resource which has so often been the scourge of nations, and can not fail to check the advanced prosperity of the United States, is contemplated, I have thought proper to nominate, and do hereby nominate John Jay, as envoy extraordinary of the United States, to his Britannic majesty.

Mr. Jay appointed envoy extraordinary to Great Britain.

"My confidence in our minister plenipotentiary in London continues undiminished. But a mission like this, while it corresponds with the solemnity of the occasion, will announce to the world a solicitude for the friendly adjustment of our complaints, and a reluctance to hostility. Going immediately from the United States, such an envoy will carry with him a full knowledge of the existing temper and sensibility of our country; and will thus be taught to vindicate our rights with firmness, and to cultivate peace with sincerity."

To those who believed the interests of the nation to require a rupture with England, and a still closer connexion with France, nothing could be more unlooked for, or more unwelcome, than this decisive measure. That it would influence the proceedings of congress could not be doubted; and it would materially affect the public mind was probable. Evincing the opinion of the executive that negotiation, not legislative hostility, was still the proper medium for accommodating differences with Great Britain, it threw on the legislature a great responsibility, if they should persist in a system calculated to defeat that negotiation. By showing to the people that their President did not yet believe war to be necessary, it turned the attention of many to peace; and, by suggesting the probability, rekindled the almost extinguished desire, of preserving that blessing.

Scarcely has any public act of the President drawn upon his administration a greater degree of censure than this. That such would be its effect, could not be doubted by a person who had observed the ardour with which opinions that it thwarted were embraced, or the extremity to which the passions and contests of the moment had carried all orders of men. But it is the province of real patriotism to consult the utility, more than the popularity of a measure; and to pursue the path of duty, although it may be rugged.

In the senate, the nomination was approved by a majority of ten voices; and, in the house of representatives, it was urged as an argument against persevering in the system which had been commenced. On the 18th of April, a motion for taking up the report of the committee of the whole house on the resolution for cutting off all commercial intercourse with Great Britain, was opposed, chiefly on the ground that, as an envoy had been

nominated to the court of that country, no obstacle ought to be thrown in his way. The adoption of the resolution would be a bar to negotiation, because it used the language of menace, and manifested a partiality to one of the belligerents which was incompatible with neutrality. It was also an objection to the resolution that it prescribed the terms on which alone a treaty should be made, and was consequently an infringement of the right of the executive to negotiate, and an indelicacy to that department.

In support of the motion, it was said, that the measure was strictly within the duty of the legislature, they having solely the right to regulate commerce. That, if there was any indelicacy in the clashing of the proceedings of the legislature and executive, it was to the latter, not to the former, that this indelicacy was to be imputed. The resolution which was the subject of debate had been several days depending in the house, before the nomination of an envoy extraordinary had been made. America having a right, as an independent nation, to regulate her own commerce, the resolution could not lead to war; on the contrary, it was the best means of bringing the negotiation to a happy issue.

The motion for taking up the report was carried in the affirmative. Some embarrassment was produced by an amendment offered by Mr. Smith of South Carolina, who proposed to add another condition to the restoration of intercourse between the two countries. This was, compensation for the negroes carried away in violation of the treaty of peace. The house avoided this proposition by modifying the resolutions so as to expunge all that part of it which prescribed the conditions on which the intercourse might be restored. A bill was brought in conforming to this resolution, and carried by a considerable majority. In the senate, it was lost by the casting vote of the Vice President. The system which had been taken up in the house of representatives was pressed no further.

The altercations between the executive and the minister of the French republic, had given birth to many questions which had been warmly agitated in the United States, and on which a great diversity of sentiment prevailed.

The opinion of the administration that the relations produced by existing treaties, and indeed by a state of peace independent of treaty, imposed

certain obligations on the United States, an observance of which it was the duty of the executive to enforce, had been reprobated with extreme severity. It was contended, certainly by the most active, perhaps by the most numerous part of the community, not only that the treaties had been grossly misconstrued, but also that, under any construction of them, the interference of the executive acquired the sanction of legislative authority; that, until the legislature should interpose and annex certain punishments to infractions of neutrality, the natural right possessed by every individual to do any act not forbidden by express law, would furnish a secure protection against those prosecutions which a tyrannical executive might direct for the crime of disregarding its illegal mandates. The right of the President to call out the militia for the detention of privateers about to violate the rules he had established, was, in some instances, denied; attempts to punish those who had engaged, within the United States, to carry on expeditions against foreign nations, were unsuccessful; and a grand jury had refused to find a bill of indictment against Mr. Duplaine, for having rescued, with an armed force, a vessel which had been taken into custody by an officer of justice. Of consequence, however decided the opinion of the executive might be with respect to its constitutional powers and duties, it was desirable to diminish the difficulties to be encountered in performing those duties, by obtaining the sanction of the legislature to the rules which had been established for the preservation of neutrality. The propriety of legislative provision for the case was suggested by the President at the commencement of the session, and a bill was brought into the senate, "in addition to the act for punishing certain crimes against the United States." This bill prohibited the exercise, within the American territory, of those various rights of sovereignty which had been claimed by Mr. Genet, and subjected any citizen of the United States who should be convicted of committing any of the offences therein enumerated, to fine and imprisonment. It also prohibited the condemnation and sale within the United States, of prizes made from the citizens or subjects of nations with whom they were at peace.

Necessary as this measure was, the whole strength of the opposition in the senate was exerted to defeat it. Motions to strike out the most essential clause were successively repeated, and each motion was negatived by the

casting vote of the Vice President. It was only by his voice that the bill finally passed.[18]

In the house of representatives also, this bill encountered a serious opposition. The sections which prohibited the sale of prizes in the United States, and that which declared it to be a misdemeanour to accept a commission from a foreign power within the territory of the United States, to serve against a nation with whom they were at peace, were struck out; but that which respected the acceptance of commissions was afterwards reinstated.

In the course of the session, several other party questions were brought forward, which demonstrated, at the same time, the strength, and the zeal of the opposition. The subject of amending the constitution was revived; and a resolution was agreed to in both houses for altering that instrument, so far as to exempt states from the suits of individuals. While this resolution was before the senate, it was also proposed to render the officers of the bank, and the holders of stock, ineligible to either branch of the legislature; and this proposition, so far as respected officers in the bank, was negatived by a majority of only one vote.[19] A bill to sell the shares of the United States in the bank was negatived by the same majority.

Inquiry into the conduct of the secretary of the treasury terminates honourably to him.

In both houses inquiries were set on foot respecting the treasury department, which obviously originated in the hope of finding some foundation for censuring that officer, but which failed entirely. In a similar hope, as respected the minister of the United States at Paris, the senate passed a vote requesting the President to lay before that body, his correspondence with the French republic, and also with the department of state.[20]

The preparations for an eventual war, which the aspect of public affairs rendered it imprudent to omit, and a heavy appropriation of a million, which, under the title of foreign intercourse, was made for the purpose of purchasing peace from Algiers, and liberating the Americans who were in captivity, created demands upon the treasury which the ordinary revenues were insufficient to satisfy.

That the imposition of additional taxes had become indispensable, was a truth too obvious to be controverted with the semblance of reason; but the subjects of taxation afforded at all times an ample field for discussion.

The committee of ways and means reported several resolutions for extending the internal duties to various objects which were supposed capable of bearing them, and also proposed an augmentation of the impost on foreign goods imported into the United States, and a direct tax. It was proposed to lay a tax on licenses to sell wines and spirituous liquors, on sales at auction, on pleasure carriages, on snuff manufactured, and on sugar refined in the United States, and also to lay a stamp duty.

Internal taxes laid.

The direct tax was not even supported by the committee. Only thirteen members voted in its favour. The augmentation of the duty on imposts met with no opposition. The internal duties were introduced in separate bills, that each might encounter only those objections which could be made to itself; and that the loss of one might not involve the loss of others. The resolution in favour of stamps was rejected: the others were carried, after repeated and obstinate debates. The members of the opposition were in favour of raising the whole sum required by additional burdens on trade, and by direct taxes.

While these measures were depending before congress, memorials and resolutions against them were presented by the manufacturers, which were expressed in terms of disrespect that evidenced the sense in which numbers understood the doctrine, *that the people were sovereign, and those who administered the government, their servants*. This opportunity for charging the government with tyranny and oppression, with partiality and injustice, was too favourable not to be embraced by the democratic societies, those self proclaimed watchful sentinels over the rights of the people. A person unacquainted with those motives which, in the struggle of party, too often influence the conduct of men, would have supposed a direct tax to be not only in itself more eligible, but to be more acceptable to the community than those which were proposed. To the more judicious observers of the springs of human action, the reverse was known to be the fact.



George Washington's Bedroom at Mount Vernon

It was in this room that Washington expired, December 14, 1799. Two days previously he was exposed in the saddle, for several hours, to cold and snow, and contracted acute laryngitis for which he was ineffectually treated in the primitive manner of the period. A short time before ceasing to breathe, he said: "I die hard; but I am not afraid to go. I believed from my first attack that I should not survive it. My breath cannot last long." A little later he murmured: "I feel myself going. I thank you for your attentions; but I pray you to take no more trouble about me. Let me go off quietly. I cannot last long." After giving some instructions about his burial he became easier, felt his own pulse, and died without a struggle.

The friends of the administration supported the proposed system against every objection to it, because they believed it to be more productive, and less unpopular, than a direct tax. It is not impossible that what recommended the system to one party, might constitute a real objection to it

with those who believed that the public interest required a change^[21] in the public councils.

On the ninth of June, this active and stormy session was closed by an adjournment to the first Monday in the succeeding November.

Congress adjourns.

The public was not less agitated than the legislature had been, by those interesting questions which had occasioned some of the most animated and eloquent discussions that had ever taken place on the floor of the house of representatives. Mr. Madison's resolutions especially, continued to be the theme of general conversation; and, for a long time, divided parties throughout the United States. The struggle for public opinion was ardent; and each party supported its pretensions, not only with those arguments which each deemed conclusive, but also by those reciprocal criminations which, perhaps, each, in part, believed.

The opposition declared that the friends of the administration were an aristocratic and corrupt faction, who, from a desire to introduce monarchy, were hostile to France, and under the influence of Britain; that they sought every occasion to increase expense, to augment debt, to multiply the public burdens, to create armies and navies, and, by the instrumentality of all this machinery, to govern and enslave the people: that they were a paper nobility, whose extreme sensibility at every measure which threatened the funds, induced a tame submission to injuries and insults, which the interests and honour of the nation required them to resist.

The friends of the administration retorted, that the opposition was prepared to sacrifice the best interests of their country on the altar of the French revolution. That they were willing to go to war for French, not for American objects: that while they urged war they withheld the means of supporting it, in order the more effectually to humble and disgrace the government: that they were so blinded by their passion for France as to confound crimes with meritorious deeds, and to abolish the natural distinction between virtue and vice: that the principles which they propagated, and with which they sought to intoxicate the people, were, in practice, incompatible with the existence of government. That they were the apostles of anarchy, not of freedom; and were consequently not the friends of real and rational liberty.

CHAPTER III.

Genet recalled.... Is succeeded by Mr. Fauchet.... Gouverneur Morris recalled, and is succeeded by Mr. Monroe.... Kentucky remonstrance.... Intemperate resolutions of the people of that state.... General Wayne defeats the Indians on the Miamis.... Insurrection in the western parts of Pennsylvania.... Quelled by the prompt and vigorous measures of the government.... Meeting of Congress.... President's speech.... Democratic societies.... Resignation of Colonel Hamilton.... Is succeeded by Mr. Wolcott.... Resignation of General Knox.... Is succeeded by Colonel Pickering.... Treaty between the United States and Great Britain.... Conditionally ratified by the President.... The treaty unpopular.... Mr. Randolph resigns.... Is succeeded by Colonel Pickering.... Colonel M'Henry appointed secretary of war.... Charge against the President rejected.... Treaty with the Indians north-west of the Ohio.... With Algiers.... With Spain.... Meeting of Congress.... President's speech.... Mr. Adet succeeds Mr. Fauchet.... The house of representatives call upon the President for papers relating to the treaty with Great Britain.... He declines sending them.... Debates upon the treaty making power.... Upon the bill for making appropriations to carry into execution the treaty with Great Britain.... Congress adjourns.... The President endeavours to procure the liberation of Lafayette.

1794

THAT the most material of those legislative measures on which the two great parties of the United States were divided, might be presented in one

unbroken view, some transactions have been passed over, which will now be noticed.

In that spirit of conciliation, which adopts the least irritating means for effecting its objects, the President had resolved to bear with the insults, the resistance, and the open defiance of Mr. Genet, until his appeal to the friendship and the policy of the French republic should be fairly tried. Early in January, this resolution was shaken, by fresh proofs of the perseverance of that minister, in a line of conduct, not to be tolerated by a nation, which has not surrendered all pretensions to self government. Mr. Genet had meditated, and deliberately planned, two expeditions to be carried on from the territories of the United States, against the dominions of Spain; and had, as minister of the French republic, granted commissions to citizens of the United States, who were privately recruiting troops for the proposed service. The first was destined against the Floridas, and the second against Louisiana. The detail of the plans had been settled. The pay, rations, clothing, plunder, and division of the conquered lands to be allotted to the military; and the proportion of the acquisitions to be reserved to the republic of France, were arranged. The troops destined to act against the Floridas were to be raised in the three southern states, were to rendezvous in Georgia, were to be aided by a body of Indians and were to co-operate with the French fleet, should one arrive on the coast. This scheme had been the subject of a correspondence between the executive and Mr. Genet, but was in full progress in the preceding December, when by the vigilance of the legislature of South Carolina, it was more particularly developed, and some of the principal agents were arrested.

About the same time, intelligence less authentic, but wearing every circumstance of probability, was received, stating that the expedition against Louisiana, which was to be carried on down the Ohio from Kentucky, was in equal maturity.

Genet recalled.

This intelligence seemed to render a further forbearance incompatible with the dignity, perhaps with the safety of the United States. The question of superseding the diplomatic functions of Mr. Genet, and depriving him of the privileges attached to that character, was brought before the cabinet; and a message to congress was prepared, communicating these transactions, and

avowing a determination to adopt that measure within —— days, unless, in the mean time, one or the other house should signify the opinion that it was not adviseable so to do. In this state, the business was arrested by receiving a letter from Mr. Morris, announcing, officially, the recall of this rash minister.

Is succeeded by Mr. Fauchet.

Mr. Fauchet, the successor of Mr. Genet, arrived in February, and brought with him strong assurances that his government totally disapproved the conduct of his predecessor. He avowed a determination to avoid whatever might be offensive to those to whom he was deputed, and a wish to carry into full effect the friendly dispositions of his nation towards the United States. For some time, his actions were in the spirit of these professions.

Gouverneur Morris is recalled and is succeed by Mr. Monroe.

Not long after the arrival of Mr. Fauchet, the executive government of France requested the recall of Mr. Morris. With this request the president immediately complied; and Mr. Monroe, a senator from Virginia, who had embraced with ardour the cause of the French republic, and was particularly acceptable to the party in opposition, was appointed to succeed him.

The discontents which had been long fomented in the western country, had assumed a serious and alarming appearance.

Kentucky remonstrance.

A remonstrance to the President and congress of the United States from the inhabitants of Kentucky, respecting the navigation of the Mississippi, was laid before the executive, and each branch of the legislature. The style of this paper accorded well with the instructions under which it had been prepared.

In the language of an offended sovereign people, injured by the maladministration of public servants, it demanded the use of the Mississippi as a natural right which had been unjustly withheld; and charged the government, openly, with being under the influence of a local policy, which had prevented its making one single real effort for the security of a good which was all essential to the prosperity of the western people. Several intemperate aspersions upon the legislative and executive departments,

accompanied with complaints that the course of the negotiations had not been communicated to those who were interested in the event, and with threats obviously pointing to dismemberment, were concluded with a declaration that nothing would remunerate the western people for the suspension of this great territorial right; that they must possess it; that the god of nature had given them the means of acquiring and enjoying it; and that to permit a sacrifice of it to any other considerations, would be a crime against themselves and their posterity.

In the senate, the subject was referred to a committee, who reported, "that in the negotiation now carrying on at Madrid between the United States and Spain, the right of the former to the free navigation of the Mississippi is well asserted and demonstrated, and their claim to its enjoyment is pursued with all the assiduity and firmness which the magnitude of the subject demands; and will doubtless continue to be so pursued until the object shall be obtained, or adverse circumstances shall render the further progress of the negotiation impracticable. That in the present state of the business, it would be improper for congress to interfere. But in order to satisfy the citizens of the United States more immediately interested in the event of this negotiation, that the United States have uniformly asserted their right to the free use of the navigation of the river Mississippi, and have employed and will continue to pursue such measures as are best adapted to obtain the enjoyment of this important territorial right, the committee recommend that it be resolved by the senate—

"That the President of the United States be, and he hereby is requested to cause to be communicated to the executive of the state of Kentucky,[\[22\]](#) such part of the existing negotiation between the United States and Spain relative to this subject, as he may deem adviseable, and consistent with the course of the negotiation."

In the house of representatives also, a resolution was passed, expressing the conviction of the house, that the executive was urging the claim of the United States to the navigation of the Mississippi, in the manner most likely to prove successful.

Had the measures pursued in the western country been dictated, exclusively, by a wish to obtain an important good, these resolutions would have allayed

the ferment which had been excited. The effect which must be produced on Spain by the insinuation that the continuance of their connexion with the Atlantic states depended on obtaining the object they sought, was too apparent to escape the notice of men endowed with an ordinary share of intelligence. But when the real motives for human action are latent, it is vain to demonstrate the unreasonableness of those which are avowed.

After the reception of these resolutions, a number of the principal citizens from various parts of Kentucky assembled at Lexington, and among many intemperate resolutions passed the following:

Intemperate resolutions of the people of that state.

"That the general government whose duty it was to put us in possession of this right (the navigation of the Mississippi) have, either through design or mistaken policy, adopted no effectual measures for its attainment.

"That even the measures they have adopted, have been uniformly concealed from us, and veiled in mysterious secrecy.

"That civil liberty is prostituted, when the servants of the people are suffered to tell their masters, that communications which they may judge important ought not to be intrusted to them."

These resolutions concluded with a recommendation of county meetings, of county committees of correspondence, and of a convention when it might be judged expedient, to deliberate on the proper steps for the attainment and security of their just rights.

To estimate these resolutions accurately, it will be necessary to view in connexion with them, the military preparations which were making in that country, under the authority of France.

In October, 1793, it was alleged by the Spanish commissioners, that four Frenchmen had left Philadelphia, empowered by the minister of the French republic to prepare an expedition, in Kentucky, against New Orleans. This fact was immediately communicated by Mr. Jefferson to the governor of that state, with a request that he would use those means of prevention which the law enabled him to employ. Binding to good behaviour was particularly recommended. This letter was accompanied by one from the secretary of

war, conveying the request of the President, that, if preventive means should fail, effectual military force should be employed to arrest the expedition; and General Wayne was ordered to hold a body of troops at the disposal of the governor, should he find the militia insufficient for his purpose.

The governor had already received information, that a citizen of Kentucky was in possession of a commission appointing him Commander-in-chief of the proposed expedition; and that the Frenchmen alluded to in the letter of Mr. Jefferson, had arrived, and, far from affecting concealment declared, that they only waited for money which they expected soon to receive, in order to commence their operations.

The following extract of a letter from the governor, on this subject, exhibits a curious specimen of the conclusions to which gentlemen were conducted by the course of political reasoning which prevailed at the day.

After stating the facts above alluded to, he says, "I have great doubts, even if they do attempt to carry their plan into execution, (provided they manage their business with prudence,) whether there is any legal authority to restrain or punish them, at least before they have actually accomplished it. For if it is lawful for any one citizen of this state to leave it, it is equally so for any number of them to do it. It is also lawful to carry with them any quantity of provisions, arms, and ammunition; and if the act is lawful in itself, there is nothing but the particular intention with which it is done that can possibly make it unlawful. But I know of no law which inflicts a punishment on intention only; or any criterion by which to decide what would be sufficient evidence of that intention, if it was a proper subject for legal censure.

"I shall, upon all occasions, be averse to the exercise of any power which I do not consider myself as clearly and explicitly invested with, much less would I assume power to exercise it against men whom I consider as friends and brethren, in favour of a man whom I view as an enemy and a tyrant. I shall also feel but little inclination to take an active part in punishing or restraining any of my fellow citizens for a supposed intrusion only, to gratify or remove the fears of the minister or a prince who openly withholds

from us an invaluable right, and who secretly instigates against us a most savage and cruel enemy."

Upon the receipt of this extraordinary letter, the President directed General Wayne to establish a military post at Fort Massac, on the Ohio, for the purpose of stopping by force, if peaceful means should fail, any body of armed men who should be proceeding down that river.

This precaution appears to have been necessary. The preparations for the expedition were, for some time, carried on with considerable activity; and there is reason to believe that it was not absolutely relinquished, until Spain ceased to be the enemy of France.[\[23\]](#)

The proceedings of the legislature of South Carolina embarrassed those who had planned the invasion of the Floridas, but did not entirely disconcert them. In April, a French sloop of war arrived on the confines of Georgia and East Florida, with a small body of troops, who were landed on one of the islands on the coast, south of the St. Mary, and who declared themselves to be part of a larger force, which might soon be expected. Upon their arrival, several small corps of Americans who had engaged to serve the republic of France, assembled in Georgia, for the purpose, as was universally understood, of co-operating with the French against the neighbouring dominions of Spain.

The interposition of government, and the inadequacy of the force to the object, disconcerted this expedition. Its leader conducted his followers into the Indian country, and endeavoured to make a settlement on their hunting grounds.

While these turbulent scenes were acting, the loud plaudits of France, which were dictated by a passionate devotion to that country, were reechoed from every part of the American continent. The friendship of that republic for the United States, her respect for their rights, the ingratitude with which her continuing benefits were repaid, the injustice done her by the executive, its tameness under British insults, were the inexhaustible themes of loud, angry, and unceasing declamation. It required a firmness of mind, and a weight of character possessed only by the chief magistrate, to maintain the ground he had taken, against such an assemblage of passions and of prejudices.

It will be recollected that in the preceding year, the attempt to treat with the hostile Indians had suspended the operations of General Wayne until the season for action had nearly passed away. After the total failure of negotiation, the campaign was opened with as much vigour as a prudent attention to circumstances would permit.

The Indians had expected an attempt upon their villages, and had collected in full force, with the apparent determination of risking a battle in their defence. A battle was desired by the American general; but the consequences of another defeat were too serious to warrant him in putting more to hazard by precipitate movements, than the circumstances of the war required. The negotiations with the Indians were not terminated till September, and it was then too late to complete the preparations which would enable General Wayne to enter their country and to hold it. He, therefore, contented himself with collecting his army and penetrating about six miles in advance of Fort Jefferson into the uninhabited country, where he established himself for the winter, in a camp called Greenville. After fortifying his camp, he took possession of the ground on which the Americans had been defeated in 1791, where he erected Fort Recovery. These positions afforded considerable protection to the frontiers, and facilitated the opening of the ensuing campaign.

Seeing only the dark side of every measure adopted by the government, and not disinclined to militia expeditions made at the expense of the United States, the people of Kentucky loudly charged the President with a total disregard of their safety, pronounced the continental troops entirely useless, declared that the Indians were to be kept in awe alone by militia, and insisted that the power should be deposited with some person in their state, to call them out at his discretion, at the charge of the United States.

Meanwhile, some steps were taken by the governor of Upper Canada which were well calculated to increase suspicions respecting the dispositions of Great Britain.

It was believed by the President, not without cause,[\[24\]](#) that the cabinet of London was disposed to avail itself of the non-execution of that article of the treaty of peace, which stipulates for the payment of debts, to justify a permanent detention of the posts on the southern side of the great lakes, and

to establish a new boundary line, whereby those lakes should be entirely comprehended in Upper Canada. Early in the spring, a detachment from the garrison of Detroit repossessed and fortified a position near fifty miles south of that station, on the Miamis of the lakes, a river which empties into Lake Erie at its westernmost point.

This movement, the speech of Lord Dorchester, and other facts which strengthened the belief that the hostile Indians were at least countenanced by the English, were the subjects of a correspondence between the secretary of state and Mr. Hammond, in which crimination was answered by recrimination, in which a considerable degree of mutual irritation was displayed, and in which each supported his charges against the nation of the other, much better than he defended his own. It did not, however, in any manner, affect the operations of the army.

The delays inseparable from the transportation of necessary supplies through an uninhabited country, infested by an active enemy peculiarly skilled in partisan war, unavoidably protracted the opening of the campaign until near midsummer. Meanwhile, several sharp skirmishes took place, in one of which a few white men were stated to be mingled with the Indians.

On the 8th of August, General Wayne reached the confluence of the Au Glaize and the Miamis of the lakes, where he threw up some works of defence, and protection for magazines. The richest and most extensive settlements of the western Indians lay about this place.

The mouth of the Au Glaize is distant about thirty miles from the post occupied by the British on the Miamis of the lakes, in the vicinity of which the whole strength of the enemy, amounting, according to intelligence on which General Wayne relied, to rather less than two thousand men, was collected. The continental legion was not much inferior in number to the Indians: and a reinforcement of about eleven hundred mounted militia from Kentucky, commanded by General Scott, gave a decided superiority of strength to the army of Wayne. That the Indians had determined to give him battle was well understood; and the discipline of his legion, the ardour of all his troops, and the superiority of his numbers, authorized him confidently to expect a favourable issue. Yet, in pursuance of that policy by which the United States had been uniformly actuated, he determined to make one

more effort for the attainment of peace without bloodshed. Messengers were despatched to the several hostile tribes who were assembled in his front, inviting them to appoint deputies to meet him on his march, in order to negotiate a lasting peace.

On the 15th of August, the American army advanced down the Miamis, with its right covered by that river; and on the 18th, arrived at the rapids. Here they halted on the 19th, in order to erect a temporary work for the protection of the baggage, and to reconnoitre the situation of the enemy.

The Indians were advantageously posted behind a thick wood, and behind the British fort.

General Wayne defeats the Indians at the Miamis.

At eight in the morning of the 20th, the American army advanced in columns: the legion with its right flank covered by the Miamis: One brigade of mounted volunteers commanded by General Todd was on the left; and the other under General Barbee was in the rear. A select battalion, commanded by Major Price, moved in front of the legion, sufficiently in advance to give timely notice for the troops to form in case of action.[\[25\]](#)

After marching about five miles, Major Price received a heavy fire from a concealed enemy, and was compelled to retreat.

The Indians had chosen their ground with judgment. They had advanced into the thick wood in front of the British works which extends several miles west from the Miamis, and had taken a position, rendered almost inaccessible to horse by a quantity of fallen timber which appeared to have been blown up in a tornado. They were formed in three lines, within supporting distance of each other; and, as is their custom, with a very extended front. Their line stretched to the west, at right angles with the river, about two miles; and their immediate effort was to turn the left flank of the American army.

On the discharge of the first rifle, the legion was formed in two lines, and the front was ordered to advance with trailed arms, and rouse the enemy from his covert at the point of the bayonet; then, and not until then, to deliver a fire, and to press the fugitives too closely to allow them time to load after discharging their pieces. Soon perceiving the strength of the

enemy in front, and that he was endeavouring to turn the American left, the general ordered the second line to support the first. The legion cavalry, led by Captain Campbell, was directed to penetrate between the Indians and the river, where the wood was less thick and entangled, in order to charge their left flank; and General Scott, at the head of the mounted volunteers, was directed to make a considerable circuit, and to turn their right flank.

These orders were executed with spirit and promptitude; but such was the impetuosity of the charge made by the first line of infantry, so entirely was the enemy broken by it, and so rapid was the pursuit, that only a small part of the second line and of the mounted volunteers could get into the action. In the course of one hour, the Indians were driven more than two miles, through thick woods; when the pursuit terminated within gun shot of the British fort.

General Wayne remained three days on the banks of the Miamis, in front of the field of battle, during which time the houses and cornfields above and below the fort, some of them within pistol shot of it, were reduced to ashes. During these operations, a correspondence took place between General Wayne and Major Campbell, the commandant of the fort, which is stated by the former in such a manner as to show, that hostilities between them were avoided only by the prudent acquiescence of the latter in this devastation of property within the range of his guns.

On the 28th, the army returned to Au Glaize by easy marches, destroying on its route all the villages and corn within fifty miles of the river.

In this decisive battle, the loss of the Americans, in killed and wounded, amounted to one hundred and seven, including officers. Among the dead was Captain Campbell, who commanded the cavalry, and Lieutenant Towles of the infantry, both of whom fell in the first charge. General Wayne bestowed great and well merited praise on the courage and alacrity displayed by every part of the army.

The hostility of the Indians still continuing, their whole country was laid waste, and forts were erected in the heart of their settlements, to prevent their return.

This seasonable victory rescued the United States from a general war with all the Indians north-west of the Ohio. The Six Nations had discovered a restless uneasy temper; and the interposition of the President, to prevent a settlement which Pennsylvania was about to make at Presqueisle, seemed rather to suspend the commencement of hostilities, than to establish permanent pacific dispositions among those tribes. The battle of the 20th of August, however, had an immediate effect; and the clouds which had been long gathering in that quarter, were instantly dissipated.

In the south too, its influence was felt. In that quarter, the inhabitants of Georgia and the Indians seemed equally disposed to war. Scarcely was the feeble authority of the government competent to restrain the aggressions of the former, or the dread of its force sufficient to repress those of the latter. In this doubtful state of things, the effect of a victory could not be inconsiderable.

About this time, the seditious and violent resistance to the execution of the law imposing duties on spirits distilled within the United States, had advanced to a point in the counties of Pennsylvania lying west of the Alleghany mountains, which required the decisive interposition of government.

Insurrection in the Western parts of Pennsylvania.

Notwithstanding the multiplied outrages committed on the persons and property of the revenue officers, and of those who seemed willing to submit to the law, yet, in consequence of a steady adherence to the system of counteraction adopted by the executive, it was visibly gaining ground, and several distillers in the disaffected country were induced to comply with its requisites. The opinion, that the persevering efforts of the administration would ultimately prevail, derived additional support from the passage of an act by the present congress, containing those provisions which had been suggested by the chief of the treasury department. The progress of this bill, which became a law on the fifth of June, could not have been unknown to the malcontents, nor could its probable operation have been misunderstood. They perceived that the certain loss of a market for the article, added to the penalties to which delinquents were liable, might gradually induce a compliance on the part of distillers, unless they could, by a systematic and

organized opposition, deprive the government of the means it employed for carrying the law into execution.

On the part of the executive, this open defiance of the laws, and of the authority of the government, was believed imperiously to require, that the strength and efficacy of those laws should be tried. Against the perpetrators of some of the outrages which had been committed, bills of indictment had been found in a court of the United States, upon which process was directed to issue; and at the same time, process was also issued against a great number of non-complying distillers.

The marshal repaired in person to the country which was the scene of these disorders, for the purpose of serving the processes. On the 15th of July, while in the execution of his duty, he was beset on the road by a body of armed men, who fired on him, but fortunately did him no personal injury. At daybreak, the ensuing morning, a party attacked the house of General Nevil, the inspector; but he defended himself resolutely, and obliged the assailants to retreat.

Knowing well that this attack had been preconcerted, and apprehending that it would be repeated, he applied to the militia officers and magistrates of the county for protection. The answer was, that "owing to the too general combination of the people to oppose the revenue system, the laws could not be executed so as to afford him protection: that should the *posse comitatus* be ordered out to support the civil authority, they would favour the party of the rioters."

On the succeeding day, the insurgents re-assembled to the number of about five hundred, to renew their attack on the house of the inspector. That officer, finding that no protection could be afforded by the civil authority, had applied to the commanding officer at Fort Pitt, and had obtained a detachment of eleven men from that garrison, who were joined by Major Kirkpatrick. Successful resistance to so great a force being obviously impracticable, a parley took place, at which the assailants, after requiring that the inspector^[26] and all his papers should be delivered up, demanded that the party in the house should march out and ground their arms. This being refused, the parley terminated, and the assault commenced. The action lasted until the assailants set fire to several adjacent buildings, the

heat from which was so intense that the house could no longer be occupied. From this cause, and from the apprehension that the fire would soon be communicated to the main building, Major Kirkpatrick and his party surrendered themselves.

The marshal and Colonel Pressly Nevil were seized on their way to General Nevil's house, and detained until two the next morning. The marshal, especially, was treated with extreme rudeness. His life was frequently threatened, and was probably saved by the interposition of some leading individuals who possessed more humanity, or more prudence, than those with whom they were associated. He could obtain his liberty only by entering into a solemn engagement, which was guaranteed by Colonel Nevil, to serve no more process on the western side of the Alleghany mountains.

The marshal and inspector having both retired to Pittsburg, the insurgents deputed two of their body, one of whom was a justice of the peace, to demand that the former should surrender all his process, and that the latter should resign his office; threatening, in case of refusal, to attack the place, and seize their persons. These demands were not acceded to; but Pittsburg affording no security, these officers escaped from the danger which threatened them, by descending the Ohio; after which, they found their way by a circuitous route to the seat of government.

The perpetrators of these treasonable practices, being desirous to ascertain their strength, and to discover any latent enemies who might remain unsuspected in the bosom of the disaffected country, despatched a party which stopped the mail from Pittsburg to Philadelphia, cut it open, and took out the letters which it contained. In some of these letters, a direct disapprobation of the violent measures which had been adopted was avowed; and in others, expressions were used which indicated unfriendly dispositions towards them. Upon acquiring this intelligence, delegates were deputed from the town of Washington to Pittsburg, where the writers of the offensive letters resided, to demand the banishment of the offenders. A prompt obedience to this demand was unavoidable; and the inhabitants of Pittsburg, who were convened on the occasion, engaged to attend a general meeting of the people, who were to assemble the next day in Braddock's field, in order to carry into effect such further measures as might be deemed

adviseable with respect to the excise and its friends. They also determined to elect delegates to a convention which was to meet, on the 14th of August, at Parkinson's ferry. The avowed motives to these outrages were to compel the resignation of all officers engaged in the collection of the duties on distilled spirits; to withstand by force of arms the authority of the United States; and thereby to extort a repeal of the law imposing those duties, and an alteration in the conduct of government.

Affidavits attesting this serious state of things were laid before the President.

The opposition had now reached to a point which seemed to forbid the continuance of a temporizing system. The efforts at conciliation, which, for more than three years, the government had persisted to make, and the alterations repeatedly introduced into the act for the purpose of rendering it less exceptionable, instead of diminishing the arrogance of those who opposed their will to the sense of the nation, had drawn forth sentiments indicative of designs much deeper than the evasion of a single act. The execution of the laws had at length been resisted by open force, and a determination to persevere in these measures was unequivocally avowed. The alternative of subduing this resistance, or of submitting to it was presented to the government.

The act of congress which provided for calling forth the militia "to execute the laws of the union, suppress insurrections, and repel invasions," required as a pre-requisite to the exercise of this power, "that an associate justice, or the judge of the district, should certify that the laws of the United States were opposed, or their execution obstructed, by combinations too powerful to be suppressed by the ordinary course of judicial proceedings, or by the powers vested in the marshals." In the same act it was provided, "that if the militia of the state, where such combinations may happen, shall refuse, or be insufficient, to suppress the same, the President may employ the militia of other states."

The evidence which had been transmitted to the President was laid before one of the associate justices, who gave the certificate, which enabled the chief magistrate to employ the militia in aid of the civil power.

The executive being now authorized to adopt such measures as the crisis might require, the subject was again seriously considered in the cabinet; and the governor of Pennsylvania was also consulted respecting it. To avoid military coercion, if obedience to the laws could be produced by other means, was the universal wish; and therefore, all concurred in advising the appointment of commissioners from the governments of both the union, and the state, who should warn the deluded insurgents of the impending danger, and should convey a full pardon for past offences, upon the condition of future submission. But, respecting ulterior and eventual measures, a difference of opinion prevailed. The act already mentioned, made it the duty of the President, previous to the employment of military force, to issue his proclamation, commanding the insurgents to disperse within a limited time. The secretary of state (and the governor of Pennsylvania is understood to have concurred with him) was of opinion, that this conciliatory mission should be unaccompanied by any measure which might wear the appearance of coercion. He was alarmed at the strength of the insurgents, at their connexion with other parts of the country, at the extensive-ness of the prevailing discontents with the administration, and at the difficulty and expense of bringing the militia into the field. The governor of Pennsylvania having declared his opinion, that the militia of that state, who could be drawn forth, would be incompetent to enforce obedience, the aid of the neighbouring states would consequently be necessary. The secretary of state feared that the militia of the neighbouring states would refuse to march; and that, should he be mistaken in this, their compliance with the orders of the executive might be not less fatal than their disobedience. The introduction of a foreign militia into Pennsylvania might greatly increase the discontents prevailing in that state. His apprehensions of a failure, in the attempt to restore tranquillity by coercive means, were extreme; and the tremendous consequences of a failure were strongly depicted. From the highly inflamed state of parties, he anticipated a civil war, which would pervade the whole union, and drench every part of it with the blood of American citizens.

The secretary of the treasury, the secretary of war, and the attorney general, were of opinion that the President was bound by the most high and solemn obligations to employ the force which the legislature had placed at his disposal, for the suppression of a criminal and unprovoked insurrection. The case contemplated by congress had clearly occurred; and the President was

urged by considerations the most awful, to perform the duty imposed on him by the constitution, of providing "that the laws be faithfully executed." The long forbearance of government, and its patient endeavours to recall the deluded people to a sense of their duty and interest by appeals to their reason, had produced only increase of violence, and a more determined opposition. Perseverance in that system could only give a more extensive range to disaffection, and multiply the dangers resulting from it.

Those who were of opinion that the occasion demanded a full trial of the ability of the government to enforce obedience to the laws, were also of opinion, that policy and humanity equally dictated the employment of a force which would render resistance desperate. The insurgent country contained sixteen thousand men able to bear arms; and the computation was, that they could bring seven thousand into the field. If the army of the government should amount to twelve thousand men, it would present an imposing force which the insurgents would not venture to meet.

It was impossible that the President could hesitate to embrace the latter of these opinions. That a government entrusted to him should be trampled under foot by a lawless section of the union, which set at defiance the will of the nation, as expressed by its representatives, was an abasement to which neither his judgment nor his feelings could submit. He resolved, therefore, to issue the proclamation, which, by law, was to precede the employment of force.

On the same day, a requisition was made on the governors of New Jersey, Pennsylvania, Maryland, and Virginia, for their several quotas of militia to compose an army of twelve thousand[27] men; who were to be immediately organized, and prepared to march at a minute's warning.

While steps were taking to bring this force into the field, a last essay was made to render its employment unnecessary. Three distinguished and popular citizens of Pennsylvania were deputed by the government to be the bearers of a general amnesty for past offences, on the sole condition of future obedience to the laws.

It having been deemed advisable that the executive of the state should act in concert with that of the United States, Governor Mifflin also issued a

proclamation, and appointed commissioners to act with those of the general government.

Meanwhile, the insurgents omitted nothing which might enlarge the circle of disaffection. Attempts were made to embark the adjacent counties of Virginia in their cause, and their violence was extended to Morgantown, at which place an inspector resided, who saved himself by flight, and protected his property by advertising on his own door that he had resigned his office. They also made similar excursions into the contiguous counties of Pennsylvania, lying east of the Alleghany mountains, where numbers were ready to join them. These deluded men, giving too much faith to the publications of democratic societies, and to the furious sentiments of general hostility to the administration, and particularly to the internal taxes, with which the papers in the opposition abounded, seem to have entertained the opinion, that the great body of the people were ready to take up arms against their government, and that the resistance commenced by them would spread throughout the union, and terminate in a revolution.

The convention at Parkinson's ferry had appointed a committee of safety consisting of sixty members, who chose fifteen of their body to confer with the commissioners of the United States, and of the state of Pennsylvania. This committee of conference was not empowered to conclude on any thing. They could only receive and report the propositions which might be made to them.

Men of property and intelligence, who had contributed to kindle the flame under the common error of being able to regulate its heat, now trembled at the extent of the conflagration. It had passed the limits they had assigned to it, and was no longer subject to their control.

The committee of conference expressed themselves unanimously in favour of accepting the terms offered by the government, and exerted themselves in the committee of safety to obtain a decision to the same effect. In that committee, the question whether they would submit peaceably to the execution of the law, retaining expressly the privilege of using all constitutional means to effect its repeal, was debated with great zeal. The less violent party carried it by a small majority; but, not thinking themselves

authorized to decide for their constituents on so momentous a question, they afterwards resolved that it should be referred to the people.

This reference resulted in demonstrating that, though many were disposed to demean themselves peaceably, yet a vast mass of opposition remained, determined to obstruct the re-establishment of civil authority.

From some causes, among which was disaffection to the particular service, the prospect of bringing the quota of troops required from Pennsylvania into the field, was at first unpromising. But the assembly, which had been summoned by the governor to meet on the first of September, expressed in strong terms its abhorrence of this daring attempt to resist the laws, and to subvert the government of the country; and a degree of ardour and unanimity was displayed by the people of other states, which exceeded the hopes of the most sanguine friends of the administration. Some feeble attempts were indeed made to produce a disobedience to the requisition of the President, by declaring that the people would never be made the instruments of the secretary of the treasury to shed the blood of their fellow citizens; that the representatives of the people ought to be assembled before a civil war was commenced; and by avowing the extravagant opinion that the President could not lawfully call forth the militia of any other state, until actual experiment had ascertained the insufficiency of that of Pennsylvania. But these insidious suggestions were silenced by the general sense of the nation, which loudly and strongly proclaimed that the government and laws must be supported. The officers displayed an unexampled activity; and intelligence from every quarter gave full assurance that, with respect to both numbers and time, the requisitions of the President would be punctually observed.

The governor of Pennsylvania compensated for the defects in the militia law of that state by his personal exertions. From some inadvertence, as was said, on the part of the brigade inspectors, the militia could not be drafted, and consequently the quota of Pennsylvania could be completed only by volunteers. The governor, who was endowed with a high degree of popular elocution, made a circuit through the lower counties of the state, and publicly addressed the militia, at different places where he had caused them to be assembled, on the crisis in the affairs of their country. So successful

were these animating exhortations, that Pennsylvania was not behind her sister states in furnishing the quota required from her.

On the 25th of September, the President issued a second proclamation, describing in terms of great energy the obstinate and perverse spirit with which the lenient propositions of the government had been received; and declaring his fixed determination, in obedience to the high and irresistible duty consigned to him by the constitution, "to take care that the laws be faithfully executed," to reduce the refractory to obedience.

The troops of New Jersey and Pennsylvania were directed to rendezvous at Bedford, and those of Maryland and Virginia at Cumberland, on the Potomac.^[28] The command of the expedition had been conferred on Governor Lee of Virginia; and the governors of New Jersey and Pennsylvania commanded the militia of their respective states under him.

The President, in person, visited each division of the army; but, being confident that the force employed must look down all resistance, he left the secretary of the treasury to accompany it, and returned himself to Philadelphia, where the approaching session of congress required his presence.

Quelled by the prompt and vigorous measures of the government.

From Cumberland and Bedford, the army marched in two divisions into the country of the insurgents. The greatness of the force prevented the effusion of blood. The disaffected did not venture to assemble in arms. Several of the leaders who had refused to give assurances of future submission to the laws were seized, and some of them detained for legal prosecution.

But although no direct and open opposition was made, the spirit of insurrection was not subdued. A sour and malignant temper displayed itself, which indicated, but too plainly, that the disposition to resist had only sunk under the pressure of the great military force brought into the country, but would rise again should that force be withdrawn. It was, therefore, thought advisable to station for the winter, a detachment to be commanded by Major General Morgan, in the centre of the disaffected country.

Thus, without shedding a drop of blood, did the prudent vigour of the executive terminate an insurrection, which, at one time, threatened to shake

the government of the United States to its foundation. That so perverse a spirit should have been excited in the bosom of prosperity, without the pressure of a single grievance, is among those political phenomena which occur not unfrequently in the course of human affairs, and which the statesman can never safely disregard. When real ills are felt, there is something positive and perceptible to which the judgment may be directed, the actual extent of which may be ascertained, and the cause of which may be discerned. But when the mind, inflamed by supposititious dangers, gives a full loose to the imagination, and fastens upon some object with which to disturb itself, the belief that the danger exists seems to become a matter of faith, with which reason combats in vain. Under a government emanating entirely from the people, and with an administration whose sole object was their happiness, the public mind was violently agitated with apprehensions of a powerful and secret combination against liberty, which was to discover itself by the total overthrow of the republican system. That those who were charged with these designs were as destitute of the means, as of the will to effect them, did not shake the firm belief of their existence. Disregarding the apparent partiality of the administration for France, so far as that partiality was compatible with an honest neutrality, the zealots of the day ascribed its incessant labours for the preservation of peace, to a temper hostile to the French republic; and, while themselves loudly imprecating the vengeance of heaven and earth on one of the belligerents, and openly rejoicing in the victories of the other; while impetuously rushing into a war with Britain, and pressing measures which would render accommodation impracticable; they attributed a system calculated to check them in this furious career, not to that genuine American spirit which produced it, but to an influence which, so far as opinions are to depend on facts, has at no time insinuated itself into the councils of the United States.

In popular governments, the resentments, the suspicions, and the disgusts, produced in the legislature by warm debate, and the chagrin of defeat; by the desire of gaining, or the fear of losing power; and which are created by personal views among the leaders of parties, will infallibly extend to the body of the nation. Not only will those causes of dissatisfaction be urged which really operate on the minds of intelligent men, but every instrument will be seized which can effect the purpose, and the passions will be inflamed by whatever may serve to irritate them. Among the multiplied

evils generated by faction, it is perhaps not the least, that it has a tendency to abolish all distinction between virtue and vice; and to prostrate those barriers which the wise and good have erected for the protection of morals, and which are defended solely by opinion. The victory of the party becomes the great object; and, too often, all measures are deemed right or wrong, as they tend to promote or impede it. The attainment of the end is considered as the supreme good, and the detestable doctrine is adopted that the end will justify the means. The mind, habituated to the extenuation of acts of moral turpitude, becomes gradually contaminated, and loses that delicate sensibility which instinctively inspires horror for vice, and respect for virtue.

In the intemperate abuse which was cast on the principal measures of the government, and on those who supported them; in the violence with which the discontents of the opponents to those measures were expressed; and especially in the denunciations which were uttered against them by the democratic societies; the friends of the administration searched for the causes of that criminal attempt which had been made in the western parts of Pennsylvania, to oppose the will of the nation by force of arms. Had those misguided men believed that this opposition was to be confined within their own narrow limits, they could not have been so mad, or so weak as to have engaged in it.

The ideas of the President on this subject were freely given to several of his confidential friends. "The *real people*" he said, "occasionally assembled in order to express their sentiments on political subjects, ought never to be confounded with permanent self-appointed societies, usurping the right to control the constituted authorities, and to dictate to public opinion. While the former was entitled to respect, the latter was incompatible with all government, and must either sink into general disesteem, or finally overturn the established order of things."

Meeting of congress.

In his speech, at the opening of congress, the President detailed at considerable length the progress of opposition to the laws, the means employed both by the legislature and executive to appease the discontents which had been fomented,^[29] and the measures which he had finally taken to reduce the refractory to submission.

As Commander-in-chief of the militia when called into actual service, he had, he said, visited the places of general rendezvous, to obtain more correct information, and to direct a plan for ulterior movements. Had there been room for a persuasion that the laws were secure from obstruction, he should have caught with avidity at the opportunity of restoring the militia to their families and homes. But succeeding intelligence had tended to manifest the necessity of what had been done, it being now confessed by those who were not inclined to exaggerate the ill conduct of the insurgents, that their malevolence was not pointed merely to a particular law; but that a spirit inimical to all order had actuated many of the offenders.

After bestowing a high encomium on the alacrity and promptitude with which persons in every station had come forward to assert the dignity of the laws, thereby furnishing an additional proof that they understood the true principles of government and liberty, and felt their inseparable union; he added—

Democratic societies.

"To every description indeed of citizens, let praise be given. But let them persevere in their affectionate vigilance over that precious depository of American happiness,—the constitution of the United States. And when in the calm moments of reflection, they shall have retraced the origin and progress of the insurrection, let them determine whether it has not been fomented by combinations of men, who, careless of consequences, and disregarding the unerring truth that those who rouse can not always appease a civil convulsion, have disseminated, from an ignorance or perversion of facts, suspicions, jealousies, and accusations of the whole government."

The President could not omit this fair occasion, once more to press on congress a subject which had always been near his heart. After mentioning the defectiveness of the existing system, he said—

"The devising and establishing of a well regulated militia, would be a genuine source of legislative honour, and a perfect title to public gratitude. I therefore entertain a hope that the present session will not pass without carrying to its full energy the power of organizing, arming, and disciplining the militia; and thus providing, in the language of the constitution, for

calling them forth to execute the laws of the union, suppress insurrections, and repel invasions."

After mentioning the intelligence from the army under the command of General Wayne, and the state of Indian affairs, he again called the attention of the house of representatives to a subject scarcely less interesting than a system of defence against external and internal violence.

"The time," he said, "which has elapsed since the commencement of our fiscal measures, has developed our pecuniary resources, so as to open the way for a definitive plan for the redemption of the public debt. It is believed that the result is such as to encourage congress to consummate this work without delay. Nothing can more promote the permanent welfare of the union, and nothing would be more grateful to our constituents. Indeed, whatever is unfinished of our system of public credit, can not be benefited by procrastination; and, as far as may be practicable, we ought to place that credit on grounds which can not be disturbed, and to prevent that progressive accumulation of debt which must ultimately endanger all governments."

He referred to subsequent communications for certain circumstances attending the intercourse of the United States with foreign nations. "However," he added, "it may not be unseasonable to announce that my policy in our foreign transactions has been, to cultivate peace with all the world; to observe treaties with pure and inviolate faith; to check every deviation from the line of impartiality; to explain what may have been misapprehended; and correct what may have been injurious to any nation; and having thus acquired the right, to lose no time in acquiring the ability, to insist upon justice being done to ourselves."

In the senate, an answer was reported which contained the following clause:

"Our anxiety, arising from the licentious and open resistance to the laws in the western counties of Pennsylvania, has been increased by the proceedings of certain self-created societies relative to the laws and administration of the government; proceedings, in our apprehension, founded in political error, calculated, if not intended, to disorganize our government, and which, by inspiring delusive hopes of support, have been instrumental in misleading our fellow citizens in the scene of insurrection."

The address proceeded to express the most decided approbation of the conduct of the President in relation to the insurgents; and, after noticing the different parts of the speech, concluded with saying—

"At a period so momentous in the affairs of nations, the temperate, just, and firm policy that you have pursued in respect to foreign powers, has been eminently calculated to promote the great and essential interest of our country, and has created the fairest title to the public gratitude and thanks."

To this unequivocal approbation of the policy adopted by the executive with regard to foreign nations, no objections were made. The clause respecting democratic societies was seriously opposed; but the party in favour of the administration had been strengthened in the senate by recent events, and the address reported by the committee was agreed to without alteration.

The same spirit did not prevail in the house of representatives. In that branch of the legislature, the opposition party continued to be the most powerful, and the respect of their leaders for the person and character of the chief magistrate was visibly diminishing. His interference with a favourite system was not forgotten, and the mission of Mr. Jay still rankled in their bosoms.

The address prepared by the committee, to whom the speech was referred, omitted to notice those parts which respected self created societies, the victory of General Wayne, and the policy observed by the executive in its intercourse with foreign nations. On a motion being made by Mr. Dayton to amend it, by inserting a clause which should express the satisfaction of the house at the success of the army under General Wayne, Mr. Madison said, that it had been the wish of the committee who framed the address, to avoid the minutia of the speech: but as a desire was manifested to amplify particular parts, it might not be amiss to glance at the policy observed towards foreign nations. He therefore moved to amend the amendment by adding the words, "solicitous also as we are for the preservation of peace with all nations, we can not otherwise than warmly approve of *a* policy in our foreign transactions, which keeps in view as well the maintenance of our national rights, as the continuance of that blessing." Mr. Hillhouse wished the word *your* to be substituted for the article *a*, that the answer might point, not to an abstract policy, but to that of the executive, and thus

have a direct application to the speech. This motion produced a warm discussion, which terminated in a request that Mr. Madison would withdraw his amendment; the friends of the administration being of opinion, that it was more eligible to pass over that part of the speech in silence, than to answer it in terms so equivocal as those to which alone the house seemed willing to assent.

A proposition was then made by Mr. Fitzsimmons to introduce into the address, a clause declaring, that "in tracing the origin and progress of the insurrection, they (the house of representatives) entertain no doubt that certain self created societies and combinations of men, careless of consequences, and disregarding truth, by disseminating suspicions, jealousies, and accusations of the government, have had an influence in fomenting this daring outrage against the principles of social order, and the authority of the laws."

This attempt to censure certain organized assemblages of factious individuals, who, under the imposing garb of watchfulness over liberty, concealed designs subversive of all those principles which preserve the order, the peace, and the happiness of society, was resisted by the whole force of the opposition. A very eloquent and animated debate ensued, which terminated in the committee, by striking out the words "self created societies;" forty-seven voting for, and forty-five against expunging them. The question was resumed in the house; and, the chairman of the committee being opposed in sentiment to the speaker, who was now placed in the chair, the majority was precisely changed, and the words were reinstated. This victory, however, if it may be termed one, was soon lost. A motion for confining the censure to societies and combinations within the four western counties of Pennsylvania and the adjacent country, succeeded by the casting vote of the speaker, upon which, the friends of the amendment gave it up, and the address was voted without expressing any sentiment on the subject.

This triumph over the administration revived, for a moment, the drooping energies of these pernicious societies. But it was only for a moment. The agency ascribed to them by the opinion of the public, as well as of the President, in producing an insurrection which was generally execrated, had essentially affected them; and while languishing under this wound, they received a deadly blow from a quarter whence hostility was least expected.

The remnant of the French convention, rendered desperate by the ferocious despotism of the Jacobins, and of the sanguinary tyrant who had made himself their chief; perceiving that the number of victims who were immolated as his caprice might suggest, instead of satiating, could only stimulate his appetite for blood, had, at length, sought for safety by boldly confronting danger; and, succeeding in a desperate attempt to bring Robespierre to the guillotine, had terminated his reign of terror. The colossean power of the clubs, which had been abused to an excess that gives to faithful history the appearance of fiction, fell with that of their favourite member, and they sunk into long merited disgrace. The means by which their political influence had been maintained were wrested from them; and, in a short time, their meetings were prohibited. Not more certain is it that the boldest streams must disappear, if the fountains which fed them be emptied, than was the dissolution of the democratic societies of America, when the Jacobin clubs were denounced by France. As if their destinies depended on the same thread, the political death of the former was the unerring signal for that of the latter; and their expiring struggles, incapable of deferring their fate, only attested the reluctance with which they surrendered their much abused power.

Notwithstanding the disagreement between the executive and one branch of the legislature concerning self created societies, and the policy observed towards foreign nations, the speech of the President was treated with marked respect; and the several subjects which it recommended, engaged the immediate attention of congress. A bill was passed authorizing the President to station a detachment of militia in the four western counties of Pennsylvania; provision was made to compensate those whose property had been destroyed by the insurgents, should those who had committed the injury be unable to repair it: and an appropriation exceeding one million one hundred thousand dollars was made to defray the expenses occasioned by the insurrection.

Many of the difficulties which had occurred in drawing out the militia were removed, and a bill was introduced to give greater energy to the militia system generally; but this subject possessed so many intrinsic difficulties, that the session passed away without effecting any thing respecting it.

A bill for the gradual redemption of the national debt was more successful. The President had repeatedly and earnestly recommended to the legislature the adoption of measures which might effect this favourite object; but, although that party which had been reproached with a desire to accumulate debt as a means of subverting the republican system had uniformly manifested a disposition to carry this recommendation into effect, their desire had hitherto been opposed by obstacles they were unable to surmount. Professions of an anxious solicitude to discharge the national engagements, without providing the means of actual payment, might gratify those who consider words as things, but would be justly estimated by men, who, neither condemning indiscriminately, nor approving blindly, all the measures of government, expect that, in point of fact, it shall be rightly and honestly administered. On the friends of the administration, therefore, it was incumbent to provide real, substantial funds, which should attest the sincerity of their professions. This provision could not be made without difficulty. The duty on imported articles, and on tonnage, though rapidly augmenting, could not, immediately, be rendered sufficiently productive to meet, alone, the various exigencies of the treasury, and yield a surplus for the secure establishment of a permanent fund to redeem the principal of the debt. Additional sources of revenue must therefore be explored, or the idea of reducing the debt be abandoned. New taxes are the never failing sources of discontent to those who pay them, and will ever furnish weapons against those who impose them, too operative not to be seized by their antagonists. In a government where popularity is power, it requires no small degree of patriotism to encounter the odium which, however urgently required, they seldom fail to excite. Ready faith is given to the declaration that they are unjust, tyrannical, and unnecessary; and no inconsiderable degree of firmness is requisite to persevere in a course attended with so much political hazard. The opposition made to the internal taxes, which commenced in congress, had extended itself through the community. Although only the act imposing duties on spirits distilled within the United States had been resisted by force, yet such a degree of irritation was manifested against the whole system, as to evince the repugnance with which a large portion of the people saw it go into operation. The duties on refined sugars, and manufactured tobacco, especially, were censured in terms which would authorize an opinion that a defect of power, rather than of will, to resist the execution of the law, confined some of its opponents to

remonstrances. Nothing could be more unfriendly than this spirit, to the reduction of the debt.

The reports of the secretary of the treasury having suggested the several steps which had been taken by congress in the system of internal taxation, he was justly considered as its author. The perseverance which marked the character of this officer, gave full assurance that no clamour would deter him from continuing to recommend measures which he believed to be essential to the due administration of the finances. That the establishment of public credit on a sound basis was all important to the character and prosperity of the United States, constituted one of those political maxims to which he invariably adhered; and to effect it completely, seems to have been among the first objects of his ambition. He had bestowed upon this favourite subject the most attentive consideration; and while the legislature was engaged in the discussions of a report made by a select committee on a resolution moved by Mr. Smith, of South Carolina, purporting that further provision ought to be made for the reduction of the debt, addressed a letter to the house of representatives, through their speaker, informing them that he had digested and prepared a plan on the basis of the actual revenues, for the further support of public credit, which he was ready to communicate.

This comprehensive and valuable report presented the result of his laborious and useful investigations, on a subject equally intricate and interesting.

This was the last official act of Colonel Hamilton. The penurious provision made for those who filled the high executive departments in the American government, excluded from a long continuance in office all those whose fortunes were moderate, and whose professional talents placed a decent independence within their reach. While slandered as the accumulator of thousands by illicit means, Colonel Hamilton had wasted in the public service great part of the property acquired by his previous labours, and had found himself compelled to decide on retiring from his political station. The accusations brought against him in the last session of the second congress had postponed the execution of this design, until opportunity should be afforded for a more full investigation of his official conduct; but he informed the President that, on the close of the session, to meet in December, 1793, he should resign his situation in the administration. The

events which accumulated about that time, and which were, he said in a letter to the President, of a nature to render the continuance of peace in a considerable degree precarious, deferred his meditated retreat. "I do not perceive," he added, "that I could voluntarily quit my post at such a juncture, consistently with considerations either of duty or character; and therefore, I find myself reluctantly obliged to defer the offer of my resignation.

"But if any circumstances should have taken place in consequence of the intimation of an intention to resign, or should otherwise exist, which serve to render my continuance in office in any degree inconvenient or ineligible, I beg leave to assure you, sir, that I should yield to them with all the readiness naturally inspired by an impatient desire to relinquish a situation, in which, even a momentary stay is opposed by the strongest personal and family reasons, and could only be produced by a sense of duty or reputation."

Resignation of Colonel Hamilton.

1795

Assurances being given by the President, of the pleasure with which the intelligence, that he would continue at his post through the crisis, was received, he remained in office until the commencement of the ensuing year. On the 1st of December, immediately on his return from the western country, the dangers of domestic insurrection or foreign war having subsided, he gave notice that he should on the last day of January give in his resignation.

Seldom has any minister excited the opposite passions of love and hate in a higher degree than Colonel Hamilton. His talents were too pre-eminent not to receive from all the tribute of profound respect; and his integrity and honour as a man, not less than his official rectitude, though slandered at a distance, were admitted to be superior to reproach, by those enemies who knew him.

But with respect to his political principles and designs, the most contradictory opinions were entertained. While one party sincerely believed his object to be the preservation of the constitution of the United States in its original purity; the other, with perhaps equal sincerity, imputed to him

the insidious intention of subverting it. While his friends were persuaded, that as a statesman, he viewed all foreign nations with an equal eye; his enemies could perceive in his conduct, only hostility to France and attachment to her rival.

It was his fortune to hold a conspicuous station in times which were peculiarly tempestuous, and under circumstances peculiarly unfavourable to the fair action of the judgment. In the midst of prejudices against the national debt, which had taken deep root, and had long been nourished, he was called to the head of a department, whose duty it was to contend with those prejudices, and to offer a system which, in doing justice to the creditor of the public, might retrieve the reputation of his country. While the passions were inflamed by a stern contest between the advocates of a national, and of state governments, duties were assigned to him, in the execution of which there were frequent occasions to manifest his devotion to the former. When a raging fever, caught from that which was desolating France, and exhibiting some of its symptoms, had seized the public mind, and reached its understanding, it was unfavourable to his quiet, and perhaps to his fame, that he remain uninfected by the disease. He judged the French revolution without prejudice; and had the courage to predict that it could not terminate in a free and popular government.

Such opinions, at such a time, could not fail to draw a load of obloquy upon a man whose frankness gave them publicity, and whose boldness and decision of character insured them an able and steady support. The suspicions they were calculated to generate, derived great additional force from the political theories he was understood to hold. It was known that, in his judgment, the constitution of the United States was rather chargeable with imbecility, than censurable for its too great strength; and that the real sources of danger to American happiness and liberty, were to be found in its want of the means to effect the objects of its institution;—in its being exposed to the encroachments of the states,—not in the magnitude of its powers. Without attempting to conceal these opinions, he declared his perfect acquiescence in the decision of his country; his hope that the issue would be fortunate; and his firm determination, in whatever might depend upon his exertions, to give the experiment the fairest chance for success. No part of his political conduct has been perceived, which would inspire doubts of the sincerity of these declarations. His friends may appeal with

confidence to his official acts, to all his public conduct, for the refutation of those charges which were made against him while at the head of the treasury department, and were continued, without interruption, till he ceased to be the object of jealousy.

In the esteem and good opinion of the President, to whom he was best known, Colonel Hamilton at all times maintained a high place. While balancing on the mission to England, and searching for a person to whom the interesting negotiation with that government should be confided, the mind of the chief magistrate was directed, among others, to this gentleman. [30] He carried with him out of office, [31] the same cordial esteem for his character, and respect for his talents, which had induced his appointment.

Is succeeded by Mr. Wolcott.

The vacant office of secretary of the treasury was filled by Mr. Wolcott, of Connecticut, a gentleman of sound judgment, who was well versed in its duties. He had served as comptroller for a considerable time, and in that situation, had been eminently useful to the head of the department.

The report of the select committee recommended additional objects for internal taxation, and that the temporary duties already imposed should be rendered permanent. The opposition made to this important part of the system was so ardent, and so persevering, that, though the measure was taken up early in the session, the bill did not pass the house of representatives until late in February. Not only were the taxes proposed by the friends of the administration encountered successively by popular objections, urged with all the vehemence of passion, and zeal of conviction, but it was with extreme difficulty that the duties on sugar refined, and tobacco manufactured, within the United States, could be rendered permanent. When gentlemen were urged to produce a substitute for the system they opposed, a direct tax was mentioned with approbation; but no disposition was shown to incur the responsibility of becoming the patrons of such a measure. At length, by the most persevering exertions of the federal party, the bill was carried through the house; and thus was that system adopted, which, if its operations shall not be disturbed, and if no great accumulations of debt be made, will, in a few years, discharge all the engagements of the United States.

On the third of March, this important session was ended. Although the party hostile to the administration had obtained a small majority in one branch of the legislature, several circumstances had occurred to give great weight to the recommendations of the President. Among these may be reckoned the victory obtained by General Wayne, and the suppression of the western insurrection. In some points, however, which he had pressed with earnestness, his sentiments did not prevail. One of these was a bill introduced into the senate for preserving peace with the Indians, by protecting them from the intrusions and incursions of the whites.

From the commencement of his administration, the President had reviewed this subject with great interest, and had permitted scarcely a session of congress to pass away, without pressing it on the attention of the legislature. It had been mentioned in his speech at the commencement of the present session, and had been further enforced by a message accompanying a report made upon it by the secretary of war. The following humane sentiments, extracted from that report, are characteristic of the general views of the administration.

"It seems that our own experience would demonstrate the propriety of endeavouring to preserve a pacific conduct in preference to a hostile one with the Indian tribes. The United States can get nothing by an Indian war; but they risk men, money, and reputation. As we are more powerful and more enlightened than they are, there is a responsibility of national character that we should treat them with kindness, and even with liberality."

The plan suggested in this report was, to add to those arrangements respecting trade, which were indispensable to the preservation of peace, a chain of garrisoned posts within the territory of the Indians, provided their assent to the measure should be obtained; and to subject all those who should trespass on their lands to martial law. A bill founded on this report passed the senate, but was lost, in the house of representatives, by a small majority.

Resignation of General Knox.

This report preceded the resignation of the secretary of war but a few days. This valuable officer, too, was driven from the service of the public, by the scantiness of the compensation allowed him.

On the 28th of December, 1794, he addressed a letter to the President giving him official notice that, with the year, his services as secretary for the department of war would cease. This resolution had long before been verbally communicated.

"After having served my country," concluded the letter, "near twenty years, the greater portion of the time under your immediate auspices, it is with extreme reluctance I find myself constrained to withdraw from so honourable a situation. But the natural and powerful claims of a numerous family will no longer permit me to neglect their essential interests.

"In whatever situation I shall be, I shall recollect your confidence and kindness with all the fervour and purity of affection, of which a grateful heart is susceptible."

In the letter accepting his resignation, the President expressed the regret it occasioned, and added:

"I can not suffer you, however, to close your public service, without uniting to the satisfaction which must arise in your own mind from conscious rectitude, assurances of my most perfect persuasion that you have deserved well of your country.

"My personal knowledge of your exertions, while it authorizes me to hold this language, justifies the sincere friendship which I have borne you, and which will accompany you in every situation of life."

Is succeeded by Colonel Pickering.

Colonel Pickering, a gentleman who had filled many important offices through the war of the revolution; who had discharged several trusts of considerable confidence under the present government; and who at the time was postmaster general, was appointed to succeed him.

On the seventh of March, the treaty of amity, commerce, and navigation, between the United States and Great Britain, which had been signed by the ministers of the two nations, on the 19th of the preceding November, was received at the office of state.

Treaty between the United States and Great Britain.

From his arrival in London on the 15th of June, Mr. Jay had been assiduously and unremittingly employed on the arduous duties of his mission. By a deportment respectful, yet firm, mingling a decent deference for the government to which he was deputed, with a proper regard for the dignity of his own, this minister avoided those little asperities which frequently embarrass measures of great concern, and smoothed the way to the adoption of those which were suggested by the real interests of both nations. Many and intricate were the points to be discussed. On some of them an agreement was found to be impracticable; but, at length, a treaty was concluded, which Mr. Jay declared to be the best that was attainable, and which he believed it for the interests of the United States to accept.^[32] Indeed it was scarcely possible to contemplate the evidences of extreme exasperation which were given in America, and the nature of the differences which subsisted between the two countries, without feeling a conviction that war was inevitable, should this attempt to adjust those differences prove unsuccessful.

On Monday, the 8th of June, the senate, in conformity with the summons of the President, convened in the senate chamber, and the treaty, with the documents connected with it, were submitted to their consideration.

On the 24th of June, after a minute and laborious investigation, the senate, by precisely a constitutional majority, advised and consented to its conditional ratification.

An insuperable objection existed to an article regulating the intercourse with the British West Indies, founded on a fact which is understood to have been unknown to Mr. Jay. The intention of the contracting parties was to admit the direct intercourse between the United States and those islands, but not to permit the productions of the latter to be carried to Europe in the vessels of the former. To give effect to this intention, the exportation from the United States of those articles which were the principal productions of the islands was to be relinquished. Among these was cotton. This article, which a few years before was scarcely raised in sufficient quantity for domestic consumption, was becoming one of the richest staples of the southern states. The senate being informed of this fact, advised and consented that the treaty should be ratified on condition that an article be

added thereto, suspending that part of the twelfth article which related to the intercourse with the West Indies.

Although, in the mind of the President, several objections to the treaty had occurred, they were overbalanced by its advantages; and before transmitting it to the senate, he had resolved to ratify it, if approved by that body. The resolution of the senate presented difficulties which required consideration. Whether they could advise and consent to an article which had not been laid before them; and whether their resolution was to be considered as the final exercise of their power, were questions not entirely free from difficulty. Nor was it absolutely clear that the executive could ratify the treaty, under the advice of the senate, until the suspending article should be introduced into it. A few days were employed in the removal of these doubts, at the expiration of which, intelligence was received from Europe which suspended the resolution which the President had formed.

The English papers contained an account, which, though not official, was deemed worthy of credit, that the order of the 8th of June, 1793, for the seizure of provisions going to French ports, was renewed. In the apprehension that this order might be construed and intended as a practical construction of that article in the treaty which seemed to favour the idea that provisions, though not generally contraband, might occasionally become so, a construction in which he had determined not to acquiesce, the President thought it wise to reconsider his decision. Of the result of this reconsideration, there is no conclusive testimony. A strong memorial against this objectionable order was directed; and the propositions to withhold the ratifications of the treaty until the order should be repealed; to make the exchange of ratifications dependent upon that event; and to adhere to his original purpose of pursuing the advice of the senate, connecting with that measure the memorial which had been mentioned, as an act explanatory of the sense in which his ratification was made, were severally reviewed by him. In conformity with his practice of withholding his opinion on controverted points until it should become necessary to decide them, he suspended his determination on these propositions until the memorial should be prepared and laid before him. In the meantime, his private affairs required that he should visit Mount Vernon.

So restless and uneasy was the temper respecting foreign nations, that no surprise ought to be excited at the anxiety which was felt on the negotiation of a treaty with Great Britain, nor at the means which were used, before its contents were known, to extend the prejudices against it.

Great umbrage was taken at the mysterious secrecy in which the negotiation had been involved. That the instrument itself was not immediately communicated to the public, and that the senate deliberated upon it with closed doors, were considered as additional evidences of the contempt in which their rulers held the feelings and understandings of the people, and of the monarchical tendencies of the government. Crowned heads, it was loudly repeated, who were machinating designs subversive of the rights of man, and the happiness of nations, might well cover with an impenetrable veil, their dark transactions; but republics ought to have no secrets. In republics, those to whom power was delegated, being the servants of the people, acting solely for their benefit, ought to transact all national affairs in open day. This doctrine was not too absurd for the extravagance of the moment.

The predetermined hostility to the treaty increased in activity, as the period for deciding its fate approached. On its particular merits, no opinion could be formed, because they were unknown; but on the general question of reconciliation between the two countries, a decisive judgment was extensively made up. The sentiments called forth by the occasion demonstrated, that no possible adjustment of differences with Great Britain, no possible arrangement which might promise a future friendly intercourse with that nation, could be satisfactory. The President was openly attacked; his whole system strongly condemned; and the mission of Mr. Jay, particularly, was reprobated in terms of peculiar harshness. That a treaty of amity and commerce should have been formed, whatever might be its principles, was a degrading insult to the American people; a pusillanimous surrender of their honour; and an insidious injury to France. Between such a compact, and an alliance, no distinction was taken. It was an abandonment of the ancient ally of the United States, whose friendship had given them independence, and whose splendid victories still protected them, for a close connexion with her natural enemy, and with the enemy of human liberty.

The pretended object of the mission, it was said, was a reparation for wrongs, not a contaminating connexion with the most faithless and corrupt court in the world. The return of the envoy without that reparation, was a virtual surrender of the claim. The honour of the United States required a peremptory demand of the immediate surrender of the western posts, and of compensation for the piratical depredations committed on their commerce; not a disgraceful and humiliating negotiation. The surrender, and the compensation, ought to have been made instantly; for no reliance could be placed in promises to be performed in future.

That the disinclination formerly manifested by Great Britain, to give the stability and certainty of compact to the principles regulating the commercial intercourse between the two countries, had constituted an important item in the catalogue of complaints against that power: that the existence, or non-existence of commercial treaties had been selected as the criterion by which to regulate the discriminations proposed to be made in the trade of foreign nations; that, in the discussion on this subject, the favourers of commercial hostility had uniformly supported the policy of giving value to treaties with the United States; these opinions were instantly relinquished by the party which had strenuously asserted them while urged by their leaders in congress; and it was imputed as a crime to the government, and to its negotiator, that he had proceeded further than to demand immediate and unconditional reparation of the wrongs sustained by the United States.

The most strenuous and unremitting exertions to give increased energy to the love which was openly avowed for France, and to the detestation which was not less openly avowed for England,[\[33\]](#) were connected with this course of passionate declamation.

Such was the state of parties when the senate advised the ratification of the treaty. Although common usage, and a decent respect for the executive, and for a foreign nation, not less than a positive resolution, required that the seal of secrecy should not be broken by the senate, an abstract of this instrument, not very faithfully taken, was given to the public; and on the 29th of June, a senator of the United States transmitted a copy of it to the most distinguished editor of the opposition party in Philadelphia, to be communicated to the public through the medium of the press.

If the negotiation itself had been acrimoniously censured; if amicable arrangements, whatever might be their character, had been passionately condemned; it was not to be expected that the treaty would assuage these pre-existing irritations.

In fact, public opinion did receive a considerable shock, and men uninfected by the spirit of faction felt some disappointment on its first appearance. In national contests, unless there be an undue attachment to the adversary country, few men, even among the intelligent, are sensible of the weakness which may exist in their own pretensions, or can allow their full force to the claims of the other party. If the people at large enter keenly into the points of controversy with a foreign power, they can never be satisfied with any equal adjustment of those points, unless other considerations, stronger than abstract reason, afford that satisfaction; nor will it ever be difficult to prove to them, in a case unassisted by the passions, that in any practicable commercial contract, they give too much, and receive too little.

On no subject whatever have considerations, such as these, possessed more influence than in that which was now brought before the American people. Their operation was not confined to those whose passions urged them to take part in the war, nor to the open enemies of the executive. The friends of peace, and of the administration, had generally received impressions unfavourable to the fair exercise of judgment in the case, which it required time and reflection to efface. Even among them, strong prejudices had been imbibed in favour of France, which the open attempts on the sovereignty of the United States had only weakened; and the matters of controversy with Great Britain had been contemplated with all that partiality which men generally feel for their own interests. With respect to commerce also, strong opinions had been preconceived. The desire to gain admission into the British West India islands, especially, had excited great hostility to that colonial system which had been adopted by every country in Europe; and sufficient allowances were not made for the prejudices by which that system was supported.

The treaty, therefore, when exposed to the public view, found one party prepared for a bold and intrepid attack, but the other, not ready in its defence. An appeal to the passions, the prejudices, and the feelings of the nation, might confidently be made by those whose only object was its

condemnation; which reflection, information, and consequently time, were required by men whose first impressions were not in its favour, but who were not inclined to yield absolutely to those impressions.

That a treaty involving a great variety of complicated national interests, and adjusting differences of long standing, which had excited strong reciprocal prejudices, would require a patient and laborious investigation, both of the instrument itself, and of the circumstances under which it was negotiated, before even those who are most conversant in diplomatic transactions could form a just estimate of its merits, would be conceded by all reflecting men. But an immense party in America, not in the habit of considering national compacts, without examining the circumstances under which that with Great Britain had been formed, or weighing the reasons which induced it; without understanding the instrument, and in many instances without reading it, rushed impetuously to its condemnation; and, confident that public opinion would be surprised by the suddenness, or stormed by the fury of the assault, expected that the President would be compelled to yield to its violence.

In the populous cities, meetings of the people were immediately summoned, in order to take into their consideration, and to express their opinions respecting an instrument, to comprehend the full extent of which, a statesman would need deep reflection in the quiet of his closet, aided by considerable inquiry. It may well be supposed that persons feeling some distrust of their capacity to form, intuitively, a correct judgment on a subject so complex, and disposed only to act knowingly, would be unwilling to make so hasty a decision, and consequently be disinclined to attend such meetings. Many intelligent men, therefore, stood aloof, while the most intemperate assumed, as usual, the name of the people; pronounced a definitive and unqualified condemnation of every article in the treaty; and, with the utmost confidence, assigned reasons for their opinions, which, in many instances, had only an imaginary existence; and in some, were obviously founded on the strong prejudices which were entertained with respect to foreign powers. It is difficult to review the various resolutions and addresses to which the occasion gave birth, without feeling some degree of astonishment, mingled with humiliation, at perceiving such proofs of the deplorable fallibility of human reason.

The first meeting was held in Boston. The example of that city was soon followed by New York, Philadelphia, Baltimore, and Charleston; and, as if their addresses were designed at least as much for their fellow citizens as for their President, while one copy was transmitted to him, another was committed to the press. The precedent set by these large cities was followed, with wonderful rapidity, throughout the union; and the spirit in which this system of opposition originated sustained no diminution of violence in its progress.

On the 18th of July, at Baltimore, on his way to Mount Vernon, the President received the resolutions passed by the meeting at Boston, which were enclosed to him in a letter from the select men of that town. The answer to this letter and to these resolutions evinced the firmness with which he had resolved to meet the effort that was obviously making, to control the exercise of his constitutional functions, by giving a promptness and vigour to the expression of the sentiments of a party, which might impose it upon the world as the deliberate judgment of the public.

Addresses to the chief magistrate, and resolutions of town and country meetings, were not the only means which were employed to enlist the American people against the measure which had been advised by the senate. In an immense number of essays, the treaty was critically examined, and every argument which might operate on the judgment or prejudice of the public, was urged in the warm and glowing language of passion. To meet these efforts by counter efforts, was deemed indispensably necessary by the friends of that instrument; and the gazettes of the day are replete with appeals to the passions, and to the reason, of those who are the ultimate arbiters of every political question. That the treaty affected the interests of France not less than those of the United States, was, in this memorable controversy, asserted by the one party, with as much zeal as it was denied by the other. These agitations furnished matter to the President for deep reflection, and for serious regret; but they appear not to have shaken the decision he had formed, or to have affected his conduct otherwise than to induce a still greater degree of circumspection in the mode of transacting the delicate business before him. On their first appearance, therefore, he resolved to hasten his return to Philadelphia, for the purpose of considering, at that place rather than at Mount Vernon, the memorial against the provision order, and the conditional ratification of the treaty. In a private

letter to the secretary of state, of the 29th of July, accompanying the official communication of this determination, he stated more at large the motives which induced it. These were, the violent and extraordinary proceedings which were taking place, and might be expected, throughout the union; and his opinion that the memorial, the ratification, and the instructions which were framing, were of such vast magnitude as not only to require great individual consideration, but a solemn conjunct revision.

He viewed the opposition which the treaty was receiving from the meetings in different parts of the union, in a very serious light;—not because there was more weight in any of the objections than was foreseen at first,—for in some of them there was none, and in others, there were gross misrepresentations; nor as it respected himself personally, for that he declared should have no influence on his conduct. He plainly perceived, and was accordingly preparing his mind for, the obloquy which disappointment and malice were collecting to heap upon him. But he was alarmed on account of the effect it might have on France, and the advantage which the government of that country might be disposed to make of the spirit which was at work, to cherish a belief, that the treaty was calculated to favour Great Britain at her expense. Whether she believed or disbelieved these tales, their effect, he said, would be nearly the same.

"To sum up the whole," he added, "in a few words, I have never, since I have been in the administration of the government, seen a crisis which, in my opinion, has been so pregnant with interesting events, nor one from which more is to be apprehended, whether viewed on one side or the other. From New York there is, and I am told will further be, a counter current;[\[34\]](#) but how formidable it may appear I know not. If the same does not take place at Boston and other towns, it will afford but too strong evidence that the opposition is in a manner universal, and would make the ratification a very serious business indeed. But as it respects the French, even counter resolutions would, for the reasons I have already mentioned, do little more than weaken, in a small degree, the effect the other side would have."

In a private letter of the 31st of July to the same gentleman, after repeating his determination to return to Philadelphia, and his impression of the wisdom, the temperateness, and the firmness for which the crisis most eminently called; he added, "for there is too much reason to believe, from

the pains that have been taken before, at, and since the advice of the senate respecting the treaty, that the prejudices against it are more extensive than is generally imagined. How should it be otherwise? When no stone has been left unturned that could impress on the minds of the people the most arrant misrepresentation of facts: that their rights have not only been neglected, but absolutely sold; that there are no reciprocal advantages in the treaty: that the benefits are all on the side of Great Britain: and, what seems to have had more weight with them than all the rest, and has been most pressed, that the treaty is made with the design to oppress the French republic, in open violation of our treaty with that nation, and contrary too to every principal of gratitude and sound policy. In time, when passion shall have yielded to sober reason, the current may possibly turn; but, in the mean while, this government, in relation to France and England, may be compared to a ship between Scylla and Charybdis. If the treaty is ratified, the partisans of the French (or rather of war and confusion) will excite them to hostile measures, or at least to unfriendly sentiments;—if it is not, there is no foreseeing all the consequences that may follow as it respects Great Britain.

"It is not to be inferred from hence that I am or shall be disposed to quit the ground I have taken, unless circumstances more imperious than have yet come to my knowledge, should compel it; for there is but one straight course, and that is to seek truth, and to pursue it steadily. But these things are mentioned to show that a close investigation of the subject is more than ever necessary; and that there are strong evidences of the necessity of the most circumspect conduct in carrying the determination of government into effect, with prudence as it respects our own people, and with every exertion to produce a change for the better with Great Britain."

In a letter of the third of August, written to the same gentleman, in which he stated the increasing extent of hostility to the treaty, the President added:

"All these things do not shake my determination with respect to the proposed ratification, nor will they, unless something more imperious and unknown to me, should, in the opinion of yourself and the gentlemen with you, make it adviseable for me to pause."

Conditionally ratified by the president.

In the afternoon of the 11th of August the President arrived in Philadelphia; and on the next day, the question respecting the immediate ratification of the treaty was brought before the cabinet. The secretary of state maintained, singly, the opinion, that, during the existence of the provision order,^[35] and during the war between Britain and France, this step ought not to be taken. This opinion did not prevail. The resolution was adopted to ratify the treaty immediately, and to accompany the ratification with a strong memorial against the provision order, which should convey, in explicit terms, the sense of the American government on that subject. By this course, the views of the executive were happily accomplished. The order was revoked, and the ratifications of the treaty were exchanged.

The treaty unpopular in the United States.

The President was most probably determined to adopt this course by the extreme intemperance with which the treaty was opposed, and the rapid progress which this violence was apparently making. It was obvious that, unless this temper could be checked, it would soon become so extensive, and would arrive at such a point of fury, as to threaten dangerous consequences. It was obviously necessary either to attempt a diminution of its action by rendering its exertions hopeless, and by giving to the treaty the weight of his character and influence, or to determine ultimately to yield to it. A species of necessity therefore seems to have been created for abandoning the idea, if it was ever taken up, of making the ratification of the treaty dependent on the revocation of the provision order.

The soundness of the policy which urged this decisive measure was proved by the event. The confidence which was felt in the judgment and virtue of the chief magistrate, induced many, who, swept away by the popular current, had yielded to the common prejudices, to re-examine, and discard opinions which had been too hastily embraced; and many were called forth by a desire to support the administration in measures actually adopted, to take a more active part in the general contest than they would otherwise have pursued. The consequence was, that more moderate opinions respecting the treaty began to prevail.

In a letter from Mount Vernon of the 20th of September, addressed to General Knox, who had communicated to him the change of opinion which was appearing in the eastern states, the President expressed in warm terms the pleasure derived from that circumstance, and added: "Next to a conscientious discharge of my public duties, to carry along with me the approbation of my constituents, would be the highest gratification of which my mind is susceptible. But the latter being secondary, I can not make the former yield to it, unless some criterion more infallible than partial (if they are not party) meetings can be discovered as the touchstone of public sentiment. If any person on earth could, or the great power above would, erect the standard of infallibility in political opinions, no being that inhabits this terrestrial globe would resort to it with more eagerness than myself, so long as I remain a servant of the public. But as I have hitherto found no better guide than upright intentions, and close investigation, I shall adhere to them while I keep the watch, leaving it to those who will come after me, to explore new ways, if they like, or think them better."

Charge against the president rejected.

If the ratification of the treaty increased the number of its open advocates, it seemed also to give increased acrimony to the opposition. Such hold had the President taken of the affections of the people, that even his enemies had deemed it generally necessary to preserve, with regard to him, external marks of decency and respect. Previous to the mission of Mr. Jay, charges against the chief magistrate, though frequently insinuated, had seldom been directly made; and the cover under which the attacks upon his character were conducted, evidenced the caution with which it was deemed necessary to proceed. That mission visibly affected the decorum which had been usually observed towards him; and the ratification of the treaty brought sensations into open view, which had long been ill concealed. His military and political character was attacked with equal violence, and it was averred that he was totally destitute of merit, either as a soldier, or a statesman. The calumnies with which he was assailed were not confined to his public conduct; even his qualities as a man were the subjects of detraction. That he had violated the constitution in negotiating a treaty without the previous advice of the senate, and in embracing within that treaty subjects belonging exclusively to the legislature, was openly maintained, for which an impeachment was publicly suggested; and that he had drawn from the

treasury for his private use, more than the salary annexed to his office, was asserted without a blush.[36] This last allegation was said to be supported by extracts from the treasury accounts which had been laid before the legislature, and was maintained with the most persevering effrontery.

Though the secretary of the treasury denied that the appropriations made by the legislature had ever been exceeded, the atrocious charge was still confidently repeated; and the few who could triumph in any spot which might tarnish the lustre of Washington's fame, felicitated themselves on the prospect of obtaining a victory over the reputation of a patriot, to whose single influence, they ascribed the failure of their political plans. With the real public, the confidence felt in the integrity of the chief magistrate remained unshaken; but so imposing was the appearance of the documents adduced, as to excite an apprehension that the transaction might be placed in a light to show that some indiscretion, in which he had not participated, had been inadvertently committed.

This state of anxious suspense was of short duration. The late secretary of the treasury, during whose administration of the finances this speculation was said to have taken place, came forward with a full explanation of the fact. It appeared that the President himself had never touched any part of the compensation annexed to his office, but that the whole was received, and disbursed, by the gentleman who superintended the expenses of his household. That it was the practice of the treasury, when a sum had been appropriated for the current year, to pay it to that gentleman occasionally, as the situation of the family might require. The expenses at some periods of the year exceeded, and at others fell short of the allowance for the quarter; so that at some times money was paid in advance on account of the ensuing quarter, and at others, that which was due at the end of the quarter was not completely drawn out. The secretary entered into an examination of the constitution and laws to show that this practice was justifiable, and illustrated his arguments by many examples in which an advance on account of money appropriated to a particular object, before the service was completed, would be absolutely necessary. However this might be, it was a transaction in which the President personally was unconcerned.[37]

When possessed of the entire fact, the public viewed, with just indignation, this attempt to defame a character which was the nation's pride. Americans

felt themselves involved in this atrocious calumny on their most illustrious citizen; and its propagators were frowned into silence.

**Mr. Randolph resigns. Is succeeded by Colonel Pickering.
Colonel McHenry appointed secretary of war.**

On the 19th of August, the secretary of state had resigned[38] his place in the administration, and some time elapsed before a successor was appointed.[39] At length, Colonel Pickering was removed to the department of state, and Mr. M'Henry, a gentleman who had served in the family of General Washington, and in the congress prior to the establishment of the existing constitution, was appointed to the department of war. By the death of Mr. Bradford, a vacancy was also produced in the office of attorney general, which was filled by Mr. Lee, a gentleman of considerable eminence at the bar, and in the legislature of Virginia.

Many of those embarrassments in which the government, from its institution, had been involved, were now ended, or approaching their termination.

The opposition to the laws, which had so long been made in the western counties of Pennsylvania, existed no longer.

Treaty with the Indians north-west of the Ohio.

On the third of August, a definitive treaty was concluded by General Wayne with the hostile Indians north-west of the Ohio, by which the destructive and expensive war which had long desolated that frontier, was ended in a manner perfectly agreeable to the United States. An accommodation had taken place with the powerful tribes of the south also; and to preserve peace in that quarter, it was only necessary to invest the executive with the means of restraining the incursions which the disorderly inhabitants of the southern frontier frequently made into the Indian territory; incursions, of which murder was often the consequence.

Few subjects had excited more feeling among the people, or in the government of the United States, than the captivity of their fellow citizens in Algiers. Even this calamity had been seized as a weapon which might be wielded with some effect against the President. Overlooking the exertions he had made for the attainment of peace, and the liberation of the American

captives; and regardless of his inability to aid negotiation by the exhibition of force, the discontented ascribed the long and painful imprisonment of their unfortunate brethren to a carelessness in the administration respecting their sufferings, and to that inexhaustible source of accusation,—its policy with regard to France and Britain.

Treaty with Algiers.

After the failure of several attempts to obtain a peace with the regency of Algiers, a treaty was, at length, negotiated on terms which, though disadvantageous, were the best that could be obtained.

The exertions of the executive to settle the controversy with Spain respecting boundary, and to obtain the free use of the Mississippi, had been unavailing. A negotiation in which Mr. Short and Mr. Carmichael were employed at Madrid, had been protracted by artificial delays on the part of the Spanish cabinet, until those ministers had themselves requested that the commission should be terminated.

Treaty with Spain.

At length, Spain, embarrassed by the war in which she was engaged, discovered symptoms of a temper more inclined to conciliation, and intimated to the secretary of state, through her commissioners at Philadelphia, that a minister, deputed on the special occasion, of higher rank than Mr. Short, who was a resident, would be able to expedite the negotiation. On receiving this intimation, the President, though retaining a high and just confidence in Mr. Short, nominated Mr. Pinckney, in November, 1794, as envoy extraordinary to his Catholic Majesty. Mr. Pinckney repaired in the following summer to Madrid, and a treaty was concluded on the 20th of October, in which the claims of the United States, on the important points of boundary, and the Mississippi, were fully conceded.

Thus were adjusted, so far as depended on the executive, all those external difficulties with which the United States had long struggled; most of which had originated before the establishment of the existing government, and some of which portended calamities that no common share of prudence could have averted.

Meeting of Congress.

Although the signature of the treaties with Spain and Algiers had not been officially announced at the meeting of congress, the state of the negotiations with both powers was sufficiently well understood to enable the President with confidence to assure the legislature, in his speech at the opening of the session, that those negotiations were in a train which promised a happy issue.

President's speech.

After expressing his gratification at the prosperous state of American affairs, the various favourable events which have been already enumerated were detailed in a succinct statement, at the close of which he mentioned the British treaty, which, though publicly known, had not before been communicated officially to the house of representatives.

"This interesting summary of our affairs," continued the speech, "with regard to the powers between whom and the United States controversies have subsisted; and with regard also to our Indian neighbours with whom we have been in a state of enmity or misunderstanding, opens a wide field for consoling and gratifying reflections. If by prudence and moderation on every side, the extinguishment of all the causes of external discord which have heretofore menaced our tranquillity, on terms compatible with our national faith and honour, shall be the happy results,—how firm and how precious a foundation will have been laid for accelerating, maturing, and establishing the prosperity of our country."

After presenting an animated picture of the situation of the United States, and recommending several objects to the attention of the legislature, the President concluded with observing: "Temperate discussion of the important subjects that may arise in the course of the session, and mutual forbearance where there is a difference in opinion, are too obvious and necessary for the peace, happiness, and welfare of our country, to need any recommendation of mine."

In the senate, an address was reported which echoed back the sentiments of the speech.

In this house of representatives, as in the last, the party in opposition to the administration had obtained a majority. This party was unanimously hostile to the treaty with Great Britain; and it was expected that their answer to the speech of the President would indicate their sentiments on a subject which continued to agitate the whole American people. The answer reported by the committee contained a declaration, that the confidence of his fellow citizens in the chief magistrate remained undiminished.

On a motion, to strike out the words importing this sentiment, it was averred, that the clause asserted an untruth. It was not true that the confidence of the people in the President was undiminished. By a recent transaction it had been considerably impaired; and some gentlemen declared that their own confidence in him was lessened.

By the friends of the administration, the motion was opposed with great zeal, and the opinion that the confidence of the people in their chief magistrate remained unshaken, was maintained with ardour. But they were outnumbered.

To avoid a direct vote on the proposition, it was moved, that the address should be recommitted. This motion succeeded, and, two members being added to the committee, an answer was reported in which the clause objected to was so modified as to be free from exception.

That part of the speech which mentioned the treaty with Great Britain was alluded to in terms which, though not directly expressive of disapprobation, were sufficiently indicative of the prevailing sentiment.

Early in the month of January the President transmitted to both houses of congress a message, accompanying certain communications from the French government which were well calculated to cherish those ardent feelings that prevailed in the legislature.

It was the fortune of Mr. Monroe to reach Paris, soon after the death of Robespierre, and the fall of the Jacobins. On his reception as the minister of the United States, which was public, and in the convention, he gave free scope to the genuine feelings of his heart; and, at the same time, delivered to the President of that body, with his credentials, two letters addressed by the secretary of state to the committee of public safety. These letters were

answers to one written by the committee of safety to the congress of the United States. The executive department being the organ through which all foreign intercourse was to be conducted, each branch of the legislature had passed a resolution directing this letter to be transmitted to the President, with a request, that he would cause it to be answered in terms expressive of their friendly dispositions towards the French republic.

So fervent were the sentiments expressed on this occasion, that the convention decreed that the flag of the American and French republics should be united together, and suspended in its own hall, in testimony of eternal union and friendship between the two people. To evince the impression made on his mind by this act, and the grateful sense of his constituents, Mr. Monroe presented to the convention the flag of the United States, which he prayed them to accept as a proof of the sensibility with which his country received every act of friendship from its ally, and of the pleasure with which it cherished every incident which tended to cement and consolidate the union between the two nations.

Mr. Adet succeeds Mr. Fauchet.

The committee of safety, disregarding the provisions of the American constitution, although their attention must have been particularly directed to them by the circumstance that the letter to congress was referred by that body to the executive, again addressed the legislature in terms adapted to that department of government which superintends its foreign intercourse, and expressive, among other sentiments, of the sensibility with which the French nation had perceived those sympathetic emotions with which the American people had viewed the vicissitudes of her fortune. Mr. Adet, who was to succeed Mr. Fauchet at Philadelphia, and who was the bearer of this letter, also brought with him the colours of France, which he was directed to present to the United States. He arrived in the summer; but probably in the idea that these communications were to be made by him directly to congress, did not announce them to the executive until late in December.

1796

The first day of the new year was named for their reception; when the colours were delivered to the President, and the letter to congress also was placed in his hands.

In executing this duty, Mr. Adet addressed a speech to the President, which, in the glowing language of his country, represented France as struggling, not only for her own liberty, but for that of the human race. "Assimilated to, or rather identified with free people by the form of her government, she saw in them," he said, "only friends and brothers. Long accustomed to regard the American people as her most faithful allies, she sought to draw closer the ties already formed in the fields of America, under the auspices of victory, over the ruins of tyranny."

To answer this speech was a task of some delicacy. It was necessary to express feelings adapted to the occasion, without implying sentiments with respect to the belligerent powers, which might be improper to be used by the chief magistrate of a neutral country. With a view to both these objects, the President made the following reply:

"Born, sir, in a land of liberty; having early learned its value; having engaged in a perilous conflict to defend it; having, in a word, devoted the best years of my life to secure its permanent establishment in my own country; my anxious recollections, my sympathetic feelings, and my best wishes, are irresistibly attracted, whensoever, in any country, I see an oppressed nation unfurl the banners of freedom. But above all, the events of the French revolution have produced the deepest solicitude, as well as the highest admiration. To call your nation brave, were to pronounce but common praise. Wonderful people! Ages to come will read with astonishment the history of your brilliant exploits. I rejoice that the period of your toils, and of your immense sacrifices is approaching. I rejoice that the interesting revolutionary movements of so many years have issued in the formation of a constitution,[\[40\]](#) designed to give permanency to the great object for which you have contended. I rejoice that liberty, which you have so long embraced with enthusiasm,—liberty, of which you have been the invincible defenders, now finds an asylum in the bosom of a regularly organized government;—a government which, being formed to secure the happiness of the French people, corresponds with the ardent wishes of my heart, while it gratifies the pride of every citizen of the United States by its resemblance to their own. On these glorious events, accept, sir, my sincere congratulations.

"In delivering to you these sentiments, I express not my own feelings only, but those of my fellow citizens in relation to the commencement, the progress, and the issue of the French revolution: and they will certainly join with me in purest wishes to the Supreme Being, that the citizens of our sister republic, our magnanimous allies, may soon enjoy in peace, that liberty which they have purchased at so great a price, and all the happiness that liberty can bestow.

"I receive, sir, with lively sensibility, the symbol of the triumphs, and of the enfranchisements of your nation, the colours of France, which you have now presented to the United States. The transaction will be announced to congress, and the colours will be deposited with the archives of the United States, which are at once the evidence and the memorials of their freedom and independence; may these be perpetual! and may the friendship of the two republics be commensurate with their existence."

The address of Mr. Adet, the answer of the President, and the colours of France, were transmitted to congress with the letter from the committee of safety.

In the house of representatives a resolution was moved, requesting the President to make known to the representatives of the French republic, the sincere and lively sensations which were excited by this honourable testimony of the existing sympathy and affections of the two republics; that the house rejoiced in an opportunity of congratulating the French republic on the brilliant and glorious achievements accomplished during the present afflictive war; and hoped that those achievements would be attended with a perfect attainment of their object, the permanent establishment of the liberty and happiness of that great and magnanimous people.

The letter to congress having come from the committee of safety, which, under the revolutionary system, was the department that was charged with foreign intercourse; and a constitution having been afterwards adopted in France, by which an executive directory was established, to which all the foreign relations of the government were confided, an attempt was made to amend this resolution, by substituting the directory for the representatives of the people. But this attempt failed; after which the resolution passed unanimously.

In the senate also a resolution was offered, expressive of the sensations of that house, and requesting the President to communicate them to the proper organ of the French republic. An amendment was moved to vary this resolution so as to express the sentiment to the President, and omit the request that it should be communicated to the French republic. The complimentary correspondence between the two nations, had, it was said, reached a point, when, if ever, it ought to close. This amendment, though strenuously combated by the opposition, was adopted.

In February, the treaty with Great Britain was returned, in the form advised by the senate, ratified by his Britannic Majesty. The constitution declaring a treaty, when made, the supreme law of the land, the President announced it officially to the people in a proclamation, requiring from all persons its observance and execution; a copy of which was transmitted to each house on the 1st of March.

The party which had obtained the majority in one branch of the legislature, having openly denied the right of the President to negotiate a treaty of commerce, was not a little dissatisfied at his venturing to issue this proclamation before the sense of the house of representatives had been declared on the obligation of the instrument.

The house of representatives call upon the president for papers relating to the treaty with Great Britain.

This dissatisfaction was not concealed. On the 2d of March, Mr. Livingston laid upon the table a resolution, requesting the President "to lay before the house a copy of the instructions to the minister of the United States, who negotiated the treaty with the king of Great Britain, communicated by his message of the 1st of March, together with the correspondence and other documents relative to the said treaty."

On the 7th of March, he amended this resolution by adding the words, "excepting such of the said papers as any existing negotiation may render improper to be disclosed."

After some debate, Mr. Madison proposed to modify the amendment of Mr. Livingston, so as to except such papers, as in the judgment of the President, it might be inconsistent with the interest of the United States at this time to disclose. This proposition was rejected by a majority of ten voices, and the

discussion of the original resolution was resumed. The debate soon glided into an argument on the nature and extent of the treaty making power.

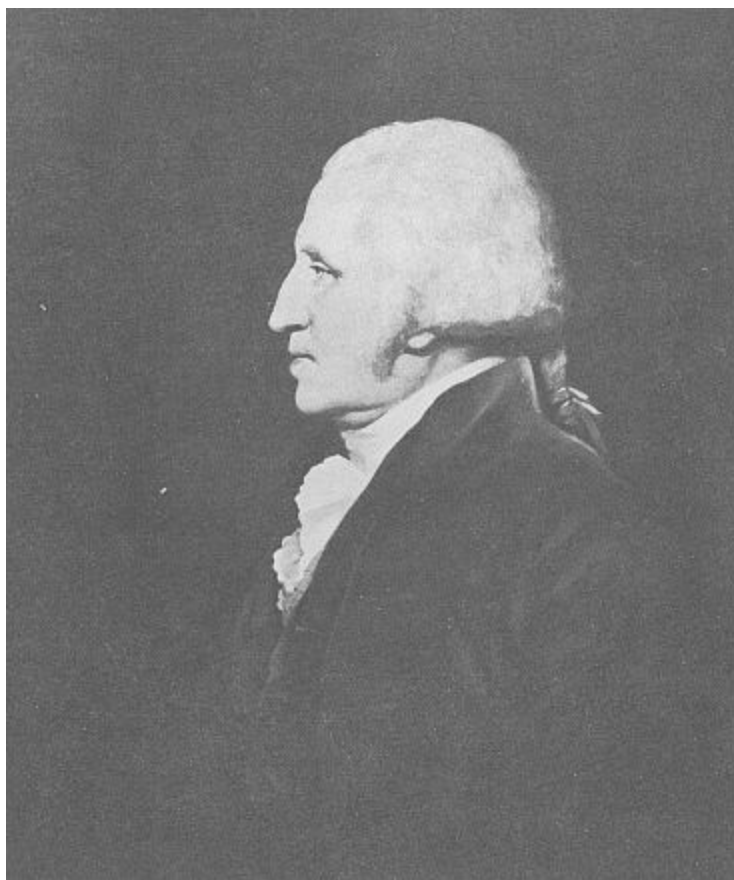
The friends of the administration maintained, that a treaty was a contract between two nations, which, under the constitution, the President, by and with the advice and consent of the senate, had a right to make; and that it was made when, by and with such advice and consent, it had received his final act. Its obligations then became complete on the United States; and to refuse to comply with its stipulations, was to break the treaty, and to violate the faith of the nation.

The opposition contended, that the power to make treaties, if applicable to every object, conflicted with powers which were vested exclusively in congress. That either the treaty making power must be limited in its operation, so as not to touch objects committed by the constitution to congress, or the assent and co-operation of the house of representatives must be required to give validity to any compact, so far as it might comprehend those objects. A treaty, therefore, which required an appropriation of money, or any act of congress to carry it into effect, had not acquired its obligatory force until the house of representatives had exercised its powers in the case. They were at full liberty to make, or to withhold, such appropriation, or other law, without incurring the imputation of violating any existing obligation, or of breaking the faith of the nation.

The debate on this question was animated, vehement, and argumentative; all the party passions were enlisted in it; and it was protracted until the 24th of March, when the resolution was carried in the affirmative by sixty-two to thirty-seven voices. The next day, the committee appointed to present it to the chief magistrate reported his answer, which was, "that he would take the resolution into consideration."

The situation in which this vote placed the President was peculiarly delicate. In an elective government, the difficulty of resisting the popular branch of the legislature is at all times great, but is particularly so when the passions of the public have been strongly and generally excited. The popularity of a demand for information, the large majority by which that demand was supported, the additional force which a refusal to comply with it would give to suspicions already insinuated, that circumstances had

occurred in the negotiation which the administration dared not expose, and that the President was separating himself from the representatives of the people, furnished motives, not lightly to be over-ruled, for yielding to the request which had been made.



George Washington

From the profile portrait by James Sharples

Sharples painted two pictures of Washington—this portrait showing him in the costume of a country gentleman, distinguished as being the only profile of the First President ever painted, and a full face presentation of him in military dress, reproduced in Volume IV of this work.

Sharples, an English painter by birth, was recommended by the great George Romney as being equipped to produce a

work "worthy of the greatest of Americans." His success is attested by the praise of Washington's adopted son, who declared the Sharples portraits to be "the truest likenesses ever made," and by Ralph Waldo Emerson, who saw the pictures later in England and wrote: "I would willingly have crossed the Atlantic, if only to look on these portraits."

Courtesy Herbert L. Pratt

But these considerations were opposed by others which, though less operative with men who fear to deserve the public favour by hazarding its loss, possess an irresistible influence over a mind resolved to pursue steadily the path of duty, however it may abound with thorns.

That the future diplomatic transactions of the government might be seriously and permanently affected by establishing the principle that the house of representatives could demand as a right, the instructions given to a foreign minister, and all the papers connected with a negotiation, was too apparent to be unobserved. Nor was it less obvious that a compliance with the request now made, would go far in establishing this principle. The form of the request, and the motives which induced it, equally led to this conclusion. It left nothing to the discretion of the President with regard to the public interests; and the information was asked for the avowed purpose of determining whether the house of representatives would give effect to a public treaty.

It was also a subject for serious reflection, that in a debate unusually elaborate, the house of representatives had claimed a right of interference in the formation of treaties, which, in the judgment of the President, the constitution had denied them. Duties the most sacred requiring that he should resist this encroachment on the department which was particularly confided to him, he could not hesitate respecting the course it became him to take; and on the 30th of March he returned the following answer to the resolution which had been presented to him.

"Gentlemen of the house of representatives,

"With the utmost attention I have considered your resolution of the 24th instant, requesting me to lay before your house, a copy of the instructions to the minister of the United States, who negotiated the treaty with the king of Great Britain, together with the correspondence and other documents relative to that treaty, excepting such of the said papers, as any existing negotiation may render improper to be disclosed.

"In deliberating upon this subject, it was impossible for me to lose sight of the principle which some have avowed in its discussion, or to avoid extending my views to the consequences which must flow from the admission of that principle.

"I trust that no part of my conduct has ever indicated a disposition to withhold any information which the constitution has enjoined it upon the President as a duty to give, or which could be required of him by either house of congress as a right; and with truth I affirm, that it has been, as it will continue to be, while I have the honour to preside in the government, my constant endeavour to harmonize with the other branches thereof, so far as the trust delegated to me by the people of the United States, and my sense of the obligation it imposes, to preserve, protect and defend the constitution^[41] will permit.

"The nature of foreign negotiations require caution, and their success must often depend on secrecy: and even when brought to a conclusion, a full disclosure of all the measures, demands, or eventual concessions which may have been proposed or contemplated would be extremely impolitic; for this might have a pernicious influence on future negotiations, or produce immediate inconveniences, perhaps danger and mischief to other persons. The necessity of such caution and secrecy was one cogent reason for vesting the power of making treaties in the President, with the advice and consent of the senate, the principle on which that body was formed confining it to a small number of members.

"To admit then a right in the house of representatives to demand, and to have as a matter of course, all the papers respecting a negotiation with a foreign power, would be to establish a dangerous precedent.

"It does not occur that the inspection of the papers asked for, can be relative to any purpose under the cognizance of the house of representatives, except

that of an impeachment, which the resolution has not expressed. I repeat that I have no disposition to withhold any information which the duty of my station will permit, or the public good shall require to be disclosed; and in fact, all the papers affecting the negotiation with Great Britain were laid before the senate, when the treaty itself was communicated for their consideration and advice.

"The course which the debate has taken on the resolution of the house, leads to some observations on the mode of making treaties under the constitution of the United States.

"Having been a member of the general convention, and knowing the principles on which the constitution was formed, I have ever entertained but one opinion upon this subject; and from the first establishment of the government to this moment, my conduct has exemplified that opinion. That the power of making treaties is exclusively vested in the President, by and with the advice and consent of the senate, provided two-thirds of the senators present concur; and that every treaty so made and promulgated, thenceforward becomes the law of the land. It is thus that the treaty making power has been understood by foreign nations: and in all the treaties made with them, *we* have declared, and *they* have believed, that when ratified by the President with the advice and consent of the senate, they became obligatory. In this construction of the constitution, every house of representatives has heretofore acquiesced; and until the present time, not a doubt or suspicion has appeared to my knowledge, that this construction was not a true one. Nay, they have more than acquiesced; for until now, without controverting the obligation of such treaties, they have made all the requisite provisions for carrying them into effect.

"There is also reason to believe that this construction agrees with the opinions entertained by the state conventions when they were deliberating on the constitution; especially by those who objected to it, because there was not required in commercial treaties, the consent of two-thirds of the whole number of the members of the senate, instead of two-thirds of the senators present; and because in treaties respecting territorial and certain other rights and claims, the concurrence of three-fourths of the whole number of the members of both houses respectively was not made necessary.

"It is a fact declared by the general convention and universally understood, that the constitution of the United States was the result of a spirit of amity and mutual concession. And it is well known, that under this influence, the smaller states were admitted to an equal representation in the senate with the larger states; and that this branch of the government was invested with great powers; for on the equal participation of those powers, the sovereignty and political safety of the smaller states were deemed essentially to depend.

"If other proofs than these and the plain letter of the constitution itself be necessary to ascertain the point under consideration, they may be found in the journals of the general convention which I have deposited in the office of the department of state. In these journals it will appear, that a proposition was made 'that no treaty should be binding on the United States which was not ratified by a law,' and that the proposition was explicitly rejected.

He declines sending them.

"As therefore it is perfectly clear to my understanding that the assent of the house of representatives is not necessary to the validity of a treaty; as the treaty with Great Britain exhibits in itself all the objects requiring legislative provision; and on these the papers called for can throw no light; and as it is essential to the due administration of the government that the boundaries fixed by the constitution between the different departments should be preserved; a just regard to the constitution, and to the duty of my office, under all the circumstances of this case, forbid a compliance with your request."

The terms in which this decided, and, it would seem, unexpected negative to the call for papers was conveyed, appeared to break the last cord of that attachment which had theretofore bound some of the active leaders of the opposition to the person of the President. Amidst all the agitations and irritations of party, a sincere respect, and real affection for the chief magistrate, the remnant of former friendship, had still lingered in the bosoms of some who had engaged with ardour in the political contests of the day. But, if the last spark of this affection was not now extinguished, it was at least concealed under the more active passions of the moment.

Debates upon the treaty making power.

A motion to refer the message of the President to a committee of the whole house, was carried by a large majority. In committee, resolutions were moved by Mr. Blount of North Carolina, declaratory of the sense of the house respecting its own power on the subject of treaties. These resolutions take a position less untenable than had been maintained in argument, and rather inexplicit on an essential part of the question. Disclaiming a power to interfere in making treaties, they assert the right of the house of representatives, whenever stipulations are made on subjects committed by the constitution to congress, to deliberate on the expediency of carrying them into effect, without deciding what degree of obligation the treaty possesses on the nation, so far as respects those points, previous to such deliberation. After a debate in which the message was freely criticised, the resolutions were carried, fifty-seven voting in the affirmative, and thirty-five in the negative.

In the course of the month of March, the treaties with his Catholic majesty, and with the Dey of Algiers, had been ratified by the President, and were laid before congress. On the 13th of April, in a committee of the whole house on the state of the union, the instant the chairman was seated, Mr. Sedgewick moved "that provision ought to be made by law for carrying into effect with good faith the treaties lately concluded with the Dey and Regency of Algiers, the King of Great Britain, the King of Spain, and certain Indian tribes north-west of the Ohio."

This motion produced a warm altercation. The members of the majority complained loudly of the celerity with which it had been made, and resented the attempt to blend together four treaties in the same resolution, after the solemn vote entered upon their journals, declaratory of their right to exercise a free discretion over the subject, as an indignity to the opinions and feelings of the house.

After a discussion manifesting the irritation which existed, the resolution was amended, by changing the word "treaties" from the plural to the singular number, and by striking out the words "Dey and Regency of Algiers, the King of Great Britain, and certain Indian tribes north-west of the river Ohio," so that only the treaty with the King of Spain remained to be considered.

Mr. Gallatin then objected to the words "provision ought to be made by law," as the expression seemed to imply a negative of the principle laid down in their resolution, that the house was at perfect liberty to pass, or not to pass, any law for giving effect to a treaty. In lieu of them, he wished to introduce words declaring the expediency of passing the necessary laws. This amendment was objected to as an innovation on the forms which had been invariably observed; but it was carried; after which, the words "with good faith," were also discarded.

The resolution thus amended was agreed to without a dissenting voice; and then, similar resolutions were passed respecting the treaties with Algiers, and with the Indians north-west of the Ohio.

Upon the bill for making appropriations to carry into execution the treaty with Great Britain.

This business being despatched, the treaty with Great Britain was brought before the house. The friends of that instrument urged an immediate decision of the question. On a subject which had so long agitated the whole community, the judgment of every member, they believed, was completely formed; and the hope to make converts by argument was desperate. In fact, they appeared to have entertained the opinion that the majority would not dare to encounter the immense responsibility of breaking that treaty, without previously ascertaining that the great body of the people were willing to meet the consequences of the measure. But the members of the opposition, though confident of their power to reject the resolution, called for its discussion. The expectation might not unreasonably have been entertained, that the passions belonging to the subject would be so inflamed by debate, as to produce the expression of a public sentiment favourable to their wishes; and, if in this they should be disappointed, it would be certainly unwise, either as a party, or as a branch of the legislature, to plunge the nation into embarrassments in which it was not disposed to entangle itself, and from which the means of extricating it could not be distinctly perceived.

The minority soon desisted from urging an immediate decision of the question; and the spacious field which was opened by the propositions before the house, seemed to be entered with equal avidity and confidence by both parties.

At no time perhaps have the members of the national legislature been stimulated to great exertions by stronger feelings than impelled them on this occasion. Never has a greater display been made of argument, of eloquence, and of passion; and never has a subject been discussed in which all classes of their fellow citizens took a deeper interest.

To those motives which a doubtful contest for power, and for victory, can not fail to furnish, were added others of vast influence on the human mind. Those who supported the resolution, declaring the expediency of carrying the treaty into effect, firmly believed that the faith of the nation was pledged, and that its honour, its character, and its constitution, depended on the vote about to be given. They also believed that the best interests of the United States required an observance of the compact as formed. In itself, it was thought as favourable as the situation of the contracting parties, and of the world, entitled them to expect; but its chief merit consisted in the adjustment of ancient differences, and in its tendency to produce future amicable dispositions, and friendly intercourse. If congress should refuse to perform this treaty on the part of the United States, a compliance on the part of Great Britain could not be expected. The posts on the great lakes would still be occupied by their garrisons; no compensation would be made for American vessels illegally captured; the hostile dispositions which had been excited would be restored with increased aggravation; and that these dispositions must lead infallibly to war, was implicitly believed. They also believed that the political subjugation of their country would be the inevitable consequence of a war with Britain, during the existing impassioned devotion of the United States to France.

The opposite party was undoubtedly of opinion that the treaty contained stipulations really injurious to the United States. Several favourite principles to which they attached much importance, were relinquished by it; and some of the articles relative to commerce, were believed to be unequal in their operation. Nor ought the sincerity with which their opinion on the constitutional powers of the house had been advanced, to be questioned. In the fervour of political discussion, that construction which, without incurring the imputation of violating the national faith, would enable the popular branch of the legislature to control the President and senate in making treaties, may have been thought the safe and the correct construction. But no consideration appears to have had more influence than

the apprehension that the amicable arrangements made with Great Britain, would seriously affect the future relations of the United States with France.

Might a conjecture on this subject be hazarded, it would be that, in the opinion of many intelligent men, the preservation of that honest and real neutrality between the belligerent powers, at which the executive had aimed, was impracticable; that America would probably be forced into the war; and that the possibility of a rupture with France was a calamity too tremendous not to be avoided at every hazard.

As had been foreseen, this animated debate was on a subject too deeply and immediately interesting to the people, not to draw forth their real sentiments. The whole country was agitated; meetings were again held throughout the United States; and the strength of parties was once more tried.

The fallacy of many of the objections to the treaty had been exposed, the odium originally excited against it had been diminished, the belief that its violation would infallibly precipitate the nation into a war, if not universal, was extensive. These considerations brought reflecting men into action; and the voice of the nation was pronounced unequivocally with the minority in the house of representatives.

This manifestation of the public sentiment was decisive with congress. On the 29th of April the question was taken in the committee of the whole, and was determined, by the casting vote of the chairman, in favour of the expediency of making the necessary laws. The resolution was finally carried, fifty-one voting in the affirmative, and forty-eight in the negative.

That necessity to which a part of the majority in the house of representatives had reluctantly yielded, operated on no other subject; nor did it affect the strength of parties. Their opinion respecting that system of policy which ought to be observed in their external relations, remained the same; and their partialities and prejudices for and against foreign nations, sustained no diminution.

With regard to internal affairs also, the same spirit was retained.

So excessive had been the jealousy entertained by the opposition against a military force of any kind, that, even under the pressure of the Algerine war,

the bill providing a naval armament could not be carried through the house without the insertion of a section suspending all proceedings under the act, should that war be terminated. The event which was to arrest the executive in the prosecution of this work having occurred, not a single frigate could be completed, without further authority from the legislature. This circumstance was the more important, as a peace had not been concluded with Tunis, or Tripoli; and, of consequence, the Mediterranean could not yet be safely navigated by the vessels of the United States. The President called the attention of congress to this subject; and stated the loss which would accrue from the sudden interruption of the work, and dispersion of the workmen. A bill to enable him to complete three, instead of six frigates, was with difficulty carried through the house.

But, except the treaty with Great Britain, no subject was brought forward in which parties felt a deeper interest, than on those questions which related to the revenue.

Notwithstanding the increasing productiveness of the duties on external commerce, this resource had not yet become entirely adequate to the exigencies of the nation. To secure the complete execution of the system for gradually redeeming the public debt, without disregarding those casualties to which all nations are exposed, it was believed that some additional aids to the treasury would be required. Upon the nature of these aids, much contrariety of opinion prevailed. The friends of the administration were in favour of extending the system of indirect internal taxation: but, constituting the minority in one branch of the legislature, they could carry no proposition on which the opposition was united; and the party which had become the majority in the house of representatives, had been generally hostile to that mode of obtaining revenue. From an opinion that direct taxes were recommended by intrinsic advantages, or that the people would become more attentive to the charges against the administration, should their money be drawn from them by visible means, those who wished power to change hands, had generally manifested a disposition to oblige those who exercised it, to resort to a system of revenue, by which a great degree of sensibility will always be excited. The indirect taxes proposed in the committee of ways and means were strongly resisted; and only that which proposed an augmentation of the duty on carriages for pleasure was passed into a law.

Congress adjourns.

On the first day of June, this long and interesting session was terminated. No preceding legislature had been engaged in discussions by which their own passions, or those of their constituents were more strongly excited; nor on subjects more vitally important to the United States.

From this view of the angry contests of party, it may not be unacceptable to turn aside for a moment, and to look back to a transaction in which the movements of a feeling heart discover themselves, not the less visibly, for being engaged in a struggle with the stern duties of a public station.

The president endeavors to procure the liberation of Lafayette.

No one of those foreigners who, during the war of the revolution, had engaged in the service of the United States, had embraced their cause with so much enthusiasm, or had held so distinguished a place in the affections of General Washington, as the Marquis de Lafayette. The attachment of these illustrious personages to each other had been openly expressed, and had yielded neither to time, nor to the remarkable vicissitude of fortune with which the destinies of one of them had been chequered. For his friend, while guiding the course of a revolution which fixed the anxious attention of the world, or while a prisoner in Prussia, or in the dungeon of Olmutz, the President manifested the same esteem, and felt the same solicitude. The extreme jealousy, however, with which the persons who administered the government of France, as well as a large party in America, watched his deportment towards all those whom the ferocious despotism of the Jacobins had exiled from their country, imposed upon him the painful necessity of observing great circumspection in his official conduct, on this delicate subject. A formal interposition in favour of the virtuous and unfortunate victim of their furious passions, would have been unavailing. Without benefiting the person whom it would be designed to aid, it might produce serious political mischief. But the American ministers employed at foreign courts were instructed to seize every fair occasion to express, unofficially, the interest taken by the President in the fate of Lafayette; and to employ the most eligible means in their power to obtain his liberty, or to meliorate his situation. A confidential person^[42] had been sent to Berlin to solicit his discharge: but before this messenger had reached his destination, the King of Prussia had delivered over his illustrious prisoner to the Emperor of

Germany. Mr. Pinckney had been instructed not only to indicate the wishes of the President to the Austrian minister at London, but to endeavour, unofficially, to obtain the powerful mediation of Britain; and had at one time flattered himself that the cabinet of St. James would take an interest in the case; but this hope was soon dissipated.

After being disappointed in obtaining the mediation of the British cabinet, the President addressed the following letter to the Emperor of Germany.

"It will readily occur to your majesty that occasions may sometimes exist, on which official considerations would constrain the chief of a nation to be silent and passive in relation even to objects which affect his sensibility and claim his interposition as a man. Finding myself precisely in this situation at present, I take the liberty of writing this private letter to your majesty, being persuaded that my motives will also be my apology for it.

"In common with the people of this country, I retain a strong and cordial sense of the services rendered to them by the Marquis de Lafayette; and my friendship for him has been constant and sincere. It is natural, therefore, that I should sympathize with him and his family in their misfortunes, and endeavour to mitigate the calamities they experience, among which his present confinement is not the least distressing.

"I forbear to enlarge on this delicate subject. Permit me only to submit to your majesty's consideration, whether his long imprisonment, and the confiscation of his estate, and the indigence and dispersion of his family, and the painful anxieties incident to all these circumstances, do not form an assemblage of sufferings which recommend him to the mediation of humanity? allow me, sir, on this occasion, to be its organ; and to entreat that he may be permitted to come to this country, on such conditions, and under such restrictions, as your majesty may think it expedient to prescribe.

"As it is a maxim with me not to ask what, under similar circumstances, I would not grant, your majesty will do me the justice to believe that this request appears to me to correspond with those great principles of magnanimity and wisdom, which form the basis of sound policy, and durable glory."

This letter was transmitted to Mr. Pinckney to be conveyed to the Emperor through his minister at London. How far it operated in mitigating immediately the rigour of Lafayette's confinement, or in obtaining his liberation, remains unascertained.

CHAPTER IV.

Letter from General Washington to Mr. Jefferson.... Hostile measures of France against the United States.... Mr. Monroe recalled and General Pinckney appointed to succeed him.... General Washington's valedictory address to the people of the United States.... The Minister of France endeavours to influence the approaching election.... The President's speech to Congress.... He denies the authenticity of certain spurious letters published in 1776.... John Adams elected President, and Thomas Jefferson Vice President.... General Washington retires to Mount Vernon.... Political situation of the United States at this period.... The French government refuses to receive General Pinckney as Minister.... Congress is convened.... President's speech.... Three envoys extraordinary deputed to France.... Their treatment.... Measures of hostility adopted by the American government against France.... General Washington appointed Commander-in-chief of the American army.... His death.... And character.

1796

THE confidential friends of the President had long known his fixed purpose to retire from office at the end of his second term, and the people generally suspected it. Those who dreaded a change of system, in changing the person, of the chief magistrate, manifested an earnest desire to avoid this hazard, by being permitted once more to offer to the public choice a person who, amidst all the fierce conflicts of party, still remained the object of public veneration. But his resolution was to be shaken only by the obvious approach of a perilous crisis, which, endangering the safety of the

nation, would make it unworthy of his character, and incompatible with his principles, to retreat from its service. In the apprehension that the co-operation of external with internal causes might bring about such a crisis, he had yielded to the representations of those who urged him to leave himself master of his conduct, by withholding a public declaration of his intention, until the propriety of affording a reasonable time to fix on a successor should require its disclosure. "If," said Colonel Hamilton in a letter on this subject of the fifth of July, "a storm gathers, how can you retreat? this is a most serious question."

The suspense produced in the public opinion by this silence on the part of the chief magistrate, seemed to redouble the efforts of those who laboured to rob him of the affection of the people, and to attach odium to the political system which he had pursued. As passion alone is able successfully to contend with passion, they still sought, in the hate which America bore to Britain, and in her love to France, for the most powerful means with which to eradicate her love to Washington. Amongst the various artifices employed to effect this object, was the publication of those queries which had been propounded by the President to his cabinet council, previous to the arrival of Mr. Genet. This publication was intended to demonstrate the existence of a disposition in the chief magistrate unfriendly to the French republic, of "a Machiavellian policy, which nothing but the universal sentiment of enthusiastic affection displayed by the *people* of the United States, on the arrival of Mr. Genet, could have subdued." Some idea of the intemperance of the day may be formed from the conclusion of that number of a series of virulent essays, in which these queries were inserted, and from recollecting that it was addressed to a man who, more than any other, had given character as well as independence to his country; and whose life, devoted to her service, had exhibited one pure undeviating course of virtuous exertion to promote her interests.

It is in these words: "The foregoing queries were transmitted for consideration to the heads of departments, previously to a meeting to be held at the President's house. The text needs no commentary. It has stamped upon its front in characters brazen enough for idolatry to comprehend, perfidy and ingratitude. To doubt in such a case was dishonourable, to proclaim those doubts treachery. For the honour of the American character and of human nature, it is to be lamented that the records of the United

States exhibit such a stupendous monument of degeneracy. It will almost require the authenticity of holy writ to persuade posterity that it is not a libel ingeniously contrived to injure the reputation of the saviour of his country."

As this state paper was perfectly confidential, and had been communicated only to the cabinet ministers, Mr. Jefferson thought proper to free himself from any possible suspicion of having given it publicity, by assuring the President that this breach of confidence must be ascribed to some other person.

Letter from General Washington to Mr. Jefferson.

In answer to this letter the President said—

"If I had entertained any suspicion before, that the queries which have been published in Bache's paper proceeded from you, the assurances you have given of the contrary would have removed them:—but the truth is, I harboured none. I am at no loss to conjecture from what source they flowed, through what channel they were conveyed, nor for what purpose they and similar publications appear.

"As you have mentioned^[43] the subject yourself, it would not be frank, candid, or friendly to conceal, that your conduct has been represented as derogating from that opinion I conceived you entertained of me; that to your particular friends and connexions you have described, and they have denounced me, as a person under a dangerous influence, and that, if I would listen *more* to some *other* opinions, all would be well. My answer invariably has been, that I had never discovered any thing in the conduct of Mr. Jefferson to raise suspicions in my mind of his sincerity; that if he would retrace my public conduct while he was in the administration, abundant proofs would occur to him, that truth and right decisions were the *sole* objects of my pursuit; that there were as many instances within his *own* knowledge of my having decided *against* as in *favour* of the person evidently alluded to; and moreover, that I was no believer in the infallibility of the politics or measures of any man living. In short, that I was no party man myself, and that the first wish of my heart was, if parties did exist, to reconcile them.

"To this I may add, and very truly, that until the last year or two, I had no conception that parties would, or even could go the lengths I have been witness to; nor did I believe, until lately, that it was within the bounds of probability—hardly within those of possibility—that while I was using my utmost exertions to establish a national character of our own, independent as far as our obligations and justice would permit, of every nation of the earth; and wished by steering a steady course to preserve this country from the horrors of a desolating war, I should be accused of being the enemy of one nation and subject to the influence of another; and to prove it, that every act of my administration would be tortured, and the grossest and most insidious misrepresentations of them be made, by giving one side only of a subject, and that too in such exaggerated and indecent terms as could scarcely be applied to a Nero—to a notorious defaulter—or even to a common pick-pocket.

"But enough of this—I have already gone further in the expression of my feelings than I intended."

Of the numerous misrepresentations and fabrications which, with unwearied industry, were pressed upon the public in order to withdraw the confidence of the nation from its chief, no one marked more strongly the depravity of that principle which justifies the means by the end, than the republication of certain forged letters, purporting to have been written by General Washington in the year 1776.

These letters had been originally published in the year 1777, and in them were interspersed, with domestic occurrences which might give them the semblance of verity, certain political sentiments favourable to Britain in the then existing contest.

But the original fabricator of these papers missed his aim. It was necessary to assign the manner in which the possession of them was acquired; and in executing this part of his task, circumstances were stated so notoriously untrue, that, at the time, the meditated imposition deceived no person.

In the indefatigable research for testimony which might countenance the charge that the executive was unfriendly to France, and under the influence of Britain, these letters were drawn from the oblivion into which they had sunk, it had been supposed forever, and were republished as genuine. The

silence with which the President treated this as well as every other calumny, was construed into an acknowledgment of its truth; and the malignant commentators on this spurious text, would not admit the possibility of its being apocryphal.

Those who laboured incessantly to establish the favourite position that the executive was under other than French influence, reviewed every act of the administration connected with its foreign relations, and continued to censure every part of the system with extreme bitterness. Not only the treaty with Great Britain, but all those measures which had been enjoined by the duties of neutrality, were reprobated as justly offensive to France; and no opinion which had been advanced by Mr. Genet, in his construction of the treaties between the two nations, was too extravagant to be approved. The ardent patriot can not maintain the choicest rights of his country with more zeal than was manifested in supporting all the claims of the French republic upon the United States. These discussions were not confined to the public prints. In almost every assemblage of individuals, whether for social or other purposes, this favourite theme excluded all others; and the pretensions of France were supported and controverted with equal earnestness. The opposing parties, mutually exasperated by unceasing altercations, cherished reciprocal suspicions of each other, and each charged its adversary with being under a foreign influence.^[44] Those who favoured the measures adopted by America were accused as the enemies of liberty, the enemies of France, and the tools of Britain. In turn, they charged their opponents with disseminating principles subversive of all order in society; and with supporting a foreign government against their own.

Whatever might be the real opinion of the French government on the validity of its charges against the United States, those charges were too vehemently urged, and too powerfully espoused in America, to be abandoned at Paris. If at any time they were in part relinquished, they were soon resumed.

For a time, Mr. Fauchet forbore to press the points on which his predecessor had insisted; but his complaints of particular cases which grew out of the war, and out of the rules which had been established by the executive were unremitting. The respectful language in which these complaints were at first urged, soon yielded to the style of reproach; and in his correspondence with

the secretary of state, towards its close, he adopted the sentiments, without absolutely discarding the manner of Mr. Genet.

Mr. Adet, the successor of Mr. Fauchet, arrived at Philadelphia, while the senate was deliberating on the treaty of amity with Great Britain.

In the observations he made on that instrument, when submitted to his consideration by order of the President, he complained particularly of the abandonment of the principle that free ships should make free goods; and urged the injustice, while French cruisers were restrained by treaty from taking English goods out of American bottoms, that English cruisers should be liberated from the same restraint. No demonstration could be more complete than was the fallacy of this complaint. But the American government discovered a willingness voluntarily to release France from the pressure of a situation in which she had elected to place herself.

Hostile measures of France against the United States.

In the anxiety which was felt by the President to come to full and immediate explanations on this treaty, the American minister at Paris had been furnished, even before its ratification, and still more fully afterwards, with ample materials for the justification of his government. But, misconceiving^[45] the views of the administration, he reserved these representations to answer complaints which were expected, and omitted to make them in the first instance, while the course to be pursued by the Directory was under deliberation. Meanwhile, his letters kept up the alarm which had been excited with regard to the dispositions of France; and intelligence from the West Indies served to confirm it. Through a private channel, the President received information that the special agents of the Directory in the islands were about to issue orders for the capture of all American vessels, laden in the whole or in part with provisions, and bound for any port within the dominions of the British crown.

Mr. Monroe recalled and General Pinckney appointed to succeed him.

Knowing well that the intentions of the executive towards the French republic had been at all times friendly, and entertaining a strong conviction that its conduct was liable to no just objection, the President had relied with confidence on early and candid communications, for the removal of any prejudices or misconceptions, which the passions of the moment might have

occasioned. That the French government would be disappointed at the adjustment of those differences which had threatened to embroil the United States with Great Britain, could not be doubted; but as neither this adjustment, nor the arrangements connected with it, had furnished any real cause of complaint, he cherished the hope that it would produce no serious consequences, if the proper means of prevention should be applied in time. He was therefore dissatisfied with delays which he had not expected; and seems to have believed that they originated in a want of zeal to justify a measure, which neither the minister himself nor his political friends had ever approved. To insure an earnest and active representation of the true sentiments and views of the administration, the President was inclined to depute an envoy extraordinary for the particular purpose, who should be united with the actual minister; but an objection drawn from the constitution was suggested to this measure. During the recess of the senate, the President can only fill up vacancies; and the appointment of a minister when no vacancy existed, might be supposed to transcend his powers. From respect to this construction of the constitution, the resolution was taken to appoint a successor to Colonel Monroe. The choice of a person in all respects qualified for this mission was not without its difficulty. While a disposition friendly to the administration was a requisite not to be dispensed with, it was also desirable that the person employed should have given no umbrage to the French government. No individual who had performed a conspicuous part on the political theatre of America, fitted both branches of this description. All who had openly sustained with zeal and with talents, the measures of the American government, had been marked as the enemies of France, and were on this account to be avoided.

For this critical and important service, the President, after some deliberation, selected General Charles Cotesworth Pinckney, of South Carolina, an elder brother of Mr. Thomas Pinckney, the late [\[46\]](#) minister of the United States at London. No man in America was more perfectly free from exception than this gentleman. Having engaged with ardour in that war which gave independence to his country, he had, in its progress, sustained from the British army indignities to his person, and injuries to his fortune, which are not easily forgotten. In the early part of the French revolution, he had felt and expressed all the enthusiasm of his countrymen for the establishment of the republic; but, after the commencement of its

contests with the United States, he stood aloof from both those political parties which had divided America. Restrained by the official situation of his brother during the negotiations which had been carried on with England, he had forbore to express any opinion respecting the treaty in which those negotiations terminated, and had consequently taken no part with those who approved, or with those who condemned that instrument. No man, therefore, who had not declared himself unfriendly to the principles he would be deputed to support, could be less objectionable to France.

To the President he was recommended by an intimate knowledge of his worth; by a confidence in the sincerity of his personal attachment to the chief magistrate; by a conviction that his exertions to effect the objects of his mission would be ardent and sincere; and that, whatever might be his partialities for France, he possessed a high and delicate sense of national as well as individual honour, was jealous for the reputation of his country, and tenacious of its rights.

In July, immediately after the appointment of General Pinckney, letters were received from Colonel Monroe communicating the official complaints against the American government which had been made to him in March by Mr. de La Croix, the minister of exterior relations, together with his answer to those complaints.

In this answer the American minister had effectually refuted the criminations of Mr. de La Croix; and the executive was satisfied with it. But the Directory had decided on their system, and it was not by reasoning, however conclusive, that this decision was to be changed.

As the time for electing the chief magistrate approached, the anxiety of the public respecting the person in office, seemed to increase. In states where the electors are chosen by the people, names of great political influence were offered for their approbation. The strong hold which Washington had taken of the affections of his countrymen was, on this occasion, fully evinced. In districts where the opposition to his administration was most powerful, where all his measures were most loudly condemned, where those who approved his system possessed least influence, the men who appeared to control public opinion on every other subject, found themselves unable to move it on this. Even the most popular among the leaders of the

opposition were reduced to the necessity of surrendering their pretensions to a place in the electoral body, or of pledging themselves to bestow their suffrage on the actual President. The determination of his fellow citizens had been unequivocally manifested, and it was believed to be apparent that the election would again be unanimous, when he announced his resolution to withdraw from the honours and the toils of office.

Having long contemplated this event, and having wished to terminate his political course with an act which might be at the same time suitable to his own character, and permanently useful to his country, he had prepared for the occasion a valedictory address, in which, with the solicitude of a person, who, in bidding a final adieu to his friends, leaves his affections and his anxieties for their welfare behind him, he made a last effort to impress upon his countrymen those great political truths which had been the guides of his own administration, and could alone, in his opinion, form a sure and solid basis for the happiness, the independence, and the liberty of the United States.

This interesting paper was published in September, at a time when hopes were entertained that the discontents of France might be appeased by proper representations. It contains precepts to which the American statesman can not too frequently recur, and though long, is thought too valuable to be omitted or abridged.

General Washington's valedictory address to the people of the United States in which he declines being considered as a candidate for the presidency.

TO THE PEOPLE OF THE UNITED STATES.

"Friends and fellow citizens,

"The period for a new election of a citizen to administer the executive government of the United States being not far distant, and the time actually arrived when your thoughts must be employed in designating the person who is to be clothed with that important trust, it appears to me proper, especially as it may conduce to a more distinct expression of the public voice, that I should now apprise you of the resolution I have formed, to decline being considered among the number of those, out of whom a choice is to be made.

"I beg you, at the same time, to do me the justice to be assured, that this resolution has not been taken, without a strict regard to all the considerations appertaining to the relation which binds a dutiful citizen to his country; and that, in withdrawing the tender of service which silence in my situation might imply, I am influenced by no diminution of zeal for your future interest; no deficiency of grateful respect for your past kindness; but am supported by a full conviction that the step is compatible with both.

"The acceptance of, and continuance hitherto in the office to which your suffrages have twice called me, have been a uniform sacrifice of inclination to the opinion of duty and to a deference for what appeared to be your desire. I constantly hoped that it would have been much earlier in my power, consistently with motives which I was not at liberty to disregard, to return to that retirement from which I had been reluctantly drawn. The strength of my inclination to do this, previous to the last election, had even led to the preparation of an address to declare it to you; but mature reflection on the then perplexed and critical posture of our affairs with foreign nations, and the unanimous advice of persons entitled to my confidence, impelled me to abandon the idea.

"I rejoice that the state of your concerns, external as well as internal, no longer renders the pursuit of inclination incompatible with the sentiment of duty or propriety; and am persuaded, whatever partiality may be retained for my services, that in the present circumstances of our country, you will not disapprove my determination to retire.

"The impressions with which I first undertook the arduous trust, were explained on the proper occasion. In the discharge of this trust, I will only say that I have, with good intentions, contributed towards the organization and administration of the government, the best exertions of which a very fallible judgment was capable. Not unconscious in the outset, of the inferiority of my qualifications, experience, in my own eyes, perhaps still more in the eyes of others, has strengthened the motives to diffidence of myself; and, every day, the increasing weight of years admonishes me more and more, that the shade of retirement is as necessary to me as it will be welcome. Satisfied that if any circumstances have given peculiar value to my services, they were temporary, I have the consolation to believe that,

while choice and prudence invite me to quit the political scene, patriotism does not forbid it.

"In looking forward to the moment which is to terminate the career of my political life, my feelings do not permit me to suspend the deep acknowledgment of that debt of gratitude which I owe to my beloved country, for the many honours it has conferred upon me; still more for the steadfast confidence with which it has supported me; and for the opportunities I have thence enjoyed of manifesting my inviolable attachment, by services faithful and persevering, though in usefulness unequal to my zeal. If benefits have resulted to our country from these services, let it always be remembered to your praise, and as an instructive example in our annals, that under circumstances in which the passions, agitated in every direction, were liable to mislead amidst appearances sometimes dubious, vicissitudes of fortune often discouraging—in situations in which not unfrequently, want of success has countenanced the spirit of criticism—the constancy of your support was the essential prop of the efforts, and a guarantee of the plans by which they were effected. Profoundly penetrated with this idea, I shall carry it with me to my grave, as a strong incitement to unceasing vows, that heaven may continue to you the choicest tokens of its beneficence—that your union and brotherly affection may be perpetual—that the free constitution, which is the work of your hands, may be sacredly maintained—that its administration in every department may be stamped with wisdom and virtue—that, in fine, the happiness of the people of these states, under the auspices of liberty, may be made complete by so careful a preservation, and so prudent a use of this blessing, as will acquire to them the glory of recommending it to the applause, the affection, and adoption of every nation which is yet a stranger to it.

"Here, perhaps, I ought to stop. But a solicitude for your welfare, which can not end but with my life, and the apprehension of danger, natural to that solicitude, urge me, on an occasion like the present, to offer to your solemn contemplation, and to recommend to your frequent review, some sentiments which are the result of much reflection, of no inconsiderable observation, and which appear to me all important to the permanency of your felicity as a people. These will be offered to you with the more freedom, as you can only see in them the disinterested warnings of a parting friend, who can

possibly have no personal motive to bias his counsel. Nor can I forget, as an encouragement to it, your indulgent reception of my sentiments on a former and not dissimilar occasion.

"Interwoven as is the love of liberty with every ligament of your hearts, no recommendation of mine is necessary to fortify or confirm the attachment.

"The unity of government which constitutes you one people, is also now dear to you. It is justly so; for it is a main pillar in the edifice of your real independence; the support of your tranquillity at home; your peace abroad; of your safety; of your prosperity; of that very liberty which you so highly prize. But, as it is easy to foresee, that from different causes, and from different quarters, much pains will be taken, many artifices employed, to weaken in your minds the conviction of this truth; as this is the point in your political fortress against which the batteries of internal and external enemies will be most constantly and actively (though often covertly and insidiously) directed; it is of infinite moment, that you should properly estimate the immense value of your national union to your collective and individual happiness; that you should cherish a cordial, habitual, and immovable attachment to it; accustoming yourselves to think and speak of it as of the palladium of your political safety and prosperity; watching for its preservation with jealous anxiety; discountenancing whatever may suggest even a suspicion that it can, in any event, be abandoned; and indignantly frowning upon the first dawning of every attempt to alienate any portion of our country from the rest, or to enfeeble the sacred ties which now link together the various parts.

"For this you have every inducement of sympathy and interest. Citizens by birth, or choice, of a common country, that country has a right to concentrate your affections. The name of American, which belongs to you in your national capacity, must always exalt the just pride of patriotism, more than any appellation derived from local discriminations. With slight shades of difference, you have the same religion, manners, habits, and political principles.—You have, in a common cause, fought and triumphed together; the independence and liberty you possess, are the work of joint counsels, and joint efforts, of common dangers, sufferings, and successes.

"But these considerations, however powerfully they address themselves to your sensibility, are greatly outweighed by those which apply more immediately to your interest.—Here, every portion of our country finds the most commanding motives for carefully guarding and preserving the union of the whole.

"The *north* in an unrestrained intercourse with the *south*, protected by the equal laws of a common government, finds in the productions of the latter, great additional resources of maritime and commercial enterprise, and precious materials of manufacturing industry.—The *south*, in the same intercourse, benefiting by the same agency of the *north*, sees its agriculture grow, and its commerce expand. Turning partly into its own channels the seamen of the *north*, it finds its particular navigation invigorated; and while it contributes, in different ways, to nourish and increase the general mass of the national navigation, it looks forward to the protection of a maritime strength, to which itself is unequally adapted. The *east*, in a like intercourse with the *west*, already finds, and in the progressive improvement of interior communications by land and water, will more and more find a valuable vent for the commodities which it brings from abroad, or manufactures at home. The *west* derives from the *east* supplies requisite to its growth and comfort—and what is perhaps of still greater consequence, it must of necessity owe the *secure* enjoyment of indispensable *outlets* for its own productions, to the weight, influence, and the future maritime strength of the Atlantic side of the union, directed by an indissoluble community of interest as *one nation*. Any other tenure by which the *west* can hold this essential advantage, whether derived from its own separate strength, or from an apostate and unnatural connexion with any foreign power, must be intrinsically precarious.

"While then every part of our country thus feels an immediate and particular interest in union, all the parts combined can not fail to find in the united mass of means and efforts, greater strength, greater resource, proportionably greater security from external danger, a less frequent interruption of their peace by foreign nations; and, what is of inestimable value, they must derive from union an exemption from those broils and wars between themselves, which so frequently afflict neighbouring countries not tied together by the same government; which their own rivalships alone would be sufficient to produce, but which, opposite foreign

alliances, attachments, and intrigues, would stimulate and embitter.—Hence likewise, they will avoid the necessity of those overgrown military establishments, which under any form of government are inauspicious to liberty, and which are to be regarded as particularly hostile to republican liberty. In this sense it is, that your union ought to be considered as a main prop of your liberty, and that the love of the one ought to endear to you the preservation of the other.

"These considerations speak a persuasive language to every reflecting and virtuous mind, and exhibit the continuance of the union as a primary object of patriotic desire. Is there a doubt whether a common government can embrace so large a sphere? Let experience solve it. To listen to mere speculation in such a case were criminal. We are authorized to hope that a proper organization of the whole, with the auxiliary agency of governments for the respective subdivisions, will afford a happy issue to the experiment. It is well worth a fair and full experiment. With such powerful and obvious motives to union, affecting all parts of our country, while experience shall not have demonstrated its impracticability, there will always be reason to distrust the patriotism of those, who, in any quarter, may endeavour to weaken its bands.

"In contemplating the causes which may disturb our union, it occurs as matter of serious concern, that any ground should have been furnished for characterizing parties by *geographical* discriminations,—*northern* and *southern*—*Atlantic* and *western*; whence designing men may endeavour to excite a belief that there is a real difference of local interests and views. One of the expedients of party to acquire influence within particular districts, is to misrepresent the opinions and aims of other districts. You can not shield yourselves too much against the jealousies and heart burnings which spring from these misrepresentations: they tend to render alien to each other those who ought to be bound together by fraternal affection. The inhabitants of our western country have lately had a useful lesson on this head: they have seen, in the negotiation by the executive, and in the unanimous ratification by the senate of the treaty with Spain, and in the universal satisfaction at the event throughout the United States, a decisive proof how unfounded were the suspicions propagated among them of a policy in the general government and in the Atlantic states, unfriendly to their interests in regard to the Mississippi. They have been witnesses to the

formation of two treaties, that with Great Britain and that with Spain, which secure to them every thing they could desire, in respect to our foreign relations, towards confirming their prosperity. Will it not be their wisdom to rely for the preservation of these advantages on the union by which they were procured? will they not henceforth be deaf to those advisers, if such there are, who would sever them from their brethren, and connect them with aliens?

"To the efficacy and permanency of your union, a government for the whole is indispensable. No alliances, however strict, between the parts can be an adequate substitute; they must inevitably experience the infractions and interruptions which all alliances, in all times, have experienced. Sensible of this momentous truth, you have improved upon your first essay, by the adoption of a constitution of government better calculated than your former for an intimate union, and for the efficacious management of your common concerns. This government, the offspring of our own choice uninfluenced and unawed, adopted upon full investigation and mature deliberation, completely free in its principles, in the distribution of its powers uniting security with energy, and containing within itself a provision for its own amendment, has a just claim to your confidence and your support. Respect for its authority, compliance with its laws, acquiescence in its measures, are duties enjoined by the fundamental maxims of true liberty. The basis of our political systems is the right of the people to make and to alter their constitutions of government.—But the constitution which at any time exists, until changed by an explicit and authentic act of the whole people, is sacredly obligatory upon all. The very idea of the power and the right of the people to establish government, presupposes the duty of every individual to obey the established government.

"All obstructions to the execution of the laws, all combinations and associations under whatever plausible character, with the real design to direct, control, counteract, or awe the regular deliberations and action of the constituted authorities, are destructive of this fundamental principle, and of fatal tendency.—They serve to organize faction, to give it an artificial and extraordinary force, to put in the place of the delegated will of the nation the will of party, often a small but artful and enterprising minority of the community; and, according to the alternate triumphs of different parties, to make the public administration the mirror of the ill concerted and

incongruous projects of faction, rather than the organ of consistent and wholesome plans digested by common councils, and modified by mutual interests.

"However combinations or associations of the above description may now and then answer popular ends, they are likely, in the course of time and things, to become potent engines, by which cunning, ambitious, and unprincipled men, will be enabled to subvert the power of the people, and to usurp for themselves the reins of government; destroying afterwards the very engines which have lifted them to unjust dominion.

"Towards the preservation of your government and the permanency of your present happy state, it is requisite, not only that you steadily discountenance irregular oppositions to its acknowledged authority, but also that you resist with care the spirit of innovation upon its principles, however specious the pretext. One method of assault may be to effect, in the forms of the constitution, alterations which will impair the energy of the system; and thus to undermine what can not be directly overthrown. In all the changes to which you may be invited, remember that time and habit are at least as necessary to fix the true character of governments, as of other human institutions:—that experience is the surest standard by which to test the real tendency of the existing constitution of a country:—that facility in changes, upon the credit of mere hypothesis and opinion, exposes to perpetual change from the endless variety of hypothesis and opinion: and remember, especially, that for the efficient management of your common interests, in a country so extensive as ours, a government of as much vigour as is consistent with the perfect security of liberty is indispensable. Liberty itself will find in such a government, with powers properly distributed and adjusted, its surest guardian. It is, indeed, little else than a name, where the government is too feeble to withstand the enterprises of faction, to confine each member of the society within the limits prescribed by the laws, and to maintain all in the secure and tranquil enjoyment of the rights of person and property.

"I have already intimated to you the danger of parties in the state, with particular references to the founding them on geographical discriminations. Let us now take a more comprehensive view, and warn you in the most solemn manner against the baneful effects of the spirit of party generally.

"This spirit, unfortunately, is inseparable from our nature, having its root in the strongest passions of the human mind.—It exists under different shapes in all governments, more or less stifled, controlled, or repressed; but in those of the popular form, it is seen in its greatest rankness, and is truly their worst enemy.

"The alternate domination of one faction over another, sharpened by the spirit of revenge natural to party dissension, which, in different ages and countries has perpetrated the most horrid enormities, is itself a frightful despotism.—But this leads at length to a more formal and permanent despotism. The disorders and miseries which result, gradually incline the minds of men to seek security and repose in the absolute power of an individual; and, sooner or later, the chief of some prevailing faction, more able or more fortunate than his competitors, turns this disposition to the purposes of his own elevation on the ruins of public liberty.

"Without looking forward to an extremity of this kind, (which nevertheless ought not to be entirely out of sight,) the common and continual mischiefs of the spirit of party, are sufficient to make it the interest and duty of a wise people to discourage and restrain it.

"It serves always to distract the public councils, and enfeeble the public administration. It agitates the community with ill founded jealousies and false alarms; kindles the animosity of one part against another; foment occasional riot and insurrection. It opens the door to foreign influence and corruption, which finds a facilitated access to the government itself through the channels of party passions. Thus the policy and the will of one country are subjected to the policy and will of another.

"There is an opinion that parties in free countries are useful checks upon the administration of the government, and serve to keep alive the spirit of liberty. This, within certain limits, is probably true; and, in governments of a monarchical cast, patriotism may look with indulgence, if not with favour, upon the spirit of party. But in those of the popular character, in governments purely elective, it is a spirit not to be encouraged. From their natural tendency, it is certain there will always be enough of that spirit for every salutary purpose. And there being constant danger of excess, the effort ought to be, by force of public opinion, to mitigate and assuage it. A

fire not to be quenched, it demands a uniform vigilance to prevent it bursting into a flame, lest, instead of warming, it should consume.

"It is important likewise, that the habits of thinking in a free country should inspire caution in those intrusted with its administration, to confine themselves within their respective constitutional spheres, avoiding in the exercise of the powers of one department, to encroach upon another. The spirit of encroachment tends to consolidate the powers of all the departments in one, and thus to create, whatever the form of government, a real despotism. A just estimate of that love of power and proneness to abuse it which predominate in the human heart, is sufficient to satisfy us of the truth of this position. The necessity of reciprocal checks in the exercise of political power, by dividing and distributing it into different depositories, and constituting each the guardian of the public weal against invasions of the others, has been evinced by experiments ancient and modern: some of them in our country, and under our own eyes.—To preserve them must be as necessary as to institute them. If, in the opinion of the people, the distribution or modification of the constitutional powers be in any particular wrong, let it be corrected by an amendment in the way which the constitution designates.—But let there be no change by usurpation; for though this, in one instance, may be the instrument of good, it is the customary weapon by which free governments are destroyed. The precedent must always greatly overbalance in permanent evil, any partial or transient benefit which the use can at any time yield.

"Of all the dispositions and habits which lead to political prosperity, religion and morality are indispensable supports. In vain would that man claim the tribute of patriotism, who should labour to subvert these great pillars of human happiness, these firmest props of the duties of men and citizens. The mere politician, equally with the pious man, ought to respect and to cherish them.—A volume could not trace all their connexions with private and public felicity. Let it simply be asked, where is the security for property, for reputation, for life, if the sense of religious obligation *desert* the oaths which are the instruments of investigation in courts of justice? And let us with caution indulge the supposition that morality can be maintained without religion. Whatever may be conceded to the influence of refined education on minds of peculiar structure, reason and experience

both forbid us to expect, that national morality can prevail in exclusion of religious principle.

"It is substantially true, that virtue or morality is a necessary spring of popular government. The rule, indeed, extends with more or less force to every species of free government. Who that is a sincere friend to it can look with indifference upon attempts to shake the foundation of the fabric?

"Promote, then, as an object of primary importance, institutions for the general diffusion of knowledge. In proportion as the structure of a government gives force to public opinion, it should be enlightened.

"As a very important source of strength and security, cherish public credit. One method of preserving it is to use it as sparingly as possible, avoiding occasions of expense by cultivating peace, but remembering also, that timely disbursements, to prepare for danger, frequently prevent much greater disbursements to repel it; avoiding likewise the accumulation of debt, not only by shunning occasions of expense, but by vigorous exertions in time of peace, to discharge the debts which unavoidable wars may have occasioned, not ungenerously throwing upon posterity the burden which we ourselves ought to bear. The execution of these maxims belongs to your representatives, but it is necessary that public opinion should co-operate. To facilitate to them the performance of their duty, it is essential that you should practically bear in mind, that towards the payment of debts there must be revenue; that to have revenue, there must be taxes; that no taxes can be devised which are not more or less inconvenient and unpleasant; that the intrinsic embarrassment inseparable from the selection of the proper objects, (which is always a choice of difficulties,) ought to be a decisive motive for a candid construction of the conduct of the government in making it, and for a spirit of acquiescence in the measures for obtaining revenue, which the public exigencies may at any time dictate.

"Observe good faith and justice towards all nations; cultivate peace and harmony with all. Religion and morality enjoin this conduct; and can it be that good policy does not equally enjoin it? it will be worthy of a free, enlightened, and, at no distant period, a great nation, to give to mankind the magnanimous and too novel example of a people always guided by an exalted justice and benevolence. Who can doubt but, in the course of time

and things, the fruits of such a plan would richly repay any temporary advantages which might be lost by a steady adherence to it; can it be that Providence has not connected the permanent felicity of a nation with its virtue? the experiment, at least, is recommended by every sentiment which ennobles human nature. Alas! is it rendered impossible by its vices?

"In the execution of such a plan, nothing is more essential than that permanent, inveterate antipathies against particular nations, and passionate attachments for others, should be excluded; and that, in place of them, just and amicable feelings towards all should be cultivated. The nation which indulges towards another an habitual hatred, or an habitual fondness, is in some degree a slave. It is a slave to its animosity or to its affection, either of which is sufficient to lead it astray from its duty and its interest. Antipathy in one nation against another, disposes each more readily to offer insult and injury, to lay hold of slight causes of umbrage, and to be haughty and intractable when accidental or trifling occasions of dispute occur. Hence, frequent collisions, obstinate, envenomed, and bloody contests. The nation, prompted by ill will and resentment, sometimes impels to war the government, contrary to the best calculations of policy. The government sometimes participates in the national propensity, and adopts through passion what reason would reject; at other times, it makes the animosity of the nation subservient to projects of hostility, instigated by pride, ambition, and other sinister and pernicious motives.—The peace often, sometimes perhaps the liberty of nations has been the victim.

"So likewise, a passionate attachment of one nation for another produces a variety of evils. Sympathy for the favourite nation, facilitating the illusion of an imaginary common interest in cases where no real common interest exists, and infusing into one the enmities of the other, betrays the former into a participation in the quarrels and wars of the latter, without adequate inducements or justification. It leads also to concessions to the favourite nation, of privileges denied to others, which is apt doubly to injure the nation making the concessions; by unnecessarily parting with what ought to have been retained; and by exciting jealousy, ill will, and a disposition to retaliate in the parties from whom equal privileges are withheld: and it gives to ambitious, corrupted or deluded citizens who devote themselves to the favourite nation, facility to betray or sacrifice the interests of their own country, without odium, sometimes even with popularity; gilding with the

appearances of a virtuous sense of obligation, a commendable deference for public opinion, or a laudable zeal for public good, the base or foolish compliances of ambition, corruption, or infatuation.

"As avenues to foreign influence in innumerable ways, such attachments are particularly alarming to the truly enlightened and independent patriot. How many opportunities do they afford to tamper with domestic factions, to practise the arts of seduction, to mislead public opinion, to influence or awe the public councils!—such an attachment of a small or weak, towards a great and powerful nation dooms the former to be the satellite of the latter.

"Against the insidious wiles of foreign influence, (I conjure you to believe me, fellow citizens) the jealousy of a free people ought to be *constantly* awake; since history and experience prove, that foreign influence is one of the most baneful foes of republican government. But that jealousy, to be useful must be impartial; else it becomes the instrument of the very influence to be avoided, instead of a defence against it. Excessive partiality for one foreign nation, and excessive dislike for another, cause those whom they actuate to see danger only on one side, and serve to veil and even second the arts of influence on the other. Real patriots, who may resist the intrigues of the favourite, are liable to become suspected and odious; while its tools and dupes usurp the applause and confidence of the people, to surrender their interests.

"The great rule of conduct for us, in regard to foreign nations, is, in extending our commercial relations, to have with them as little *political* connexion as possible. So far as we have already formed engagements, let them be fulfilled with perfect good faith.—Here, let us stop.

"Europe has a set of primary interests, which to us have none, or a very remote relation. Hence, she must be engaged in frequent controversies, the causes of which are essentially foreign to our concerns.—Hence, therefore, it must be unwise in us to implicate ourselves, by artificial ties, in the ordinary vicissitudes of her politics, or the ordinary combinations and collisions of her friendships or enmities.

"Our detached and distant situation invites and enables us to pursue a different course. If we remain one people, under an efficient government, the period is not far off when we may defy material injury from external

annoyance; when we may take such an attitude as will cause the neutrality we may at any time resolve upon, to be scrupulously respected; when belligerent nations under the impossibility of making acquisitions upon us, will not lightly hazard the giving us provocation; when we may choose peace or war, as our interest, guided by justice, shall counsel.

"Why forego the advantages of so peculiar a situation? why quit our own to stand upon foreign ground? why, by interweaving our destiny with that of any part of Europe, entangle our peace and prosperity in the toils of European ambition, rivalry, interest, humour, or caprice?

"It is our true policy to steer clear of permanent alliances with any portion of the foreign world; so far, I mean, as we are now at liberty to do it; for let me not be understood as capable of patronizing infidelity to existing engagements. I hold the maxim no less applicable to public than to private affairs, that honesty is always the best policy. I repeat it, therefore, let those engagements be observed in their genuine sense. But in my opinion, it is unnecessary, and would be unwise to extend them.

"Taking care always to keep ourselves, by suitable establishments, on a respectable defensive posture, we may safely trust to temporary alliances for extraordinary emergencies.

"Harmony, and a liberal intercourse with all nations, are recommended by policy, humanity, and interest. But even our commercial policy should hold an equal and impartial hand; neither seeking nor granting exclusive favours or preferences; consulting the natural course of things; diffusing and diversifying by gentle means the streams of commerce, but forcing nothing; establishing with powers so disposed, in order to give trade a stable course, to define the rights of our merchants, and to enable the government to support them, conventional rules of intercourse, the best that present circumstances and mutual opinion will permit, but temporary, and liable to be from time to time abandoned or varied as experience and circumstances shall dictate; constantly keeping in view, that it is folly in one nation to look for disinterested favours from another; that it must pay with a portion of its independence for whatever it may accept under that character; that by such acceptance, it may place itself in the condition of having given equivalents for nominal favours, and yet of being reproached with ingratitude for not

giving more. There can be no greater error than to expect, or calculate upon real favours from nation to nation. It is an illusion which experience must cure, which a just pride ought to discard.

"In offering to you, my countrymen, these counsels of an old and affectionate friend, I dare not hope they will make the strong and lasting impression I could wish; that they will control the usual current of the passions; or prevent our nation from running the course which has hitherto marked the destiny of nations; but if I may even flatter myself, that they may be productive of some partial benefit, some occasional good; that they may now and then recur to moderate the fury of party spirit, to warn against the mischiefs of foreign intrigue, to guard against the impostures of pretended patriotism; this hope will be a full recompense for the solicitude for your welfare by which they have been dictated.

"How far, in the discharge of my official duties, I have been guided by the principles which have been delineated, the public records and other evidences of my conduct must witness to you and to the world. To myself, the assurance of my own conscience is, that I have, at least, believed myself to be guided by them.

"In relation to the still subsisting war in Europe, my proclamation of the 22d of April, 1793, is the index to my plan. Sanctioned by your approving voice, and by that of your representatives in both houses of congress; the spirit of that measure has continually governed me; uninfluenced by any attempts to deter or divert me from it.

"After deliberate examination, with the aid of the best lights I could obtain, I was well satisfied that our country, under all the circumstances of the case, had a right to take, and was bound, in duty and interest, to take a neutral position.—Having taken it, I determined, as far as should depend upon me, to maintain it with moderation, perseverance, and firmness.

"The considerations which respect the right to hold this conduct, it is not necessary on this occasion to detail.—I will only observe that, according to my understanding of the matter, that right, so far from being denied by any of the belligerent powers, has been virtually admitted by all.

"The duty of holding a neutral conduct may be inferred, without anything more, from the obligation which justice and humanity impose on every nation, in cases in which it is free to act, to maintain inviolate the relations of peace and amity towards other nations.

"The inducements of interest for observing that conduct will best be referred to your own reflections and experience. With me, a predominant motive has been to endeavour to gain time to our country to settle and mature its yet recent institutions, and to progress, without interruption, to that degree of strength and consistency which is necessary to give it, humanly speaking, the command of its own fortunes.

"Though in reviewing the incidents of my administration, I am unconscious of intentional error; I am nevertheless too sensible of my defects not to think it probable that I may have committed many errors. Whatever they may be, I fervently beseech the Almighty to avert or mitigate the evils to which they may tend. I shall also carry with me the hope that my country will never cease to view them with indulgence; and that, after forty-five years of my life dedicated to its service, with an upright zeal, the faults of incompetent abilities will be consigned to oblivion, as myself must soon be to the mansions of rest.

"Relying on its kindness in this as in other things, and actuated by that fervent love towards it, which is so natural to a man who views in it the native soil of himself and his progenitors for several generations; I anticipate with pleasing expectation that retreat in which I promise myself to realize, without alloy, the sweet enjoyment of partaking, in the midst of my fellow citizens, the benign influence of good laws under a free government—the ever favourite object of my heart, and the happy reward, as I trust, of our mutual cares, labours, and dangers."

The sentiments of veneration with which this address was generally received, were manifested in almost every part of the union. Some of the state legislatures directed it to be inserted at large in their journals; and nearly all of them passed resolutions expressing their respect for the person of the President, their high sense of his exalted services, and the emotions with which they contemplated his retirement from office. Although the

leaders of party might rejoice at this event it produced solemn and anxious reflections in the great body even of those who belonged to the opposition.

The person in whom alone the voice of the people could be united having declined a re-election, the two great parties in America brought forward their respective chiefs; and every possible effort was made by each, to obtain the victory. Mr. John Adams and Mr. Thomas Pinckney, the late minister at London, were supported as President and Vice President by the federalists: the whole force of the opposite party was exerted in favour of Mr. Jefferson.

Motives of vast influence were added, on this occasion, to those which usually impel men in a struggle to retain or acquire power. The continuance or the change not only of those principles on which the internal affairs of the United States had been administered, but of the conduct which had been observed towards foreign nations, was believed to depend on the choice of a chief magistrate. By one party, the system pursued by the existing administration with regard to the belligerent powers, had been uniformly approved; by the other, it had been as uniformly condemned. In the contests therefore which preceded the choice of electors, the justice of the complaints which were made on the part of the French republic were minutely discussed, and the consequences which were to be apprehended from her resentment, or from yielding to her pretensions, were reciprocally urged as considerations entitled to great weight in the ensuing election.

The minister of France endeavors to influence the approaching election.

In such a struggle, it was not to be expected that foreign powers could feel absolutely unconcerned. In November, while the parties were so balanced that neither scale could be perceived to preponderate, Mr. Adet addressed a letter to the secretary of state, in which he recapitulated the numerous complaints which had been urged by himself and his predecessors, against the government of the United States; and reproached that government, in terms of great asperity, with violating those treaties which had secured its independence, with ingratitude to France, and with partiality to England. These wrongs, which commenced with the "*insidious*" proclamation of neutrality, were said to be so aggravated by the treaty concluded with Great Britain, that Mr. Adet announced the orders of the Directory to suspend his ministerial functions with the federal government. "But the cause," he

added, "which had so long restrained the just resentment of the executive Directory from bursting forth, now tempered its effects. The name of America, notwithstanding the wrongs of its government, still excited sweet emotions in the hearts of Frenchmen; and the executive Directory wished not to break with a people whom they loved to salute with the appellation of a friend." This suspension of his functions therefore was not to be regarded "as a rupture between France and the United States, but as a mark of just discontent which was to last until the government of the United States returned to sentiments and to measure more conformable to the interests of the alliance, and to the sworn friendship between the two nations."

This letter was concluded in the following terms:

"Alas! Time has not yet demolished the fortifications with which the English roughened this country—nor those the Americans raised for their defence; their half rounded summits still appear in every quarter, amidst plains, on the tops of mountains. The traveller need not search for the ditch which served to encompass them; it is still open under his feet. Scattered ruins of houses laid waste, which the fire had partly respected, in order to leave monuments of British fury, are still to be found.—Men still exist, who can say, here a ferocious Englishman slaughtered my father; there my wife tore her bleeding daughter from the hands of an unbridled Englishman.—Alas! the soldiers who fell under the sword of the Britons are not yet reduced to dust: the labourer in turning up his field, still draws from the bosom of the earth their whitened bones; while the ploughman, with tears of tenderness and gratitude, still recollects that his fields, now covered with rich harvests, have been moistened with French blood. While every thing around the inhabitants of this country animates them to speak of the tyranny of Great Britain, and of the generosity of Frenchmen; when England has declared a war of death to that nation, to avenge herself for its having cemented with its blood the independence of the United States:—It was at this moment their government made a treaty of amity with their ancient tyrant, the implacable enemy of their ancient ally. Oh Americans covered with noble scars! Oh you who have so often flown to death and to victory with French soldiers! You who know those generous sentiments which distinguish the true warrior! whose hearts have always vibrated with those of your companions in arms! consult them to-day to know what they experience; recollect at the same time, that if magnanimous souls with

liveliness resent an affront, they also know how to forget one. Let your government return to itself, and you will still find in Frenchmen faithful friends and generous allies."



Martha Washington's Bedroom at Mount Vernon

Returning to their beloved Mount Vernon with General Washington after his retirement, in 1796, as First President of the United States, Martha Washington seldom spent a night away from the historic mansion overlooking the Potomac. There she continued to offer a gracious hospitality to the many visitors attracted by her distinguished husband. She never recovered from his death in 1799, and dwelt in deep mourning until she followed him, May 22, 1802. Her remains rest with those of Washington in the vault at Mount Vernon.

As if to remove all doubts respecting the purpose for which this extraordinary letter was written, a copy was, on the day of its date,

transmitted to a printer for publication.

Whatever motives might have impelled Mr. Adet to make this open and direct appeal to the American people, in the critical moment of their election of a chief magistrate, it does not appear, in any material degree, to have influenced that election. Many reflecting men, who had condemned the course of the administration, could not approve this interference in the internal affairs of the United States; and the opposite party, generally, resented it as an attempt to control the operations of the American people in the exercise of one of the highest acts of sovereignty, and to poison the fountain of their liberty and independence, by mingling foreign intrigue with their elections. Viewing it as a fulfilment of their most gloomy prognostics respecting the designs of France to establish an influence in the councils of America, they believed the best interests of their country to require that it should be defeated; and their exertions against the candidate Mr. Adet was understood to favour, were the more determined and the more vigorous.

The president's speech to congress.

On the 7th of December, while this dubious and ardently contested election was depending, the President, for the last time, met the national legislature in the senate chamber. His address on the occasion was comprehensive, temperate, and dignified. In presenting a full and clear view of the situation of the United States, and in recommending those great national measures, in the utility of which he felt a confidence, no personal considerations could induce the omission of those, to which open and extensive hostility had been avowed.

After congratulating congress on the internal situation of the United States, and on the progress of that humane system which had been adopted for the preservation of peace with their Indian neighbours; after stating the measures which had been taken in execution of the treaties with Great Britain, Spain, and Algiers, and the negotiations which were pending with Tunis and Tripoli; he proceeded to say:

"To an active external commerce, the protection of a naval force is indispensable—this is manifest with regard to wars in which a state is itself a party—but besides this, it is in our own experience, that the most sincere

neutrality is not a sufficient guard against the depredations of nations at war. To secure respect to a neutral flag, requires a naval force, organized and ready to vindicate it from insult or aggression—this may even prevent the necessity of going to war, by discouraging belligerent powers from committing such violations of the rights of the neutral party, as may first or last, leave no other option. From the best information I have been able to obtain, it would seem as if our trade to the Mediterranean, without a protecting force, will always be insecure; and our citizens exposed to the calamities from which numbers of them have but just been relieved.

"These considerations invite the United States to look to the means, and to set about the gradual creation of a navy. The increasing progress of their navigation promises them, at no distant period, the requisite supply of seamen; and their means, in other respects, favour the undertaking. It is an encouragement likewise, that their particular situation will give weight, and influence, to a moderate naval force in their hands. Will it not then be adviseable, to begin without delay, to provide and lay up the materials for the building and equipping of ships of war; and to proceed in the work by degrees, in proportion as our resources shall render it practicable, without inconvenience; so that a future war of Europe may not find our commerce in the same unprotected state, in which it was found by the present?"

The speech next proceeded earnestly to recommend the establishment of national works for manufacturing such articles as were necessary for the defence of the country; and also of an institution which should grow up under the patronage of the public, and be devoted to the improvement of agriculture. The advantages of a military academy,^[47] and of a national university, were also urged; and the necessity of augmenting the compensations to the officers of the United States, in various instances, was explicitly stated.

Adverting to the dissatisfaction which had been expressed by one of the great powers of Europe, the President said, "while in our external relations some serious inconveniences and embarrassments have been overcome, and others lessened, it is with much pain and deep regret I mention, that circumstances of a very unwelcome nature have lately occurred. Our trade has suffered, and is suffering extensive injuries in the West Indies from the cruisers and agents of the French republic; and communications have been

received from its minister here, which indicate the danger of a further disturbance of our commerce by its authority; and which are, in other respects, far from agreeable.

"It has been my constant, sincere and earnest wish, in conformity with that of our nation, to maintain cordial harmony, and a perfectly friendly understanding with that republic. This wish remains unabated; and I shall persevere in the endeavour to fulfil it to the utmost extent of what shall be consistent with a just and indispensable regard to the rights and honour of our country; nor will I easily cease to cherish the expectation, that a spirit of justice, candour and friendship, on the part of the republic, will eventually ensure success.

"In pursuing this course, however, I can not forget what is due to the character of our government and nation; or to a full and entire confidence in the good sense, patriotism, self-respect, and fortitude of my countrymen.

"I reserve for a special message, a more particular communication on this interesting subject."

The flourishing state of the revenue, the expectation that the system for the gradual extinction of the national debt would be completed at this session, the anxiety which he felt respecting the militia, were successively mentioned, and the speech was concluded in the following terms:

"The situation in which I now stand, for the last time, in the midst of the representatives of the people of the United States, naturally recalls the period when the administration of the present form of government commenced; and I can not omit the occasion to congratulate you, and my country, on the success of the experiment; nor to repeat my fervent supplications to the Supreme Ruler of the universe, and sovereign arbiter of nations, that his providential care may still be extended to the United States;—that the virtue and happiness of the people may be preserved; and that the government, which they have instituted for the protection of their liberties, may be perpetual."

The answer of the senate embraced the various topics of the speech, and approved every sentiment it contained.

To a review of the prosperous situation of the interior of the United States, the senate subjoined—

"Whilst contemplating the causes that produce this auspicious result, we must acknowledge the excellence of the constitutional system, and the wisdom of the legislative provisions;—but we should be deficient in gratitude and justice, did we not attribute a great portion of these advantages, to the virtue, firmness, and talents of your administration; which have been conspicuously displayed, in the most trying times, and on the most critical occasions—it is therefore, with the sincerest regrets, that we now receive an official notification of your intentions to retire from the public employments of your country.

"When we review the various scenes of your public life, so long and so successfully devoted to the most arduous services, civil and military; as well during the struggles of the American revolution, as the convulsive periods of a recent date, we can not look forward to your retirement without our warmest affections, and most anxious regards, accompanying you; and without mingling with our fellow citizens at large, in the sincerest wishes for your personal happiness, that sensibility and attachment can express.

"The most effectual consolation that can offer for the loss we are about to sustain, arises from the animating reflection, that the influence of your example will extend to your successors, and the United States thus continue to enjoy an able, upright, and energetic administration."

In the house of representatives, a committee of five had been appointed to prepare a respectful answer to the speech, three of whom were friends to the administration. Knowing well that the several propositions it contained could not be noticed in detail, without occasioning a debate in which sentiments opposed to those of the address would be expressed, probably by a majority of the house; and hoping that the disposition would be general to avow in strong terms their attachment to the person and character of the President, the committee united in reporting an answer, which, in general terms, promised due attention to the various subjects recommended to their consideration, but was full and explicit in the expression of attachment to himself, and of approbation of his administration.

But the unanimity which prevailed in the committee did not extend to the house.

After amplifying and strengthening the expressions of the report which stated the regrets of the house that any interruption should have taken place in the harmony which had subsisted between the United States and France, and modifying those which declared their hopes in the restoration of that affection which had formerly subsisted between the two republics, so as to avoid any implication that the rupture of that affection was exclusively ascribable to France, a motion was made by Mr. Giles to expunge from the answer the following paragraphs.

"When we advert to the internal situation of the United States, we deem it equally natural and becoming to compare the present period with that immediately antecedent to the operation of the government, and to contrast it with the calamities in which the state of war still involves several of the European nations, as the reflections deduced from both tend to justify, as well as to excite a warmer admiration of our free constitution, and to exalt our minds to a more fervent and grateful sense of piety towards Almighty God for the beneficence of his Providence, by which its administration has been hitherto so remarkably distinguished.

"And while we entertain a grateful conviction that your wise, firm, and patriotic administration has been signally conducive to the success of the present form of government, we can not forbear to express the deep sensations of regret with which we contemplate your intended retirement from office.

"As no other suitable occasion may occur, we can not suffer the present to pass without attempting to disclose some of the emotions which it can not fail to awaken.

"The gratitude and admiration of your countrymen are still drawn to the recollection of those resplendent virtues and talents which were so eminently instrumental to the achievement of the revolution, and of which that glorious event will ever be the memorial. Your obedience to the voice of duty and your country, when you quitted reluctantly, a second time, the retreat you had chosen, and first accepted the presidency, afforded a new proof of the devotedness of your zeal in its service, and an earnest of the

patriotism and success which have characterized your administration. As the grateful confidence of the citizens in the virtues of their chief magistrate has essentially contributed to that success, we persuade ourselves that the millions whom we represent, participate with us in the anxious solicitude of the present occasion.

"Yet we can not be unmindful that your moderation and magnanimity, twice displayed by retiring from your exalted stations, afford examples no less rare and instructive to mankind than valuable to a republic.

"Although we are sensible that this event, of itself, completes the lustre of a character already conspicuously unrivalled by the coincidence of virtue, talents, success, and public estimation; yet we conceive we owe it to you, sir, and still more emphatically to ourselves and to our nation, (of the language of whose hearts we presume to think ourselves, at this moment, the faithful interpreters) to express the sentiments with which it is contemplated.

"The spectacle of a free and enlightened nation offering by its representatives the tribute of unfeigned approbation to its first citizen, however novel and interesting it may be, derives all its lustre (a lustre which accident or enthusiasm could not bestow, and which adulation would tarnish) from the transcendent merit, of which it is the voluntary testimony.

"May you long enjoy that liberty which is so dear to you, and to which your name will ever be so dear; may your own virtue and a nation's prayers obtain the happiest sunshine for the decline of your days, and the choicest of future blessings. For our country's sake; for the sake of republican liberty, it is our earnest wish that your example may be the guide of your successors; and thus, after being the ornament and safeguard of the present age, become the patrimony of our descendants."

In support of this motion, after urging the indelicacy of exulting over the misfortunes of others by contrasting our happiness with their misery, Mr. Giles said, that with respect to the wisdom^[48] and firmness of the President, he differed in opinion from the answer; and though he might be singular, yet it being his opinion, he should not be afraid to avow it. He had not that grateful conviction there mentioned, and if he were to come there and express it, he should prove an inconsistent character. He should not go into

a lengthy discussion on this point, but if they turned their eyes to our foreign relations, there would be found no reason to exult in the wisdom and firmness of the administration. He believed, on the contrary, that it was from a want of wisdom and firmness that we were brought into our present critical situation. If gentlemen had been satisfied with expressing their esteem of the patriotism and virtue of the President, they might have got a unanimous vote; but they could not suppose that gentlemen would so far forget self-respect as to join in the proposed adulation.

Mr. Giles said he was one of those citizens who did not regret the President's retiring from office. He hoped he would retire to his country seat and enjoy all the happiness he could wish; and he believed he would enjoy more there than in his present situation. He believed the government of the United States would go on without him. The people were competent to their own government. What calamities would attend the United States if one man alone was essential to their government! He believed there were a thousand men in the United States who were capable of filling the presidential chair as well as it had been filled heretofore. And although a clamour had been raised in all parts of the United States, more or less, from apprehensions on the departure of the President from office, yet, not feeling these apprehensions himself, he was perfectly easy on the occasion. He wished the President as much happiness as any man; and hoping he would retire, he could not express any regrets at the event. And it would be extraordinary, if gentlemen whose names in the yeas and nays are found in opposition to certain prominent measures of the administration, should now come forward and approve those measures. This could not be expected. He, for his part, retained the same opinions he had always done with respect to those measures, nor should any influence under heaven prevent him from expressing that opinion—an opinion in which he was confident, ere long, all America would concur.[\[49\]](#)

This motion was opposed with great earnestness by the party which had supported the administration. The advantages which had resulted from the constitution were said to be too obvious to be controverted; and it was maintained that a comparison of the present situation of the United States with its condition anterior to the adoption of that instrument, or with the condition of foreign powers, was natural and proper. This comparison was

made not for the purposes of exultation, but of exciting just sentiments respecting their own conduct.

In reply to the observations respecting the President, it was said, that the whole course of his administration had demonstrated the correctness with which the terms "wisdom and firmness" were applied to it. Particular circumstances were stated in which these qualities had been pre-eminently displayed; but the general impression which facts had made on the public mind was considered as dispensing with the necessity of stating the particular facts themselves.

It might be true, they said, that there were many others who could fill with propriety and advantage the presidential chair, but no man could fill it who possessed, in an equal degree, the confidence of the people. The possession of this confidence enabled the chief magistrate to perform the duties of his office in a manner greatly conducive to the interests of the nation, and the loss of so valuable a public servant was certainly just cause of regret. With this sentiment, the feelings of the community fully accorded. In every part of the United States, the declarations of their constituents attested the regrets with which this event was contemplated by them. Those gentlemen who did not participate in these feelings would have an opportunity to record their names with their opinions. But those who did participate in them ought not to be restrained from expressing them.

The motion to strike out was lost; after which the words "the spectacle of a whole nation, the freest and most enlightened in the world," were amended, so as to read, "the spectacle of a free and enlightened nation," and the answer was carried by a great majority.

1797

Early in the session, the President communicated to congress in a special message, the complaints alleged by the representative of the French republic against the government of the United States. These complaints embracing most of the transactions of the legislative and executive departments, in relation to the belligerent powers, a particular and careful review of almost every act of the administration, which could affect those powers, became indispensable. The principal object for the mission of

General Pinckney to Paris, having been to make full and fair explanations of the principles and conduct of the American government, this review was addressed to that minister. It presented a minute and comprehensive detail of all the points of controversy which had arisen between the two nations; and defended the measures which had been adopted in America, with a clearness, and a strength of argument, believed to be irresistible. To place the subject in a point of view, admitting of no possible misunderstanding, the secretary of state had annexed to his own full and demonstrative reasoning, documents, establishing the real fact in each particular case, and the correspondence relating to it.

This letter, with its accompanying documents, was laid before congress.

Those who read these valuable papers will not be surprised, that the President should have relied upon their efficacy in removing from the government of France, all impressions unfavourable to the fairness of intention which had influenced the conduct of the United States; and in effacing from the bosoms of the great body of the American people, all those unjust and injurious suspicions which had been entertained against their own administration. Should their immediate operation on the executive of France disappoint his hopes, he persuaded himself that he could not mistake their influence in America; and he felt the most entire conviction that the accusations against the United States would cease, with the evidence that those accusations were countenanced and supported by a great portion of the American people.

These documents were communicated to the public; but, unfortunately, their effect at home was not such as had been expected, and they were consequently inoperative abroad. The fury of political controversy seemed to sustain no diminution; and the American character continued to be degraded by reciprocal criminations, which the two great parties made upon each other, of being under a British, and a French influence.

The measures particularly recommended by the President in his speech, at the opening of the session, were not adopted; and neither the debates in Congress, nor the party publications with which the nation continued to be agitated, furnished reasonable ground for the hope, that the political intemperance which had prevailed from the establishment of the republican

form of government in France, was about to be succeeded by a more conciliatory spirit.

The President contemplated with a degree of pleasure[50] seldom felt at the resignation of power, his approaching retirement to the delightful scenes of domestic and rural life.

It was impossible to be absolutely insensible to the bitter invectives, and malignant calumnies of which he had long been the object. Yet in one instance only, did he depart from the rule he had prescribed for his conduct regarding them. Apprehending permanent injury from the republication of certain spurious letters which have been already noticed, he, on the day which terminated his official character, addressed to the secretary of state the following letter.

He denies the authenticity of certain spurious letters published as his in 1776.

"Dear Sir,

"At the conclusion of my public employments, I have thought it expedient to notice the publication of certain forged letters which first appeared in the year 1777, and were obtruded upon the public as mine. They are said by the editor to have been found in a small portmanteau that I had left in the care of my mulatto servant named Billy, who, it is pretended, was taken prisoner at Fort Lee, in 1776. The period when these letters were first printed will be recollected, and what were the impressions they were intended to produce on the public mind. It was then supposed to be of some consequence to strike at the integrity of the motives of the American Commander-in-chief, and to paint his inclinations as at variance with his professions and his duty—another crisis in the affairs of America having occurred, the same weapon has been resorted to, to wound my character and deceive the people.

"The letters in question have the dates, addresses, and signatures here following:

New York, June 12th, 1776.

To Mr. Lund Washington, at Mount Vernon, Fairfax county,
Virginia.

G.W.

June 18th, 1776.

To John Parke Custis, Esqr., at the Hon Benedict Calvert's
Esqr., Mount Airy, Maryland.

G.W.

New York, July 8th, 1776.

To Mr. Lund Washington, Mount Vernon, Fairfax county,
Virginia.

G.W.

New York, July 16th, 1776.

To Mr. Lund Washington.

G.W.

New York, July 15th, 1776.

To Mr. Lund Washington.

G.W.

New York, July 22d, 1776.

To Mr. Lund Washington.

G.W.

June 24th, 1776.

To Mrs. Washington.

G.W.

"At the time when these letters first appeared, it was notorious to the army immediately under my command, and particularly to the gentlemen attached to my person, that my mulatto man Billy had never been one moment in the power of the enemy. It is also a fact that no part of my baggage, or any of my attendants, were captured during the whole course of the war. These well known facts made it unnecessary, during the war, to call the public attention to the forgery by any express declaration of mine; and a firm reliance on my fellow citizens, and the abundant proofs they gave of their confidence in me, rendered it alike unnecessary to take any formal notice of the revival of the imposition, during my civil administration. But as I can not know how soon a more serious event may succeed to that which will this day take place, I have thought it a duty that I owed to myself, to my country, and to truth, now to detail the circumstances above recited, and to add my solemn declaration that the letters herein described are a base forgery, and that I never saw or heard of them until they appeared in print. The present letter I commit to your care, and desire it may be deposited in the office of the department of state, as a testimony of the truth to the present generation and to posterity. Accept, &c. &c."

John Adams elected president, and Thomas Jefferson vice president.

In February, the votes for the first and second magistrates of the union were opened and counted in presence of both houses; and the highest number appearing in favour of Mr. Adams, and the second in favour of Mr. Jefferson, the first was declared to be the President, and the second the Vice President, of the United States, for four years to commence on the fourth day of the ensuing March.

On that day, the members of the senate, conducted by the Vice President, together with the officers of the general and state governments, and an immense concourse of citizens, convened in the hall of the house of representatives, in which the oaths were administered to the President.

The sensibility which was manifested when General Washington entered, did not surpass the cheerfulness which overspread his own countenance, nor the heartfelt pleasure with which he saw another invested with the powers that had so long been exercised by himself.[\[51\]](#)

General Washington retires to Mount Vernon.

After the solemnities of the occasion had been concluded, and he had paid to his successor those respectful compliments which he believed to be equally due to the man and to the office, he hastened[\[52\]](#) to that real felicity which awaited him at Mount Vernon, the enjoyment of which he had long impatiently anticipated.

The same marks of respect and affection for his person, which had on all great occasions been manifested by his fellow citizens, still attended him. His endeavours to render his journey private were unavailing; and the gentlemen of the country through which he passed, were still ambitious of testifying their sentiments for the man who had, from the birth of the republic, been deemed the first of American citizens. Long after his retirement, he continued to receive addresses from legislative bodies, and various classes of citizens, expressive of the high sense entertained of his services.

Notwithstanding the extraordinary popularity of the first President of the United States, scarcely has any important act of his administration escaped the most bitter invective.

Political situation of the United States at this period.

On the real wisdom of the system which he pursued, every reader will decide for himself. Time will, in some measure, dissipate the prejudices and passions of the moment, and enable us to view objects through a medium which represents them truly.

Without taking a full review of measures which were reprobated by one party and applauded by the other, the reader may be requested to glance his eye at the situation of the United States in 1797, and to contrast it with their condition in 1788.

At home, a sound credit had been created; an immense floating debt had been funded in a manner perfectly satisfactory to the creditors: an ample revenue had been provided; those difficulties which a system of internal taxation, on its first introduction, is doomed to encounter, were completely removed; and the authority of the government was firmly established. Funds for the gradual payment of the debt had been provided; a considerable part of it had been actually discharged; and that system which is now operating its entire extinction, had been matured and adopted. The agricultural and commercial wealth of the nation had increased beyond all former example. The numerous tribes of warlike Indians, inhabiting those immense tracts which lie between the then cultivated country and the Mississippi, had been taught, by arms and by justice, to respect the United States, and to continue in peace. This desirable object having been accomplished, that humane system was established for civilizing, and furnishing them with the conveniences of life which improves their condition, while it secures their attachment.

Abroad, the differences with Spain had been accommodated; and the free navigation of the Mississippi had been acquired, with the use of New Orleans as a place of deposit for three years, and afterwards, until some other equivalent place should be designated. Those causes of mutual exasperation which had threatened to involve the United States in a war with the greatest maritime and commercial power in the world, had been removed; and the military posts which had been occupied within their territory, from their existence as a nation, had been evacuated. Treaties had been formed with Algiers and with Tripoli, and no captures appear to have been made by Tunis; so that the Mediterranean was opened to American vessels.

This bright prospect was indeed, in part, shaded by the discontents of France. Those who have attended to the particular points of difference between the two nations, will assign the causes to which these discontents are to be ascribed, and will judge whether it was in the power of the President to have avoided them, without surrendering the real independence of the nation, and the most invaluable of all rights —the right of self-government.

Such was the situation of the United States at the close of Washington's administration. Their circumstances at its commencement will be recollected; and the contrast is too striking not to be observed.

That this beneficial change in the affairs of America is to be ascribed exclusively to the wisdom which guided the national councils will not be pretended. That many of the causes which produced it originated with the government, and that their successful operation was facilitated, if not secured, by the system which was adopted, will scarcely be denied. To estimate that system correctly, their real influence must be allowed to those strong prejudices, and turbulent passions, with which it was assailed.

Accustomed in the early part of his life to agricultural pursuits, and possessing a real taste for them, General Washington was particularly well qualified to enjoy, in retirement, that tranquil felicity which he had anticipated. Resuming former habits, and returning to ancient and well known employments, he was familiar with his new situation, and therefore exempt from the danger of that disappointment which is the common lot of those who, in old age, retire from the toils of business, or the cares of office, to the untried pleasures of the country. A large estate, which exhibited many proofs of having been long deprived of the attentions of its proprietor, in the management and improvement of which he engaged with ardour, an extensive correspondence, and the society of men and books, gave employment to every hour which was equally innocent and interesting, and furnished ground for the hope that the evening of a life which had been devoted to the public service, would be as serene, as its mid-day had been brilliant.

Though devoted to these occupations, an absolute indifference to public affairs would have been incompatible with that love of country which had

influenced all his conduct. Feeling strong impressions in favour of that system, with regard to foreign powers, which had been adopted by himself, and which was faithfully pursued by his successor, he could not be inattentive to the immense, and continued exertions, made by a powerful party to overturn it. Yet for a time, he sought to abstract himself from these political contests, and to diminish the interest which his feelings impelled him to take in them. His letters abound in paragraphs not unlike the following. "I have confidence however in that Providence which has shielded the United States from the evils that have hitherto threatened them; and, as I believe the major part of the people of this country to be well affected to its constitution and government, I rest satisfied that, should a crisis ever arise to call forth the sense of the community, it will be strong in support of the honour and dignity of the nation. Therefore, however much I regret the opposition which has for its object the embarrassment of the administration, I shall view things in the 'calm light of mild philosophy,' and endeavour to finish my course in retirement and ease."

But the designs of France were soon manifested in a form which, to the veteran soldier and statesman of Mount Vernon, appeared to be too dangerous as well as unequivocal, to admit the preservation of this equanimity.

The French government refuses to receive General Pinckney as minister.

In the executive of that republic, General Pinckney encountered dispositions of a very different character from that amicable and conciliatory temper which had dictated his mission. After inspecting his letter of credence, the Directory announced to him their haughty determination "not to receive another minister plenipotentiary from the United States, until after the redress of grievances demanded of the American government, which the French republic had a right to expect from it." This message was succeeded, first by indecorous verbal communications, calculated to force the American minister out of France, and afterwards, by a written mandate to quit the territories of the republic.

This act of hostility was accompanied with another which would explain the motives for this conduct, if previous measures had not rendered all further explanation unnecessary.

On giving to the recalled minister his audience of leave, the president of the directory addressed a speech to him, in which terms of outrage to the government, were mingled with expressions of affection for the people of the United States; and the expectation of ruling the former, by their influence over the latter, was too clearly manifested not to be understood. To complete this system of hostility, American vessels were captured wherever found; and, under the pretext of their wanting a document, with which the treaty of commerce had been uniformly understood to dispense, they were condemned as prize.

Congress is convened.

President's speech.

This serious state of things demanded a solemn consideration. On receiving from General Pinckney the despatches which communicated it, the President issued his proclamation requiring congress to meet on the 15th day of June. The firm and dignified speech delivered by the chief magistrate at the commencement of the session, exhibited that sensibility which a high minded and real American might be expected to feel, while representing to the national legislature the great and unprovoked outrages of a foreign government. Adverting to the audience of leave given by the executive Directory to Colonel Monroe, he said, "the speech of the President discloses sentiments more alarming than the refusal of a minister, because more dangerous to our independence and union; and, at the same time, studiously marked with indignities towards the government of the United States. It evinces a disposition to separate the people from their government; to persuade them that they have different affections, principles, and interests from those of their fellow citizens whom they themselves have chosen to manage their common concerns; and thus to produce divisions fatal to our peace. Such attempts ought to be repelled with a decision which shall convince France, and the world, that we are not a degraded people, humiliated under a colonial spirit of fear, and sense of inferiority, fitted to be the miserable instruments of foreign influence, and regardless of national honour, character, and interest."

"Retaining still the desire which had uniformly been manifested by the American government to preserve peace and friendship with all nations, and believing that neither the honour nor the interest of the United States absolutely forbade the repetition of advances for securing these desirable

objects with France, he should," he said, "institute a fresh attempt at negotiation, and should not fail to promote and accelerate an accommodation on terms compatible with the rights, duties, interests, and honour of the nation." But while he should be making these endeavours to adjust all differences with the French republic by amicable negotiation, he earnestly recommended it to congress to provide effectual measures of defence.

Three envoys extraordinary deputed to negotiate with France.

To carry into effect the pacific dispositions avowed in the speech, three envoys extraordinary were appointed, at the head of whom General Pinckney was placed. Their instructions conformed to the public language of the President. Peace and reconciliation were to be pursued by all means, compatible with the honour and the faith of the United States; but no national engagements were to be impaired; no innovation to be permitted upon those internal regulations for the preservation of peace which had been deliberately and uprightly established; nor were the rights of the government to be surrendered.

The debates in the house of representatives, on the answer to the speech, were long and earnest. To expressions approving the conduct of the executive with regard to foreign nations, the opposition was ardent, but unsuccessful. On the third of June, an answer was agreed to which contained sentiments worthy of an American legislature, and for which several of the leaders of the opposition voted.

The speech of the President was well adapted to the occasion, and to the times. It was calculated to rouse those indignant feelings which a high spirited people, insulted and injured by a foreign power, can never fail to display, if their judgment be not blinded, or their sensibility to external wrongs blunted, by invincible prejudices. He relied principally on the manifestation of these feelings for the success of the negotiation; and on their real existence, for the defence of the national rights, should negotiation fail. His endeavours were not absolutely unsuccessful. Some impression was made on the mass of the people; but it was too slight to be productive of the advantages expected from it. The conduct of France was still openly defended; and the opinion, that the measures which had been adopted by the executive of the United States furnished that republic with just cause of war,

was still publicly maintained, and indefatigably circulated. According to these opinions, America could entitle herself to peace, only by retracing the steps she had taken, and yielding to the demands of her justly offended but generous and magnanimous ally.

Still jealous for the honour, as well as confident of the importance, of his country, and retaining that full conviction respecting the propriety of its measures which had induced their adoption, General Washington could not repress the solicitude with which he contemplated passing events. His confidential letters disclose the strong feelings of his own bosom, but betray no apprehensions that the French government would press its present system to extremities. He firmly believed that the hostile attitude it had assumed was to be, exclusively, ascribed to the conduct of those Americans who had been the uniform advocates of all the pretensions of France, and who were said to be supported by a real majority of the people; and confidently expected that, under the old pretext of magnanimous forbearance, the executive directory would, slowly, and gradually, recede from its present system, so soon as the error in which it originated should become manifest. The opinion he had always entertained of the good sense and patriotism of his fellow citizens, silenced every doubt respecting the manner in which they would act, when their real situation should be perceived by themselves.

1798

For a considerable length of time, no certain intelligence reached the United States respecting the negotiation at Paris. At length, in the winter of 1798, letters were received from the American envoys, indicating an unfavourable state of things; and, in the spring, despatches arrived which announced the total failure of the mission.

History will scarcely furnish the example of a nation, not absolutely degraded, which has received from a foreign power such open contumely, and undisguised insult, as were, on this occasion, suffered by the United States in the persons of their ministers.

Their treatment.

It was insinuated that their being taken from the party^[53] which had supported the measures of their own government furnished just cause of umbrage; and, under slight pretexts, the executive directory delayed to accredit them as the representatives of an independent nation. In this situation, they were assailed by persons, not indeed invested with formal authority, but exhibiting sufficient evidence of the source from which their powers were derived, who, in direct and explicit terms, demanded money from the United States as the condition which must precede, not only the reconciliation of America to France, but any negotiation on the differences between the two countries.

That an advance of money by a neutral to a belligerent power would be an obvious departure from neutrality, though an insuperable objection to this demand, did not constitute the most operative reason for repelling it. Such were the circumstances under which it was made, that it could not be acceded to without a surrender of the real independence of the United States; nor without being, in fact, the commencement of a system, the end of which it was impossible to foresee.



Mount Vernon

This colonial mansion overlooking the Potomac River fifteen miles south of Washington, D.C., and famous as the home and burial-place of the "Father of His Country," was built in 1743 by Washington's elder brother, Lawrence, who called it Mount Vernon, after Admiral Vernon, under whom he had served in the British Navy. Mount Vernon, which was much enlarged by President Washington, was by him bequeathed to Bushrod Washington, upon whose death it came into the hands of John A. Washington, his nephew, who sold it in 1858 to the Ladies Mount Vernon Association, which holds it in trust as a national shrine.

A decided negative was therefore given to the preliminary required by these unofficial agents; but they returned to the charge with wonderful perseverance, and used unwearied arts to work upon the fears of the American ministers for their country, and for themselves. The immense power of France was painted in glowing colours, the humiliation of the house of Austria was stated, and the conquest of Britain was confidently anticipated. In the friendship of France alone, it was said, could America look for safety; and the fate of Venice was held up to warn her of the danger which awaited those who incurred the displeasure of the great republic. The ministers were assured that, if they believed their conduct would be approved in the United States, they were mistaken. The means which the Directory possessed, in that country, to excite odium against them, were great, and would unquestionably be employed.

This degrading intercourse was at length interrupted by the positive refusal of the envoys to hold any further communication with the persons employed in it.

Meanwhile, they urged the object of their mission with persevering but unavailing solicitude. The Directory still refused to acknowledge them in their public character; and the secretary of exterior relations, at unofficial visits which they made him, renewed the demand which his agents had unsuccessfully pressed.

Finding the objections to their reception in their official character insurmountable, the American ministers made a last effort to execute the duties assigned to them. In a letter addressed to the secretary of exterior relations, they entered at large into the explanations committed to them by their government, and illustrated, by a variety of facts, the uniform friendliness of its conduct to France.^[54] Notwithstanding the failure of this effort, and their perfect conviction that all further attempts would be equally unavailing, they continued, with a passiveness which must search for its apology in their solicitude to demonstrate to the American people the real views of the French republic, to employ the only means in their power to avert the rupture which was threatened, and which appeared to be inevitable.

During these transactions, occasion was repeatedly taken to insult the American government; open war was continued to be waged by the cruisers of France on American commerce; and the flag of the United States was a sufficient justification for the capture and condemnation of any vessel over which it waved.

At length, when the demonstration became complete, that the resolution of the American envoys was not less fixed, than their conduct had been guarded and temperate, various attempts were made to induce two of them, voluntarily, to relinquish their station; on the failure of which, they were ordered to quit the territories of the republic. As if to aggravate this national insult, the third, who had been selected from that party which was said to be friendly to France, was permitted to remain, and was invited to resume the discussions which had been interrupted.

The despatches communicating these events were laid before congress, and were afterwards published. The indignation which they excited was warm and extensive. The attempt to degrade the United States into a tributary nation was too obvious to be concealed; and the resentment produced, as well by this attempt as by the threats which accompanied it, was not confined to the federalists. For the moment, a spirit was roused on which an American may reflect with pride, and which he may consider as a sure protection from external danger. In every part of the continent, the favourite sentiment was "millions for defence, not a cent for tribute."

The disposition still existed to justify France, by criminating the American government, by contending that her intentions were not really hostile, that her conduct was misrepresented by men under British influence, who wished for war, or had been deceived by unauthorized intriguers; that, admitting it to be otherwise, she only demanded those marks of friendship which, at a critical moment, she had herself afforded; that the real interests of the United States required a compliance with this demand; that it would cost more money to resist than to yield to it; that the resistance would infallibly be ineffectual; and that national honour was never secured by national defeat. Neither these sentiments, nor the arguments which were founded on them, accorded with the general feeling; and it required the co-operation of other causes to establish the influence of those who urged them.

Measures of hostility adopted by the American government against France.

In congress, vigorous measures were adopted for retaliating injuries which had been sustained, and for repelling those which were threatened. Amongst these was a regular army. A regiment of artillerists and engineers was added to the permanent establishment; and the President was authorized to raise twelve additional regiments of infantry, and one regiment of cavalry, to serve during the continuance of the existing differences with the French republic if not sooner discharged. He was also authorized to appoint officers for a provisional army, and to receive and organize volunteer corps who would be exempt from ordinary militia duty; but neither the volunteers nor the officers of the provisional army were to receive pay unless called into actual service.

Addresses[\[55\]](#) to the executive from every part of the United States attested the high spirit of the nation, and the answers of the President were well calculated to give it solidity and duration.

No sooner had a war become probable, to the perils of which no man could be insensible, than the eyes of all were directed to General Washington, as the person who should command the American army. He alone could be seen at the head of a great military force without exciting jealousy; he alone could draw into public service, and arrange properly the best military talents of the nation; and he more than any other, could induce the utmost exertions of its physical strength.

Indignant at the unprovoked injuries which had been heaped upon his country, and convinced that the conflict, should a war be really prosecuted by France with a view to conquest, would be extremely severe, and could be supported, on the part of America, only by a persevering exertion of all her force, he could not determine, should such a crisis arrive, to withhold those aids which it might be in his power to afford, should public opinion really attach to his services that importance which would render them essential. His own reflections appear to have resulted in a determination not to refuse once more to take the field, provided he could be permitted to secure efficient aid by naming the chief officers of the army, and to remain at home until his service in the field should be required by actual invasion.

A confidential and interesting letter from Colonel Hamilton of the 19th of May, on political subjects, concludes with saying, "You ought also to be aware, my dear sir, that in the event of an open rupture with France, the public voice will again call you to command the armies of your country; and though all who are attached to you will from attachment as well as public considerations, deplore an occasion which should once more tear you from that repose to which you have so good a right; yet it is the opinion of all those with whom I converse that you will be compelled to make the sacrifice. All your past labours may demand, to give them efficacy, this further, this very great sacrifice."

"You may be assured," said General Washington in reply, "that my mind is deeply impressed with the present situation of public affairs, and not a little agitated by the outrageous conduct of France towards the United States, and at the inimitable conduct of those partisans who aid and abet her measures. You may believe further, from assurances equally sincere, that if there was any thing in my power to be done consistently, to avert or lessen the danger of the crisis, it should be rendered with hand and heart.

"But, my dear sir, dark as matters appear at present, and expedient as it is to be prepared for the worst that can happen, (and no man is more disposed to this measure than I am) I can not make up my mind yet, for the expectation of open war; or, in other words, for a formidable invasion by France. I can not believe, although I think her capable of any thing, that she will attempt to do more than she has done. When she perceives the spirit and policy of this country rising into resistance, and that she has falsely calculated upon

support from a large part of the people^[56] to promote her views and influence in it, she will desist even from those practices, unless unexpected events in Europe, or the acquisition of Louisiana and the Floridas, should induce her to continue them. And I believe further, that although the leaders of their party in this country will not change their sentiments, they will be obliged to change their plan, or the mode of carrying it on. The effervescence which is appearing in all quarters, and the desertion of their followers, will frown them into silence—at least for a while.

"If I did not view things in this light, my mind would be infinitely more disquieted than it is: for, if a crisis should arrive when a sense of duty, or a call from my country should become so imperious as to leave me no choice, I should prepare for relinquishment, and go with as much reluctance from my present peaceful abode, as I should go to the tombs of my ancestors."

The opinion that prudence required preparations for open war, and that General Washington must once more be placed at the head of the American armies, strengthened every day; and on the 22d of June, the President addressed him a letter in which that subject was thus alluded to.

"In forming an army, whenever I must come to that extremity, I am at an immense loss whether to call out the old generals, or to appoint a young set. If the French come here, we must learn to march with a quick step, and to attack, for in that way only they are said to be vulnerable. I must tax you, sometimes, for advice. We must have your name, if you will in any case permit us to use it. There will be more efficacy in it than in many an army."

A letter from the secretary of war, written four days afterwards, concludes with asking, "May we flatter ourselves that, in a crisis so awful and important, you will accept the command of all our armies? I hope you will, because you alone can unite all hearts and all hands, if it is possible that they can be united."

These letters reached General Washington on the same day. The following extract from his reply to the President will exhibit the course of his reflections relative to his appearance once more at the head of the American armies.

"At the epoch of my retirement, an invasion of these states by any European power, or even the probability of such an event in my days, was so far from being contemplated by me, that I had no conception either that or any other occurrence would arise in so short a period which could turn my eyes from the shades of Mount Vernon. But this seems to be the age of wonders. And it is reserved for intoxicated and lawless France (for purposes of Providence far beyond the reach of human ken) to slaughter her own citizens, and to disturb the repose of all the world besides. From a view of the past,—from the prospect of the present,—and of that which seems to be expected, it is not easy for me to decide satisfactorily on the part it might best become me to act. In case of actual invasion by a formidable force, I certainly should not intrench myself under the cover of age and retirement, if my services should be required by my country to assist in repelling it. And if there be good cause to expect such an event, which certainly must be better known to the government than to private citizens, delay in preparing for it may be dangerous, improper, and not to be justified by prudence. The uncertainty however of the latter, in my mind, creates my embarrassment; for I can not bring it to believe, regardless as the French are of treaties, and of the laws of nations, and capable as I conceive them to be of any species of despotism and injustice, that they will attempt to invade this country after such a uniform and unequivocal expression of the determination of the people in all parts to oppose them with their lives and fortunes. That they have been led to believe by their agents and partisans among us that we are a divided people, that the latter are opposed to their own government, and that the show of a small force would occasion a revolt, I have no doubt; and how far these men (grown desperate) will further attempt to deceive, and may succeed in keeping up the deception, is problematical. Without that, the folly of the Directory in such an attempt would, I conceive, be more conspicuous, if possible, than their wickedness.

"Having with candour made this disclosure of the state of my mind, it remains only for me to add, that to those who knew me best, it is best known that, should imperious circumstances induce me to exchange once more the smooth paths of retirement for the thorny ways of public life, at a period too when repose is more congenial to nature, it would be productive of sensations which can be more easily conceived than expressed."

His letter to the secretary of war was more detailed and more explicit. "It can not," he said, "be necessary for me to promise to you or to others who know my sentiments, that to quit the tranquillity of retirement, and enter the boundless field of responsibility, would be productive of sensations which a better pen than I possess would find it difficult to describe. Nevertheless, the principle by which my conduct has been actuated through life, would not surfer me, in any great emergency, to withhold any services I could render when required by my country;—especially in a case where its dearest rights are assailed by lawless ambition and intoxicated power, in contempt of every principle of justice, and in violation of solemn compact, and of laws which govern all civilized nations:—and this too with the obvious intent to sow thick the seeds of disunion for the purpose of subjugating our government, and destroying our independence and happiness.

"Under circumstances like these, accompanied by an actual invasion of our territory, it would be difficult for me, at any time, to remain an idle spectator, under the plea of age or retirement. With sorrow, it is true, I should quit the shades of my peaceful abode, and the ease and happiness I now enjoy, to encounter anew the turmoils of war, to which, possibly, my strength and powers might be found incompetent. These, however, should not be stumbling blocks in my own way. But there are other things highly important for me to ascertain and settle before I could give a definite answer to your question.

1st. The propriety in the opinion of the public, so far as that opinion has been expressed in conversation, of my appearing again on the public theatre, after declaring the sentiments I did in my valedictory address of September, 1796.

2dly. A conviction in my own breast, from the best information that can be obtained, that it is the wish of my country that its military force should be committed to my charge; and,

3dly. That the army now to be formed should be so appointed as to afford a well grounded hope of its doing

honour to the country, and credit to him who commands it in the field.

"On each of these heads you must allow me to make observations."

General Washington then proceeded to detail his sentiments on those points on which his consent to take command of the army must depend.

General Washington appointed commander-in-chief of the American Army.

Some casual circumstances delayed the reception of the letters of the President and secretary of war for several days, in consequence of which, before the answer of General Washington reached the seat of government, the President had nominated him to the chief command of all the armies raised or to be raised in the United States, with the rank of Lieutenant General; and the senate had unanimously advised and consented to his appointment.

By the secretary of war, who was directed to wait upon him with his commission, the President addressed to him the following letter:

"Mr. M'Henry, the secretary of war, will have the honour to wait on you in my behalf, to impart to you a step I have ventured to take, which I should have been happy to have communicated in person, had such a journey, at this time, been in my power.

"My reasons for this measure will be too well known to need any explanation to the public. Every friend and every enemy of America will comprehend them at first blush. To you, sir, I owe all the apology I can make. The urgent necessity I am in of your advice and assistance, indeed of your conduct and direction of the war, is all I can urge; and that is a sufficient justification to myself and to the world. I hope it will be so considered by yourself. Mr. M'Henry will have the honour to consult you upon the organization of the army, and upon every thing relating to it."

Open instructions, signed by the President, were on the same day delivered to the secretary of war, of which the following is a copy:

"It is my desire that you embrace the first opportunity to set out on your journey to Mount Vernon, and wait on General Washington with the

commission of Lieutenant General and Commander-in-chief of the armies of the United States, which, by the advice and consent of the senate, has been signed by me.

"The reasons and motives which prevailed on me to venture on such a step as the nomination of this great and illustrious character, whose voluntary resignation alone occasioned my introduction to the office I now hold, were too numerous to be detailed in this letter, and are too obvious and important to escape the observation of any part of America or Europe. But as it is a movement of great delicacy, it will require all your address to communicate the subject in a manner that shall be inoffensive to his feelings, and consistent with all the respect that is due from me to him.

"If the General should decline the appointment, all the world will be silent, and respectfully acquiesce. If he should accept it, all the world, except the enemies of his country, will rejoice. If he should come to no decisive determination, but take the subject into consideration, I shall not appoint any other lieutenant general until his conclusion is known.

"His advice in the formation of a list of officers would be extremely desirable to me. The names of Lincoln, Morgan, Knox, Hamilton, Gates, Pinckney, Lee, Carrington, Hand, Muhlenberg, Dayton, Burr, Brooks, Cobb, Smith, as well as the present Commander-in-chief, may be mentioned to him, and any others that occur to you. Particularly, I wish to have his opinion on the men most suitable for inspector general, adjutant general, and quarter master general.

"His opinion on all subjects would have great weight, and I wish you to obtain from him as much of his reflections upon the times and the service as you can."

The communications between General Washington and the secretary of war appear to have been full and unreserved. The impressions of the former respecting the critical and perilous situation of his country had previously determined him to yield to the general desire, and accept the commission offered him, provided he could be permitted to select for the high departments of the army, and especially for the military staff, those in whom he could place the greatest confidence. Being assured that there was every reason to believe his wishes in this respect would not be thwarted, he

gave to the secretary the arrangement^[57] which he would recommend for the principal stations in the army; and, on the 13th of July, addressed the following letter to the President.

"I had the honour, on the evening of the 11th instant, to receive from the hands of the secretary at war, your favour of the seventh, announcing that you had, with the advice and consent of the senate, appointed me Lieutenant General and Commander-in-chief of the armies raised or to be raised for the service of the United States.

"I can not express how greatly affected I am at this new proof of public confidence, and at the highly flattering manner in which you have been pleased to make the communication. At the same time, I must not conceal from you my earnest wish that the choice had fallen upon a man less declined in years, and better qualified to encounter the usual vicissitudes of war.

"You know, sir, what calculations I had made relative to the probable course of events on my retiring from office, and the determination, with which I had consoled myself, of closing the remnant of my days in my present peaceful abode. You will therefore be at no loss to conceive and appreciate the sensations I must have experienced, to bring my mind to any conclusion that would pledge me, at so late a period of life, to leave scenes I sincerely love, to enter upon the boundless field of public action, incessant trouble, and high responsibility.

"It was not possible for me to remain ignorant of, or indifferent to recent transactions. The conduct of the Directory of France towards our country; their insidious hostility to its government; their various practices to withdraw the affections of the people from it; the evident tendency of their arts, and those of their agents, to countenance and invigorate opposition; their disregard of solemn treaties and the laws of nations; their war upon our defenceless commerce; their treatment of our ministers of peace; and their demands, amounting to tribute, could not fail to excite in me sentiments corresponding with those my countrymen have so generally expressed in their affectionate addresses to you.

"Believe me, sir, no man can more cordially approve the wise and prudent measures of your administration. They ought to inspire universal

confidence, and will no doubt, combined with the state of things, call from congress such laws and means as will enable you to meet the full force and extent of the crisis.

"Satisfied, therefore, that you have sincerely wished and endeavoured to avert war, and exhausted to the last drop the cup of reconciliation, we can, with pure hearts, appeal to heaven for the justice of our cause, and may confidently trust the final result to that kind Providence who has heretofore, and so often, signally favoured the people of the United States.

"Thinking in this manner, and feeling how incumbent it is upon every person of every description to contribute, at all times, to his country's welfare, and especially in a moment like the present, when every thing we hold dear and sacred is so seriously threatened, I have finally determined to accept the commission of Commander-in-chief of the armies of the United States, with the reserve only,—that I shall not be called into the field until the army is in a situation to require my presence, or it becomes indispensable by the urgency of circumstances.

"In making this reservation, I beg it to be understood that I do not mean to withhold any assistance to arrange and organize the army, which you may think I can afford. I take the liberty also to mention that I must decline having my acceptance considered as drawing after it any immediate charge upon the public, or that I can receive any emoluments annexed to the appointment before I am in a situation to incur expense."

From this period, General Washington intermingled the cares and attentions of office with his agricultural pursuits. His solicitude respecting the organization of an army which he might possibly be required to lead against an enemy the most formidable in the world, was too strong to admit of his being inattentive to its arrangements. Yet he never did believe that an invasion of the United States would actually take place. His conviction that it was not the interest of France to wage an unprovoked war with America, and that the hostile measures which the executive Directory had adopted originated in the opinion that those measures would overthrow the administration, and place power in the hands of those who had uniformly supported all the pretensions of the French republic, remained unshaken. As a necessary consequence of this conviction, he was persuaded that the

indignation which this system had excited, would effect its change. The only circumstance that weakened this hope, arose from the persevering opposition which was still maintained in congress, and from the evidence which was daily afforded that those party animosities, to which he ascribed the present dangerous crisis, were far from being healed. Those who had embraced the cause of France in the controversy between that nation and the United States, had been overwhelmed by a flood of testimony which silenced them for a time, but which weakened them more in appearance than in reality. They were visibly recovering both strength and confidence. It is not therefore wonderful that General Washington should have expressed himself more freely than had been his custom, respecting American parties, and that he should have exerted an influence which he had not been in the habit of employing, to induce men whose talents he respected, but who had declined political life, to enter into the national and state legislatures.

Events soon demonstrated that he had not calculated unreasonably on the effects of the spirit manifested by his country. Although America, supplicating for peace, had been spurned with contempt; although the executive Directory had rejected with insult her repeated and sincere prayers to be permitted to make explanations, and had haughtily demanded a concession of their arrogant and unfounded claims or the advance of pecuniary aids, as a preliminary to negotiation;—America, in arms, was treated with some respect. Indirect pacific overtures were made, and a willingness on the part of France, to accommodate the existing differences on reasonable terms, was communicated.

1799

The President, truly solicitous to restore that harmony and good understanding which the United States had laboured so incessantly and so sincerely to preserve with their ancient ally, caught at the overtures which were indirectly made, and again appointed three envoys extraordinary and ministers plenipotentiary to the French republic. These gentlemen found the government in the hands of a person who had taken no part in those transactions which had embroiled the two countries, and who entered into negotiations with them which terminated in the amicable adjustment of differences.

General Washington did not live to witness the restoration of peace.

His death.

On Friday the 13th of December, while attending to some improvements upon his estate, he was exposed to a light rain, by which his neck and hair became wet. Not apprehending danger from this circumstance, he passed the afternoon in his usual manner; but, in the night, was seized with an inflammatory affection of the windpipe. The disease commenced with a violent ague, accompanied with some pain in the upper and fore part of the throat, a sense of stricture in the same part, a cough, and a difficult rather than a painful deglutition, which were soon succeeded by fever, and a quick and laborious respiration.

Believing bloodletting to be necessary, he procured a bleeder who took from his arm twelve or fourteen ounces of blood, but he would not permit a messenger to be despatched for his family physician until the appearance of day. About eleven in the morning Doctor Craik arrived; and perceiving the extreme danger of the case, requested that two consulting physicians should be immediately sent for. The utmost exertions of medical skill were applied in vain. The powers of life were manifestly yielding to the force of the disorder; speaking, which was painful from the beginning, became almost impracticable: respiration became more and more contracted and imperfect, until half past eleven on Saturday night; when, retaining the full possession of his intellect, he expired without a struggle.

Believing at the commencement of his complaint, as well as through every succeeding stage of it, that its conclusion would be mortal, he submitted to the exertions made for his recovery, rather as a duty, than from any expectation of their efficacy. Some hours before his death, after repeated efforts to be understood, he succeeded in expressing a desire that he might be permitted to die without interruption. After it became impossible to get any thing down his throat, he undressed himself and went to bed, there to die. To his friend and physician, Doctor Craik, who sat on his bed, and took his head in his lap, he said with difficulty, "Doctor, I am dying, and have been dying for a long time, but I am not afraid to die."

During the short period of his illness he economized his time, in arranging with the utmost serenity those few concerns which required his attention;

and anticipated his approaching dissolution with every demonstration of that equanimity, for which his life was so uniformly, and singularly, conspicuous.

The deep and wide spreading grief occasioned by this melancholy event, assembled a great concourse of people for the purpose of paying the last tribute of respect to the first of Americans. His body, attended by military honours and the ceremonies of religion, was deposited in the family vault at Mount Vernon, on Wednesday, the 18th of December.

So short was his illness that, at the seat of government, the intelligence of his death preceded that of his indisposition. It was first communicated by a passenger in the stage to an acquaintance whom he met in the street, and the report quickly reached the house of representatives which was then in session. The utmost dismay and affliction was displayed for a few minutes; after which a member stated in his place, the melancholy information which had been received. This information he said was not certain, but there was too much reason to believe it true.

"After receiving intelligence," he added, "of a national calamity so heavy and afflicting, the house of representatives can be but ill fitted for public business." He therefore moved an adjournment. Both houses adjourned until the next day.

On the succeeding day, as soon as the orders were read, the same member addressed the chair in the following terms:

"The melancholy event which was yesterday announced with doubt, has been rendered but too certain. Our WASHINGTON is no more! the hero, the patriot, and the sage of America;—the man on whom, in times of danger, every eye was turned, and all hopes were placed,—lives now only in his own great actions, and in the hearts of an affectionate and afflicted people.

"If, sir, it had even not been usual openly to testify respect for the memory of those whom heaven has selected as its instruments for dispensing good to man, yet, such has been the uncommon worth, and such the extraordinary incidents which have marked the life of him whose loss we all deplore, that the whole American nation, impelled by the same feelings, would call, with

one voice, for a public manifestation of that sorrow which is so deep and so universal.

"More than any other individual, and as much as to one individual was possible, has he contributed to found this our wide spreading empire, and to give to the western world independence and freedom.

"Having effected the great object for which he was placed at the head of our armies, we have seen him convert the sword into the ploughshare, and sink the soldier into the citizen.

"When the debility of our federal system had become manifest, and the bonds which connected this vast continent were dissolving, we have seen him the chief of those patriots who formed for us a constitution which, by preserving the union, will, I trust, substantiate and perpetuate those blessings which our revolution had promised to bestow.

"In obedience to the general voice of his country calling him to preside over a great people, we have seen him once more quit the retirement he loved, and, in a season more stormy and tempestuous than war itself, with calm and wise determination, pursue the true interests of the nation, and contribute, more than any other could contribute, to the establishment of that system of policy, which will, I trust, yet preserve our peace, our honour, and our independence.

"Having been twice unanimously chosen the chief magistrate of a free people, we have seen him, at a time when his re-election with universal suffrage could not be doubted, afford to the world a rare instance of moderation, by withdrawing from his high station to the peaceful walks of private life.

"However the public confidence may change, and the public affections fluctuate with respect to others, with respect to him, they have, in war and in peace, in public and in private life, been as steady as his own firm mind, and as constant as his own exalted virtues.

"Let us then, Mr. Speaker, pay the last tribute of respect and affection to our departed friend. Let the grand council of the nation display those sentiments which the nation feels. For this purpose I hold in my hand some resolutions which I take the liberty of offering to the house."

The resolutions,[58] after a preamble stating the death of General Washington, were in the following terms.

"Resolved, that this house will wait on the President in condolence of this mournful event.

"Resolved, that the speaker's chair be shrouded with black, and that the members and officers of the house wear black during the session.

"Resolved, that a committee, in conjunction with one from the senate, be appointed to consider on the most suitable manner of paying honour to the memory of the MAN, first in war, first in peace, and first in the hearts of his fellow citizens."

Immediately after the passage of these resolutions, a written message was received from the President, accompanying a letter from Mr. Lear, which he said, "will inform you that it had pleased Divine Providence to remove from this life our excellent fellow citizen, GEORGE WASHINGTON, by the purity of his life, and a long series of services to his country, rendered illustrious through the world. It remains for an affectionate and grateful people, in whose hearts he can never die, to pay suitable honour to his memory."

To the speaker and members of the house of representatives who waited on him in pursuance of the resolution which has been mentioned, he expressed the same deep-felt and affectionate respect "for the most illustrious and beloved personage America had ever produced."

The senate, on this melancholy occasion, addressed to the President the following letter:

"The senate of the United States respectfully take leave, sir, to express to you their deep regret for the loss their country sustains in the death of General GEORGE WASHINGTON.

"This event, so distressing to all our fellow citizens, must be peculiarly heavy to you who have long been associated with him in *deeds of patriotism*. Permit us, sir, to mingle our tears with yours. On this occasion it is manly to weep. To lose such a man, at such a crisis, is no common calamity to the world. Our country mourns a father. The Almighty disposer of human events has taken from us our greatest benefactor and ornament. It

becomes us to submit with reverence, to HIM who 'maketh darkness his pavilion.'

"With patriotic pride we review the life of our WASHINGTON, and compare him with those of other countries who have been pre-eminent in fame. Ancient and modern names are diminished before him. Greatness and guilt have too often been allied; but *his* fame is whiter than it is brilliant. The destroyers of nations stood abashed at the majesty of *his* virtues. It reproved the intemperance of their ambition, and darkened the splendour of victory. The scene is closed,—and we are no longer anxious lest misfortune should sully his glory; he has traveled on to the end of his journey, and carried with him an increasing weight of honour: he has deposited it safely where misfortune can not tarnish it; where malice can not blast it. Favoured of heaven, he departed without exhibiting the weakness of humanity; magnanimous in death, the darkness of the grave could not obscure his brightness.

"Such was the man whom we deplore. Thanks to God, his glory is consummated. Washington yet lives on earth in his spotless example—his spirit is in heaven.

"Let his countrymen consecrate the memory of the heroic general, the patriotic statesman, and the virtuous sage: let them teach their children never to forget that the fruits of his labours and his example *are their inheritance*."

To this address the President returned the following answer: "I receive, with the most respectful and affectionate sentiments, in this impressive address, the obliging expressions of your regret for the loss our country has sustained in the death of her most esteemed, beloved, and admired citizen.

"In the multitude of my thoughts and recollections on this melancholy event, you will permit me to say that I have seen him in the days of adversity, in some of the scenes of his deepest distress and most trying perplexities. I have also attended him in his highest elevation and most prosperous felicity, with uniform admiration of his wisdom, moderation, and constancy.

"Among all our original associates in that memorable *league of this continent* in 1774, which first expressed the SOVEREIGN WILL OF A FREE NATION IN AMERICA, he was the only one remaining in the general government. Although with a constitution more enfeebled than his, at an age when he thought it necessary to prepare for retirement, I feel myself alone, bereaved of my last brother; yet I derive a strong consolation from the unanimous disposition which appears in all ages and classes to mingle their sorrows with mine on this common calamity to the world.

"The life of our WASHINGTON can not suffer by a comparison with those of other countries who have been most celebrated and exalted by fame. The attributes and decorations of *royalty* could only have served to eclipse the majesty of those virtues which made him, from being a modest *citizen*, a more resplendent luminary. Misfortune, had he lived, could hereafter have sullied his glory only with those superficial minds who, believing that characters and actions are marked by success alone, rarely deserve to enjoy it. *Malice* could never blast his honour, and *Envy* made him a singular exception to her universal rule. For himself, he had lived long enough to life and to glory:—for his fellow citizens, if their prayers could have been answered, he would have been immortal: for me, his departure is at a most unfortunate moment. Trusting, however, in the wise and righteous dominion of Providence over the passions of men, and the results of their councils and actions, as well as over their lives, nothing remains for me but *humble resignation*.

"His example is now complete; and it will teach wisdom and virtue to magistrates, citizens, and men, not only in the present age, but in future generations, as long as our history shall be read. If a Trajan found a Pliny, a Marcus Aurelius can never want biographers, eulogists, or historians."

The joint committee which had been appointed to devise the mode by which the nation should express its feelings on this melancholy occasion, reported the following resolutions:

"That a marble monument be erected by the United States at the city of Washington, and that the family of General Washington be requested to permit his body to be deposited under it; and that the monument be so

designed as to commemorate the great events of his military and political life.

"That there be a funeral procession from congress hall to the German Lutheran church, in memory of General Washington, on Thursday, the 26th instant, and that an oration be prepared at the request of congress, to be delivered before both houses on that day; and that the president of the senate, and speaker of the house of representatives, be desired to request one of the members of congress to prepare and deliver the same.

"That it be recommended to the people of the United States to wear crape on the left arm as a mourning for thirty days.

"That the President of the United States be requested to direct a copy of these resolutions to be transmitted to Mrs. Washington, assuring her of the profound respect congress will ever bear to her person and character, of their condolence on the late affecting dispensation of Providence, and entreating her assent to the interment of the remains of General Washington in the manner expressed in the first resolution.

"That the President be requested to issue his proclamation, notifying to the people throughout the United States the recommendation contained in the third resolution."

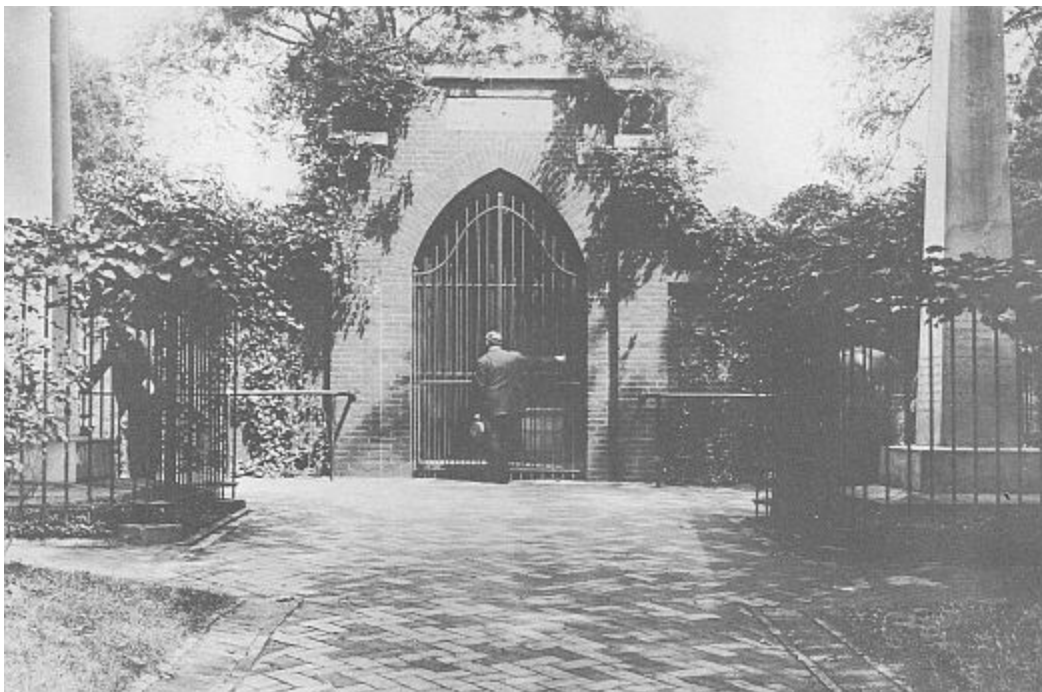
These resolutions passed both houses unanimously, and those which would admit of immediate execution were carried into effect. The whole nation appeared in mourning. The funeral procession was grand and solemn, and the eloquent oration, which was delivered on the occasion by General Lee, was heard with profound attention and with deep interest.

Throughout the United States, similar marks of affliction were exhibited. In every part of the continent funeral orations were delivered, and the best talents of the nation were devoted to an expression of the nation's grief.

To the letter of the President which transmitted to Mrs. Washington the resolutions of congress, and of which his secretary was the bearer, that lady answered, "Taught by the great example which I have so long had before me, never to oppose my private wishes to the public will, I must consent to the request made by congress which you have had the goodness to transmit

to me;—and in doing this, I need not, I can not say what a sacrifice of individual feeling I make to a sense of public duty."

The monument, however, has not been erected. That the great events of the political as well as military life of General Washington should be commemorated, could not be pleasing to those who had condemned, and who continued to condemn, the whole course of his administration. This resolution, although it passed unanimously, had many enemies. That party which had long constituted the opposition, and which, though the minority for the moment, nearly divided the house of representatives, declared its preference for the equestrian statue which had been voted by congress at the close of the war. The division between a statue and a monument was so nearly equal, that the session passed away without an appropriation for either. The public feelings soon subsided, and those who possessed the ascendancy over the public sentiment employed their influence to draw odium on the men who favoured a monument; to represent that measure as a part of a general system to waste the public money; and to impress the idea that the only proper monument to the memory of a meritorious citizen, was that which the people would erect in their affections.



Resting-Place of George and Martha Washington at Mount Vernon

Dying December 14, 1799, the body of Washington Was placed, with simple but impressive ceremonies, in the old family vault, from which it was removed in 1831 to a tomb of plain brick construction, near a wooded ravine a short distance from the house. Behind an iron grating may be seen the two sarcophagi which contain the mortal remains of George Washington and his wife, Martha.

General Washington was rather above the common size, his frame was robust, and his constitution vigorous—capable of enduring great fatigue, and requiring a considerable degree of exercise for the preservation of his health. His exterior created in the beholder the idea of strength, united with manly gracefulness.

And character.

His manners were rather reserved than free, though they partook nothing of that dryness, and sternness, which accompany reserve when carried to an extreme; and on all proper occasions, he could relax sufficiently to show how highly he was gratified by the charms of conversation, and the pleasures of society. His person and whole deportment exhibited an unaffected and indescribable dignity, unmingled with haughtiness, of which all who approached him were sensible; and the attachment of those who possessed his friendship, and enjoyed his intimacy, was ardent, but always respectful.

His temper was humane, benevolent, and conciliatory; but there was a quickness in his sensibility to any thing apparently offensive, which experience had taught him to watch, and to correct.

In the management of his private affairs he exhibited an exact yet liberal economy. His funds were not prodigally wasted on capricious and ill examined schemes, nor refused to beneficial though costly improvements. They remained therefore competent to that expensive establishment which his reputation, added to a hospitable temper, had in some measure imposed

upon him; and to those donations which real distress has a right to claim from opulence.

He made no pretensions to that vivacity which fascinates, or to that wit which dazzles, and frequently imposes on the understanding-More solid than brilliant, judgment, rather than genius, constituted the most prominent feature of his character.

Without making ostentatious professions of religion, he was a sincere believer in the Christian faith, and a truly devout man.

As a military man, he was brave, enterprising, and cautious. That malignity which was sought to strip him of all the higher qualities of a General, has conceded to him personal courage, and a firmness of resolution which neither dangers nor difficulties could shake. But candour will allow him other great and valuable endowments. If his military course does not abound with splendid achievements, it exhibits a series of judicious measures adapted to circumstances, which probably saved his country.

Placed, without having studied the theory, or been taught in the school of experience the practice of war, at the head of an undisciplined, ill organized multitude, which was impatient of the restraints, and unacquainted with the ordinary duties of a camp, without the aid of officers possessing those lights which the Commander-in-chief was yet to acquire, it would have been a miracle indeed had his conduct been absolutely faultless. But, possessing an energetic and distinguishing mind, on which the lessons of experience were never lost, his errors, if he committed any, were quickly repaired; and those measures which the state of things rendered most adviseable, were seldom, if ever, neglected. Inferior to his adversary in the numbers, in the equipment, and in the discipline of his troops, it is evidence of real merit that no great and decisive advantages were ever obtained over him, and that the opportunity to strike an important blow never passed away unused. He has been termed the American Fabius; but those who compare his actions with his means, will perceive at least as much of Marcellus as of Fabius, in his character. He could not have been more enterprising, without endangering the cause he defended, nor have put more to hazard, without incurring justly the imputation of rashness. Not relying upon those chances which sometimes give a favourable issue to attempts apparently desperate,

his conduct was regulated by calculations made upon the capacities of his army, and the real situation of his country. When called a second time to command the armies of the United States, a change of circumstances had taken place, and he meditated a corresponding change of conduct. In modelling the army of 1798, he sought for men distinguished for their boldness of execution, not less than for their prudence in counsel, and contemplated a system of continued attack. "The enemy," said the General in his private letters, "must never be permitted to gain foothold on our shores."

In his civil administration, as in his military career, ample and repeated proofs were exhibited of that practical good sense, of that sound judgment, which is perhaps the most rare, and is certainly the most valuable quality of the human mind. Devoting himself to the duties of his station, and pursuing no object distinct from the public good, he was accustomed to contemplate at a distance those critical situations in which the United States might probably be placed; and to digest, before the occasion required action, the line of conduct which it would be proper to observe. Taught to distrust first impressions, he sought to acquire all the information which was attainable, and to hear, without prejudice, all the reasons which could be urged for or against a particular measure. His own judgment was suspended until it became necessary to determine; and his decisions, thus maturely made, were seldom if ever to be shaken. His conduct therefore was systematic, and the great objects of his administration were steadily pursued.

Respecting, as the first magistrate in a free government must ever do, the real and deliberate sentiments of the people, their gusts of passion passed over, without ruffling the smooth surface of his mind. Trusting to the reflecting good sense of the nation for approbation and support, he had the magnanimity to pursue its real interests, in opposition to its temporary prejudices; and, though far from being regardless of popular favour, he could never stoop to retain, by deserving to lose it. In more instances than one, we find him committing his whole popularity to hazard, and pursuing steadily, in opposition to a torrent which would have overwhelmed a man of ordinary firmness, that course which had been dictated by a sense of duty.

In speculation, he was a real republican, devoted to the constitution of his country, and to that system of equal political rights on which it is founded.

But between a balanced republic and a democracy, the difference is like that between order and chaos. Real liberty, he thought, was to be preserved, only by preserving the authority of the laws, and maintaining the energy of government. Scarcely did society present two characters which, in his opinion, less resembled each other, than a patriot and a demagogue.

No man has ever appeared upon the theatre of public action, whose integrity was more incorruptible, or whose principles were more perfectly free from the contamination of those selfish and unworthy passions, which find their nourishment in the conflicts of party. Having no views which required concealment, his real and avowed motives were the same; and his whole correspondence does not furnish a single case, from which even an enemy would infer that he was capable, under any circumstances, of stooping to the employment of duplicity. No truth can be uttered with more confidence than that his ends were always upright, and his means always pure. He exhibits the rare example of a politician to whom wiles were absolutely unknown, and whose professions to foreign governments, and to his own countrymen, were always sincere. In him was fully exemplified the real distinction, which forever exists, between wisdom and cunning, and the importance as well as truth of the maxim that "honesty is the best policy."

If Washington possessed ambition, that passion was, in his bosom, so regulated by principles, or controlled by circumstances, that it was neither vicious, nor turbulent. Intrigue was never employed as the means of its gratification, nor was personal aggrandizement its object. The various high and important stations to which he was called by the public voice, were unsought by himself; and, in consenting to fill them, he seems rather to have yielded to a general conviction that the interests of his country would be thereby promoted, than to an avidity for power.

Neither the extraordinary partiality of the American people, the extravagant praises which were bestowed upon him, nor the inveterate opposition and malignant calumnies which he encountered, had any visible influence upon his conduct. The cause is to be looked for in the texture of his mind.

In him, that innate and unassuming modesty which adulation would have offended, which the voluntary plaudits of millions could not betray into indiscretion, and which never obtruded upon others his claims to superior

consideration, was happily blended with a high and correct sense of personal dignity, and with a just consciousness of that respect which is due to station. Without exertion, he could maintain the happy medium between that arrogance which wounds, and that facility which allows the office to be degraded in the person who fills it.

It is impossible to contemplate the great events which have occurred in the United States under the auspices of Washington, without ascribing them, in some measure, to him. If we ask the causes of the prosperous issue of a war, against the successful termination of which there were so many probabilities? of the good which was produced, and the ill which was avoided, during an administration fated to contend with the strongest prejudices, that a combination of circumstances, and of passions, could produce? of the constant favour of the great mass of his fellow citizens, and of the confidence which, to the last moment of his life, they reposed in him? the answer, so far as these causes may be found in his character, will furnish a lesson well meriting the attention of those who are candidates for political fame.

Endowed by nature with a sound judgment, and an accurate discriminating mind, he feared not that laborious attention which made him perfectly master of those subjects, in all their relations, on which he was to decide: and this essential quality was guided by an unvarying sense of moral right, which would tolerate the employment, only, of those means that would bear the most rigid examination; by a fairness of intention which neither sought nor required disguise: and by a purity of virtue which was not only untainted, but unsuspected.

NOTES.

NOTE—No. I. See [Page 9](#).

The following are copies of these interesting questions, and of the letter which enclosed them.

Philadelphia, 18th April, 1793.

SIR,—The posture of affairs in Europe, particularly between France and Great Britain, place the United States in a delicate situation, and require much consideration of the measures which will be proper for them to observe in the war between those powers. With a view to forming a general plan of conduct for the executive, I have stated and enclosed sundry questions to be considered preparatory to a meeting at my house to-morrow, where I shall expect to see you at 9 o'clock, and to receive the result of your reflections thereon.

Ques. I. Shall a proclamation issue for the purpose of preventing interferences of the citizens of the United States in the war between France and Great Britain, &c.? shall it contain a declaration of neutrality or not? what shall it contain?

Ques. II. Shall a minister from the republic of France be received?

Ques. III. If received, shall it be absolutely or with qualifications; and if with qualifications, of what kind?

Ques. IV. Are the United States obliged by good faith to consider the treaties heretofore made with France as applying to the present situation of the parties? may they either renounce them or hold them suspended until the government of France shall be *established*?

Ques. V. If they have the right, is it expedient to do either? and which?

Ques. VI. If they have an option, would it be a breach of neutrality to consider the treaties still in operation?

Ques. VII. If the treaties are to be considered as now in operation, is the guarantee in the treaty of alliance applicable to a defensive war only, or to war, either offensive or defensive?

Ques. VIII. Does the war in which France is engaged appear to be offensive or defensive on her part? or of a mixed and equivocal character?

Ques. IX. If of a mixed and equivocal character, does the guarantee in any event apply to such a war?

Ques. X. What is the effect of a guarantee, such as that to be found in the treaty of alliance between the United States and France?

Ques. XI. Does any article in either of the treaties prevent ships of war, other than privateers, of the powers opposed to France, from coming into the ports of the United States to act as convoys to their own merchantmen? or does it lay any other restraints upon them more than would apply to the ships of war of France?

Ques. XII. Should the future regent of France send a minister to the United States, ought he to be received?

Ques. XIII. Is it necessary or advisable to call together the two houses of congress with a view to the present posture of European affairs? if it is, what should be the particular objects of such a call?

NOTE—No. II. See [Page 15](#).

The official letter announcing to the convention the appointment of Mr. Genet, contained a communication of a very delicate nature, which was immediately made public. That the French government had not mingled with its desire to separate America from Britain, a willingness to see the United States acquire a degree of strength which might render them truly independent, and formidable to their neighbours, though well known to congress, had been concealed from the people at large. It seems, therefore, to have been apprehended by the leaders of the revolution in France, that

some remnant of that affection which had been so lavishly expressed for their fallen monarch while exercising sovereign power, might still be cherished in the American bosom, and might obstruct the endeavours they were about to make to produce a more intimate connexion between the two nations. It might be supposed that such sentiments, if they existed, would be effectually destroyed by a disclosure of the motives which had influenced the conduct of those by whom the aids so highly valued had been granted. The letter alluded to contains this passage: "From the instructions that were given by the former ministry to the agents in that country (America) which the executive council caused to be laid before them, they have seen with indignation, that at the very time when the good people of America expressed to us their friendship and gratitude in the most affectionate manner, Vergennes and Montmorin thought, *that it was not suitable to France to give to America all the consistence of which it was capable, because it would acquire a strength which it might probably abuse.* They, therefore, enjoined on their agents a passive conduct in regard to that nation, and to speak of nothing but the personal views of the king for its prosperity. The operations of war were directed by the same Machiavellian maxims. The same duplicity was employed in the negotiations of peace; in which, when signed, the people for whom we had taken up arms were altogether neglected." The official letter brought by Mr. Genet, to the executive of the United States, conveyed in less explicit terms the same idea; and to prove the correctness of these allegations, he communicated copies of official documents expressing in plain terms the solicitude of France and Spain to exclude the United States from the Mississippi; their jealousies of the growing power and ambition of this country; and the wish of France, expressed while the question was pending, that the constitution might not be adopted, as it "suits France that the United States should remain in their present state, because if they should acquire the consistence of which they are susceptible, they would soon acquire a force or a power which they would be very ready to abuse." The minister of the king, however, was directed not to avow the inclination of his sovereign on this point.

NOTE—No. III. See [Page 40](#).

Of the excessive and passionate devotion which was felt for the French republic, and of the blind and almost equally extensive hostility to the measures of the administration, the gazettes of the day are replete with the most abundant proof. As an example of this spirit, the following toasts are selected, because they were given at a festival made by persons of some distinction, at which the governor of Pennsylvania and the minister of France were present.

To commemorate the 14th of July, the anniversary of the destruction of the Bastille, the officers of the 2d regiment of Philadelphia militia assembled at Weed's ferry. Eighty-five rounds were discharged from the artillery in honour of the eighty-five departments of France, and the following toasts were given:

1st. The *fourteenth* day of July; may it be a sabbath in the calendar of freedom, and a jubilee to the European world.

2d. The *tenth* of August; may the freemen who offered up their lives on the altar of liberty be ever remembered as martyrs, and canonized as saints.

3d. May the Bastille of despotism throughout the earth be crumbled into dust, and the Phoenix of freedom grow out of the ashes.

4th. Nerve to the arm, fortitude to the heart, and triumph to the soul struggling for the rights of man.

5th. May no blind attachment to men lead France to the precipice of that tyranny from which they have escaped.

6th. May the sister republics of France and America be as incorporate as light and heat, and the man who endeavours to disunite them be viewed as the Arnold of his country.

7th. May honour and probity be the principles by which the connexions of free nations shall be determined; and no Machiavellian commentaries explain the text of treaties.

8th. *The treaty of alliance with France*: may those who attempt to evade or violate the political obligations and faith of our country be considered as traitors, and consigned to infamy.

9th. *The citizen soldiers*, before they act may they know and approve the cause, and may remorse attend the man that would think of opposing the French while they war for the rights of man.

10th. The *youth* of the *Paris legion*; may the rising generation of America imitate their heroism and love of country.

11th. The republics of France and America; may the cause of liberty ever be a bond of union between the two nations.

12th. A dagger to the bosom of that man who makes patriotism a cover to his ambition, and feels his country's happiness absorbed in his own.

13th. May *French*, superior to *Roman or Grecian* virtue, be the electric fluid of freedom, that shall animate and quicken the earth.

14th. Union and mutual confidence to the patriots of France; confusion and distress to the counsels of their enemies.

15th. May the succeeding generation wonder that such beings as *kings* were ever permitted to exist.

Volunteer from the chair.

The rule of proportion; as France acted with respect to America, so may America act with respect to France!

NOTE—No. IV. See [Page 47](#).

Of the sensibility of the president to the calumnies against his administration with which the press abounded, and of their new direction against him personally, his correspondence furnishes but few evidences. The first and almost only notice taken of them is in a private letter of the

21st of July, to his friend General Lee, then governor of Virginia, an extract from which follows:

"That there are in this, as in all other countries, discontented characters I well know; as also that these characters are actuated by very different views:—Some good, from an opinion that the measures of the general government are impure;—some bad, and (if I might be allowed to use so harsh an expression) diabolical, inasmuch as they are not only meant to impede the measures of that government generally, but more especially to destroy the confidence which it is necessary the people should place (until they have unequivocal proof of demerit) in their public servants:—for in this light I consider myself whilst I am an occupant of office; and if they were to go further and call me their slave, during this period, I would not dispute the point with them. But in what will this abuse terminate?

"For the result, as it respects myself, I care not. I have a consolation within of which no earthly efforts can deprive me;—and that is, that neither ambitious nor interested motives have influenced my conduct. The arrows of malevolence, therefore, however barbed and pointed, can never reach my most valuable part; though, whilst I am *up* as a *mark*, they will be continually aimed at me. The publications in Freneau's and Bache's papers are outrages on common decency; and they progress in that style in proportion as their pieces are treated with contempt, and passed over in silence by those against whom they are directed. Their tendency, however, is too obvious to be mistaken by men of cool and dispassionate minds;—and, in my opinion, ought to alarm them; because it is difficult to prescribe bounds to their effect."

NOTE—No. V. See [Page 48](#).

They are as follows:

1st. The original arming and equipping of vessels in the ports of the United States by any of the belligerent parties, for military service, offensive or defensive, is deemed unlawful.

2d. Equipments of merchant vessels, by either of the belligerent parties in the ports of the United States, purely for the accommodation of them as such, is deemed lawful.

3d. Equipments in the ports of the United States of vessels of war in the immediate service of the government of any of the belligerent parties, which if done to other vessels would be of a doubtful nature as being applicable either to commerce or war, are deemed lawful, except those which shall have made prize of the subjects, people, or property of France, coming with their prizes into the ports of the United States pursuant to the seventeenth article of our treaty of amity and commerce with France.

4th. Equipments in the ports of the United States by any of the parties at war with France of vessels fitted for merchandise and war, whether with or without commissions, which are doubtful in their nature as being applicable either to commerce or war, are deemed lawful, except those which shall have made prize, &c.

5th. Equipments of any of the vessels of France, in the ports of the United States, which are doubtful in their nature as being applicable to commerce or war, are deemed lawful.

6th. Equipments of every kind in the ports of the United States, of privateers of the powers at war with France, are deemed unlawful.

7th. Equipments of vessels in the ports of the United States, which are of a nature solely adapted to war, are deemed unlawful; except those stranded or wrecked, as mentioned in the eighteenth article of our treaty with France, the sixteenth of our treaty with the United Netherlands, the ninth of our treaty with Prussia, and except those mentioned in the nineteenth article of our treaty with France, the seventeenth of our treaty with the United Netherlands, the eighteenth of our treaty with Prussia.

8th. Vessels of either of the parties, not armed, or armed previous to their coming into the ports of the United States, which shall not have infringed any of the foregoing rules, may lawfully engage or enlist therein their own subjects or citizens, not being inhabitants of the United States, except privateers of the powers at war with France, and except those vessels which shall have made prize, &c.

NOTE—No. VI. See [Page 64](#).

The earnestness as well as force with which the argument against this measure was pressed on the British cabinet, and the extreme irritation it produced on the public mind, contrasted with the silence of the executive respecting a much more exceptionable decree of the national convention, and the composure of the people of the United States under that decree, exhibits a striking proof of the difference with which not only the people, but an administration, which the phrensy of the day accused of partiality to England, contemplated at that time the measures of the two nations.

On the 9th of May, 1793, the national convention passed a decree relative to the commerce of neutrals; the first article of which is in these words: "The French ships of war and privateers may stop and bring into the ports of the republic, such neutral vessels as are loaded, in whole or in part either with provisions belonging to neutrals and destined for enemy ports, or with merchandise belonging to enemies."

On the 23d of May, in consequence of the remonstrances of Mr. Morris, the convention declared, "that the vessels of the United States are not comprised in the regulations of the decree of the 9th of May." On the 28th of the same month the decree of the 23d was repealed, and on the first of July it was re-established. But on the 27th of July it was again repealed, and thus the decree of the 9th of May was left in full operation against the vessels of the United States.

So far was this regulation from affecting the sentiments of America for France, that its existence was scarcely known.

NOTE—No. VII. See [Page 90](#).

Before these resolutions were offered, the strength of parties was in some measure tried in a fuller house than that which had elected the speaker.

A rule had been entered into by a former congress providing, that on the discussion of confidential communications from the president, the house should be cleared of all persons except the members and clerk. On taking up a confidential message relative to the truce between Portugal and Algiers, the doors as usual were closed. The next day when the subject was resumed, Mr. Nicholas expressed his opinion that there was no necessity for shutting the galleries; upon which the rule was mentioned with a request that it should be read. Mr. Madison moved a reconsideration of this rule. In the course of the debate on the motion, it was said by its advocates that secrecy in a republican government wounds the majesty of the sovereign people—that this government is in the hands of the people—and that they have a right to know all the transactions relative to their own affairs. This right ought not to be infringed incautiously, for such secrecy tends to diminish the confidence of the people in their own government.

In reply to these remarks it was said, that because this government is republican, it will not be pretended that it can have no secrets. The President of the United States is the depository of secret transactions. His duty may lead him to communicate them to the members of the house, and the success, safety, and energy of the government may depend on keeping those secrets inviolable. The people have a right to be well governed. They have interests as well as rights, and it is the duty of the legislature to take every possible measure to promote those interests. To discuss the secret transactions of the government publicly, was the ready way to sacrifice the public interest, and to deprive the government of all foreign information. Afterwards the rule was amended so far as to leave it in the discretion of the house, after receiving a confidential message, to debate upon it in private or in public.

Among the resolutions reported from the committee of the whole house on this occasion, was one for appointing a committee to report the naval force which would be necessary for the protection of the commerce of the United States against the Algerine corsairs, together with an estimate of the expense. It was moved to amend this resolution by adding, "and the ways and means for defraying the same." This motion revived the old party question of calling on the secretary of the treasury to report ways and means. The amendment was carried, Ayes 46. Noes 44.

NOTE—No. VIII. See [Page 147](#).

The private correspondence of Mr. Morris with the president exhibits a faithful picture, drawn by the hand of a master, of the shifting revolutionary scenes which with unparalleled rapidity succeeded each other in Paris. With the eye of an intelligent, and of an unimpassioned observer, he marked all passing events, and communicated them with fidelity. He did not mistake despotism for freedom, because it was sanguinary, because it was exercised by those who denominated themselves the people, or because it assumed the name of liberty. Sincerely wishing happiness and a really free government to France, he could not be blind to the obvious truth that the road to those blessings had been mistaken. It was expected by his enemies that the correspondence which was asked for would disclose something which might be deemed offensive to the rulers of the republic, and consequently furnish additional matter for charging the administration with unfriendliness to France.

The resolution requesting all the correspondence, not even excluding that which the president might think proper to withhold, involved considerations of some delicacy, respecting which it was proper that the rights of the executive should be precisely understood. It was, therefore, laid before the cabinet, and, in conformity with their advice, the President sent a message to the senate informing them that he had examined the correspondence they requested, and had caused it to be copied, except in those particulars which in his judgment, for public considerations, ought not to be communicated; which copies he transmitted to them. The nature of these papers, he added, manifested the propriety of their being received as confidential.

NOTE—No. IX. See [Page 164](#).

This opinion derived fresh confirmation from a notification transmitted in August, 1794, by the governor of Upper Canada to Captain Williamson, who was establishing a settlement on the Great Sodus, a bay of lake

Ontario, about twenty miles from Oswego, and within the state of New York. Captain Williamson not being at the place, Lieutenant Sheaff, the bearer of the message, addressed a letter to him, in which he said, that he had come with instructions from the lieutenant governor of Upper Canada to demand by what authority an establishment had been ordered at that place, and to require that such a design be immediately relinquished for the reasons stated in the written declaration accompanying the letter.

The written declaration was in these words:

"I am commanded to declare that, during the inexecution of the treaty of peace between Great Britain and the United States, and until the existing differences respecting it shall be mutually and finally adjusted, the taking possession of any part of the Indian territory, either for the purposes of war or sovereignty, is held to be a direct violation of his Britannic majesty's rights, as they unquestionably existed before the treaty, and has an immediate tendency to interrupt, and in its progress to destroy that good understanding which has hitherto subsisted between his Britannic majesty and the United States of America. I, therefore, require you to desist from any such aggression."

In the same spirit, complaints had been made as early as 1792, of encroachments made by the people of Vermont on a country confessedly within the territorial line of the United States, but inhabited by persons said to live under the protection of the British garrisons.

NOTE—No. X. See [Page 205](#).

On receiving the resignation of the secretary, the President addressed a letter to him expressive of the sense he entertained of his services. This letter is not found in the letter book, but its purport may be collected from the following answer.

Philadelphia, February 3d, 1795.

"SIR,—My particular acknowledgments are due for your very kind letter of yesterday. As often as I may recall the vexations I have endured, your approbation will be a great and precious consolation.

"It was not without a struggle that I yielded to the very urgent motives which impelled me to relinquish a station in which I could hope to be in any degree instrumental in promoting the success of an administration under your direction; a struggle which would have been far greater had I supposed that the prospect of future usefulness was proportioned to the sacrifices to be made.

"Whatever may be my destination hereafter, I entreat you to be persuaded (not the less for my having been sparing in professions) that I shall never cease to render a just tribute to those eminent and excelling qualities which have been already productive of so many blessings to your country—that you will always have my fervent wishes for your public and personal felicity, and that it will be my pride to cultivate a continuance of that esteem, regard and friendship, of which you do me the honour to assure me."

NOTE—No. XI. See [Page 216](#).

The following toasts which were given at a civic feast in Philadelphia on the first of May, attended by a great number of American citizens, to celebrate the victories of France, and which was honoured by the presence of the minister and consul of the French republic, and of the consul of Holland, then subdued by the arms of France, will furnish some idea of the prevailing spirit of the times.

1st. The republic of France; whose triumphs have made this day a jubilee; may she destroy the race of kings, and may their broken sceptres and crowns, like the bones and teeth of the Mammoth, be the only evidences that such monsters ever infested the earth.

2d. The republic of France; may the shores of Great Britain soon hail the tricoloured standard, and the people rend the air with shouts of long live the

republic.

3d. The republic of France; may her navy clear the ocean of pirates, that the common highway of nations may no longer, like the highways of Great Britain, be a receptacle for robbers.

4th. The republic of France; may all free nations learn of her to transfer their attachment from men to principles, and from individuals to the people.

5th. The republic of France; may her example in the abolition of titles and splendour be a lesson to all republics to destroy those leavens of corruption.

6th. The republic of Holland; may the flame of liberty which they have rekindled never be permitted to expire for want of vigilance and energy.

7th. The republic of Holland; may her two sisters, the republics of France and America, form with her an invincible triumvirate in the cause of liberty.

8th. The republic of Holland; may she again give birth to a Van Tromp and De Ruyter, who shall make the satellites of George tremble at their approach, and seek their safety in flight.

9th. The republic of Holland; may that fortitude which sustained her in the dire conflict with Philip II. and the success that crowned her struggles, be multiplied upon her, in the hour of her regeneration.

10th. The republic of Holland; may that government which they are about establishing have neither the balances of aristocracy, nor the checks of monarchy.

11th. The republic of America; may the sentiment that impelled her to resist a British tyrant's will, and the energy which rendered it effectual, prompt her to repel usurpation in whatever shape it may assail her.

12th. The republic of America; may the aristocracy of wealth founded upon the virtues, the toils, and the blood of her revolutionary armies soon vanish, and like the baseless fabric of a vision, leave not a wreck behind.

13th. The republic of America; may her government have public good for its object, and be purged of the dregs of sophisticated republicanism.

14th. The republic of America; may the alliance formed between her and France acquire vigour with age, and that man be branded as the enemy of liberty who shall endeavour to weaken or unhinge it.

15th. The republic of America; may her administration have virtue enough to defy the ordeal of patriotic societies, and patriotism enough to cherish instead of denouncing them.

It was not in Philadelphia alone that this temper was manifested. In every part of the United States, the love of France appeared to be a passion much more active with immense numbers, than that of America. Her victories were celebrated with enthusiasm, her heroes were toasted on public occasions, and moderation with regard to England was deemed a crime not readily to be pardoned.

General Washington received an invitation to attend this feast in the following terms.

SIR,—The subscribers, a committee in behalf of a number of American, French, and Dutch citizens, request the honour of your company to a civic festival, to be given on Friday, April 17th, appointed to celebrate the late victories of the French republic, and the emancipation of Holland.

NOTE—No. XII. See [Page 231](#).

A letter addressed to his government in October, 1794, by the minister of the French republic was intercepted by the captain of a British frigate and forwarded to Mr. Hammond, by whom it was delivered about the last of July to the secretary of the treasury, who, on the arrival of the President in Philadelphia, placed it in his hands. This letter alluded to communications from Mr. Randolph which, in the opinion of the President, were excessively improper. The eclairsissements which the occasion required were followed by the resignation of the secretary. For the purpose, he alleged, of vindicating his conduct, he demanded a sight of a confidential letter which had been addressed to him by the President, and which was left in the office. His avowed design was to give this as well as some others of the

same description to the public in order to support the allegation, that in consequence of his attachment to France and to liberty, he had fallen a victim to the intrigues of a British and an aristocratic party. The answer given to this demand was a license which few politicians in turbulent times could allow to a man who had possessed the unlimited confidence of the person giving it. "I have directed," said the President, "that you should have the inspection of my letter of the 22d of July, agreeable to your request: and you are at full liberty to publish without reserve *any* and *every* private and confidential letter I ever wrote *you*: nay more—every word I ever uttered to or in your presence, from whence you can derive any advantage in your vindication."

As the asperity with which Mr. Randolph spoke of the President on other occasions as well as in his vindication, was censured by many, it may rescue the reputation of that gentleman from imputations which might be injurious to it to say that, some time before his death, he had the magnanimity to acknowledge the injustice of those imputations. A letter to the honourable Bushrod Washington, of July 2d, 1810, a copy of which was transmitted by Mr. Randolph to the author, contains the following declarations among others of similar import. "I do not retain the smallest degree of that feeling which roused me fifteen years ago against some individuals. For the world contains no treasure, deception, or charm which can seduce me from the consolation of being in a state of good will towards all mankind; and I should not be mortified to ask pardon of any man with whom I have been at variance for any injury which I may have done him. If I could now present myself before your venerated uncle, it would be my pride to confess my contrition that I suffered my irritation, let the cause be what it might, to use some of those expressions respecting him which, at this moment of my indifference to the ideas of the world, I wish to recall, as being inconsistent with my subsequent conviction. My life will I hope be sufficiently extended for the recording of my sincere opinion of his virtues and merit, in a style which is not the result of a mind merely debilitated by misfortune, but of that Christian philosophy on which alone I depend for inward tranquillity."

NOTE—No. XIII. See [Page 231](#).

This place was offered to Mr. Henry, a gentleman of eminent talents, great influence, and commanding eloquence. He had led the opposition to the constitution in Virginia, but, after its adoption, his hostility had in some measure subsided. He was truly a personal friend of the President, and had lately manifested a temper not inimical to the administration. The chief magistrate was anxious to engage him in the public service, but was aware of the embarrassments which must result from placing in so confidential a station, a person whose opinions might lead him to thwart every measure of the executive. It was, therefore, necessary to come to some explanations with Mr. Henry on this subject, and the letter which invited him into the department of state opened the way for this explanation by stating truly the views and character of the administration. "I persuade myself, sir," said the President, "it has not escaped your observation, that a crisis is approaching which must, if it can not be arrested, soon decide whether order and good government shall be preserved, or anarchy and confusion ensue. I can most religiously aver that I have no wish incompatible with the dignity, happiness, and true interests of the people of this country. My ardent desire is, and my aim has been (as far as depended upon the executive department) to comply strictly with all our foreign and domestic engagements; but to keep the United States free from political connexions with *every* other country;—to see them independent of *all*, and under the influence of *none*. In a word, I want an *American* character; that the powers of Europe may be convinced we act for *ourselves* and not for *others*. This, in my judgment, is the only way to be respected abroad, and happy at home; and not by becoming the partisans of Great Britain or France, create dissensions, disturb the public tranquillity, and destroy, perhaps forever, the cement that binds the union.

"I am satisfied these sentiments can not be otherwise than congenial to your own. Your aid, therefore, in carrying them into effect would be flattering and pleasing to me."

This accurate chart of the road he was invited to travel, presented in itself no impediments which to Mr. Henry appeared insurmountable. By private considerations alone was he restrained from proceeding in it.

NOTE—No. XIV. See [Page 272](#).

The course of the war in Europe had brought the two parties into opposition on a point on which no difference had originally existed between them, which gave more countenance to the charge that the advocates of the American government were unfriendly to France than it could justly claim when first made. Those who in 1793 had supported the proclamation of neutrality, and the whole system connected with it, were then, generally speaking, ardent and sincere in their wishes for the success of the French arms. But as the troops of the republic subdued Belgium and Holland; as they conquered Italy, and established the complete influence of France over the monarchy of Spain, this union of sentiment gradually disappeared. By one party it was contended that America could feel no interest in seeing Europe subjected to any one power. That to such a power, the Atlantic would afford no impassable barriers; and that no form of government was a security against national ambition. They, therefore, wished this series of victories to be interrupted; and that the balance of Europe should not be absolutely overturned. Additional strength was undoubtedly given to this course of reasoning by the aggressions of France on the United States.

In the opinion of the opposite party, the triumphs of France were the triumphs of liberty. In their view every nation which was subdued, was a nation liberated from oppression. The fears of danger to the United States from the further aggrandizement of a single power were treated as chimerical, because that power being a republic must, consequently, be the friend of republics in every part of the globe, and a stranger to that lust of domination which was the characteristic passion of monarchies. Shifting with address the sentiment really avowed by their opponents, they ridiculed a solicitude for the existence of a balance of power in Europe, as an opinion that America ought to embark herself in the crusade of kings against France in order to preserve that balance.

NOTE—No. XV. See [Page 326](#).

The following extract from a letter written to General Knox the day before the termination of his office, exhibits the sentiments with which he contemplated this event, and with which he viewed the unceasing calumnies with which his whole administration continued to be aspersed.

"To the wearied traveller who sees a resting place, and is bending his body to lean thereon, I now compare myself; but to be suffered to do *this* in peace, is too much to be endured by *some*. To misrepresent my motives; to reprobate my politics; and to weaken the confidence which has been reposed in my administration;—are objects which can not be relinquished by those who will be satisfied with nothing short of a change in our political system. The consolation, however, which results from conscious rectitude, and the approving voice of my country unequivocally expressed by its representatives—deprives their sting of its poison, and places in the same point of view both the weakness and the malignity of their efforts.

"Although the prospect of retirement is most grateful to my soul, and I have not a wish to mix again in the great world, or to partake in its politics, yet I am not without my regrets at parting with (perhaps never more to meet) the few intimates whom I love. Among these, be assured you are one."

NOTE—No. XVI. See [Page 329](#).

In the speech delivered by the President on taking the oaths of office, after some judicious observations on the constitution of his country, and on the dangers to which it was exposed, that able statesman thus spoke of his predecessor.

"Such is the amiable and interesting system of government (and such are some of the abuses to which it may be exposed) which the people of America have exhibited, to the admiration and anxiety of the wise and virtuous of all nations, for eight years, under the administration of a citizen, who, by a long course of great actions, regulated by prudence, justice, temperance and fortitude, conducting a people inspired with the same virtues, and animated with the same ardent patriotism and love of liberty, to

independence and peace, to increasing wealth and unexampled prosperity, has merited the gratitude of his fellow-citizens, commanded the highest praises of foreign nations, and secured immortal glory with posterity.

"In that retirement which is his voluntary choice, may he long live to enjoy the delicious recollection of his services, the gratitude of mankind, the happy fruits of them to himself and the world, which are daily increasing, and that splendid prospect of the future fortunes of his country which is opening from year to year. His name may be still a rampart, and the knowledge that he lives a bulwark against all open or secret enemies of his country's peace."

NOTE—No. XVII. See [Page 330](#).

To testify their love for the person who had for eight years administered the government of the United States, the merchants of Philadelphia had prepared a splendid banquet for the day, to which the general, several officers of rank in the late army, the heads of departments, foreign ministers, and other persons of distinction were invited.

In the rotundo in which it was given, an elegant compliment was prepared for the *principal guest*, which is thus described in the papers of the day.

"Upon entering the area the general was conducted to his seat. On a signal given, music played Washington's march, and a scene which represented simple objects in the rear of the principal seat was drawn up, and discovered emblematical painting.

"The principal was a female figure large as life, representing America, seated on an elevation composed of sixteen marble steps. At her left side, stood the federal shield and eagle, and at her feet, lay the cornucopia; in her right hand, she held the Indian calumet of peace supporting the cap of liberty: in the perspective appeared the temple of fame; and on her left hand, an altar dedicated to public gratitude, upon which incense was burning. In her left hand she held a scroll inscribed valedictory; and at the foot of the altar lay a plumed helmet and sword, from which a figure of

General Washington, large as life, appeared, retiring down the steps, pointing with his right hand to the emblems of power which he had resigned, and with his left to a beautiful landscape representing Mount Vernon, in front of which oxen were seen harnessed to the plough. Over the general appeared a *Genius* placing a wreath of laurels on his head."

NOTE—No. XVIII. See [Page 348](#).

(All footnotes on pages covered by Note No. XVIII are references to the correspondence of Thomas Jefferson.)

A letter from Mr. Jefferson to Mr. Mazzei, an Italian who had passed some time in the United States, was published in Florence, and republished in the *Moniteur*, with some severe strictures on the conduct of the United States, and a remark "that the French government had testified its resentment by breaking off communication with an ungrateful and faithless ally until she shall return to a more just and benevolent conduct. No doubt," adds the editor, "it will give rise in the United States to discussions which may afford a triumph to the party of good republicans, the friends of France.

"Some writers, in disapprobation of this wise and necessary measure of the Directory, maintain that, in the United States, the French have for partisans only certain demagogues who aim to overthrow the existing government. But their impudent falsehoods convince no one, and prove only, what is too evident, that they use the liberty of the press to serve the enemies of France."

Mr. Jefferson, in his correspondence,[\[59\]](#) has animadverted on the preceding note with such extreme bitterness, as to impose on its author the necessity of entering into some explanations. Censure from a gentleman who has long maintained an unexampled ascendancy over public opinion, can not be entirely disregarded.

The offence consists in the reference to the letter written by him to Mr. Mazzei, which was published in Florence, and republished in Paris by the editor of the *Moniteur*, then the official paper of the Directory. In this letter,

Mr. Jefferson says, a paragraph was interpolated which makes him charge his own country with ingratitude and injustice to France.

By the word "country," Mr. Jefferson is understood to allude to the government, not to the people of America.

This letter, containing the sentence now alleged to be interpolated, was published throughout the United States in the summer of 1797. It became immediately, as may well be supposed, the subject of universal conversation. The writer, and the individual to whom it particularly alludes, filled too large a space in the public mind for such a paper not to excite general attention and deep interest. It did excite both.

Had it been fabricated, Mr. Jefferson, it was supposed, could not have permitted it to remain uncontradicted. It came in a form too authentic, the matter it contained affected his own reputation and that of the illustrious individual who is its principal subject, too vitally to permit the imputation to remain unnoticed. It would not, it could not have remained unnoticed, if untrue. Yet its genuineness was never questioned by Mr. Jefferson, or by any of his numerous friends. Not even to General Washington, as is now avowed, was it ever denied. Had it been denied to him, his strong sense of justice and of right would have compelled him to relieve the reputation of the supposed writer from a charge of such serious import.

It was, of course, universally received as a genuine letter. An open avowal of it could not have added to the general conviction.

The letter having this irresistible claim on the general confidence, no one part of it was entitled to less credit than every other. The interpolation of a particular sentence was neither suggested nor suspected. The whole was published in Europe and republished in America as the letter of Mr. Jefferson, with his name subscribed. The genuineness of no part of it was ever called into question. How then could the public or any individual have ventured to select a particular sentence, and to say—this is spurious?

Had it been suggested by Mr. Jefferson or his confidential friends that the letter was in general his, but that one sentence was fabricated, there is not perhaps an individual in the United States who would have pointed to that which censured the conduct of our government towards France, as the

fabricated sentence. That which placed the then chief magistrate at the head of the "Anglican, monarchical, and aristocratical party which had sprung up," would have been much more probably selected. This conjecture is hazarded because, at the date of the letter,[\[60\]](#) Mr. Jefferson shared the confidence of General Washington, and was on terms of intimate professed friendship with him; while his censures of the conduct of the United States towards France were open and unreserved. The sentence there said to be interpolated would, if really written by him, have involved no imputation on his sincerity,—would have consisted perfectly with his general declarations. These declarations were so notorious, especially after the mission of Mr. Jay to Great Britain, and the reception of the treaty negotiated by him, that there was perhaps not an individual in the United States, at all conversant with public affairs, to whom they were unknown. Without reference to other proofs, sufficient evidence of this fact is furnished by that portion of his correspondence which has been selected for publication. Some examples will be quoted.

In a letter of the 27th of April, 1795,[\[61\]](#) he says, "I sincerely congratulate you on the great prosperities of our two first allies, the French and the Dutch.[\[62\]](#) If I could but see them now at peace with the rest of their continent, I should have little doubt of dining with Pichegru in London next autumn; for I believe I should be tempted to leave my clover for a while, to go and hail the dawn of republicanism in that island."

In a letter of September 21st, 1795,[\[63\]](#) after speaking of the discussions in the papers concerning the treaty, and alluding to the efforts made to give it effect as the boldest act of Hamilton and Jay to undermine the government, he says, "a bolder party stroke was never struck. For it certainly is an attempt by a party who find they have lost their majority in one branch of the legislature, to make a law by the aid of the other branch and of the executive, under colour of a treaty, which shall bind up the hands of the adverse branch from ever restraining the commerce of their patron nation."

On the 30th of November, 1795,[\[64\]](#) he says, "I join with you in thinking the treaty an execrable thing." "I trust the popular branch of the legislature will disapprove of it, and thus rid us of this infamous act, which is really nothing more than an alliance between England and the Anglo men of this country, against the legislature and people of the United States."

On the 21st of December, 1795,[65] speaking of a contemporary member of the cabinet, he says, "The fact is that he has generally given his principles to the one party and his practice to the other, the oyster to one, and the shell to the other. Unfortunately, the shell was generally the lot of his friends, the French and Republicans, and the oyster of their antagonists."

On the 21st of March, 1796,[66] he says, "The British treaty has been formally at length laid before congress. All America is a tiptoe to see what the house of representatives will decide on it." Speaking of the right of the legislature to determine whether it shall go into effect or not, and of the vast importance of the determination, he adds, "It is fortunate that the first decision is to be made in a case so palpably atrocious as to have been predetermined by all America."

On the 27th of the same month he says,[67] "If you decide in favour of your right to refuse co-operation, I should wonder on what occasion it is to be used, if not in one, where the rights, the interest, the honour and faith of our nation are so grossly sacrificed; where a faction has entered into a conspiracy with the enemies of their country to chain down the legislature at the feet of both; where the whole mass of your constituents have condemned the work in the most unequivocal manner, and are looking to you as their last hope to save them from the effects of the avarice and corruption of the first agent, the revolutionary machinations of others, and the incomprehensible acquiescence of the only honest man who has assented to it. I wish that his honesty and his political errors may not furnish a second occasion to exclaim, 'curse on his virtues, they have undone his country.'"

On the 12th of June, 1796,[68] he says, "Congress have risen. You will have seen by their proceedings what I always observed to you, that one man outweighs them all in influence over the people, who have supported his judgment against their own, and that of their representatives. Republicanism must lie on its oars, resign the vessel to its pilot, and themselves to the course he thinks best for them."

On the 22d of January, 1797,[69] he says, "I sincerely deplore the situation of our affairs with France. War with them and consequent alliance with Great Britain will completely compass the object of the executive council

from the commencement of the war between France and England; taken up by some of them from that moment; by others more latterly."

On the 17th of June, 1797,^[70] he says, "I have always hoped that the popularity of the late President being once withdrawn from active effect, the natural feelings of the people towards liberty would restore the equilibrium between the executive and legislative departments which had been destroyed by the superior weight and effect of that popularity; and that their natural feelings of moral obligation would discountenance the unnatural predilection of the executive in favour of Great Britain. But, unfortunately, the preceding measures had already alienated the nation who were the object of them, and the reaction has on the minds of our citizens an effect which supplies that of the Washington popularity."

"P.S. Since writing the above we have received a report that the French Directory has proposed a declaration of war against the United States to the Council of Ancients, who have rejected it. Thus we see two nations who love one another affectionately, brought by the ill temper of their executive administrations to the very brink of a necessity to imbrue their hands in the blood of each other."

On the 14th of February, 1799,^[71] he says, "The President has appointed, and the senate approved, Rufus King, to enter into a treaty of commerce with the Russians, at London, and William Smith (Phocion) envoy extraordinary and minister plenipotentiary to go to Constantinople to make one with the Turks. So that as soon as there is a coalition of Turks, Russians, and English against France, we seize that moment to countenance it as openly as we dare, by treaties which we never had with them before. All this helps to fill up the measure of provocation towards France, and to get from them a declaration of war which we are afraid to be the first in making."

If these sentiments, in perfect coincidence with the pretensions of France, and censuring the neutral course of the American government, were openly avowed by Mr. Jefferson; if, when they appeared embodied in a letter addressed to a correspondent in Europe, and republished throughout the United States, they remained, even after becoming the topic of universal interest and universal excitement, totally uncontradicted, who could suspect

that any one sentence, particularly that avowing a sentiment so often expressed by the writer, had been interpolated?

Yet Mr. Jefferson, unmindful of these circumstances, after some acrimonious remarks on Colonel Pickering, has said,[\[72\]](#) "and even Judge Marshall makes history descend from its dignity, and the ermine from its sanctity, to exaggerate, to record, and to sanction this forgery."

The note itself will best demonstrate the inaccuracy of this commentary. To this text an appeal is fearlessly made.

This unmerited invective is followed by an accusation not less extraordinary. It is made a cause of crimination that the author has copied the remark of the Parisian editor, instead of the letter itself.

To remove this reproach, he will now insert the letter, not as published in Europe, and transferred from the French to the American papers, but as preserved and avowed by Mr. Jefferson, and given to the world by his grandson. It is in these words.

"Monticello, April 24th, 1796.[\[73\]](#)

"My Dear Friend,

"The aspect of our politics has wonderfully changed since you left us. In place of that noble love of liberty and republican government which carried us triumphantly through the war, an Anglican, monarchical, and aristocratical party has sprung up, whose avowed object is to draw over us the substance as it has already done the forms of the British government. The main body of our citizens, however, remain true to their republican principles; the whole landed interest is republican, and so is a great mass of talents. Against us are the executive, the judiciary, two out of three branches of the legislature, all the officers of the government, all who want to be officers, all timid men who prefer the calm of despotism to the boisterous sea of liberty, British merchants and Americans trading on British capitals, speculators and holders in the banks and public funds, a contrivance invented for the purposes of corruption, and for assimilating us in all things to the rotten as well as sound parts of the British model. It would give you a fever were I to name to you the apostates who have gone over to these heresies, men who were Samsons in the field and Solomons in council, but

who have had their heads shorn by the harlot England. In short, we are likely to preserve the liberty we have obtained only by unremitting labours and perils. But we shall preserve it; and our mass of weight and wealth on the good side is so great as to leave no danger that force will ever be attempted against us. We have only to awake and snap the Lilliputian cords with which they have been entangling us during the first sleep which succeeded our labours.

"I will forward the testimonials, &c."

The reader is requested to pause, to reflect on the state of things at the date of this letter, and to ask himself if its inevitable tendency be not to strengthen the impression in the Directory of France which had influenced its conduct towards the United States?—If it be not in the same spirit with the interpolated sentence, carried to a greater extreme, and calculated to produce the same effect?—If the editor who made the interpolation might not reasonably suppose that he was only applying expressly to France a sentiment already indicated in terms too plain to be misunderstood?

France and Great Britain were then waging deadly war against each other. In this mortal conflict, each sought to strengthen herself, or weaken her adversary by any influence to be acquired over foreign powers—by obtaining allies when allies were attainable, or securing neutrality where co-operation was not to be expected. The temper with which the American people contemplated this awful spectacle can not be forgotten. The war of our revolution, in which France fought by the side of America against Great Britain, was fresh in their recollection. Her unexamined professions of republicanism enlisted all their affections in her favour, and all their antipathies against the monarchs with whom she was contending. Feelings which were believed to be virtuous, and which certainly wore the imposing garb of patriotism, impelled them with almost irresistible force against that wise neutrality which the executive government had laboured to preserve, and had persisted in preserving with wonderful and unexampled firmness. France might, not unreasonably, indulge the hope that our government would be forced out of its neutral course, and be compelled to enter into the war as her ally. The letter to Mazzei could scarcely fail to encourage this hope.

The suggestion had been repeatedly made, and France not only countenanced but acted on it, that the American people were ready to take part with her, and were with difficulty restrained by their government. That the government had fallen into the hands of an English party who were the more closely attached to their favourite nation, because they were unfriendly to republicanism, and sought to assimilate the government of the United States to that of England. Partiality to England was ingratitude to France. Monarchical propensities were of course anti-republican, and led to a system of policy separating the United States from republican France, and connecting them with her monarchical enemies.

These sentiments were expressed in the interpolated sentence; and are intimated in terms perhaps more offensive, certainly not to be mistaken, in the letter as avowed.

Review its language.

"In place of that noble love of liberty and republican government which carried us triumphantly through the War, an Anglican, monarchical, and aristocratical party has sprung up, whose avowed object is to draw over us the substance as it has already done the forms of the British government."

Could this party have been friendly—must it not have been hostile to France? It was not only monarchical and aristocratical,—it was Anglican also. Consequently it was anti-Gallican. But it did not comprehend the mass of the people. "The main body of our citizens, however," continues the letter, "remain true to their republican principles; the whole landed interest is republican, and so is a great mass of talents." Who then composed this odious Anglican, monarchical, aristocratical party? The letter informs us: "Against us are the executive, the judiciary, two out of three branches of the legislature, all the officers of the government, all who want to be officers, all timid men who prefer the calm of despotism to the boisterous sea of liberty, British merchants and Americans trading on British capitals, speculators, and holders in the banks and public funds."

The executive then and at least one other branch of the legislature were Anglican. The judiciary, a department not absolutely insignificant in a maritime war, was also Anglican. But the executive, being the organ of intercourse with foreign nations, is considered by them as essentially the

government. This being thought Anglican, its course being such as to induce the writer to brand it with this odious epithet, ought it to excite surprise that an editor, the organ of the French government, made the strictures upon it which are quoted in the note? Are not those strictures as applicable to the letter now avowed as to the interpolated sentence?

The remark that the "French government had testified its resentment by breaking off communication with an ungrateful and faithless ally until she shall return to a more just and benevolent conduct," was the assertion of a fact which had taken place, and the commentary discloses its object not less plainly than did the time at which this fact was announced to the American government and people.^[74] "It will give rise in the United States," says the editor, "to discussions which may afford a triumph to the party of good republicans, the friends of France."

The letter, without the aid of the interpolated sentence, could not fail to cherish this sentiment. It states explicitly an unequivocal division and a decided hostility between those who administered the government, and the great body of land holders, who, in this country, are the people. The first were Anglican and monarchical, the last were republican, and, in the language of the *Moniteur*, "the friends of France." What so certain to produce or continue the rupture of communication mentioned by the editor as the opinion that this statement was true? If we could doubt, our doubts are removed by the declaration that it would produce "discussions in the United States which may afford a triumph to the party of good republicans, the friends of France;" and by the declaration of Mr. Adet.

The interpolated sentence then does not vary the import of the letter, nor change the impression it made in France, and must make on the mind of the reader.

Were it otherwise, Mr. Jefferson should have directed his reproaches towards himself for the countenance his silent acquiescence gave to the opinion that the whole letter was genuine—not towards the great body of his countrymen who yielded implicit faith to this imposing testimony.

Could such a letter from such a personage be entirely overlooked by the biographer of Washington? Having assumed the task of delineating the character, and detailing the actions and opinions of the great soldier and

statesman of America, an essential part of which was to be looked for in the difficulties and the opposition he encountered and overcame, could a transaction which contains such strong intrinsic evidence of those difficulties and that opposition be passed over in total silence? These questions were revolved in his mind while engaged in this part of the work; and the result to which his judgment conducted him was a conviction that, though he might forbear to make those strictures on the letter which the relative situation of the writer and the individual so seriously criminated seemed to invite, his duty required him to notice it so far as it indicated the violence of party spirit at the time, the extreme to which it was carried, the dangers to which it led, and the difficulties which the wise and firm mind of Washington was doomed to encounter.

The remarks of the French editor were quoted because they have a strong tendency, especially when connected with subsequent events, to explain the motives by which the Directory was actuated in its aggressions on the United States, and to justify the policy of the Washington administration. These remarks did not grow out of the interpolated sentence, nor were they confined to it. They apply to the whole letter. That sentence is not cited, nor is any particular allusion made to it, in the note which is charged with "exaggerating, recording, and sanctioning the forgery." How then could Mr. Jefferson deliberately make the charge?

In the same letter he endeavours to convey the opinion that the harsh and injurious strictures made to Mazzei were not intended for General Washington, and that this distinguished individual never applied them to himself.

The evidence in support of this proposition is not derived from the person whose opinion Mr. Jefferson undertakes to state. The writer says,^[75] "I do affirm that there never passed a word, written or verbal, directly or indirectly, between General Washington and myself on the subject of that letter." If his observations on this point are to be considered as reasoning rather than assertion, they may be freely examined.

At the head of the list of those composing the "Anglican, monarchical, aristocratical party," the letter places "the executive." "Against us are the

executive, the judiciary, two out of three branches of the legislature, all the officers of government, all who want to be officers," &c.

The letter speaks in the present tense, and the term "executive" can describe only the then actual President. Consequently, it designates General Washington as expressly as if he had been named.

If this positive evidence could be strengthened by auxiliary proof, it is furnished by the same sentence. "All officers of government, all who want to be officers," are included in the enumeration of those composing the party opposed to "the main body of citizens who remained true to republican principles."

By whom were these Anglican, monarchical, and aristocratical officers selected? By General Washington. To him alone were they indebted for their appointments. To whom did those "who wanted to be officers" look for the gratification of their wishes? To the same person. Would every individual in search of office enlist himself in a party so odious to "the main body of our citizens," and "the whole landed interest," if he did not think the road leading directly to that which he sought?

As if willing to keep out of view what can not be explained away, Mr. Jefferson turns our attention to other passages supposed to be more equivocal. He insists^[76] that the letter saying "that two out of the three branches of the legislature were against us, was an obvious exception of him; it being well known that the majorities in the two branches of the senate and representatives were the very instruments which carried, in opposition to the old and real republicans, the measures which were the subjects of condemnation in this letter."

But did these measures obtain the force of laws by the mere act of the senate and house of representatives? Did not the President assent to them? If he did, how could the expression "two out of three branches of the legislature" be an obvious exception of him? But the letter speaks of the then existing legislature. "Against us *are* two out of three branches of the legislature." The fact is notorious that the house of representatives was, at the date of the letter, opposed to the administration. Mr. Jefferson himself gives us this information. In September, 1795,^[77] he terms the effort to carry the treaty with Great Britain into effect, "an attempt of a party who

find *they have lost their majority in one branch of the legislature* to make a law by the aid of the other branch and the executive under colour of a treaty," &c. Mr. Jefferson then has deprived himself of this explanation. He could not have intended to exclude the President by the phrase "two out of three branches of the legislature."

The same letter contains also the following expression,^[78] "Mr. Pickering quotes the passage in the letter of the men who were Samsons in the field and Solomons in the council, but who had their heads shorn by the harlot England." "Now this expression also was perfectly understood by General Washington. He knew that I meant it for the Cincinnati generally; and that from what had passed between us at the commencement of that institution, I could not mean to include him."

In the letter to Mazzei these words obviously designate distinguished individuals, not whole classes of men, many of whom were unknown. "It would give you a fever were *I to name to you the apostates* who have gone over to these heresies; men who were Samsons in the field and Solomons in the council, but who have had their heads shorn by the harlot England."

In addition to this apparent allusion to individuals, it may be asked, could Mr. Jefferson mean to say that every officer engaged in the war of our revolution (for almost every one of them was a member of the Cincinnati) was an apostate who had gone over to the heresies he was describing? Could he mean to say that all those who had passed their prime of manhood in the field fighting the battles of American independence, and of republicanism against England, had become apostates from the cause to which their lives had been devoted, and the vile instruments of the power it was their pride and boast to have overthrown? That they were in a body following their ancient chief in a course directly opposite to that glorious career by which they had elevated their country to its high rank among the nations of the earth?

There is other evidence that he could not have intended to fix this foul stigma on the officers of the revolution. They were far from being united in support of the administration. In Virginia certainly, a large number, perhaps a majority of the Cincinnati were opposed to it. Two^[79] of them in congress at the time, and were among the most zealous supporters of Mr. Jefferson,

and of that system of measures which he termed republican. The very letter under discussion contains an assertion incompatible with this construction of these terms. "The whole landed interest is republican." At the date of this letter there were few if any members of the Cincinnati in the south who were not also land holders. In the southern region generally, the army of our revolution was officered by land holders and their sons.

But if the writer of the letter could have intended to designate the members of the Cincinnati as "Samsons in the field," could he also have alluded to them as "Solomons in council?" Were the brave and hardy men who passed their youth, not in college, not in study, but under arms, suddenly converted, all of them, into "Solomons in council?" That some of them were entitled to this appellation is acknowledged with pride and pleasure, but as a class, it could not fit them. It is difficult to treat the proposition seriously.

It is impossible for the intelligent reader to concur with Mr. Jefferson in the conclusion he draws from these premises, when he says,^[80] "General Washington then understanding perfectly what and whom I meant to designate in both phrases, and that they could not have any application or view to himself, could find in neither any cause of offence to himself."

But were it otherwise, had Mr. Jefferson been as successful in the opinion of others as he would seem to be in his own, in proving that the phrases on which he reasons do not comprehend General Washington, what would be gained? Would it follow that the word "executive" did not mean the President, or that it excluded General Washington who was President when the letter was written, and had been President during the whole time while the laws were enacted, and the measures carried into execution, which he so harshly criminales? If the word "executive" must mean him, does it palliate the injury to be assured that the writer did not class him among "Samsons in the field" or "Solomons in council?"

It is matter of some surprise to find a letter written so late as June, 1824, on the political paragraph contained in the letter to Mazzei, the following averment.^[81] "In this information there was not one word which would not then have been or would not now be approved by every republican in the United States, looking back to those times."

In June, 1834, then, twenty-eight years after this extraordinary letter was written, and twenty-three years after its principal object had ceased to thwart the policy, or be an obstacle to the ambition of any man, Mr. Jefferson could deliberately, and on full consideration permit himself to make this assertion, and thus in effect to repeat the charge that General Washington belonged to an "Anglican, monarchical, and aristocratical party whose *avowed* object was to draw over us the substance as they had already done the forms of the British government,"—and this too while the venerated object of the charge was the chief magistrate of this great republic, acting under the obligation of a solemn oath "faithfully to execute the office of President of the United States, and to the best of his ability to preserve, protect, and defend the constitution!"

This unpleasant subject is dismissed. If the grave be a sanctuary entitled to respect, many of the intelligent and estimable friends of Mr. Jefferson may perhaps regret that he neither respected it himself, nor recollected that it is a sanctuary from which poisoned arrows ought never to be shot at the dead or the living.

END OF VOLUME V.

FOOTNOTES

[1] The day on which the palace of the Tuilleries was stormed and the royal government subverted.

[2] With this letter were addressed two others to the ministers at London and Paris respectively, stating the interest taken by the President and people of the United States in the fate of the Marquis de Lafayette. This gentleman was declared a traitor by France, and was imprisoned by Prussia. The ministers of the United States were to avail themselves of every opportunity of sounding the way towards his liberation, which they were to endeavour to obtain by informal solicitations; but, if formal ones should be necessary, they were to watch the moment when they might be urged with the best prospect of success. This letter was written at the sole instance of the President.

[3] See note [No. I.](#) at the end of the volume.

[4] See note [No. II.](#) at the end of the volume.

[5] The regulation alluded to as was stated by Mr. Jefferson in reply, did not relate to vessels arming for defence, but to cruisers against the enemies of France.

[6] They were particularly enumerated, and the decision was also extended to the ship Jane, an English armed merchantman, alleged by Mr. Genet to be a privateer, and the governor was requested to attend to her, and if he found her augmenting her force and about to depart, to cause her to be stopped.

The Jane had augmented her armament by replacing four old gun-carriages with new ones, and opening two new portholes. The request of the British consul that these alterations might be allowed was peremptorily rejected, and directions were given that she should be restored precisely to the situation in which she entered the port. Had she attempted to sail without obeying these orders, Governor Mifflin had taken measures to stop her at Mud Island.

[7] See note [No. III.](#) at the end of the volume.

[8] See note [No. IV.](#) at the end of the volume.

[9] See note [No. V.](#) at the end of the volume.

[10] They received it from the secretaries of the treasury and of war.

[11] See note [No. VI.](#) at the end of the volume.

[12] The state of affairs was so inauspicious to the continuance of peace that in a letter written in the month of June, to the secretary of war, the President thus expressed himself: "It is of great importance that this government should be fully informed of the Spanish force in the Floridas, the troops which have lately arrived, the number of their posts, and the strength and situation of each;

together with such other circumstances as would enable it to adopt correspondent measures, in case we should, in spite of our endeavours to avoid it, get embroiled with that nation. It would be too improvident, might be too late, and certainly would be disgraceful, to have this information to obtain when our plans ought to be formed." After suggesting the propriety of making the proper inquiries in a particular channel, he added, "I point you to the above as one source only of information. My desire to obtain knowledge of these facts leads me to request with equal earnestness, that you would improve every other to ascertain them with certainty. No reasonable expense should be spared to accomplish objects of such magnitude in times so critical."

[13] See note [No. VII.](#) at the end of the volume.

[14] Resolutions had been offered for the creation of a small navy to be employed in the Mediterranean.

[15] In the course of this debate the resolutions were still considered as calculated to promote the interests, not of the United States, but of France. Mr. Ames said they had *French* stamped upon the very face of them. This expression produced a warm retort from Colonel Parker. He wished there was a stamp on the forehead of every person to designate whether he was for France or Britain. For himself he would not be silent and hear that nation abused to whom America was indebted for her rank as a nation. He was firmly persuaded that but for the aid of France in the last war, those gentlemen now on the floor who prided themselves in abusing her, would not have had an opportunity in that place of doing it. This sentiment produced a clap in the galleries. This indecorum was severely reprobated, and a motion was made to clear the galleries. Although the debate shows that the degree of sensibility excited by this disorder was extremely different in the different parties, it was justified by none, and the galleries were cleared.

[16] A few days before the motions of Mr. Dayton and Mr. Clarke, a report was made by the secretary of state relative to the vexations of American commerce committed by the officers and cruisers of the belligerent powers. It was made from materials collected in an inquiry which had been instituted by the President before the meeting of congress. In this report, after detailing the numerous complaints which were made against Great Britain, the secretary proceeded to notice those which were brought against other nations. Against France, he said, it was urged that her privateers harassed the American trade no less than those of the British. That their courts of admiralty were guilty of equal oppression. That they had violated the treaty between the two nations. That a very detrimental embargo had detained a number of American vessels in her ports, and that the government had discharged a specie contract with assignats. The effect of this report seems to have been to excite a suspicion that the secretary of state was not sufficiently attached to liberty and to France.

[17] A well known term designating the most violent party in France.

[18] Previous to taking the question on this bill, a petition had been received against Mr. Gallatin, a senator from the state of Pennsylvania, who was determined not to have been a citizen a sufficient time to qualify him under the

constitution for a seat in the senate. This casual circumstance divided the senate, or the bill would probably have been lost.

[19] A clause in the resolution as proposed, which was understood to imply that the act for incorporating the bank was unconstitutional, was previously struck out by the same majority.

[20] See note [No. VIII.](#) at the end of the volume.

[21] The declaration was not unfrequently made that the people could only be roused to a proper attention to the violation of their rights, and to the prodigal waste of their money, by perceiving the weight of their taxes. This was concealed from them by the indirect, and would be disclosed to them by the direct, system of taxation.

[22] Two months previous to the passage of this resolution, the secretary of state had, by direction of the President, given the governor the most solemn assurances on this point.

[23] Intercepted letters were laid before the President, showing that this expedition had been communicated to some members of the national convention and approved. It was stated that Mr. Genet, with the rank of major general, was to be Commander-in-chief of all forces raised on the American continent, and to direct their movements.

[24] See note [No. IX.](#) at the end of the volume.

[25] An evasive answer having been returned to the pacific overture made from the Au Glaize, General Wayne was uncertain whether the Indians had decided for peace or war.

[26] The inspector had left the house and secreted himself. The demand of the papers was acceded to.

[27] This requisition was afterwards augmented to fifteen thousand.

[28] The spirit of disaffection was rapidly spreading, and had it not been checked by this vigorous exertion of the powers of the government, it would be difficult to say what might have been its extent. Even while the militia were assembling, it broke out in more than one county in Pennsylvania, and showed itself in a part of Maryland.

[29] The impression, he said, made by this moderation on the discontented, did not correspond with what it deserved. The acts of delusion were no longer confined to the efforts of designing individuals. The very forbearance to press prosecutions was misinterpreted into a fear of urging the execution of the laws, and associations of men began to denounce threats against the officers employed. From a belief that by a more formal concert their operations might be defeated, certain self-created societies assumed the tone of condemnation.

[30] The apprehensions entertained by the opposition that Colonel Hamilton would be appointed on the embassy to England were extreme. Among the letters to General Washington, are some from members of each branch of the legislature, advising against the mission generally, and dissuading him from the

appointment of Colonel Hamilton particularly, in terms which manifest a real opinion that the best interests of the nation would be sacrificed by such an appointment. Colonel Hamilton himself recommended Mr. Jay.

[31] See note [No. X.](#) at the end of the volume.

[32] In a private letter to the President, of the same date with the signature of the treaty, Mr. Jay said "to do more was impossible. I ought not to conceal from you, that the confidence reposed in your personal character was visible and useful throughout the negotiation.

"If there is not a good disposition in the far greater part of the cabinet and nation towards us, I am exceedingly mistaken. I do not mean an ostensible and temporizing, but a real good disposition.—I wish it may have a fair trial."

[33] See note [No. XI.](#) at the end of the volume.

[34] The chamber of commerce in New York had voted resolutions expressing their approbation of the treaty.

[35] Previous to the reception of the account of this order, the opinion of the secretary had been in favour of ratifying the treaty.

[36] See the Aurora from August to December, 1795. See, in particular, a series of essays, signed "A Calm Observer," published from the 23d of October to the 5th of November, 1795.

[37] Gazette of the United States, 16th November, 1795.

[38] See note [No. XII.](#) at the end of the volume.

[39] See note [No. XIII.](#) at the end of the volume.

[40] Subsequent to the mission of Mr. Adet, but previous to this time, the revolutionary government which succeeded the abolition of monarchy had yielded to the constitution of the republican form.

[41] The words of the oath of office prescribed for the chief magistrate.

[42] Mr. James Marshall.

[43] In the same letter Mr. Jefferson had stated his total abstraction from party questions.

[44] See note [No. XIV.](#) at the end of the volume.

[45] See Monroe's View.

[46] At his own request, Mr. Pinckney had been recalled; and Mr. King, a gentleman whose talents have been universally acknowledged, and whose services will be long recollected with approbation, had succeeded him.

[47] The constitutional power of congress to appropriate money to objects of the description here recommended was denied by the opposition.

[48] Some objection has been made to the accuracy of this speech, as reported in the Daily Advertiser. The author has therefore deemed it proper to make some

extracts from the Aurora, the leading paper of that party, of which Mr. Giles was a conspicuous member.

Mr. Giles, after stating that "the want of wisdom and firmness" in the administration, "had conducted the affairs of the nation to a crisis which threatens greater calamities than any that has before occurred,"—remarks as follows:—"Another sentiment in the report he could not agree to. He did not regret the President's retiring from office. He hoped he would retire, and enjoy the happiness that awaited him in retirement. He believed it would more conduce to that happiness that he should retire than if he should remain in office. He believed the government of the United States, founded on the broad basis of the people, that they were competent to their own government, and the remaining of no man in office was necessary to the success of that government. The people would truly be in a calamitous situation, if one man were essential to the existence of the government. He was convinced that the United States produces a thousand citizens capable of filling the presidential chair, and he would trust to the discernment of the people for a proper choice. Though the voice of all America should declare the President's retiring as a calamity, he could not join in the declaration, because he did not conceive it a misfortune. He hoped the President would be happy in his retirement, and he hoped he would retire." He reverted again to that part of the report which declared the administration to have been wise and firm in its measures. "He had always disapproved," he repeated, "of the measures of that administration with respect to foreign relations, and many members of the house had also; he was therefore surprised that gentlemen should now come forward and wish him, in one breath, to disavow all his former opinions, without being previously convinced of having been in an error. For his own part, he conceived there was more cause than ever for adhering to his old opinion. The course of events had pointed out their propriety; and, if he was not much mistaken, a crisis was at hand which would confirm them. He wished, that while gentlemen were willing to compliment the President, they would have some respect for the feelings of others."—*Aurora, December 15th, 1796.*

[49] Dunlap and Claypole's Daily Advertiser, December 16th, 1796.

[50] See note [No. XV.](#) at the end of the volume.

[51] See note [No. XVI.](#) at the end of the volume.

[52] See note [No. XVII.](#) at the end of the volume.

[53] Two of them were of the party denominated federal; the third was arranged with the opposition.

[54] It is a remarkable fact, that the answer of the French minister to this letter, an answer which criminated the American government in bitter terms, was in the possession of a printer in Philadelphia who had uniformly supported the pretensions of that republic, before it reached the American government.

[55] Having heard that the President contemplated a tour as far south as the district of Columbia, General Washington invited him to Mount Vernon, and concluded his letter with saying: "I pray you to believe that no one has read the various approbatory addresses which have been presented to you with more heartfelt satisfaction than I have done, nor are there any who more sincerely wish

that your administration of the government may be easy, happy and honourable to yourself, and prosperous to the country."

[56] See note [No. XVIII.](#) at the end of the volume.

[57] *The following is the list of generals, and of the military staff.*

Alexander Hamilton, <i>Inspector.</i>	
Charles C. Pinckney,	}
Henry Knox, or, if either refuses	} Major Generals.
Henry Lee.	}
Henry Lee (if not Major General)	}
John Brooks,	}
William S. Smith, or	} Brigadiers.
John E. Howard.	}
Edward Hand, or	}
Jonathan Dayton, or	} Adjutant General.
William S. Smith.	}
Edward Carrington, Quarter Master General.	
James Craik, Director of the Hospital.	

[58] These resolutions were prepared by General Lee, who happening not to be in his place when the melancholy intelligence was received and first mentioned in the house, placed them in the hands of the member who moved them.

[59] Vol. iv. p. 402.

[60] April, 1796.

[61] Vol. iii. p. 313.

[62] Holland, it will be remembered, had been conquered by Pichegru.

[63] Vol. iii. p. 316.

[64] Vol. iii. p. 317.

[65] Vol. iii. p. 319.

[66] Vol. iii. p. 323.

[67] Vol. iii. p. 324.

[68] Vol. iii. p. 328.

[69] Vol. iii. p. 347.

[70] Vol. iii. p. 347

[71] Vol. iii. p. 418.

[72] Vol. iv. p. 402.

[73] Vol. iii. p. 327.

[74] It was announced by Mr. Adet in the crisis of the first contest for the Presidency between Mr. Adams and Mr. Jefferson.

[75] Vol. iv. p. 401.

[76] Vol. iv. p. 405.

[77] Vol. iii. p. 316.

[78] Vol. iv. p. 404.

[79] Colonels Cabell and Par.

[80] Vol. iv. p. 406.

[81] Vol. iv. p. 402.

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GEORGE WASHINGTON, VOL. 5 ***

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